

BLACKWOOD'S EDINBURGH MAGAZINE.

No. CCCLXXXVIII. FEBRUARY, 1848.

VOL. LXIII.

CONTENTS.

THE RUSSIAN EMPIRE,	129
AUTOBIOGRAPHY OF A GERMAN HEADSMAN,	148
EDINBURGH AFTER FLODDEN,	165
SUBJECTS FOR PICTURES,	176
JERUSALEM,	192
MY ENGLISH ACQUAINTANCE,	194
OUR WEST INDIAN COLONIES,	219
NOW AND THEN,	239

EDINBURGH:
WILLIAM BLACKWOOD AND SONS, 45, GEORGE STREET;
AND 37, PATERNOSTER ROW, LONDON.

To whom all Communications (post paid) must be addressed.

SOLD BY ALL THE BOOKSELLERS IN THE UNITED KINGDOM.

PRINTED BY WILLIAM BLACKWOOD AND SONS, EDINBURGH.

BLACKWOOD'S EDINBURGH MAGAZINE.

No. CCCLXXXVIII. FEBRUARY, 1848.

VOL. LXIII.

CONTENTS.

THE RUSSIAN EMPIRE,	129
AUTOBIOGRAPHY OF A GERMAN HEADSMAN,	148
EDINBURGH AFTER FLODDEN,	165
SUBJECTS FOR PICTURES,	176
JERUSALEM,	192
MY ENGLISH ACQUAINTANCE,	194
OUR WEST INDIAN COLONIES,	219
NOW AND THEN,	239

EDINBURGH:

WILLIAM BLACKWOOD AND SONS, 45, GEORGE STREET;
AND 37, PATERNOSTER ROW, LONDON.

To whom all Communications (post paid) must be addressed.

SOLD BY ALL THE BOOKSELLERS IN THE UNITED KINGDOM.

PRINTED BY WILLIAM BLACKWOOD AND SONS, EDINBURGH.

The Project Gutenberg eBook of Blackwood's Edinburgh Magazine, Vol. 63, No. 388, February 1848

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Blackwood's Edinburgh Magazine, Vol. 63, No. 388, February 1848

Author: Various

Release date: September 2, 2018 [eBook #57834]

Language: English

Other information and formats: www.gutenberg.org/ebooks/57834

Credits: Produced by Brendan OConnor, Jonathan Ingram, David King,
and the Online Distributed Proofreading Team at
<http://www.pgdp.net>. (This file was produced from images
generously made available by The Internet Library of Early
Journals.)

*** START OF THE PROJECT GUTENBERG EBOOK BLACKWOOD'S
EDINBURGH MAGAZINE, VOL. 63, NO. 388, FEBRUARY 1848 ***

BLACKWOOD'S EDINBURGH MAGAZINE.

**BLACKWOOD'S EDINBURGH
MAGAZINE.**

No. CCCLXXXVIII. FEBRUARY, 1848.

Vol. LXIII.

EDINBURGH:

WILLIAM BLACKWOOD AND SONS, 45, GEORGE STREET;
AND 37, PATERNOSTER ROW, LONDON.

PRINTED BY WILLIAM BLACKWOOD AND SONS, EDINBURGH.

CONTENTS.

The Russian Empire	<u>129</u>
Autobiography of a German Headsman	<u>148</u>
Edinburgh after Flodden	<u>165</u>
Subjects for Pictures	<u>176</u>
Jerusalem	<u>192</u>
My English Acquaintance	<u>194</u>
Our West Indian Colonies	<u>219</u>
Now and Then	<u>239</u>

THE RUSSIAN EMPIRE.

(Secret History of the Court and Government of Russia, under the Emperors Alexander and Nicholas. By H. SCHNITZLER. Two vols. Bentley: London.)

Russia is the most extraordinary country on the globe, in the four most important particulars of empire,—its history, its extent, its population, and its power.

It has for Europe another interest,—the interest of alarm, the evidence of an ambition which has existed for a hundred and fifty years, and has never paused; an increase of territory which has never suffered the slightest casualty of fortune; the most complete security against the retaliation of European war; and a government at once despotic and popular; exhibiting the most boundless authority in the sovereign, and the most boundless submission in the people; a mixture of habitual obedience, and divine homage: the reverence to a monarch, with almost the prostration to a divinity.

Its history has another superb anomaly: Russia gives the most memorable instance in human annals, of the powers which lie within the mind of individual man. Peter the Great was not the restorer, or the reformer of Russia; he was its moral *creator*. He found it, not as Augustus found Rome, according to the famous adage, “brick, and left it marble:” he found it a living swamp, and left it covered with the fertility of laws, energy, and knowledge: he found it Asiatic, and left it European: he removed it as far from Scythia, as if he had placed the diameter of the globe between: he found it not brick, but mire, and he transformed a region of huts into the magnificence of empire.

Russia first appears in European history in the middle of the ninth century. Its climate and its soil had till then retained it in primitive barbarism. The

sullenness of its winter had prevented invasion by civilised nations, and the nature of its soil, one immense plain, had given full scope to the roving habits of its half famished tribes. The great invasions which broke down the Roman empire, had drained away the population from the north, and left nothing but remnants of clans behind. Russia had no Sea, by which she might send her bold savages to plunder or to trade with Southern and Western Europe. And, while the man of Scandinavia was subduing kingdoms, or carrying back spoil to his northern crags and lakes, the Russian remained, like the bears of his forest, in his cavern during the long winter of his country; and even when the summer came, was still but a melancholy savage, living like the bear upon the roots and fruits of his ungenial soil.

It was to one of those Normans, who, instead of steering his bark towards the opulence of the south, turned his dreary adventure to the north, that Russia owed her first connexion with intelligent mankind. The people of Novgorod, a people of traders, finding themselves overpowered by their barbarian neighbours, solicited the aid of Ruric, a Baltic chieftain, and, of course, a pirate and a robber. The name of the Norman had earned old renown in the north. Ruric came, rescued the city, but paid himself by the seizure of the surrounding territory, and founded a kingdom, which he transmitted to his descendants, and which lasted until the middle of the sixteenth century.

In the subsequent reign we see the effect of the northern pupillage; and an expedition, in the style of the Baltic exploits, was sent to plunder Constantinople. This expedition consisted of two thousand canoes, with eighty thousand men on board. The expedition was defeated, for the Greeks had not yet sunk into the degeneracy of later times. They fought stoutly for their capital, and roasted the pirates in their own canoes, by showers of the famous "Greek fire."

Those invasions, however, were tempting to the idleness and poverty, or to the avarice and ambition of the Russians; and Constantinople continued to be the great object of cupidity and assault, for three hundred years. But the city of Constantine was destined to fall to a mightier conqueror.

Still, the northern barbarian had now learned the road to Greece, and the intercourse was mutually beneficial. Greece found daring allies in her old

plunderers, and in the eleventh century she gave the Grand-duke Vladimir a wife, in the person of Anna, sister of the emperor Basil II; a gift made more important by its being accompanied by his conversion to Christianity.

A settled succession is the great secret of royal peace: but among those bold riders of the desert, nothing was ever settled, save by the sword; and the first act of all the sons, on the decease of their father, was, to slaughter each other; until the contest was settled in their graves, and the last survivor quietly ascended the throne.

But war, on a mightier scale than the Russian Steppes had ever witnessed, was now rolling over Central Asia. The cavalry of Genghiz Khan, which came, not in squadrons, but in nations, and charged, not like troops, but like thunderclouds, began to pour down upon the valley of the Wolga. Yet the conquest of Russia was not to be added to the triumphs of the great Tartar chieftain; a mightier conqueror stopped him on his way, and the Tartar died.

His son Toushi, lit the beginning of the thirteenth century, burst over the frontier at the head of half a million of horsemen. The Russian princes, hastily making up their quarrels, advanced to meet the invader; but their army was instantly trampled down, and, before the middle of the century, all the provinces, and all the cities of Russia, were the prey of the men of the wilderness. Novgorod alone escaped.

The history of this great city would be highly interesting, if it were possible now to recover its details. It was the chief depot of the northern Asiatic commerce with Europe; it had a government, laws, and privileges of its own, with which it suffered not even the Khan or the Tartars to interfere. Its population amounted to four hundred thousand—then nearly equal to the population of a kingdom. In the thirteenth century it connected itself still more effectively with European commerce, by becoming a member of the Hanseatic League; and the wonder and pride of the Russians were expressed in the well-known half-profane proverb, “Who can resist God, and the great Novgorod?”

There is always something almost approaching to picturesque grandeur in the triumphs of barbarism. The Turk, until he was fool enough to throw away the turban, was the most showy personage in the world. The Arabs, under Mahomet, were the most stately of warriors, and the Spanish Moors threw all the pomp, and even all the romance, of Europe into the shade.

Even the chiefs of the “Golden Horde” seemed to have had as picturesque a conception of supremacy as the Saracen. Their only city was a vast camp, in the plains between the Caspian and the Wolga; and while they left the provinces in the hands of the native princes, and enjoyed themselves in the manlier sports of hunting through the plains and mountains, they commanded that every vassal prince should attend at the imperial tent to receive permission to reign, or perhaps to live; and that, even when they sent their Tartar collectors to receive the tribute, the Russian princes should lead the Tartar’s horse by the bridle, and give him a feed of oats out of their *cap of state*!

But another of those sweeping devastators, one of those gigantic executioners, who seem to have been sent from time to time to punish the horrible profligacies of Asia, now rose upon the north. Timour Khan, the Tamerlane of European story, the Invincible, the Lord of the Tartar World, rushed with his countless troops upon the sovereignties of Western Asia. This universal conqueror crushed the Tartar dynasty of Russia, and then burst away, like an inundation, to overwhelm other lands. But the native Russians again made head against their Tartar masters, and a century and a half of sanguinary warfare followed, with various fortunes, and without any other result than blood.

Without touching on topics exclusively religious, it becomes a matter of high interest to mark the vengeance, furies, and massacres, of heathenism, in every age of the world. Yet while we believe, and have such resistless reason to believe, in the Providential government, what grounds can be discovered for this sufferance of perpetual horrors? For this we have one solution, and but one: stern as the inflictions are, may they not be in mercy? may not the struggles of barbarian life be permitted, simply to retard the headlong course of barbarian corruption? may there not be excesses of wickedness, extremes of national vice, an accumulation of offences against the laws of moral nature, (which are the original laws of Heaven,) actually incompatible with the Divine mercy? Nothing can be clearer to the understanding, than that there are limits which the Divine Being has prescribed to his endurance of the guilt of man, and prescribed doubtless for the highest objects of general mercy; as there are offences which, by human laws, are incompatible with the existence of society.

The crimes of the world before the flood were evidently of an intense iniquity, which precluded the possibility of purification; and thus it became necessary to extinguish a race, whose continued existence could only have corrupted every future generation of mankind.

War, savage feuds, famines, and pestilences, may have been only Divine expedients to save the world from another accumulation of intolerable iniquity, by depriving nations of the power of utter self-destruction, by thinning their numbers, by compelling them to feel the miseries of mutual aggression, and even by reducing them to that degree of poverty which supplied the most effective antidote to their total corruption.

Still, those sufferings were punishments, but punishments fully earned by their fierce passions, savage propensities, remorseless cruelties, and general disobedience of that natural law of virtue, which, earlier even than Judaism or Christianity, the Eternal had implanted in the heart of his creatures.

In the fifteenth century Russia began to assume a form. Ivan III. broke off the vassalage of Russia to the "Golden Horde." He had married Sophia, the niece of the Greek emperor, to which we may attribute his civilisation; and he received the embassies of Germany, Venice, and Rome, at Moscow. His son, Ivan IV., took Novgorod, which he ruined, and continued to fight the Poles and Tartars until he died. His son Ivan, in the middle of the sixteenth century, was crowned by the title of Czar, formed the first standing army of Russia, named the Strelitzes, and established a code of laws. In 1598, by the death of the Czar Feodor without children, the male line of Ruric, which had held the throne for seven hundred and thirty-six years, and under fifty-six sovereigns, became extinct.

Another dynasty of remarkable distinction ascended the throne, in the beginning of the seventeenth century. Michael Romanoff, descended from the line of Ruric by the female side, was declared Czar. His son Alexis was the father of Peter the Great, who, with his brother Ivan, was placed on the throne at the decease of their father, but both under the guardianship of the Princess Sophia. But the Princess, who was the daughter of Alexis, exhibiting an intention to seize the crown for herself, a revolution took place in 1689, in which the Princess was sent to a convent. Ivan, who was imbecile in mind and body, surrendered the throne, and Peter became sole sovereign of Russia.

The accession of Peter began the last and greatest period of Russian history. Though a man of fierce passions and barbarian habits, he had formed a high conception of the value of European arts, chiefly through an intelligent Genevese, Lefort, who had been his tutor.

The first object of the young emperor was to form an army; his next was to construct a fleet. But both operations were too slow for his rapidity of conception; and, in 1697, he travelled to Holland and England for the purpose of learning the art of ship-building. He was forced to return to Russia after an absence of two years, by the revolt of the Strelitzes in favour of the Princess Sophia. The Strelitzes were disbanded and slaughtered, and Peter felt himself a monarch for the first time.

The cession of Azof by the Turks, at the peace of Carlowitz in 1699, gave him a port on the Black Sea. But the Baltic acted on him like a spell; and, to obtain an influence on its shores, he hazarded the ruin of his throne.

Sweden, governed by Charles XII., was then the first military power of the north. The fame of Gustavus Adolphus in the German wars, had given the Swedes the example and the renown of their great king; and Charles, bold, reckless, and half lunatic, despising the feebleness of Russia, had turned his arms against Denmark and Poland. But the junction of Russia with the "Northern League" only gave him a new triumph. He fell upon the Russian army, and broke it up on the memorable field of Narva, in 1700.

Peter still proceeded with his original vigour. St Petersburg was founded in 1703. The war was prosecuted for six years, until the Russian troops obtained a degree of discipline which enabled them to meet the Swedes on equal terms. In 1708, Charles was defeated in the memorable battle of Pultowa. His army was utterly ruined, and himself forced to take refuge in Turkey. Peter was now at the head of northern power. Frederic Augustus was placed on the throne of Poland by the arms of Russia, and from this period Poland was under Russian influence.

Peter now took the title of "Emperor and Autocrat of all the Russias." In 1716 he again travelled in Europe. In 1723 he obtained the provinces on the Caspian, by an attack on Persia. But his vigorous, ambitious, and singularly successful career was now come to a close. The death of a Russian prince is seldom attributed to the course of nature; and Peter died at the age of fifty-two, a time when the bodily powers are still undecayed, and the mental are

in the highest degree of activity. The day, still recorded by the Russians with the interest due to his extraordinary career, was the 28th of January 1725. In thirty-six years he had raised Russia from obscurity to a rank with the oldest powers of Europe.

We hasten to the close of this sketch, and pass by the complicated successions from the death of Peter to the reign of the Empress Catherine.

The Russian army had made their first appearance in Germany, in consequence of a treaty with Maria Theresa; and their bravery in the “Seven Years’ War,” in the middle of the last century, established their distinction for soldiership.

Peter III. withdrew from the Austrian alliance, and concluded peace with Prussia. But his reign was not destined to be long. At once weak in intellect, and profligate in habits, he offended and alarmed his empress, by personal neglect, and by threats of sending her to a convent. Catherine, a German, and not accustomed to the submissiveness of Russian wives, formed a party against him. The people were on her side; and, what was of more importance, the Guards declared for her. An insurrection took place; the foolish Czar, after a six months’ reign, was dethroned July 1762, was sent to a prison, and within a week was no more. The Russians assigned his death to poison, to strangulation, or to some other species of atrocity. Europe talked for a while of the “Russian Tragedy!” but the emperor left no regrets behind him; and “Catherina, Princess of Anhalt Zerbst,” handsome, young, accomplished, and splendid, ascended a throne of which her subjects were proud; which collected round it the elite of Germany, its philosophers and soldiers; which the empress connected with the *beaux esprits* of France, and the orators and statesmen of England; and which, during her long, prosperous, and ambitious reign, united the pomp of Asia with the brilliancy and power of Europe. The shroud of the Czar was speedily forgotten, in the embroidered robe which Catherine threw over the empire.

But the greatest crime of European annals was committed in this bold and triumphant reign. Russia, Prussia, and Austria, tempted by the helplessness of Poland, formed a league to seize upon portions of its territory; and the partition of 1772 took place, to the utter astonishment of Europe, but with scarcely a remonstrance from its leading powers.

Poland had so long been contented to receive its sovereign from Russia, its religions disputes had so utterly weakened the people, its nobility were so profligate, and its peasantry were so poor, that it had lost all the sinews of national defence. It therefore fell an easy prey; and only waited, like a slave in the market, till the bargain for its sale was complete.

In 1793, a second partition was effected. In the next year, the Polish troops took up arms under the celebrated Kosciusko; but the Russians advanced on Warsaw with a force which defied all resistance. Warsaw was stormed, twenty thousand gallant men were slain in its defence, Suwarroff was master of the unfortunate capital; and, in 1795, the third and last partition extinguished the kingdom.

Having performed this terrible exploit, which was to be as terribly avenged, the career of Catherine was closed. She died suddenly in 1796.

Paul, her son, ascended the throne, which he held for five years; a mixture of the imbecility of his father, and the daring spirit of his mother. Zealous for the honour of Russia, yet capricious as the winds, he first made war upon the French Republic, and then formed a naval league to destroy the maritime supremacy of England. This measure was his ruin; England was the old ally of Russia,—France was the new enemy. The nation hated the arrogance and the atheism of France, and resolved on the overthrow of the Czar. In Russia the monarch is so far removed from his people, that he has no refuge among them in case of disaster. Paul was believed to be mad, and madness, on a despotic throne, justly startles a nation. A band of conspirators broke into his palace at midnight, strangled the master of fifty millions of men, and the nation, at morning, was in a tumult of joy.

His son, Alexander, ascended the throne amid universal acclamation. His first act was peace with England. In 1805, his troops joined the Austrian army, and bore their share in the sufferings of the campaign of Austerlitz. The French invasion of Poland, in two years after, the desperate drawn battle of Eylau, and the disaster of Friedland, led to the peace of Tilsit. Alexander then joined the Continental system of Napoleon; but this system was soon found to be so ruinous to Russian commerce, as to be intolerable. Napoleon, already marked for downfall, was rejoiced to take advantage of the Russian reluctance, and instantly marched across the Polish frontier, at

the head of a French and allied army amounting to the astonishing number of five hundred thousand men.

Infatuation was now visible in every step of his career. Instead of organising Poland into a kingdom, which would have been a place of retreat in case of disaster; and, whether in disaster or victory, would have been a vast national fortification against the advance of Russia, he left it behind him; and, instead of waiting for the return of spring, commenced his campaign on the verge of winter, in the land of winter itself, and madly ran all the hazards of invading a boundless empire of which he knew nothing, of which the people were brave, united, and attached to their sovereign; and of which, if the armies had fled like deer, the elements would have fought the battle.

Napoleon was now *infatuated* in all things, infatuated in his diplomacy at Moscow, and infatuated in the rashness, the hurry, and the confusion of his retreat. His army perished by brigades and divisions. On the returning spring, three hundred thousand men were found buried in the snow; all his spoil was lost, his veteran troops were utterly destroyed, his fame was tarnished, and his throne was shaken.

He was followed into France by the troops of Russia and Germany. In 1814, the British army under Wellington crossed the Pyrenees, and liberated the southern provinces of France. In the same year, the Austrian, Prussian, and Russian armies marched to Paris, captured the capital, and expelled Napoleon. The battle of Waterloo, in the year after, destroyed the remnant of his legions in the field, threw him into the hands of the British government, and exiled him to St Helena, where he remained a British prisoner until he died.

Alexander died in 1825, at the age of forty-eight, and, leaving no sons, was succeeded by his brother Nicholas, the third son of Paul—Constantine having resigned his claims to the throne. We pass over, for the moment, the various events of the present imperial reign. Its policy has been constantly turned to the acquisition of territory; and that policy has been always successful. The two great objects of all Russian cabinets, since the days of Constantine, have been the possession of Turkey and the command of the Mediterranean. Either would inevitably produce a universal war; and while we deprecate so tremendous a calamity to the world, and rely on the rational and honourable qualities of the Emperor, to rescue both Russia and

Europe from so desperate a struggle, we feel that it is only wise to be prepared for all the contingencies that may result from the greatest mass of power that the world has ever seen, moved by a despotic will, and that will itself subject to the common caprices of the mind of man.

The volumes to which we shall now occasionally refer, are written by an intelligent observer, who began his study of Russia by an office under her government, and who has, since that period, been occupied in acquiring additional knowledge of her habits, finances, population, and general system of administration. A Frenchman by birth, but a German by descent, he in a very considerable degree unites the descriptive dexterity of the one with the grave exactness of the other. His subject is of the first importance to European politicians, and he seems capable of giving them the material of sound conclusions.

The author commences with the reign of Alexander, and gives a just panegyric to the kindliness of his disposition, the moderation of his temper, and his sincere desire to promote the happiness of his people. Nothing but this disposition could have saved him from all the vices of ambition, profligacy, and irreligion; for his tutor was La Harpe, one of the savans of the Swiss school, a man of accomplishment and talent, but a scoffer. But the English reader should be reminded, that when men of this rank of ability are pronounced hostile to religion, their hostility was not to the principles of Christianity, but to the religion of France; to the performances of the national worship, to the burlesque miracles wrought at the tomb of the Abbé Paris, and to that whole system of human inventions and monkish follies, which was as much disbelieved in France as it was disdained in England.

In fact, the religion of the gospel had never come into their thoughts; and when they talked of revelation, they thought only of the breviary. The Empress Catherine, finding no literature in Russia, afraid, or ashamed of being known as a German, and extravagantly fond of fame, attached herself to the showy pamphleteers of France, and courted every gale of French adulation in return. She even corresponded personally with some of the French *litterateurs*, and was French in every thing except living in St Petersburg, and wearing the Russian diadem. She was even so much the slave of fashion as to adopt, or pretend to adopt, the fantasies in government which the French were now beginning to mingle with their fantasies in religious.

She wrote thus to Zimmerman, the author of the dreamy and dreary work on “Solitude,” “I have been attached to philosophy, because my soul has always been singularly *republican*. I confess that this tendency stands in strange contrast with the unlimited power of my *place*.”

If the quiet times of Europe had continued, and France had exhibited the undisturbed pomps of her ancient court, Alexander would probably have been a Frenchman and *philosophe* on the banks of the Neva; but stirring times were to give him more rational ideas, and the necessities of Russia reclaimed him from the absurdities of his education.

La Harpe himself was a man of some distinction—a Swiss, though thoroughly French and revolutionary. After leaving Russia, he became prominent, even in France, as an abettor of republican principles, and was one of the members of the Swiss Directory. La Harpe survived the Revolution, the Empire, and the Bourbons, and died in 1838.

The commencement of Alexander’s reign was singularly popular, for it began with treaties on every side. Paul, who had sent a challenge to all the sovereigns of Europe to fight him in person, had alarmed his people with the prospect of a universal war. Alexander was the universal pacificator; he made peace with England, peace with France, and a commercial treaty with Sweden. He now seemed resolved to avoid all foreign wars, to keep clear of European politics, and to devote all his thoughts to the improvement of his empire. Commencing this rational and meritorious task with zeal, he narrowed the censorship of the press, and enlarged the importation of foreign works. He broke up the system of espionage—formed a Council of State—reduced the taxes—abolished the punishment by torture—refused to make grants of peasants—constituted the Senate into a high court of justice divided into departments, in order to remedy the slowness of law proceedings—established universities and schools—allowed every subject to choose his own profession; and, as the most important and characteristic of all his reforms, allowed his nobility to sell portions of land to their serfs, with the right of personal freedom: by this last act laying the foundation of a new and free race of proprietors in Russia.

The abolition of serfdom was a great experiment, whose merits the serfs themselves scarcely appreciated, but which is absolutely necessary to any elevation of the national character. It has been always opposed by the

nobles, who regard it as the actual plunder of their inheritance; but Alexander honourably exhibited his more humane and rational views on the subject, whenever the question came within his decision.

A nobleman of the highest rank had requested an estate “with its serfs,” as an imperial mark of favour. Alexander wrote to him in this style: “The peasants of Russia are for the most part *slaves*. I need not expatiate on the degradation, or on the misfortune of such a condition. Accordingly, I have made a vow not to increase the number; and to this end I have laid down the principle *not* to give away peasants as property.”

The Emperor sometimes did striking things in his private capacity. A princess of the first rank applied to him to protect her husband from his creditors, intimating that “the emperor was above the law.”

Alexander answered, “I do not wish, madam, to put myself above the law, even if I could, for in all the world I do not recognise any authority but that which comes from the law. On the contrary, I feel more than any one else the obligation of watching over its observance, and even in cases where others may be indulgent, *I* can only be just.”

The French war checked all those projects of improvement; and the march of his troops to the aid of Austria in 1805, commenced a series of hostilities, which, for seven years, occupied the resources of the empire, and had nearly subverted his throne. But he behaved bravely throughout the contest. When Austria was beaten and signed a treaty, Alexander refused to join in the negotiation. When Prussia, under the influence of counsels at once rash and negligent—too slow to aid Austria, and too feeble to encounter France—was preparing to resist Napoleon in 1805, Alexander, Frederic William, and his queen Louisa, made a visit by torch-light to the tomb of Frederic the Great in Potsdam; and there, on their knees, the two monarchs joined their hands over the tomb, and pledged themselves to stand by each other to the last.

When Prussia was defeated, Alexander still fought two desperate battles; and it was not until the advance of the French made him dread the rising of Poland in his rear, that he made peace in 1802.

At this peace, he was charged with bartering his principles for the extension of his dominions by the seizure of Turkey, and even of the extravagance of

dividing the world with Napoleon. But these charges were never proved.

We, too, have our theory, and it is, that the fear of seeing Poland in insurrection alone compelled Alexander to submit to the treaty of Tilsit; but that he felt all the insolence of the French Emperor, in demanding the closing of the Russian ports against England; and felt the treaty as a chain, which he was determined to break on the first provocation. We think it probable that the knowledge of the “secret articles” of that treaty was conveyed from the Russian Court to England; and, without pretending to know from what direct hand it came, we believe that the seizure of the Danish fleet, which was the immediate result of that knowledge, was as gratifying to Alexander as it was to the English cabinet, notwithstanding the diplomatic wrath which it pleased him to affect on that memorable occasion.

But other times were ripening. It has been justly observed, that the Spanish war was the true origin of Napoleon’s ruin. He perished by his own perfidy. The resistance of Spain awoke the resistance of Europe. All Germany, impoverished by French plunder, and indignant at French insults, longed to rise in arms. The Russians then boldly demanded the emancipation of their commerce, and issued a relaxed tariff in 1811. British vessels then began to crowd the Russian ports. Napoleon was indignant and threatened. Alexander was offended, and remonstrated. The French Emperor instantly launched one of his fiery proclamations; declared that the House of Romanoff was undone; and, on the 24th of June 1812, threw his mighty army across the Niemen.

We pass over the events of that memorable war as universally known; but justice is not done to the Russian emperor, unless we recollect how large a portion of the liberation of Europe was due to his magnanimity. To refuse obedience to the commercial tyranny of Napoleon, where it menaced the ruin of his people, was an act of personal magnanimity, for it inevitably exposed his throne and life to the hazards of war with a universal conqueror. On the declaration of war, he determined to join his armies in the field, another act of magnanimity, which was prevented only by the remonstrance of his generals, who represented to him the obstacles which must be produced by the presence of the emperor. But, when the invasion of France was resolved on, and negotiations might require his presence, he was instantly in the camp, and was of the highest importance to the final

success of the campaign. He threw vigour into the councils of the Austrian generalissimo, and, with the aid of the British ambassador, actually urged and effected the “March to Paris.”

In Paris, however, his magnanimity was unfortunate, his generosity was misplaced, his chivalric feelings had to deal with craft, and his reliance on the pledges of Napoleon ultimately cost Europe one of the bloodiest of its campaigns. A wiser policy would have given Napoleon over to the dungeon, or sent him before a military tribunal, as he had sent the unfortunate Duc d’Enghien, with not the thousandth part of the reason or the necessity, and the peace of the Continent would thus have been secured at once. But a more theatric policy prevailed. The promises of a man who had never kept a promise were taken; the stimulant of an imperial title was kept up, when he ought to have been stripped of all honours; an independent revenue was issued to him, which was sure to be expended in bribing the officials and soldiery of France; and, by the last folly of a series of generous absurdities, Napoleon was placed in the very spot which he himself would have chosen, and probably *did* choose, for the centre of a correspondence, between the corruption of Italy and the corruption of France.

The result was predicted by every politician of Europe, except the politicians of the Tuileries. France was speedily prepared for revolt; the army had their tricoloured cockades in their knapsacks. The Bourbons, who thought that the world was to be governed by going to mass, were forced to flee at midnight. Napoleon drove into the capital, with all the traitors of the army and the councils clinging to his wheels, cost France another “March to Paris,” the loss of another veteran army, and himself another exile, where he was sent to linger out his few wretched and humiliated years in the African Ocean.

The Holy Alliance was the first conception of Alexander on the return of peace. It died too suddenly to exhibit either its good or its evil. It has been calumniated, because it has been misunderstood. But it seems to have been a noble conception. France which laughs at every thing, laughed at the idea of ruling Europe on principles of honour. Germany, which is always wrapped in a republican doze, reprobated a project which seemed to secure the safety of thrones by establishing honour as a principle. And England, then governed by a cabinet doubtful of public feeling, and not less doubtful of foreign integrity, shrank from all junction with projects which she could

not control, and with governments in which she would not confide. Thus the Holy Alliance perished. Still, the conception was noble. Its only fault was, that it was applied to men before men had become angels.

The author of the volumes now before us is evidently a republican one—of the “Movement”—one of that class who would first stimulate mankind into restlessness, and then pronounce the restlessness to be a law of nature. Metternich is of course his bugbear, and the policy of Austria is to him the policy of the “kingdom of darkness.” But, if there is no wiser maxim than “to judge of the tree by its fruits,” how much wiser has that great statesman been than all the bustling innovators of his day, and how much more substantial is that policy by which he has kept the Austrian empire in happy and grateful tranquillity, while the Continent has been convulsed around him!

No man knows better than Prince Metternich, the shallowness, and even the shabbiness, of the partisans of overthrow, their utter incapacity for rational freedom, the utter perfidy of their intentions, and the selfish villany of their objects. He knows, as every man of sense knows, that those Solons and Catos of revolution are composed of lawyers without practice, traders without business, ruined gamblers, and the whole swarm of characterless and contemptible idlers, who infest all the cities of Europe. He knows from full experience that the object of such men is, not to procure rights for the people, but to compel governments to buy their silence; that their only idea of liberty, is liberty of pillage; and that, with them, revolution is only an expedient for rapine and a license for revenge. Therefore he puts them down; he stifles their declamation by the scourge, he curbs their theories by the dungeon, he cools their political fever by banishing them from the land; and thus governing Austria for nearly the last forty years, he has kept it free from popular violence, from republican ferocity, from revolutionary bloodshed, and from the infinite wretchedness, poverty, and shame, which smites a people exposed to the swindling of political impostors.

Thus, Austria is peaceful and powerful, while Spain is shattered by conspiracy; while Portugal lives, protected from herself only under the guns of the British fleet; while Italy is committing its feeble mischiefs, and frightening its opera-hunting potentates out of their senses; while every petty province of Germany has its beer-drinking conspirators; and while the French king guards himself by bastions and batteries, and cannot take an

evening's drive without fear of the blunderbuss, or lay his head on his pillow without the chance of being wakened by the roar of insurrection. These are the "fruits of the tree;" but it is only to be lamented that the same sagacity and vigour, the same determination of character, and the same perseverance in principle, are not to be found in every cabinet of Europe. We should then hear no more of revolutions.

The life of the Russian emperor was a cloudy one. The external splendour of royalty naturally captivates the eye, but the realities of the diadem are often melancholy. It would be scarcely possible to conceive a loftier preparative for human happiness than that which surrounds the throne of the Russias. Alexander married early. A princess of Baden was chosen for him, by the irresistible will of Catherine, at a period when he himself was incapable of forming any choice. He was married at sixteen, his wife being one year younger. He never had a son, but he had two daughters, who died. And the distractions of the campaign of Moscow, which must have been a source of anxiety to any man in Russia, were naturally felt by the emperor in proportion to the immense stake which he had in the safety of the country.

For some years after the fall of Napoleon, Alexander was deeply engaged in a variety of anxious negotiations in Germany, and subsequently, he was still more deeply agitated by the failing constitution of the empress. The physicians had declared that her case was hopeless if she remained in Russia, and advised her return to her native air. But she, in the spirit of romance, replied, that the wife of the Emperor of Russia must not die but within his dominions. The Crimea was then proposed, as the most genial climate. But the emperor decided on Taganrog, a small town on the sea of Azof, but at the tremendous distance of nearly fifteen hundred miles from St Petersburg.

The present empress has been wiser, for, abandoning the romance, she spent her winter in Naples, where she seems to have recovered her health. The climate of Taganrog, though so far to the south, is unfavorable, and in winter it is exposed to the terrible winds which sweep across the desert, unobstructed from the pole. But Alexander determined to attend to her health there himself, and preceded her by some days to make preparations. A strange and singularly depressing ceremony preceded his departure. For some years he had been liable to melancholy impressions on the subject of

religion. The Greek church, which differs little from the Romish, except in refusing allegiance to the bishop of Rome, abounds in formalities, some stately, and some severe. Alexander, educated under the Swiss, who could not have taught him more of Christianity than was known by a French *philosophe*, and having only the dangerous morals of the Russian court for his practical guide, suffered himself, when in Paris, to listen to the mystical absurdities of the well-known Madame de Krudener, and from that time became a mystic. He had the distorted dreams and the heavy reveries, and talked the unintelligible theories which the Germans talk by the fumes of their meerschaums, and propagate by the vapours of their swamps. He lost his activity of mind; and if he had lived a few years longer, he would probably have finished his career in a cell, and died, like Charles V., an idiot, in the “odour of sanctity.”

The preparation for his journey had the colouring of that superstition which already began to cloud his mind.

It was his custom, in his journeys from St Petersburg, to start from the cathedral of “Our Lady of Kasan.” But on this occasion, he gave notice to the Greek bishop, that he should require him to chant a service at four o’clock in the morning, at the monastery of St Alexander Newski, in the full assembly of ecclesiastics, at which he would be present.

On this occasion every thing took an ominous shape, in the opinion of the people. They said that the service chanted was the service for the dead, though the official report stated that it was the *Te Deum*. The monastery of St Alexander Newski is surrounded by the chief cemetery of St Petersburg, where various members of the reigning family, who had not worn the crown, were interred, and among them the two infant daughters of the emperor. The popular report was, that the ecclesiastics wore mourning robes; but this is contradicted, whether truly or not, by the official report, which states that they wore vestures of crimson worked with gold.

Just at dawn the emperor came alone in his calèche, not even attended by a servant. The outer gates were then carefully reclosed, the mass was said, the old prelate gave him a crucifix to accompany him on his journey, the priests once more chanted their anthem, they then conducted him to the gate, and the ceremonial closed.

But the more curious feature of the scene was to follow.

Seraphim, the old prelate, invited the emperor to his cell, where, when they were alone, he said, "I know your Majesty feels a particular interest in the *Schimnik*." (These are monks who live in the interior of the convents in the deepest solitude, following strictly all the austerities prescribed to their order, and are venerated as saints.) "We for some time have had a *Schimnik* within the walls of the Holy Lavra. Would it be the pleasure of your majesty that he should be summoned?"—"Be it so," was the reply, and a venerable man, with an emaciated face and figure, entered. Alexander received his blessing, and the monk asked him to visit his cell. Black cloth covered the floor, the walls were painted black, a colossal crucifix occupied a considerable portion of the cell. Benches painted black were ranged around, and the only light was given by the glimmer of a lamp, which burned night and day before the pictures of saints! When the emperor entered, the monk prostrated himself before the crucifix, and said, "Let us pray." The three then knelt and engaged in silent prayer. The emperor whispered to the bishop, "Is this his only cell? where is his bed?" The answer was, "He sleeps upon this floor, stretched before the crucifix."—"No, sire," said the monk, "I have the same bed with every other man; approach, and you shall see." He then led the emperor into a small recess, screened off from the cell, where, placed upon a table, was a black coffin, half open, containing a shroud, and surrounded by tapers. "Here is *my* bed," said the monk, "a bed common to man; there, sire, we shall all rest in our last long sleep."

The emperor gazed upon the coffin, and the monk gave him an exhortation on the crimes of the people, which, he said, had been restrained by the pestilence, and the war of 1812, but when those two plagues had passed by, had grown worse than ever.

But we must abridge this pious pantomime, which seems evidently to have been *got up* for the occasion, and which would have been enough to dispirit any one who had left his bed at four in the morning in the chill of a Russian September.

The emperor at length left the convent, evidently dejected and depressed by this sort of theatrical anticipation of death and burial, and drove off with his eyes filled with tears.

On his journey he was unattended. He took with him but two aides-de-camp, and his physician, Sir James Wylie, a clever Scotsman, who had been

thirty years in the imperial service. The journey was rapid, and without accident, but his mind was still full of omens. A comet had appeared. "It presages misfortune," said the emperor; "but the will of Heaven be done."

The change of air was beneficial to the empress, who reached Taganrog after a journey of three weeks; and the emperor remained with her, paying her great attention, and constantly accompanying her in her rides and drives. The season happened to be mild, and Alexander proposed to visit the Crimea, at the suggestion of Count Woronzoff, governor of the province. This excursion, with all its agreeabilities, was evidently a trying one to a frame already shaken, and a mind harassed by its own feelings. He rode a considerable part of the journey, visited Sebastopol, inspected fortifications in all quarters, received officers, dined with governors, visited places where endemics made their haunt; ate the delicious, but dangerous fruits of the country, received Muftis and Tartar princes; in short did every thing that he ought not to have done, and finally found himself ill.

He remarked to Sir James Wylie, that his stomach was disordered, and that he had had but little sleep for several nights. The physician recommended immediate medicine, but Alexander was obstinate. "I have no confidence," said he, "in potions; my life is in the hands of Heaven; nothing can stand against its will." But the illness continued, and the emperor began to grow lethargic, and slept much in his carriage. With a rashness which seems to be the prevalent misfortune of sovereigns, he still persisted in defying disease, and suffered himself to be driven every where, visiting all the remarkable points of the Crimea, yet growing day by day more incapable of feeling an interest in any thing. He was at length shivering under intermittent fever, and he hurried back to the empress. On being asked by Prince Volkonski, whom he had left as the manager of his household, what was the state of his health,—"Well enough," was the answer, "except that I have got a touch of the fever of the Crimea." The prince entreated him to take care of his health, and not to treat it as he "would have done when he was twenty years old." On the next day his illness had assumed a determined character, and was declared to be dangerous, and a typhus.

Unfortunately, at this period, an officer of rank arrived with details of one of those conspiracies which had been notoriously on foot for some time. His tidings ought to have been concealed: but sovereigns must hear every thing, and the tidings were communicated to the emperor. He was indignant and

agitated. The empress exhibited the most unwearied kindness; but all efforts were now hopeless. On the 1st of December he sank and died.

The blow was felt by the whole empire; during the long journey of four months, from Taganrog to St Petersburg, where the body was interred in the church of St Peter and St Paul, the people crowded from every part of the adjoining country to follow the funeral; and troops, chiefs, nobles, and the multitude, gave this melancholy ceremonial all the usual pomp of imperial funeral rites, and more than the usual sincerity of national sorrow.

Europe had been so often startled by the assassination of Russian sovereigns, that the death of Alexander was attributed to conspiracy. Ivan, Peter III., and Paul I., had notoriously died by violence. It is perfectly true, that the life of Alexander was threatened, and that his death by the typhus alone saved him from at least attempted assassination. It was subsequently ascertained that his murder had been resolved on; and one of the conspirators, a furious and savage man, rushed into their meeting, exclaiming at the delay which had suffered Alexander to die a natural death, and thus deprived him of the *enjoyment* of shedding the imperial blood.

The origin of those conspiracies is still among the problems of history. Nothing could be less obnoxious than the personal conduct and character of Alexander. His reign exhibited none of the banishments or the bloodshed of former reigns. He was of a gentle disposition; his habits were manly; and he had shared the glory of the Russian victories. The assassinations of the former sovereigns had assignable motives, though the act must be always incapable of justification. They had perished by intrigues of the palace; but the death of Alexander was the object of a crowd of conspirators widely scattered, scarcely communicating with each other, and united only by the frenzy of revolution.

In the imperfection of the documents hitherto published, we should be strongly inclined to refer the principle of this revolutionary movement to Poland. That unhappy country had been the national sin of Russia; and though Moscow had already paid a severe price for its atonement, from Poland came that restless revenge, which seemed resolved, if it could not shake Russia, at least to embitter the Russian supremacy.

The death of Alexander had disappointed the chief conspirators. But the conspiracy continued, and the choice of his successor revived all its

determination.

The house of Romanoff had received the diadem by a species of election. Michael Romanoff, a descendant of the house of Ruric only by the female line, had been chosen by all the heads of the nation. The law of primogeniture was declared. But Peter the Great, disgusted by the vices or the imbecility of his son Alexis, had changed the law of succession, and enacted, that the sovereign should have the choice of his successor, not even limiting that choice to the royal line. Nothing is so fatal to the peace of a country as an unsettled succession; and this rash and prejudiced change produced all the confusions of Russian history from 1722 to 1797, when the Emperor Paul restored the right of primogeniture in the male line, in failure of which alone was the crown to devolve on the female line. In which case, the throne was to devolve on the princess next in relation to the deceased emperor; and, in case of her dying childless, the other princesses were to follow in the order of relationship. Alexander, in 1807, confirmed the act of Paul, and strengthened it by an additional act in 1820; stating, that the issue of marriages, authorised by the reigning emperor, and those who should themselves contract marriages, authorised by the reigning emperor, should alone possess the right of succession.

Alexander had left three brothers—the Grand-duke Constantine, born in 1779; the Grand-duke Nicholas, born in 1796; and the Grand-duke Michael, born in 1798: two of his surviving sisters had been married, one to the Grand-duke of Saxe Weimar, and the other to the King of Holland. Thus, according to the law of Russia, Constantine was the next heir to the throne.

The singular commotion which gave so melancholy a prestige of the reign of Nicholas, receives a very full explanation from this author. The Grand-duke Constantine had the countenance of a Calmuck and the manners of a Calmuck. But those were the countenance and manners of his father Paul. The other sons resembled their mother, the Princess of Wirtemberg, a woman of striking appearance and of commanding mind. Constantine was violent, passionate, and insulting; and in his viceroyalty of Poland rendered himself unpopular in the extreme. The result was, that Alexander dreaded to leave him as successor to the throne. Constantine, when scarcely beyond boyhood, had been married to one of the princesses of Saxe Cobourg, not yet fifteen. They soon quarrelled, and at the end of four years finally separated. In two years after, proposals were made to her to return. But she

recollected too deeply the vexations of the past, and refused to leave Germany. Constantine now became enamoured of the daughter of a Polish count, and proposed to marry her. The Greek Church is stern on the subject of divorce, but its sternness can give way on due occasion. The consent of the emperor extinguished all its scruples, and Constantine divorced his princess, and married the Polish girl; yet, by that left-handed marriage, which precludes her from inheriting titles or estates. But the emperor shortly after conferred on her the title of Princess of Lowicz, from an estate which he gave her, and both which were capable of descending to her family.

It was subsequently ascertained that, at this period, Alexander had proposed to Constantine the resignation of his right to the throne; either as the price of his consent to the divorce, or from the common conviction of both, that the succession would only bring evil on Constantine and the empire. That Alexander was perfectly disinterested, is only consonant to his manly nature, and that Constantine had come to a wise decision, is equally probable. He knew his own failings, the haste of his temper, his unpopularity, and the offence which he was in the habit of giving to all classes. He probably, also, had a sufficient dread of the fate of his father, whom, as he resembled in every thing else, he might also resemble in his death. His present position fulfilled all the wishes of a man who loved power without responsibility, and enjoyed occupation without relinquishing his ease. The transaction was complete, and Alexander was tranquillised for the fate of Russia.

When the intelligence of the emperor's death reached St Petersburg, Nicholas attended the meeting of the Senate, to take the oath of allegiance to Constantine. But they determined that their first act should be the reading of a packet, which had been placed in their hands by Alexander, with orders to be opened immediately on his decease. The president broke the seal, and found documents dated in 1822 and 1823, from Constantine, resigning the right of succession, and from Alexander accepting the resignation. Constantine's letter stated thus: "Conscious that I do not possess the genius, the talents, or the strength, necessary to fit me for the dignity of sovereign, to which my birth would give me a right, I entreat your imperial majesty to transfer that right to him to whom it belongs, after me; and thus assure for ever the stability of the empire.

“As to myself, I shall add, by this renunciation, a new guarantee and a new force to the engagement which I spontaneously and solemnly contracted on the occasion of my divorce from my first wife. All the circumstances in which I find myself strengthen my determination to adhere to this resolution, which will prove to the empire and to the whole world the sincerity of my sentiments.”

Another of those documents appointed Nicholas as the heir to the throne. The Senate now declared that Nicholas was emperor. But he refused the title, until he had the acknowledgment from Constantine himself, that he had resigned. The suspense continued three weeks. At length the formal renunciation of Constantine was received, Nicholas was emperor, and the day was appointed to receive the oath of allegiance of the great functionaries of the army and of the people. The emperor dated his accession from the day of the death of Alexander, December the 1st, 1825.

The interregnum was honourable to both the brothers; but it had nearly proved fatal to Russia: it unsettled the national feelings, it perplexed the army, and it gave sudden hopes to the conspirators against the throne.

The heads of the conspiracy in St Petersburg were, Sergius, Prince Troubetskoi; Eugene, Prince Obalenskoi, and Conrad Ryleieff. The first was highly connected and highly employed, colonel of the Etat Major, and military governor of Kief. The second was a lieutenant in the imperial guard, poor, but a man of talent and ambition. In Russia all the sons of a prince are princes, which often leaves their rental bare. The third was simply a noble, educated in the corps of cadets, but who had left the army, and had taken the secretaryship of the American company. He was a man of letters, had written some popular poems, and was an enthusiastic republican. Connected with those were some general officers and colonels, whose revolutionary spirit might chiefly be traced to their expulsion from employment, military disgrace, or disappointed ambition. The Russian campaigns in France, and the residence of the army of occupation, under the command of the great English general, had naturally given the Russian troops an insight into principles of national government, which they could not have acquired within the Russian frontier. The pretext of the conspirators was a constitutional government, which the talkers of St Petersburg seemed to regard as the inevitable pouring of sudden prosperity of all kinds into the empire. The old illusion of all the advocates of change

is, that every thing depends on government, and that government can do every thing. There cannot be a greater folly, or a more glaring fiction. Government can do nothing more than prevent the existence of obstacles to public wealth. It cannot give wealth, it cannot create commerce, it cannot fertilise the soil, it cannot put in action any of those great instruments by which a nation rises superior to its contemporaries. Those means must be in the people themselves, they cannot be the work of cabinets; governments can do no more than give them their free course, protect them from false legislation, and leave the rest to Providence.

The Russian conspirators called themselves patriots, and professed to desire a bloodless revolution. But to overthrow a government at the head of five hundred thousand men, must be a sanguinary effort; and there could be no doubt that the establishment of a revolutionary government in Russia would have been the signal for a universal war.

On the 24th and 25th of December, the conspirators met in St Petersburg, and as Nicholas was to be proclaimed on the next day, they determined to lead the battalions to which they respectively belonged, into the great square, seize on the emperor, and establish a provisional government. They were then to raise a national guard, establish two legislative chambers, and proclaim liberty to Russia. The question next arose, what was to be done with the members of the imperial family after victory. It was answered significantly, that “circumstances must decide.” At this anxious moment one of the members told them that information had been given to the emperor. “Comrades,” said he, “you will find that we are betrayed, the court are in possession of much information; but they do not know our entire plans, and our strength is quite sufficient.” A voice exclaimed, “the scabbards are broken, we can no longer hide our sabres.”

Reports of various kinds now came crowding on them. An officer arrived to say that, in one of the armies, one hundred thousand men were ready to join them. A member of the Senate came to tell them that the council of the empire was to meet at seven o’clock the next morning, to take the oath to the emperor. The time for action was now fixed. The officers of the guard were directed to join their regiments, and persuade them to refuse the oath. Then all kinds of desperate measures were proposed. It was suggested that they should force open the spirit shops and taverns, in order to make the soldiery and populace drunk, then begin a general pillage, carry off banners

from the churches, and rush upon the winter palace. This, the most mischievous of all the measures, was also the most feasible, for the number of unemployed peasants and idlers of all kinds was computed at seventy thousand and upwards, and from their poverty and profligacy together, there could be little doubt that, between drunkenness and the prospect of pillage, they would be ready for any atrocity. "When the Russians break their chains," says Schiller, "it will not be before the freeman, but before the slave, that the community must tremble."

It must be acknowledged that some were not equally ferocious. But when a military revolt has once begun, who shall limit it to works of wisdom, moderation, or security? If the revolt had succeeded, St Petersburg must have been a scene of massacre.

We shrink from all details on this painful subject. The conspirators remained in deliberation all night. As the morning dawned, they went to the barracks of their regiments, and told the soldiers that Constantine was really their emperor, that he was marching to the capital at the head of the army from Poland, and that to take the oath to Nicholas would consequently be treason. In several instances they succeeded, and collected a considerable body of troops in the Great Izaak Square. But there they seem to have lost their senses. An insurrection which stands still, is an insurrection ruined. They were rapidly surrounded by the garrison. Terms were offered, which they neither accepted nor refused. The gallant Milarodowitch, the hero of the Russian pursuit of the French, advancing to parley with them, was brutally shot. When all hope of submission was at an end, when the day was declining, and alarm was excited for the condition of the capital during the night, artillery was brought to bear upon them; and, after some firing on both sides, the mutineers dispersed. The police were then let loose, and numerous arrests were made.

In five months after, a high court was constituted for the trial of the leaders. A hundred and twenty-one were named in the act of accusation, many of them belonging to the first families, and in the highest ranks of civil and military employment. But the sentence was the reverse of sanguinary. Only five were put to death in St Petersburg, the remainder were chiefly sent to Siberia. But Siberia is now by no means the place of horrors which it once was. It is now tolerably peopled, it has been partially civilised; the soil is fertile; towns have sprung up; and, though the winter is severe, the climate

is healthy. Many of the families of the exiles were suffered to accompany them; and probably, on the whole, the exchange was not a calamitous one, from the anxieties of Russian life, the pressure of narrow circumstances in Europe, and the common disappointments to which all competitors for distinction, or even for a livelihood, are exposed in the crowded and struggling population of the west, to the undisturbed existence and sufficient provision, which were to be found in the east of this almost boundless empire.

Among the anecdotal parts of these volumes, is a slight account of the appearance of the Duke of Wellington as ambassador to Russia, in the beginning of the new reign. Count Nesselrode, on the accession of the Czar, had sent a circular to the European courts, stating his wishes for amicable relations with them all. But England dreaded to see a collision with Turkey, and Canning selected the Duke as the most important authority on the part of England. The Duke took with him Lord Fitzroy Somerset as his secretary. On his arrival at Berlin, he was treated with great distinction by Frederic William. Gneisenau, at the head of the Prussian general officers, paid him a visit in his hotel; and he was fêted in all directions. General officers were sent from St Petersburg to meet him on the Russian frontier. The emperor appointed a mansion for him, beside the palace of the Hermitage, paid him all the honours of a Russian field-marshal, (he was then the *only* one in the service,) placed him on a footing with the princes of the imperial family, and was frequently in his society. The people were boundless in their marks of respect.

But the Duke is evidently not a favourite with the Frenchman—and we do not much wonder at this feeling in a Frenchman, poor as it is. Without giving any opinion of his own, he inserts a little sneer from the work of Lacretelle on the “Consulate and the Empire.” On this authority, Wellington is “a general of excellent understanding, *phlegmatic* and *tenacious*, proceeding not by *enthusiasm*, but by *order*, *discipline*, and *slow* combinations, trusting but little *to chance*, and employing about him all the popular and vindictive passions, from which he himself is *exempt*.” By all which, M. Lacretelle means, that the Duke is a dull dog, without a particle of genius; simply a plodding, positive man, who, by mere toil and time, gained his objects, which any Dutchman could have gained as well, and which any Frenchman would have scorned to gain. With this French folly

we have not sufficient time, nor have we sufficient respect for the national *failing*, to argue.

But the true view of Wellington's character as a soldier would be, *brilliancy* of conception. What more brilliant conception than his first great battle, Assaye, which finished the Indian war? What more brilliant conception than his capture of Badajoz and Ciudad in the face of the two armies of Masséna and Soult advancing on him from the south and north, and each equal to his own force; while he thus snatched away the prize in the actual presence of each, and left the two French generals the mortification of having marched three hundred miles a-piece, only to be lookers-on? What more brilliant conception than his march of four hundred miles, without a stop, from Portugal to Vittoria; where he crushed the French army, captured one hundred and fifty pieces of cannon, and sent the French king and all his courtiers flying over the Pyrenees? What, again, more brilliant conception, than his storming the Pyrenees, and being the first of the European generals to enter France? and, finally, his massacre of the French army, with Soult, Ney, and Napoleon at their head, on the crowning day of Waterloo?

But all this was mere "pugnacity and *tenacity*," and sulkiness and stupidity, because it was not done with a theatrical programme, and with the air of an opera-dancer. Yet M. Lacretelle's sketch, invidious as he intends it to be, gives, involuntarily, the very highest rank of generalship to its object. For, what higher qualities can a general have, than trusting nothing to chance, being superior to enthusiasm—which, in the French vocabulary, means extravagance and giddiness—and acting by deep and effective combinations, which, as every man knows, are the most profound problems and the most brilliant triumphs of military genius? Let it be remembered, too, that in the seven years' war of the Peninsula, Wellington never had twenty-five thousand English bayonets in the field; that the Spanish armies were almost wholly disorganised, and that the Portuguese were raw troops; while the French had nearly two hundred thousand men constantly recruited and supplied from France:—Yet, that Wellington never was beaten, that he met either six or seven of the French field-marsals and beat them all; and that at Waterloo, with a motley army of recruits, of whom but thirty thousand were English—and those new troops—and ten thousand German, he beat Napoleon at the head of seventy-two thousand Frenchmen, all veterans; trampled his army in the field, hunted him to Paris, took every

fortress on the road, captured Paris, destroyed his dynasty, dissolved the remnants of the French army on the Loire; and sent Napoleon himself to expiate his guilt and finish his career, under an English guard, in St Helena.

We need not envy the Frenchman his taste for “enthusiasm,” his scorn of “science,” his disdain of “profound combinations,” and his passion for winning battles by the magic of a village conjuror.

M. Schnitzler disapproves even of the physiognomy of the Duke. “His nose was too aquiline, and stood out too prominently on his sunburnt countenance, and his features, all strongly marked, were not devoid of an air of pretension.” He objects to his appearing “without a splendid military costume, to *improve his appearance!*” And yet, all this foolery is the wisdom of foreigners. No man, however renowned, must forget “the *imposing*.” Hannibal, or Alexander the Great, would have been nothing in their eyes, except in the uniform of the “Legion of Honour.” His walking, and walking without attendants, through the streets, was a horror, rendered worse and worse by his “wearing a black frock-coat and round hat.” Even when he appeared in uniform on state occasions, “he was equally luckless;” for the *costume* of a Russian field-marshal, which had been given to him by Alexander, did not fit him, and was too large for his thinness. On the whole, the Duke *failed*, as we are told, to “gain any remarkable success in the Russian salons.” The countesses could make nothing of him; the princesses smiled on without his returning the smile; the courtiers told him *bons mots* without much effect; and the politicians were of opinion that a Duke so taciturn had no tongue.

Still the emperor’s attentions to him continued; and, on the day of distributing medals to the army, he gave Wellington the regiment of Smolensk, formed by Peter the Great, and of high reputation in the service.

But he succeeded in his chief object, which referred to Greece; and which ultimately, in giving independence to a nation, the classic honours of whose forefathers covered the shame of their descendants,—and by a succession of diplomatic blunders, has turned a Turkish province into a European pensioner, enfeebling Turkey without benefiting Europe, and merely making a new source of contention between France, Russia, and England.

The career of Nicholas has been peaceable; and the empire has been undisturbed but by the guilty Circassian war, which yet seems to be carried

on rather as a field of exercise for the Russian armies, than for purposes of conquest.

But all nations now require something to occupy the public mind; and an impression appears to be rising in Russia, that the residence of the sovereign should be transferred to Moscow. Nothing could be more likely to produce a national convulsion, and operate a total change on the European policy of Russia, and the relations of the northern courts. Yet it is by no means improbable, that the singular avidity of the Russian court to make Poland not merely a dependency, but an integral part of the empire, by the suppression of its very name, the change of its language, and the transfer of large portions of its people to other lands, may have for its especial purpose the greater security of Russia on the West, while she fixes her whole interest on a vigorous progress in the South.

There are some problems which still perplex historians, and will probably perplex them for many an age; and among those are, the good or evil predominant in the Crusades, the use of a Pope in Italy, (where he obviously offers, and must *always* offer, the strongest obstacle to the *union* of the Italian States into a national government,) the true character of Peter the Great, and the true policy of placing the capital of Russia in the northern extremity of the empire.

It appears to be now at least approaching to a public question,—Whether Peter showed more of good sense, or of savage determination, in building a magnificent city in a swamp, where man had never before built any thing but a fisherman's hut; and in condemning his posterity for ever to live in the most repulsive climate of Europe? Some pages in these volumes are given to the inquiry into the wisdom of deserting an ancient, natural, and superb seat of empire in the South, for a new, unnatural, and decaying seat of sovereignty in the vicinage of the Arctic circle; of retarding the progress of civilisation by the insuperable difficulties of a climate, where the sea is frozen up for six months in the year, and the rivers and land are frozen up for nine! The question now is, Whether Peter had not equally frozen up the Russian energies, impeded the natural prosperity of the empire, and flung the people back into the age of Ivan I.?

Of course, no one doubts that the Russian empire is of vast extent and substantial power; but its chief power is in its central provinces, and in its

faculty of expansion into the south. Its northern provinces defy improvement, and can be sustained only by the toil of government.

The probable view of the case is, that Peter was deluded by his passion for naval supremacy. He had seen the fleets of Western Europe trained in their boisterous but ever-open seas; and he determined to have a fleet in a sea which, throughout the winter, is a sheet of ice, and where the ships are imbedded as if they were on dry ground. He had then no Black Sea for his field of exercise, and no Sebastopol for his dockyard. He touched upon no sea but the Baltic; and, under the infatuation of being a naval power, he threw the Russian government as far as he could towards the North Pole.

Moscow should have remained the Russian capital. With an admirable climate, at once keen enough to keep the human frame in its vigour, and with the warm summer of the south, to supply all the vegetable products of Europe; its position commanding the finest provinces of Western Asia, Russia would have been mistress of the Black Sea a century earlier, had probably been in possession of Asia Minor, and have fixed a Viceroy in the city of the Sultans.

The policy of Catherine II., evidently took this direction; she made no *northern* conquests; she withdrew her armies on the first opportunity from the Prussian war, in which Russia had been involved by the blunders of her foolish husband; and though she engaged in that desperate act by which Poland was partitioned—an act which, though perfidious, was originally pacific—the whole force of her empire was thrown into southern war.

This policy is still partially maintained. The war of the Caucasus, an unfortunate and unjustifiable war, now exhibits the only hostilities on which Russia expends any portion of her power. The success of that war would evidently put the eastern, as well as the northern shore of the Black Sea, in her possession. The southern shore could then make no resistance, if it were the will of Russia to cast an eye of ambition on the land of the Turk. We by no means infer that such is her will; we hope that higher motives, and a sense of national justice, will rescue her reputation from an act of such atrocity. But Asia Minor, on the first crash of war, would be open to the squadrons of the Scythian. This policy was interrupted in the reign of Alexander only by the French war. When the providential time was come for the destruction of Napoleon, his rage of conquest acted the part for him

which the false prophets were accustomed to act for the kings of Judah and Israel. It urged him headlong to his ruin, and all his distinguishing qualities were turned to his overthrow. His ardour in the field became precipitancy; his sagacity became a fierce self-dependence; the old tactic which had led him to strike the first blow at the capitals of Europe, urged him into the heart of the wilderness; his diplomatic confidence there exposed him to be baffled by the plain sense of Russia, and his daring reliance on his fortune stripped him of an army and a throne.

But, when Russia had recovered from this invasion, her first efforts were pointed in the old direction. She recommenced the Turkish war, seized Moldavia and Wallachia, crossed the Balkan, threatened Constantinople, and, with the city of Constantine in her grasp, retired only on the remonstrances of the European powers.

M. Schnitzler imagines that the direction of Russian conquest will be towards Germany, and contemplates the all-swallowing gluttony which is to absorb all the states from the Vistula to the Rhine. We wholly differ from those views. The condition of Europe must be totally changed before the policy of Russia will attempt to make vassals of these iron tribes. It would have too many battles to fight, and too little to gain by them. To attempt the absorption of any one leading German power would produce a universal war. Poland is still a thorn in its side; and it would take a century to convert its intense hostility into cordial obedience. Prussia and Austria are the political "Pillars of Hercules" which no invader *can* pass; and if Germany can but secure herself from the restless and insatiable ambition of France, she need never shrink from the terrors of a Tartar war.

If war should inflame the Continent again, the Russian trumpets will be heard, *not* on the Elbe, but on the shores of the Propontis. Asia Minor and Syria will be a lovelier and a more lucrative prey; while probably Egypt will be the prize which will draw to the waters of the Mediterranean, the maritime force of the world.

On the whole, the volumes of this Franco-German are intelligent, and may be studied with advantage by all who desire to comprehend the actual condition of an empire, which extends from the Baltic to the Sea of Kamtschatka, which contains seven millions of square miles, nearly sixty

millions of souls, is capable of containing ten times the number, and which is evidently intended to exercise a most important influence on the globe.

AUTOBIOGRAPHY OF A GERMAN HEADSMAN.

(*Das Grosse Malefizbuch*. HERAUSGEGEBEN VON WILHELM V. CHEZY. Landshut: 1847.)

The peculiar and powerful interest attaching to narratives of remarkable crimes, and of their judicial investigation, is abundantly evidenced by the avidity with which that class of literature is invariably pounced upon by the public. Independently of the romance incidental to the subject, of the doubts and intricacies and conflicting circumstances of extraordinary criminal trials, well calculated to captivate the imagination of the vulgar, and rivet attention on their recital,—such cases possess a psychological interest, making itself felt by the least intelligent of readers, appealing with almost equal force to the scantily educated and to the scholar, to inexperienced youth and thoughtful age. By the former, it is true, the exact process by which such narratives lay hold upon the feelings and imagination, may not be easily detected, but the charm, if unseen, is not the less potent. The great success and enduring reputation of books of this kind, are the best proof of their strong and universal fascination. Whilst the legal works of GAYOT DE PITAVAL are long since shelved and forgotten, the title of his *Causes Célèbres*^[1] continues as familiar to our ear as those of the most notable literary productions of our own century; the book itself—of frequent reference, and found in every library of importance—has obtained the honours of repeated translation, and of reproduction in numerous forms. Those twenty volumes, it might be thought, were an ample supply of this species of reading, sufficient to stock the world and blunt the public appetite for such records. But the varieties of the subject are inexhaustible, as much so as the infinite shades and capricious directions of human passions, the unceasing diversity and perverse ingenuity of human crime. And Richer's continuation of what Pitaval began, found as eager readers as its compiler could reasonably desire. In later times, two Germans, Messrs

Hitzig and Häring, have edited with considerable success a work of a similar nature.^[2] Others doubtless will appear. There can be no lack of materials. Each successive half-century yields matter for a new and lengthy series. Meanwhile, and although civilisation, impotent wholly to check crime, is also unable to strip its annals of novelty and pungency, the remarkable criminal records of ruder ages are frequently recurred to and reproduced, as wilder and more romantic in their nature than those of a recent day. Alexander Dumas has collected from various quarters a voluminous work of this nature; and, although its greater portion was already a thrice-told tale, the book is one of the most popular of his multifarious productions. Feuerbach the celebrated jurist, the impartial narrator and critic of the extraordinary history of Caspar Hauser, the indefatigable labourer in the arid vineyard of the law, whose lightest literary pastime would to most men have been toil,^[3] deemed it not unworthy his learned pen to collate and comment two volumes of trials,^[4]—volumes familiarised to the English reader by a recent translation. His well-stored mind and skilful handling imparted new depth and value to the subject, and doubtless the book would not so long have awaited a transfer into our language, but for the warlike circumstances and interrupted Continental communication of the period at which its first edition appeared. The interest of such narratives is no way diminished from their scene being in a foreign land; indeed, it is most engrossing when exotic, since the illustrations of the peculiar laws and characteristics of other nations is then superadded to that of the eccentricities of crime. And, perhaps, the most fertile field at the disposal of the curious in such matters, is afforded by that wide country, claiming to include in its bond of brotherhood every land wherein the German tongue resounds. The variety of the laws by which the kingdoms and provinces of Germany have at different times been governed, tends greatly to diversify its criminal calendar. And, doubtless, in many old libraries, private and public, in the dusty and rarely-opened book-cases of provincial barons and *Freiherrn*, on the shelves of museums, and in municipal collections (scarce less neglected and unread) of ancient books and manuscripts, much curious reading of this description, well worthy of publicity, lies buried and forgotten.

It is from a literary lumber-room of this kind, we suspect, that Mr Chézy has extracted the contents of the three curious volumes now before us, containing, as their old French name implies, details of crimes and

malefactors. "What we," he tells us in his preface, "are wont to call criminal archives, were in many places styled by our forefathers 'Malefice-books,' records kept partly by the public executioner, who, in his capacity of torturer, had frequent occasion to share in criminal investigations." From this passage, and from the expression *herausgegeben* (edited) in the title-page, we understand that the "*Grosse Malefizbuch*" is not to be viewed as an original composition, which the word *verfasser*, (author) employed in the preface, might have led us to believe. This makes a certain difference in the critical view to be taken of the book. Were it a mere fiction, intended as an imitation of the probable style of the headsman, inditing, chiefly as matter of duty, but yet not without a certain rude feeling and interest in the task, the crimes and circumstances his sanguinary profession brought under his notice, we should admit some skill in the tone adopted. But, as an editor, Mr Chézy has performed his part in a lazy and slovenly fashion. He appears to have contented himself with merely modernising the orthography, and (slightly) the language. With excellent stuff to work upon, he had it in his power to make a very complete and remarkable book: he has been contented to put forward a meagre and deficient one. We would not have had him greatly alter the text. Here and there a little curtailment might have been advantageously practised, or a paragraph judiciously interpolated. But the volumes should have been richly garnished with notes and commentaries, instead of being wholly without them. From the first page to the last not a line appears—at the end of each volume we vainly seek an appendix—explanatory of the singular usages so frequently referred to; referred to usually in as cursory and off-hand a way as if they were matters of present custom, to which all men were still habituated, and concerning which none needed enlightenment. Mr Chézy seems conscious of his fault, for he tells us, in a half apologetic tone, to bear in mind that he is a poet, and not a scholar. No great depth of scholarship was essential for what we would have had him do. A very moderate amount of study and patience would have put him in possession of the necessary information. Its want is wofully felt as we wander through his bald pages, at whose foot not the smallest fragment of a note attracts the reader's eye, and removes the tantalised feeling with which he encounters distant and unexplained allusions, and is compelled to guess their purport. "This work," says Mr Chézy, "intended to represent men and circumstances as they once may have been, is not confined within the limits of the documental authority.

The Malefizbuch may be styled a poetical Pitaval.” In view of this professed design of poetising his materials, and of conveying, through a romantic medium, information concerning old times and obsolete customs, we can but repeat that the author’s performance has fallen short of his project. But the subject was too good to be wholly spoiled, even by the clumsiest treatment, with which, however, it would hardly be fair to charge Mr Chézy, whose faults are rather of omission than commission. And the anathemas we are tempted, in our progress through his pages, to invoke upon his head, are frequently checked by the occurrence of interesting passages and striking incidents.

The three volumes of the Malefizbuch are various in the form and nature of their contents, although all bear reference to the same subject, and illustrate, in different points of view, the criminal laws and customs of a rude, cruel, and superstitious period. Besides the absence of notes, the author is guilty of the common German carelessness about dates and places, and is often very vague in his indication of both. This is especially the case with his first volume, which many readers will consider the best, by reason of a certain melancholy interest running through it. We are appealed to for our sympathy with the misfortunes of an executioner’s son, who, after absenting himself from his country, and obtaining an education superior to his station, is compelled to accept the loathsome inheritance of his father, and wield axe and work rack in obedience to the law’s stern dictates. This volume (each volume has a special title, independently of the general one) is called “Ten Narratives from Master Hammerling’s Life and Memoirs.” They are chapters rather than detached narratives, for a connecting thread runs through them, and they in fact form a complete history of the childhood and youth of *Meister Hämmerling*, the German Jack Ketch. The name of the latter personage upon an English title-page, would be suggestive of little beyond the drop at Newgate, and penny tracts sold at street corners. But none who have any acquaintance with the German headsman of the middle ages, will be so unjust as to class him with the vulgar and prosaic official who executes in England the last sentence of the law. Formerly, by the laws of the empire, the SCHARFRICHTER was held *ehrbar* or of honourable repute. The broad bright sword was the only instrument of death he condescended to touch, and consequently his dealings were with men of gentle blood, for whom decapitation was especially reserved. Infamous chastisements were inflicted by the dishonouring hands of the *Henker* or common hangman,

who was considered *anrühig* or infamous. Gradually, the two offices were blended in one, the headsman's privileges were abridged or became totally obsolete; and the grim romance attaching to the stern saturnine man who, on days of notable executions, appeared on the scaffold in bright scarlet mantle, and peaked hat with sable feather, and with one flashing sweep of his terrible blade severed heads from shoulders of well-born criminals, was dissipated and forgotten. Still, on the crowded and diversified canvass of the middle ages, the strange figure stands prominently forth, recalling, by its associations, many a dark deed and wild legend. But the change is great since then. "The executioner now-a-days," says Mr Chézy, "is a citizen like any body else, an elector and eligible; if he possess enough property, he may be sent as deputy to the second Chamber, and perhaps give his vote against capital punishment. The headsman of former centuries has faded into a tradition; and a poet may therefore be allowed to sketch his portrait once more, perhaps for the last time, in all its different aspects and mysterious horrors." And without further prelude, we are introduced to the last minister of the law, a meek and melancholy man, who remembers, one still Sabbath morning, that it is his bounden duty to keep up the record in the Malefizbuch, begun by his great-grandfather, the first of his race who could write. Whilst pondering over this necessity, he incidentally recapitulates some of his privileges and advantages; how he is of as good descent after his kind as the best nobleman in the holy Roman empire, tracing back his genealogy to the days of Henry the First of Germany, surnamed the Fowler, who nominated his ancestor to the office of executioner, since when the family has held house and ground, goods and profits, in fief of the crown. And how he is no way subject to the authorities of the land, further than that he is bound to serve them with sword, axe, wheel and cord, with ladder, screws and tongs, pitch, sulphur and rods, either in his own person or by his assistants, as his letter of privileges dictates. Neither is he infamous, like those of his men who remove dead beasts and do such like unclean work; and, whoever addresses him with contemptuous speech, shall be fined according to law of the empire, as if he had insulted a lord of the council. Finally, when the number of unfortunates slain by his hand shall exceed five hundred, the headsman has a right, if it so please him, to abandon his charge, and mix once more upon equal terms with his fellow-citizens. After this recapitulation, Master Hammerling takes up his own history from the day of his birth, when he was laid in his

father's arms as he returned from burning an old witch upon the market-place. This he finds set down in his father's hand-writing, and also how he was christened by the name of Berthold, on the very day on which Black Hannah, the child-murderess, was executed; whilst her accomplice, long Heinz, was compelled to look on at the execution, and was then flogged out of the town and district. The latter would have been hung, had not the executioner saved him, in virtue of an old privilege, which he exercised less out of love for Heinz than for fear of its becoming annulled by disuse. Had a daughter instead of a son been born to him, he had a right to save the poor girl who had fallen victim to a base seducer. So was it set forth in the headsman's charter.

Berthold Benz traces back his recollections to a very early period of his childhood, and in his manner of narrating them there is a quaint sad simplicity, by no means unattractive. "My mother, God help her!" he says, "right well do I remember her; and though I should live a hundred and many hundred years, I still shall ever have her before me, with her kindly blue eyes and her ringlets of the same colour as the flax which she drew from the distaff with her slender white fingers, and sent whirling round the spindle. We were always alone; my father went about his affairs, and of the servants none came near us in our apartment, or in our little flower-garden—parted by hedge and fence from the rest of the court—save and except fat Grethel, a sturdy broad-footed Swabian girl, my mother's cousin, and taken in by her for the love of God." And Berthold was happy at his mother's knee, and in his childish fancy deemed the headsman's hereditary dwelling, with its high surrounding wall, to be little short of a fortress, and held the vaulted sitting-room, with its three narrow windows, at least equal to any hall in the proud castle that towered upon the cliff beyond the stream. But his tranquil happiness lasted not long; the troubles of the doomster's son had an early beginning. "On a sudden, my dearest mother wept more than she smiled, grew pale and yet paler, weak and still more weak, until at last she was unable to lead me out into the garden. At the same time I ceased to see my father. Neither at meals, nor as formerly, in the chamber, of a morning, was he visible, and however early I got up, the answer to my questions always was that he had already gone out. And one day, Heaven only knows how it happened, dear mother was gone, and when I screamed and wept for her, Swabian Grethel beat me, and said that '*she* was my mother now.'" From this day, Berthold's sufferings began. Hated by his

stepmother, neglected by his father, who was infatuated with his young wife,—he was left to run wild with the executioner’s assistants. After a while, a brother was born, and then his lot became still harder. He was sent to sleep amongst the hay in the loft; and the sole notice he obtained from his father was when the latter instructed him in the duties of his office. But old Benz was a harsh teacher, and the child preferred to receive his lessons from Arnulph, the chief assistant, who took him with him to the town and on rambles in the forest; taught him to sever cabbage-heads at a single stroke, and told him, as they sat together upon the top of the lonely gallows-tree, wonderful tales and strange anecdotes of their craft and its professors. These Berthold drank in with greedy ear; and, although terrified at first by the sight of the grim black gallows, of the mouldering skeletons depending from it, and the ill-omened birds that croaked and hovered around its summit, he soon got used to his ”father’s workshop,” gladly climbed the ladder to his lofty perch, and enjoyed the terror of the passing horseman whom an unexpected greeting in Arnulph’s harsh voice caused to spur his steed in terror, and hasten on his road. “The Thief’s Thumb,” one of the narratives of this practical joker and hangman, is not without its wild interest, but we cannot dwell upon episodes; our object being rather to exhibit the headsman’s social position and peculiar privileges. One of the latter—and not the least curious—is shown in the chapter headed “Vom Rosenthal,”—from the Valley of Roses—in which Berthold’s adventures may properly be said to begin.

“Regularly each Saturday evening after vespers, my father (now in heaven) went into the town, turned from the market-place into the alley known as the Rosenthal, which winds, narrow and dark, in the direction of the prison and behind St Kummerniss, and struck, at regular intervals, three heavy blows upon the door of a great dark house, bearing the sign of the Elephant. Thereupon, an old woman gave him entrance, ushered him into a spacious arched hall, and placed a wooden stoup of wine and a loaf of bread upon the table. Whilst he ate and drank, a number of young women entered the room, every one of whom handed him a silver coin, sometimes exchanged a word with him, and then walked away in silence. Almost all these women had a strange look, the lustre of their staring eyes was quenched, their features were drawn, their cheeks pale, and their clothes hung loosely upon them; they looked shyly at my father, but kindly at me, as though they would gladly have kissed and caressed me. This, however, as I afterwards found,

was strictly forbidden them; and once, when a young girl extended her hand to pat my cheek, my father exclaimed, 'Away with you, hussy!' and struck her upon the face. Whereupon the poor girl slunk from the room, bleeding at mouth and nose, and pursued by the laughter of her companions."

At times, Benz would leave his son in the lower room, whilst he searched the house to see that no strangers were there at that forbidden hour. Then Berthold often heard screams and sounds of quarrel; and one evening that the uproar was greater than usual, he crept in alarm from the apartment, and found his way through the back door into a court, where a few trees grew, and at whose further end was a grass-plot, on which linen lay bleaching. "On the grass, near the fountain, sat a pretty child, keeping the geese and fowls and grunting swine from the bleaching-place, with a long stick, and when she saw me, she smiled kindly at me. I went up to her, took the little maid's hand, and asked her name.

"‘I am called Elizabeth. And you?’

"‘They call me Benz,’ I replied, and, although Arnulph had constantly warned me never to say who I was, unless asked, I thoughtlessly added: ‘and I am the headsman’s boy.’

"I shuddered at the words as I spoke them, and expected Elizabeth to shrink from me with disgust. Instead of that she said, quite friendly,

"‘Sit down by me, Benz, and help me to watch the linen.’

"I thought myself in heaven; since dear mother had left me, I had never known the joy of a smile from a sweet face. In a moment we two children were the best of friends, sat hand in hand beside each other, laughed and chattered unceasingly, and forgot the whole world besides. I asked little Elizabeth who were her parents. She looked at me in amazement with her great black eyes, knew not what I meant, and was only the more bewildered by my attempted explanation. At last I heard my father’s whistle; kissed my new friend, and ran into the house. On my way home, I told my father what had happened, and he said the little maid was an orphan, whose mother had died in the house, and whom old Sarah had taken charge of. A father, however, she had never had, at least to his knowledge. Thenceforward, I went nowhere so willingly as to the town. I no longer cared that the passengers avoided us, and that boys pursued us with scoff and insult. I

knew that a kind greeting and a loving kiss awaited me, and little Elizabeth was soon as dear to me as my blessed mother; so that, in my dreams, their two figures blended into one. It was very different afterwards, when the heavenly purity, in whose full glory my mother had departed, had left Elizabeth for ever.

“Thus, I came to the age of twelve, and grew a tall strong lad, skilful and active; already I was so expert with the sword that with a horizontal cut I sent the blade between blocks piled on each other, and without in the least injuring them. I also tied a noose with a dexterity that filled Arnulph with proud joy, and he declared me fully qualified to officiate upon the scaffold. It happened one day that my father, plagued with the gout, ordered me to go alone to the town, and to fetch the tribute from the well-known house of the Elephant. He made me promise not to let the women caress me, and to lose none of the bright pfennings they had to give me. I obeyed his orders, and brought him home the full amount. But I did not tell him what had happened to me by the way. When the boys, who usually ran after us, saw that I was alone, they ventured much nearer than formerly; and amongst them I particularly remarked a fair-haired lad, who had always been the most spiteful and violent of them all, and whom his companions sometimes called Engolf, sometimes by the nickname of Bully-bird. He was the son of a patrician, of the noble Herr Hahn of Baumgarten, and was somewhat older than myself. This time he followed me to the very threshold of the house, and just as the door was opened he struck at me. I warded his blow, and returned it with one upon the nose, which knocked him down, and gave me time to enter the house.”

Berthold's persecutors awaited his exit to take their revenge, but he provided himself with a stick for defence, and, moreover, Elizabeth showed him an opening in the garden wall, choked with bushes and rubbish, and leading into a timber-yard, through which he passed unseen, and of which he thenceforward availed himself on his frequent visits to his playfellow. Engolf, however, watched him, and at last, on a certain afternoon, as he turned into the timber-yard, he heard a shout of “Huzza! the hangman's boy!” and was set upon by a number of lads, from whom he escaped with difficulty, and severely beaten, by the help of Elizabeth, who dragged him into the garden as he fell senseless from a blow on the head. In the house of the Elephant he lay for some time, too ill for removal, carefully tended by

his child-mistress, and by the wretched but kind-hearted women. About that period, however, the "Lutheran heresy" had begun to take root in the town, and a certain Dr Neander preached furiously against gambling and drunkenness, and against such establishments as that in which Berthold was confined by his wounds; "against all those things, in short, which, according to old usage and to the emperor's statutes, paid tribute to the headsman. This pleased the women beyond measure; with yellow envy they had long seen their husbands, lovers, and sons, wager away their fair white *groschen* at skittles and dice and cards; the headsman's daughters in the Rosenthal were a yet sharper thorn in their eyes; and now, supported by the preacher's frantic harangues, they raised such an infernal outcry that a noble councillor trod our rights under foot for the sake of peace, forbade all games of chance, and sent his officers to seize the loose women at the Elephant, and put them across the frontier. This occurred just at the time I lay ill in the Rosenthal." Berthold was carried home to his stepmother, who would not receive him, and Arnulph made him a bed in the hounds' kennel, for which piece of humanity his violent mistress beat him, and procured his dismissal. And throughout the book we hear no more of the rough but well-meaning journeyman hangman. Berthold's father came to visit his son and dress his wounds, but the henpecked headsman dared not take him into his house. The poor boy lay suffering and hungry, tormenting himself on account of Elizabeth, whom the authorities had removed from the Rosenthal, and given in charge to people of better repute than those who had had care of her infancy; but who those people were, and where he should seek his little friend, Berthold knew not. And when he recovered, his stepmother and her son ill-treated him, and drove him from their presence; and, Arnulph having left, he had no friend or companion but the shaggy hounds with which he slept.

At this point of his youthful tribulations, Master Hammerling ceases to discourse of himself, and abruptly transports us to the sign of the Thistle, an isolated public house, consisting partly of the ruins of an old watch-tower, and much frequented by students, who on bright summer evenings loved to sit under the trees and lie upon the grass before its door, until the tolling bell warned them to return to the town before gates and bridges were closed for the night. This inn was kept by a strange old couple, childless, avaricious, and, as it was reported, passing rich, who went by the names of Father Finch and Mother Blutrude. They professed great poverty, and were furious

if any doubted it, which few cared to do, since a certain rash scoffer had suddenly fallen sick, and gradually withered away and expired, in consequence, it was supposed, of certain unholy incantations of Mother Blutrude. The fear of her incantations, however, did not deter a reckless and debauched student from laying a plan for appropriating her concealed treasures. He found means to ingratiate himself with the old people, and to conceal himself in a nook at the top of the old tower, whence he saw them in the dead of night counting a large sum in silver coin. He only waited their departure to possess himself of the store, when he heard them talk of removing to the same place a large amount of Hungarian ducats they had bestowed elsewhere, and he resolved to wait where he was for this richer booty. He waited so long, that hunger, thirst, want of sleep and greed of gold bewildered his weak brain, and drove him mad. With delirious eagerness he filled his cap and pockets with the silver, rushed down the high steep staircase, forced the door with his foot, and bursting into the public room, seized Father Finch by the throat, and demanded his gold. The guests came to the rescue, dollars and crowns were scattered on the floor, and at last the madman was dragged away to prison, whilst old Finch drove every one from his house, barred the door, and set to work with his wife to collect the treasure. Benz and his son were in the town when the lunatic student was carried by, and soon afterwards a boy came running in with news that Father Finch had committed suicide from anxiety and despair. Straightway the headsman ordered one of his men to fetch his great sword and get ready his cart, and then he took the road to the Thistle, followed by an inquisitive mob, pressing as close to his heels as their aversion to his calling would allow. He went to exercise one of the most remarkable privileges of his office. What this was may best be told in the words of Mr Chézy's hangman.

“We found the old house surrounded by gaping idlers, whom nothing short of my father's presence could have induced to open a path. They gave way before his threatening gesture and raised voice, and we reached a loft where the gray-headed sinner hung from a strong staple, his stiffened feet almost touching an iron chest, from which Blutrude, who, cowered in a corner, never diverted her gaze. Soon after us came councillors, writers, and bailiffs, then a man bearing the sword, which the headsman took, and after cutting down the dead, he drew a circle round the corpse as far as his weapon's point could reach. Then he raised his voice and said:

“I stand as headsman on my property and heritage, or do any here say nay?”

“Then one of the council replied: ‘None say nay. You are headsman within the precincts of the city and in the Count’s domain, Master Benz; act then according to your sealed rights and privileges, and with God’s help, as we are ready to give you ours.’

“My father continued: ‘Thus runs the emperor’s decree: Wheresoever any one, with sinful hand, shall take his own life, there is every thing, in hall or chamber, cellar, barn, or stable, the headsman’s property, so far as he, standing beside the corpse, can reach with his sword above his head, below his feet, and on all sides. Have I spoken well?’

“‘On my soul and conscience,’ replied the councillor, ‘you have spoken well. And so take hence what to thee pertaineth.’”

And, in spite of old Blutrude’s screams and protestations, the treasure-chest was conveyed away in the headsman’s cart. Whilst this went on, Berthold, in rambling over the house, found Elizabeth, who had been given into the untender care of the hostess of the Thistle. The little hand-maid was delighted to meet her old friend, and they were engaged in affectionate colloquy when Blutrude, furious at the loss of her pelf, fell upon them with blows and abuse. Berthold cared little for her violence to himself, but when she attacked Elizabeth his forbearance deserted him, and, apostrophising her as a witch, he expressed a passionate hope that the day would come when he should set fire to her death-faggots. The effect of this wish is described in a singular passage:—“She shrank from me and was silent. Whether it was that my words sounded prophetically to her evil conscience, or that my boyish glance already possessed that peculiar power which has since often made strong men quake, and given noble horses the mad staggers, Blutrude reeled aside like a drunken person, allowed me to take leave of Elizabeth undisturbed, and for some time afterwards did not regain her usual vigour and malice.” This strange power, attributed to himself by the headsman, is referred to further on in the volume, when a horse shies and is seized with staggers at the mere glance of Berthold’s eye. That the gaze of the public executioner might have a strong effect upon men, in an age when he was regarded with a feeling of superstitious horror, would have nothing to surprise; nor is it astonishing that an old woman, already

suspected of witchcraft, should be terrified and tongue-tied by a hint of tar-barrels from the mouth of the hangman's son. The power of his evil eye upon horses is more difficult to explain and credit. But admitting the substance and incidents of the book before us to be extracted from *bona fide* chronicles, and there is not wanting a certain amount of internal evidence corroborative of the editor's assertion to that effect, such passages as this are highly curious illustrations of the superstitions of that day. In most parts of the world the evil eye has been a favourite belief. The French have their Mauvais-œil, the Germans their Schelauge, the Italians the Malocchio; and if in any of those countries mesmerism had been invented and practised two or three hundred years ago, its disciples would, in all probability, have been held endowed with the power attributed to himself by Berthold Benz.

The dismissal of Arnulph, his chief aide-de-camp, had left the headsman short-handed, and in vain he sought some one to supply his place; so that after having, for very many years, put his hand to no instrument of punishment save the broad short sword, the chief emblem of his office, he suddenly found himself compelled to descend to lower functions, and to break a murderer on the wheel. At this execution a rare incident occurred, showing another of the *Scharfrichter's* privileges. The culprit was bound upon the grating, and Benz dealt him the first blow, upon the shin. The bone snapped, and the unhappy victim, a man of gigantic frame and strength, maddened by extremity of agony, wrenched out the cramp-iron to which his right wrist was bound, and extended his arm to ward off the coming blow. Thereupon a forward young man stepped thoughtlessly out of the crowd, seized the criminal's arm and drew it back, whilst one of the executioner's assistants again drove in the iron. Then the headsman laid down his wheel, stepped up to the imprudent youth, clapped his hand upon his shoulder and said, "Now art thou mine till thy day of death." Voluntary aid given to the executioner entailed perpetual servitude, inevitable and infamous. In this instance, the volunteer, by trade a turner from Nuremberg, and who was also a professional pugilist, was compelled, in spite of prayers and repugnance, to, strip his jerkin and assist in the horrible execution then going forward, after which he mournfully accompanied his new mates to the executioner's dwelling. House and home, his honest name, and a loving and expectant bride, were all for ever lost to him by this one rash act. And the only hope he dared indulge was, that his family and friends might never learn his fate, but deem him dead in distant parts. The cruel severity with

which Master Benz enforced his privilege was requited to him by his pressed recruit, who found undue favour in the eyes of Grethel. The Nuremberger, however, absorbed in grief, took little heed of the lady's amorous advances; and she, incensed by his indifference, applied to old Blutrude for a love-philter. All this forms a part of the romantic plot which is made the vehicle for exhibiting the public and private existence of the headsman of the middle ages, and we need but briefly touch upon it. The Nuremberg Joseph drank the potion, which reminded him, by its exhilarating effects, of "the foaming, reaming drink he had once tasted at his master's wedding at Namur, in Brabant, and which the Walloons fetch from the county of Champagne, in France, to thin their blood, clogged by thick barley beer." Soon, however, the young man repented of deceiving Benz, who was kind to him after his rough fashion; and one morning that the headsman called him to his room, to eat a savoury pottage his wife had prepared, but for which he himself felt little appetite, Veit (the Nuremberger) thought the moment opportune to make a clean breast, and, whilst eating, began his confession. Meanwhile Grethel, superintending in the kitchen the breakfast of her household, missed and asked for her favourite. "He is in the master's room," was the reply, "eating the pottage." The headsman's wife grew pale as death, for the pottage was poisoned. She hurried into the room just as Veit, after completing his confession, fell in convulsions upon the floor; and her husband, indignant at her infidelity, stripped his leathern girdle and furiously beat her, loading her with opprobrious epithets. She escaped from his hands, and ran into the town, exhibited the cuts upon her face and arms to the authorities, accused her husband of this ill-treatment, and of having poisoned his assistant in a moment of groundless jealousy. Benz was forthwith arrested. Appearances were strong against him. He had gone out of his way to invite his servant to eat the mess intended for himself. And when the effects of the poison manifested themselves, he had beaten his wife instead of rendering assistance to the sufferer, who had died soon afterwards. His protestations of innocence were discredited; and as he persisted in not confessing a crime he had not committed, he was conducted to that torture-chamber whose horrors he had so often superintended. He shrunk not at sight of the rack, but stood upon his rights and privileges; repudiated the jurisdiction of the city council, and appealed to a higher tribunal. "My lords would not listen to this, and appealed, in their turn, to the special privileges of the town; but

the strange headsman, whom they had summoned to their assistance, pulled down to the wrist the shirt sleeves he had rolled up, put on his doublet, and declared, with steadfast voice, that he must certainly, in execution of a legal judgment, torture his own son, if required, but that he would not act against the Emperor's ordinances, or lay hand upon a brother-craftsman in obedience to an arbitrary command." So the counsellors, finding the executive fail them, and being also, as it would appear, legally in the wrong, were compelled to concede Master Benz's claim to be arraigned before another court of judicature. The delay was the headsman's salvation. Count Ruprecht, a sort of lord of the manor, and nobleman of great weight in the district, obtained admission to his dungeon, under pretence of consulting him about a disease, which "leech and surgeon, wise-women and farriers, had been unable to cure." From this it would appear that in those days the executioner either dabbled in the medical art, or was supposed to possess prescriptions (perhaps charms) of efficacy in certain cases. We have been unable to trace any particulars connected with this belief; and Mr Chézy, although he must have access in Germany to many more sources of such information than are open to us, leaves his readers, as usual, wholly in the dark.

The brief dialogue in the dungeon is curious and characteristic. The Count, straitened in his finances, covets the iron chest with a golden lining, taken by Benz from beneath the feet of Father Finch the suicide. In consideration of its receipt, he engages to rescue the executioner from his unpleasant position. The latter, although innocent, is by no means confident of acquittal, and accepts the terms. Then says the Count to the headsman, with touching confidence, "You have been known to me for many years as an honourable man, I require no other guarantee than your word. And I pledge my honour as a nobleman to rescue you, either by craft or by the strong hand." Recourse to violence was unnecessary. The Count revived an old tribunal, long in disuse, which sat under an aged oak by the river's brink, and consisted of himself alone. The council had little fancy for giving up their prisoner, but yielded to menaces in the emperor's name, and Benz was brought before this primitive court. The burgomaster supported the accusation, but, on the other hand, seven nobly-born persons deposed on oath to the prisoner's innocence, and Etzel the cup-bearer, a stalwart retainer of the Count's, renowned in all the country-side for his reckless courage and powerful arm, threw his glove into the ring, and challenged to

mortal combat any who should question it. Thrice the herald proclaimed the defiance, but none took it up; the sun went down, and the Count declared the charge unfounded and the prisoner free. This was the first and last time Count Ruprecht asserted his right to hold this penal tribunal. And subsequently an imperial decree declared the judgment null and the Count's privilege obsolete. But before that came to pass, the headsman's innocence was established, and the true culprit discovered.

During his captivity, Benz had reflected on his unkindness to his first-born, and resolved to repair past injustice by better treatment. On returning home, his first inquiry was for Berthold. The answer was, that the boy had run away. The truth was, that his stepmother had had him conveyed to a long distance from his father's house, and by frightful menaces deterred him from returning. And now she wheedled her husband out of a pardon, and things resumed their old course in the headsman's house. We pass over a good deal of episodical matter, having little to do with the main subject of the book; amongst other things, a long account of a son of Count Ruprecht, who was sent on his travels in charge of a learned preceptor and bad horseman, one Dr Wohlgemuth, on whom the scamp of a pupil played an infinity of mischievous tricks, proving that travelling tutors three hundred years ago had by no means a sinecure. After an absence of some duration, Berthold returns home in the suite of this young Count Ulrich, finds Elizabeth still at the sign of the Thistle, and his old enemy Engolf and other dissolute companions persecuting her with their insolent addresses, to which she turns a deaf ear. She has not forgotten Berthold; their childish affection has grown into love, and they mutually plight their troth. Soon afterwards, Berthold sets out on a three years' pilgrimage, during which to learn surgery and farriery, and Count Ruprecht promises that, on his return, none but he shall shoe his horses and cure his servants. But the headsman's son has higher aspirations, and resolves to become a physician. At Heidelberg and Paris the three years pass quickly by in diligent study, and at the end of that time he has conquered the doctor's gown, and returns to his native place as Dominus Bertholdus. As he draws near to the town, he prays in heart for a good omen to welcome his return; but none is vouchsafed him, and in its stead he meets Engolf and has an angry colloquy. At the little inn he sees Elizabeth, who betrays great agitation on beholding him, for a report had been set about of his death. At a ball to which he accompanies her, held at the old house of the Elephant, now converted into a respectable

inn, he meets Engolf, who coarsely taunts him with taking up with his cast-off mistress. Elizabeth cannot repel the imputation, Berthold spurns her from him, and strikes Engolf; a fight ensues, blood is shed, and the headsman's son is obliged to conceal himself for a while. Then comes some more extraneous matter, until we find Berthold established as assistant in the house of Master Baldwin the physician, who one day sends him to attend the infliction of torture on an old woman accused of witchcraft. In the wrinkled wretch bound upon the rack, he recognises old Blutrude, and here, after seven years' separation, he meets his father.

"The headsman had grown old in those seven years: his silver hair hung scantily over his temples; his high bald brow was crossed with furrows; his long beard resembled thick snow-flakes; but still he was strong and vigorous. From his short and muscular neck his broad shoulders spread in powerful development; his long arms were nervous, his fists of iron; his eyes glittered as in the days of his prime; and the dusky red of his countenance bore witness that the old man had not yet abandoned the pleasures of the bottle, in spite of the gout, whose presence was indicated by his wide shapeless boots of soft buckskin. On beholding him, a cold shudder came over me; and yet it needed an effort not to fall into his arms and greet him with the name of father, and offer my aid in his horrible office. Behind him stood his assistant, a stout young fellow, in whose features and reddish hair I recognised Grethel's son." Here a touch of witchcraft comes in; Blutrude, after terrible tortures, confessing her dealings with the demon, and implicating Grethel and her son, the former of whom had long been in the habit of accompanying her once in the year to a witches' sabbath upon the Blocksberg, whilst an evil spirit assumed her form in her husband's couch. Upon receiving this startling information, old Benz falls down, struck with apoplexy, and presently expires, in spite of the remedies applied by Berthold, who in his emotion betrays himself as the headsman's son. He is immediately seized, and put in irons. His life is in danger, for he has incurred the penalty of the gallows by daring to mix with his fellow-men, and to forget the stigma and isolation prescribed by his birth. But the executioner being dead, his youngest son accused of witchcraft, and the prison full of criminals, several of whom are soon to be put to the torture, the authorities let Berthold, go free, on condition of his assuming his father's office. To this he consents, as the only means of

escaping the halter, and at once takes possession of the house whose threshold he had expected never again to cross.

The closing chapter of the volume, entitled "The Headsman's Wedding," is perhaps the most striking and original of the whole book. Berthold's installation in his father's house and office had not long occurred, when he was called upon to exercise the latter, and to put to the rack his old and bitter foe Engolf of Baumgarten, accused of conspiracy against the state. Even under the torture, the profligate found sneers and sharp words to address to his executioner, and boasted of his base triumph over the unhappy Elizabeth, then in prison on the charge of murdering her infant. Whilst in a state of frenzy, she had thrown it into the water. Maddened by his enemy's taunts, the headsman exercised to the very utmost the tortures at his command, and tugged and strained till every joint of the unhappy wretch was dislocated, and the foam stood upon his lips. At last Engolf confessed his crime and was released from the hands of him who had crushed his body, and whose heart he had broken. Then Berthold received orders to hold himself ready, in three days from that time, to execute Elizabeth, condemned to die by the sword.

"It was a hard trial for me, when, upon the eve of this execution, I had to betake myself to her prison, to share, according to old custom, the culprit's last meal. The priest had just left her when I entered the narrow cell, and she sat buried in thought, her head sunk upon her breast, her long black hair falling like a veil over her face, her hands folded in her lap." The poor girl could not make up her mind to die, and wildly implored her former lover to save her, ignorant that she was to perish by his hand. But his feelings towards her had undergone a total change; indignation and contempt had replaced affection; and he beheld her despair and heard her entreaties without a spark of compunction. "You must die, Elizabeth," he said, "and truly by no other hand than mine."

"She gazed at me with expanded eyeballs, her features, distorted by despair, gradually assumed a milder expression, a scarcely perceptible smile crossed her pale lips. 'Death from your hand is sweet,' she at last said. 'Here is my heart, strike! why delay? I am ready.' These gentle words broke down my anger; I had to lean against a pillar in order not to sink to the ground, and had hardly strength to reply. 'Will you not understand me, Elizabeth? Have you forgotten whose son I am?'" Then she told him how a traveller had

come to the inn, and had said (probably at Engolf's instigation) that Berthold was dead. And how, after that, the seducer had perseveringly environed her with his wiles, and at last, by aid of a potion old Blutrude supplied, had effected her ruin. And as the headsman heard her sad tale, his anger was converted into pity. He partook her last repast, and at parting they pressed each other's hands in friendship. But the love Berthold once had cherished for the orphan playmate of his boyish days had fled for ever.

That same night the tribunal condemned Engolf to the gallows. All the grace his anguished parent could obtain for him was that he should die by the hands of the headsman himself, not of an inferior executioner—and in his own clothes, booted and spurred. This favour cost fifty marks of gold, and a bequest to the hospital of all the property his father could will away.

With the dawn, Berthold repaired to the city, where the sentence was read in the public market-place, and “a white wand was broken and thrown in fragments at the feet of the child-murderess.” Then Elizabeth was delivered over to the executioner, who lifted her into the cart, where a Capuchin monk took his place beside her, and the melancholy procession to the scaffold began. On the way, Berthold's men encouraged him, exhorting him to strike the blow on Elizabeth's slender neck with the same firmness and precision with which, just before he left the house, he had severed that of an old wether. They considered him fortunate, that his first essay with the sword should be made on a meek and unresisting girl, and not on some tough old culprit, who would spitefully shrug his shoulders, so as to disappoint the aim and bring shame upon the headsman. “At last we stood, Elizabeth and I, face to face between the three pillars, gazed at each other, and shook hands for the last time. Then I bound her eyes, bid her kneel down, and whilst an assistant, standing on one side, with body bent forward, and outstretched arm, held up her head by the long hair, I threw off cloak and doublet, grasped the sword with both hands, and, settling myself firmly on my feet, prepared to give the cut that should deprive her of life. Mute and breathless with expectation, the mob looked up at the scaffold; the monk ceased to mutter his prayers aloud, but moved his lips in silence; the stillness of death reigned around. I felt a dizziness in my brain; instead of one head I saw three, and I turned about, and asked in a loud voice, which of them the law commanded me to strike off. The populace began to murmur, my assistants exchanged meaning smiles and scornful glances, the

magistrate impatiently called to me to make an end; Elizabeth stirred not and made no sign. Then I had pity on the youth and beauty of the murderess; I felt I should never be able to strike her death-blow, and a sudden resolution took possession of my soul, the resolution to save her. I sank the sword's point, leant upon its hilt, and, claiming my privilege, demanded Elizabeth for my wife. Thereupon the murmurs of the crowd were converted into loud rejoicings, and whilst I supported the fainting girl in my arms, the people insisted I should at once conduct her to the altar. My Lords of the Council knew well that I was in my right, and none ventured to hinder or object. Followed by the noisy mob, we returned to the city, and within the hour the priest of St Kummerniss united me to Elizabeth. Then she once more ascended the cart, which drove away with her, this time at a brisk trot instead of a funeral pace, whilst I went to the council-house to hang Engolf.... The body remained hanging till sunset, then I took it down, laid it in the coffin, and went my way home."

"There was revel and jubilee in the house. With song and dance, and play, and flowing jugs, the servants celebrated the headsman's wedding day. And when the hour came, I led Elizabeth to her chamber, drew my father's sword from its scabbard, and placed it in the bridal bed between her and myself. There it has ever since remained."

With this singular and thoroughly German incident, the headsman's memoirs, as conveyed in autobiographical form, conclude, although we may presume the greater portion of the other volumes to be derived from similar records, moulded into a different shape by Mr Chézy. The second volume consists of one long narrative, entitled "Hildebrand Pfeiffer," a story of the seventeenth century. An executioner plays an important part in it, but is not the hero of the tale, as in Benz's narrative. Hildebrand Pfeiffer is a man of five-and-thirty, of handsome face and person, who has studied long and successfully at Heidelberg, Prague, and Paris, and has learnt surgery at Cologne, where we now find him. Possessed by the demon of pride and ambition, he sees no better way of attaining the brilliant position he covets, than through the medium of the philosopher's stone, at whose discovery he ardently labours under the guidance of Doctor David da Silva, or Master Wood, as the vulgar translated his Portuguese name—a learned physician and ex-teacher at the high school, to whom Hildebrand serves as assistant and amanuensis. Besides dabbling in white magic, the old Jew-

leech is shrewdly suspected of dealing in the blacker sort, but this does not prevent scholars flocking to gather wisdom from his lips, and sick persons sending for him so often as their fears of death prevail with their avarice to pay his heavy fee. And he has long been left unmolested to his mysterious pursuits, when, in an evil hour, he sends his old servant, in company with a young maiden, to gather mandragora at the gallows' foot. The plant is to be employed in some alchemical conjuration, and is valuable only if gathered at the witching hour by a perfect virgin. The one selected is Adelgunde, a beautiful girl, who loves Hildebrand, and is beloved by him. Unfortunately, upon the night selected for plucking the mystical mandrake, the headsman and his assistants repair to the place of execution to inter the corpse of a suicide, and there detect and seize the two women, the elder of whom throws the blame of her unholy proceedings upon Da Silva and Hildebrand. There is, perhaps, rather too much of witchcraft in the volume, but some of the incidents are very wild and original. With more skill and care, and power of description, Mr Chézy might have constructed a three volume romance of a striking kind out of the materials he has loosely and hastily crammed into a third of the space. There is a certain Count Philippus, or Philipps, of whom much was to be made, but he is neglected, and roughly sketched. He comes to Cologne to raise troops for the emperor, and is very successful in his recruiting, having mustered a strong body of idle artisans, debauched students, and desperadoes of all kinds. In the joy of his heart he drinks himself ill; Hildebrand attends him, and wins his heart by tolerating the flagon, when the soldier had expected to be put on a diet of drugs and spring water. The Count's levies are drawn up, and about to march away, when the police make their appearance at Dr Da Silva's door, to arrest him and his assistant on a charge of witchcraft. Warned in time, Hildebrand conceals himself amongst the men at arms, and follows Philipps to the field as body-surgeon. It is the period of the thirty years' war, and the ambitious mediciner, interrupted in his pursuit of the grand secret of gold-making, conceives the more feasible project of rising to eminence and wealth by deeds of arms. He is confirmed in his new aspirations by the gift of a sword, manufactured by the headsman, and supposed to confer invincibility on him who wields it. There is a remarkable chapter, from which we gather the details of this superstition. Hannadam, the executioner, has his fortified dwelling in the suburbs of Cologne, and one evening a Lutheran officer rides up from the adjacent Swedish camp, and endeavours to induce him, by

the bribe of a well-filled purse, to make him a charmed sword. From the battlements of his little fortress, Hannadam holds converse with the Swede, who complains that he has had his foot in the stirrup for twenty years, and is still a cornet, whilst his comrades of equal standing have risen to high rank. He holds it high time to look after his promotion.

“‘Undoubtedly it is,’ said the headsman jeeringly. ‘A forty-year-old cornet cuts a poor figure. I will promote you to a majority.’

“‘So you shall,’ replied the horseman, ‘and I will tell you how. But first answer a question,—you are a popish idolator?’

“‘Infernal heretic!’ shouted the executioner. ‘Would you have me set my dogs at you?’

“The Swede was astounded by this burst of anger. He had intended no harm, but in the simplicity of his heart had designated the Roman Catholics by the epithet that from childhood upwards he had heard and used.

“‘If you are no idolator,’ he replied very quietly, ‘give me back my purse.’

“The headsman laughed.

“‘I am papist enough,’ he said, ‘to take example by my priests, and restore no offering.’

“‘Indeed,’ said the cornet. ‘But I begin to see what offended you. Never fear, you shall not hear the word again.’

“‘You will do wisely not to repeat it. And now say what you would for your money.’

“‘Did I not tell you I cannot get promotion?’

“‘Well—’

“‘Well? In the name of all the idols, I would have a charmed sword, such as only a headsman and a Romanist can make.’

“The purse fell jingling at the Swede’s feet.

“‘Begone!’ cried the headsman. ‘I am no sorcerer.’

“‘The charmed sword is a matter of white magic, seeing it is made under invocation of the holy Trinity and of the blessed cavalier, St Martin, without aid of the powers of darkness. To-night is favourable to its forging—such a

night will not for a long time recur—for me, perhaps, never—with the like concurrence of fortunate circumstances. Do my bidding, and take the rich reward. After midnight, red Mars is in the ascendant, and in the direct aspect of Venus. That is the lucky hour to put the weapon together. The blade must be a sword that has served upon the scaffold, and severed a criminal's head from his body; the wood of the hilt must be part of the wheel upon which some poor sinner has been broken; the guard must be of the metal of chains in which a murderer has been hung. You need put it but loosely together; the armourer shall complete the work. The blade is the most important; let it be long and slender, not above two fingers broad, and with a single edge. The Tubal's-fire you of course have: our executioners, also, keep that. Will you prepare the sword, master?’

“‘I would do so,’ replied the headsman, ‘and have all things needful;—but the fire is wanting.’

“‘Impossible!’ exclaimed the cavalier.

“‘But nevertheless true,’ replied Hannadam. ‘I have only lately inherited my charge; I found the lamp in the forge extinguished, and since then no oak has been struck by lightning.’

“The Swede cursed and swore like a blind heathen, rode disconsolately away, and forgot, in his disappointment, to reclaim the purse he had again thrown up to the headsman. The latter whistled a peasant's dance between his teeth, and gave orders to raise the drawbridge.

“‘You told the man an untruth,’ said his wife gently; ‘the lamp now burning in the smithy received its light from a blasted oak.’

“The headsman laughed. ‘I know it right well, darling,’ he replied; ‘but it will be long before I give such a sword to an unbelieving heretic, for him to use against those he styles idolators. I will at once to work, and prepare the weapon. In our days a blade is not to be despised, from whose mere glitter the foe will fly by dozens.’”

At midnight the sparks flew fast in the headsman's smithy, and the wondrous weapon was prepared. The Swede might well have found it useful in the severe action between his countrymen and the Imperialists, which took place the following day within sound and sight of the city. The battle over, Count Philipps and Hildebrand rode up to Hannadam's

dwelling; and the Count, whose vassal the headsman was, demanded admittance and lodging. Hildebrand showed some repugnance to enter the house of the executioner. “No need to fear,” said the Count. “According to imperial charter, the headsman’s office is honourable; and, moreover, he and his household will have sufficient sense not to touch us. His bread, his wine, his meat do not defile those partaking them, neither does his roof dishonour those it covers. But you must have the goodness to see to our horses yourself. At the worst, my nobility is good enough to shield us from stain even in the knacker’s dwelling.”^[5] So the count and the leech take up their quarters in the house of Hannadam, whose wife is no other than that beautiful Adelgunde, with whom Hildebrand had been deeply in love, and whom he had now long mourned as dead. She had been tried at Cologne on a charge of witchcraft, having been detected gathering mandragora at midnight beneath the gallows, and had been put to the torture; but Hannadam, to whose lot it fell to inflict it, was touched by her beauty, and handled her gently. In a conversation with Count Philipps, he explains to him how it is in the executioner’s power greatly to aggravate or lighten the agony he is ordered to inflict. Finally, Hannadam marries her, in virtue of the privilege already exemplified in the story of Berthold Benz. She is a somnambulist, and having seen her former lover enter the house, (although her husband does all in his power to keep her from sight of him, and even confines her in her room,) she gets up in the night, and by a most perilous path across the roof of the house, reaches Hildebrand’s chamber, bearing with her the sword of her husband’s manufacture, which she gives to her lover, bidding him use and conquer with it. Taking little heed of the supposed power attributed to the weapon, Hildebrand nevertheless girds it on, and the next day joins Colonel Madelon’s regiment of cuirassiers. Distracted at finding Adelgunde the wife of another man, he covets death, and resolves to seek it in action. The count unwillingly parts with him, on condition of his returning that evening to his post. But evening comes, the fight is over, the wounded count looks anxiously for his leech, and Hildebrand appears not. The cuirassiers are far away, pursuing the beaten foe.

Time passes—the exact period is not defined—and we again meet the warlike physician, who is brought before us in a very remarkable chapter, detailing the punishment and degradation, at the headsman’s hands, of an entire regiment that has disgraced itself in action. At that period the affairs

of the Imperialists were in any thing but a flourishing state. At Leipsig—on the same ground where, eleven years previously, Gustavus Adolphus had beaten Tilly—the Swedes, under the gallant Torstenson, had gained a signal victory over the Archduke Leopold-William; a victory shameful to the German name from the cowardice and want of discipline of a portion of the troops engaged. The remnant of the beaten army rallied near Prague, whose gates, some time after the fight, a regiment of cavalry was seen to approach, its ranks thinned less by hostile sword than by scandalous desertion. Deep shame sat upon the bearded countenances of the horsemen, and their hearts were oppressed by apprehension of punishment; for rumour said that the corps was ordered to Prague to answer for its misconduct. The officers were even more cast down than the men; they spoke in whispers, consulting each other how they might best justify themselves, and proposing to throw all the blame on their subordinates. On the other hand, the private soldiers did not scruple to say above their breath, that “a sensible housekeeper begins to sweep his stairs from the top.” The regiment was close to the town, ordering its ranks previous to entrance, when a young officer came up at full gallop, saluted the colonel courteously but coldly, and said:

“I am the bearer of an unpleasant order.”

“Duty is duty, Sir,” replied the commanding officer; “be good enough to deliver your message.”

This was to the effect that the men should dismount, lead their horses into the town with lowered colours and without trumpet-sound, and then, so soon as the beasts were put up, repair to the market-place with swords at side, officers as well as men. This reception was ominous of even worse things than had been anticipated; and many a soldier regretted he had not followed an example abundantly supplied him, and deserted immediately after the battle. In two hours time, however, the regiment arrived with downcast eyes at the appointed place of muster. They marched two and two, with long intervals between the files. At the entrance of the narrow streets were pickets of dismounted dragoons, four deep, their musketoons on their arms, their drawn swords hanging from their wrists; the doors and windows of the houses were lined with carabineers, their weapons at the recover. A major and a provost-marshal were there on horseback, the latter attended by his men, who stood round a couple of carts. As each rank of the cuirassiers reached the square, the major commanded them to halt, and then gave the

word "Draw swords!" followed by "Ground arms!" Whereupon every man, without distinction, had to lay his naked sword upon the ground, before he was allowed to move forwards. The cornets did the same with their colours, and the provost's men took up swords and standards and put them in the carts. The disarmed soldiers formed up as prisoners in the square, and their hearts misgave them when they saw it arranged as for an approaching execution. True, there was neither scaffold nor gallows, but in the centre stood the gloomy man in the red cloak, his assistants behind him, between an iron vice and a pile of brushwood. A hedge of halberds surrounded the whole square. On one side a crowd of military officials of high rank sat upon their horses, to try the offenders, if indeed trial could be said to await men manifestly already condemned. Hard upon the circle of military pressed the populace; windows, roofs, and balconies were thronged with curious spectators; but it was as much as the nearest of them could do to catch a few words of what passed, when the disarmed regiment appeared before the court-martial.

The heads of accusation were tolerably well known, and resolved themselves into the one undeniable fact that the regiment, at first victorious, but afterwards repulsed, had fled in shameful haste and confusion, communicating its panic to the rest of the cavalry, leaving the infantry exposed, and causing the loss of the already half-won fight. These circumstances were too notorious to need proof; and the chief question was, whether the soldiers had fled in spite of every exertion of their officers, or whether the latter had been, by their pusillanimity, the chief causes of the disaster. This question it probably was that was debated for nearly two hours, and produced such violent dissensions amongst the prisoners, that the intervention of the guard was required to keep them from coming to blows. The bystanders could not distinguish words, but only a confused clamour of voices, which suddenly ceased at the blast of a trumpet. The prisoners drew back; the judges, consulted together for a moment; and then there was an abrupt and uneasy movement, amongst, behind, and in front of them, the motive of which immediately became apparent. The spectators knew not whither first to turn their eyes. Here policemen bound the officers' hands behind their backs; in another place the provost's men separated the soldiers by tens, something in the way in which a tithe-owner counts the sheaves in a field. Drums were placed on end, with dice upon their heads: yonder the brushwood blazed up in bright flames, which the

headsman's helpers fed with the colours and decorations of the regiment, whilst their master snapped sword-blade after sword-blade in his iron vice. With mournful eyes the officers saw their flags consumed and their weapons broken at the hangman's hands. The most painful death would have been sweet and welcome compared to this moral agony. Despondingly they sank their heads, and those esteemed themselves fortunate whose hair was long enough to hide their shame-stricken countenances.

Whilst the officers endured the curious or spiteful gaze of the throng, the men threw dice for their lives upon the sheepskin tables. He of each ten who threw the lowest, was immediately seized by the executioners, who bound his hands and placed him with the group of officers. And the closing act of this terrible ceremony was performed by the public crier, who proclaimed the whole regiment, from the lieutenant-colonel down to the last dragoon, as "*Schelme*" or infamous knaves. After which the mob dispersed, streaming through lanes and alleys to the place where the officers and tenth men were to be hanged. The remainder of the regiment were conveyed to a place of security, till such time as they could be sent to dig fortifications in Hungary, or to labour on the wharves of a seaport.

Hildebrand Pfeiffer is amongst those saved from death to undergo slavery; but he contrives to escape his doom, and is next seen dwelling, a pious ascetic and penitent, in a mountain hermitage, under the name of Father Gregorius. Enthusiastic in whatever he does, he passes his time prostrate before a crucifix, lacerating his shoulders with many stripes. His despair arises partly from grief at the loss of Adelgunde, and partly from shame at having been branded as a dastard with the rest of Madelon's cuirassiers. His old friend and patron, Count Philipps, finds him out, reasons with and consoles him, and makes him his chaplain. But after he has long been esteemed for his piety and eloquence, he offends the Count by a diatribe against the prevalent belief in witchcraft, whose absurdity his good sense and early education enable him to recognise. There is an extraordinary scene at a convent, where Adelgunde, who deserted her husband's house on the night of her interview with Hildebrand, has taken refuge. She falls into a manner of ecstasy, repeats Solomon's Song in Latin, and commits other extravagancies, greatly to the scandal of the sisterhood, and of Father Bonaventura, the convent chaplain. Finally, both Hildebrand and Adelgunde are burnt for sorcery. There is a vein of interest in the tale to the very end,

although the book, in an artistical sense, is roughly done. The style is crabbed, and the dialogue quaint, but often effective. The final volume of the *Malefizbuch*, under the agreeable title of “*Galgenvögel*,” (Gallowsbirds) contains four tales of very middling merit, and is altogether the worst. It differs from the other two as saying little concerning the headsman and his functions, further than that he steps in at the close of each tale, to execute the sentence of the law on the criminals whose offences and adventures it narrates. M. Chézy announces his store of materials to be by no means expended, and promises a further series should this one find favour. If it does so, he must attribute the success to the interest inseparable from the subject, not unlikely to attract readers in spite of the editor’s negligence, and of the book’s manifold deficiencies.

EDINBURGH AFTER FLODDEN.

The great battle of Flodden was fought upon the 9th of September 1513. The defeat of the Scottish army, which was mainly owing to the fantastic ideas of chivalry entertained by James IV., and his refusal to avail himself of the natural advantages of his position, was by far the most disastrous of any recounted in the history of the northern wars. The whole strength of the kingdom, both Lowland and Highland, was assembled, and the contest was one of the sternest and most desperate upon record.

For several hours the victory seemed doubtful. On the left the Scots obtained a decided advantage; on the right wing they were broken and overthrown; and at last the whole weight of the battle was brought into the centre, where King James and the Earl of Surrey commanded in person. The determined valour of James, imprudent as it was, had the effect of rousing to a pitch of desperation the courage of the meanest soldiers; and the ground becoming soft and slippery from blood, they pulled off their boots and shoes, and secured a firmer footing by fighting in their hose.

“It is owned,” says Abercromby, “that both parties did wonders, but none on either side performed more than the King himself. He was again told that by coming to handy blows he could do no more than another man, whereas, by keeping the post due to his station, he might be worth many thousands. Yet he would not only fight in person, but also on foot; for he no sooner saw that body of the English give way which was defeated by the Earl of Huntley, but he alighted from his horse, and commanded his guard of noblemen and gentlemen to do the like and follow him. He had at first abundance of success, but at length the Lord Thomas Howard and Sir Edward Stanley, who had defeated their opposites, coming in with the Lord Dacre’s horse, and surrounding the King’s battalion on all sides, the Scots were so distressed that, for their last defence, they cast themselves into a ring; and being resolved to die nobly with their sovereign, who scorned to

ask quarter, were altogether cut off. So say the English writers, and I am apt to believe that they are in the right.”

The combat was maintained with desperate fury until nightfall. At the close, according to Mr Tytler, “Surrey was uncertain of the result of the battle: the remains of the enemy’s centre still held the field; Home, with his Borderers, still hovered on the left; and the commander wisely allowed neither pursuit nor plunder, but drew off his men and kept a strict watch during the night. When the morning broke, the Scottish artillery were seen standing deserted on the side of the hill; their defenders had disappeared; and the Earl ordered thanks to be given for a victory which was no longer doubtful. Yet, even after all this, a body of the Scots appeared unbroken upon a hill, and were about to charge the Lord-Admiral, when they were compelled to leave their position by a discharge of the English ordnance.

“The loss of the Scots in this fatal battle amounted to about ten thousand men. Of these, a great proportion were of high rank; the remainder being composed of the gentry, the farmers, and landed yeomanry, who disdained to fly when their sovereign and his nobles lay stretched in heaps around them.” Besides King James, there fell at Flodden the Archbishop of St Andrews, thirteen earls, two bishops, two abbots, fifteen lords and chiefs of clans, and five peers’ eldest sons, besides La Motte the French ambassador, and the secretary of the King. The same historian adds—“The names of the gentry who fell are too numerous for recapitulation, since there were few families of note in Scotland which did not lose one relative or another, whilst some houses had to weep the death of all. It is from this cause that the sensations of sorrow and national lamentation occasioned by the defeat were peculiarly poignant and lasting—so that to this day few Scotsmen can hear the name of Flodden without a shudder of gloomy regret.”

The loss to Edinburgh on this occasion was peculiarly great. All the magistrates and able-bodied citizens had followed their King to Flodden, whence very few of them returned. The office of Provost or chief magistrate of the capital was at that time an object of high ambition, and was conferred only upon persons of high rank and station. There seems to be some uncertainty whether the holder of this dignity at the time of the battle of Flodden was Sir Alexander Lauder, ancestor of the Fountainhall family, who was elected in 1511, or that great historical personage, Archibald Earl of Angus, better known as Archibald Bell-the-Cat, who was chosen in 1513,

the year of the battle. Both of them were at Flodden. The name of Sir Alexander Lauder appears upon the list of the slain; Angus was one of the survivors, but his son, George, Master of Angus, fell fighting gallantly by the side of King James. The city records of Edinburgh, which commence about this period, are not clear upon the point, and I am rather inclined to think that the Earl of Angus was elected to supply the place of Lauder.^[6] But although the actual magistrates were absent, they had formally nominated deputies in their stead. I find, on referring to the city records, that “George of Tours” had been appointed to officiate in the absence of the Provost, and that four other persons were selected to discharge the office of bailies until the magistrates should return.

It is impossible to describe the consternation which pervaded the whole of Scotland when the intelligence of the defeat became known. In Edinburgh it was excessive. Mr Arnot, in the history of that city, says,—

“The news of their overthrow in the field of Flodden reached Edinburgh on the day after the battle, and overwhelmed the inhabitants with grief and confusion. The streets were crowded with women seeking intelligence about their friends, clamouring and weeping. Those who officiated in absence of the magistrates proved themselves worthy of the trust. They issued a proclamation, ordering all the inhabitants to assemble in military array for defence of the city, on the tolling of the bell; and commanding, ‘that all women, and especially strangers, do repair to their work, and not be seen upon the street *clamorand and cryand*; and that women of the better sort do repair to the church and offer up prayers, at the stated hours, for our Sovereign Lord and his army, and the townsmen who are with the army.’”

Indeed the council records bear ample evidence of the emergency of that occasion. Throughout the earlier pages, the word “Flowdoun” frequently occurs on the margin, in reference to various hurried orders for arming and defence; and there can be no doubt that, had the English forces attempted to follow up their victory, and attack the Scottish capital, the citizens would have resisted to the last. But it soon became apparent that the loss sustained by the English was so severe, that Surrey was in no condition to avail himself of the opportunity; and in fact, shortly afterwards, he was compelled to disband his army.

The references to the city banner, contained in the following poem, may require a word of explanation. It is a standard still held in great honour and reverence by the burghers of Edinburgh, having been presented to them by James the Third, in return for their loyal service in 1482. This banner, along with that of the Earl Marischal, still conspicuous in the Library of the Faculty of Advocates, was honourably brought back from Flodden, and certainly never could have been displayed in a more memorable field. Maitland says, with reference to this very interesting relic of antiquity,—

“As a perpetual remembrance of the loyalty and bravery of the Edinburghers on the aforesaid occasion, the King granted them a banner or standard, with a power to display the same in defence of their king, country, and their own rights. This flag is kept by the Convener of the Trades; at whose appearance therewith, it is said that not only the artificers of Edinburgh are obliged to repair to it, but all the artisans or craftsmen within Scotland are bound to follow it, and fight under the Convener of Edinburgh as aforesaid.”

Edinburgh after Flodden

I.

News of battle!—news of battle!
Hark! 'tis ringing down the street:
And the archways and the pavement
Bear the clang of hurrying feet.
News of battle? Who hath brought it?
News of triumph? Who should bring
Tidings from our noble army,
Greetings from our gallant King?
All last night we watched the beacons
Blazing on the hills afar,
Each one bearing, as it kindled,
Message of the opened war.
All night long the northern streamers
Shot across the trembling sky:
Fearful lights, that never beckon
Save when kings or heroes die.

II.

News of battle! Who hath brought it?
All are thronging to the gate;
“Warder—warder! open quickly!
Man—is this a time to wait?”
And the heavy gates are opened:
Then a murmur long and loud,
And a cry of fear and wonder
Bursts from out the bending crowd.
For they see in battered harness
Only one hard-stricken man,
And his weary steed is wounded
And his cheek is pale and wan.
Spearless hangs a bloody banner
In his weak and drooping hand—
God! can that be Randolph Murray,
Captain of the city band?

III.

Round him crush the people, crying,
“Tell us all—O tell us true!
Where are they who went to battle,
Randolph Murray, sworn to you?
Where are they, our brothers—children?
Have they met the English foe?
Why art thou alone, unfollowed?
Is it weal, or is it woe?”
Like a corpse the grizzly warrior
Looks from out his helm of steel,
But no word he speaks in answer,
Only with his armed heel
Chides his weary steed, and onward
Up the city streets they ride;
Fathers, sisters, mothers, children,
Shrieking, praying by his side.
“By the God that made thee, Randolph!
Tell us what mischance hath come;”
Then he lifts his riven banner,
And the asker’s voice is dumb.

IV.

The elders of the city,
Have met within their hall:
The men whom good King James had charged
To watch the tower and wall.
“Your hands are weak with age,” he said,
“Your hearts are stout and true;
So bide ye in the Maiden Town,
While others fight for you.
My trumpet from the Border-side
Shall send a blast so clear,
That all who wait within the gate
That stirring sound may hear.
Or, if it be the will of heaven
That back I never come,
And if, instead of Scottish shouts,
Ye hear the English drum,—
Then let the warning bells ring out,
Then gird you to the fray,
Then man the walls like burghers stout,
And fight while fight you may.
'Twere better that in fiery flame
The roofs should thunder down,
Than that the foot of foreign foe
Should trample in the town!”

V.

Then in came Randolph Murray—
His step Was slow and weak,
And, as he doffed his broken helm,
The tears ran down his cheek:
They fell upon his corslet,
And on his mailed hand,
As he gazed around him wistfully,
Leaning sorely on his brand.
And none who then beheld him
But straight were smote with fear,
For a bolder and a sterner man
Had never couched a spear.
They knew so sad a messenger
Some ghastly news must bring:
And all of them were fathers,
And their sons were with the King.

VI.

And up then rose the Provost,
A brave old man was he,
Of ancient name, and knightly fame,
And chivalrous degree.
He ruled our city like a Lord
Who brooked no equal here,
And ever for the townsmen's rights
Stood up 'gainst prince and peer.
And he had seen the Scottish host
March from the Borough-muir,
With music-storm and clamorous shout
And all the din that thunders out,
When youth's of victory sure.
But yet a dearer thought had he,
For, with a father's pride,
He saw his last remaining son
Go forth by Randolph's side,
With casque on head and spur on heel,
All keen to do and dare;
And proudly did that gallant boy
Dunedin's banner bear.
O woeful now was the old man's look
And he spake right heavily—
“Now, Randolph, tell thy tidings,
However sharp they be!
Woe is written on thy visage,
Death is looking from thy face;
Speak, though it be of overthrow—
It cannot be disgrace!”

VII.

Right bitter was the agony
That wrung that soldier proud:
Thrice did he strive to answer,
And thrice he groaned aloud.
Then he gave the riven banner,
To the old man's shaking hand,
Saying—"That is all I bring ye
From the bravest of the land!
Aye! ye may look upon it—
It was guarded well and long,
By your brothers and your children,
By the valiant and the strong.
One by one they fell around it,
As the archers laid them low,
Grimly dying, still unconquered,
With their faces to the foe.
Aye! ye well may look upon it—
There is more than honour there,
Else be sure I had not brought it
From the field of dark despair.
Never yet was royal banner
Steeped in such a costly dye;
It hath lain upon a bosom
Where no other shroud shall lie.
Sirs, I charge you, keep it holy,
Keep it as a sacred thing,
For the stain ye see upon it
Was the life-blood of your King!"

VIII.

Woe, and woe, and lamentation!
What a piteous cry was there!
Widows, maidens, mothers, children,
Shrieking, sobbing in despair!
Through the streets the death-word rushes,
Spreading terror, sweeping on—
“Jesu Christ! our King has fallen—
O great God, King James is gone!
Holy Mother Mary, shield us,
Thou who erst didst lose thy Son!
O the blackest day for Scotland
That she ever knew before!
O our King—the good, the noble,
Shall we see him never more?
Woe to us, and woe to Scotland!
O our sons, our sons and men!
Surely some have ‘scaped the Southron,
Surely some will come again!”
Till the oak that fell last winter
Shall uprear its shattered stem—
Wives and mothers of Dunedin—
Ye may look in vain for them!

IX.

But within the Council Chamber
All was silent as the grave,
Whilst the tempest of their sorrow
Shook the bosoms of the brave.
Well indeed might they be shaken
With the weight of such a blow,
He was gone—their prince, their idol,
Whom they loved and worshipped so!
Like a knell of death and judgment
Rung from heaven by angel hand,
Fell the words of desolation
On the elders of the land.
Hoary heads were bowed and trembling,
Withered hands were clasped and wrung;
God had left the old and feeble,
He had ta’en away the young.

X.

Then the Provost he uprose,
And his lip was ashen white,
But a flush was on his brow,
And his eye was full of light.
“Thou hast spoken, Randolph Murray,
Like a soldier stout and true;
Thou hast done a deed of daring
Had been perilled but by few.
For thou hast not shamed to face us,
Nor to speak thy ghastly tale,
Standing—thou, a knight and captain—
Here, alive within thy mail!
Now, as my God shall judge me,
I hold it braver done,
Than hadst thou tarried in thy place,
And died above my son!
Thou needst not tell it. He is dead.
God help us all this day!
But speak—how fought the citizens
Within the furious fray?
For, by the might of Mary,
’Twere something still to tell
That no Scottish foot went backward
When the Royal Lion fell!”

XI.

“No one failed him! He is keeping
Royal state and semblance still;
Knight and noble lie around him,
Cold on Flodden’s fatal hill.
Of the brave and gallant-hearted,
Whom ye sent with prayers away,
Not a single man departed
From his monarch yesterday.
Had you seen them, O my masters!
When the night began to fall,
And the English spearmen gathered
Round a grim and ghastly wall!
As the wolves in winter circle
Round the leaguer on the heath,
So the greedy foe glared upward,
Panting still for blood and death.
But a rampart rose before them,
Which the boldest dared not scale;
Every stone a Scottish body,
Every step a corpse in mail!
And behind it lay our monarch
Clenching still his shivered sword:
By his side Montrose and Athole,
At his feet a southern lord.
All so thick they lay together,
When the stars lit up the sky,
That I knew not who were stricken,
Or who yet remained to die.
Few there were, when Surrey halted
And his wearied host withdrew;
None but dying men around me,
When the English trumpet blew.
Then I stooped, and took the banner,
As ye see it, from his breast,
And I closed our hero’s eyelids,
And I left him to his rest.
In the mountains growled the thunder,
As I leaped the woeful wall,
And the heavy clouds were settling
Over Flodden, like a pall.”

XII.

So he ended. And the others
Cared not any answer then;
Sitting silent, dumb with sorrow,
Sitting anguish-struck, like men
Who have seen the roaring torrent
Sweep their happy homes away,
And yet linger by the margin,
Staring idly on the spray.
But without the maddening tumult
Waxes ever more and more,
And the crowd of wailing women
Gather round the Council door.
Every dusky spire is ringing
With a dull and hollow knell,
And the Miserere's singing
To the tolling of the bell.
Through the streets the burghers hurry,
Spreading terror as they go;
And the rampart's thronged with watchers
For the coming of the foe.
From each mountain top a pillar
Streams into the torpid air,
Bearing token from the Border
That the English host is there.
All without is flight and terror,
All within is woe and fear—
God protect thee, Maiden City,
For thy latest hour is near!

XIII.

No! not yet, thou high Dunedin,
Shalt thou totter to thy fall;
Though thy bravest and thy strongest
Are not there to man the wall.
No, not yet! the ancient spirit
Of our fathers hath not gone:
Take it to thee as a buckler
Better far than steel or stone.
O remember those who perished
For thy birth-right at the time,
When to be a Scot was treason,
And to side with Wallace, crime!
Have they not a voice among us,
Whilst their hallowed dust is here?
Hear ye not a summons sounding
From each buried warrior's bier?
Up!—they say—and keep the freedom,
Which we won you long ago:
Up! and keep our graves unsullied,
From the insults of the foe!
Up! and if ye cannot save them,
Come to us in blood and fire:
Midst the crash of falling turrets,
Let the last of Scots expire!

XIV.

Still the bells are tolling fiercely,
And the cry comes louder in:
Mothers wailing for their children,
Sisters for their slaughtered kin.
All is terror and disorder,
Till the Provost rises up,
Calm, as though he had not tasted
Of the fell and bitter cup.
All so stately from his sorrow,
Rose the old undaunted Chief,
That you had not deemed, to see him,
His was more than common grief.
“Rouse ye, Sirs!” he said, “we may not
Longer mourn for what is done:
If our King be taken from us,
We are left to guard his son.
We have sworn to keep the city
From the foe, whate’er they be,
And the oath that we have taken
Never shall be broke by me.
Death is nearer to us, brethren,
Than it seemed to those who died,
Fighting yesterday at Flodden
By their lord and master’s side.
Let us meet it then in patience,
Not in terror or in fear;
Though our hearts are bleeding yonder,
Let our souls be steadfast here.
Up, and rouse ye! Time is fleeting,
And we yet have much to do,
Up! and haste ye through the city,
Stir the burghers stout and true!
Gather all our scattered people,
Fling the banner out once more,—
Randolph Murray! do thou bear it,
As it erst was borne before:
Never Scottish heart will leave it,
When they see their monarch’s gore!

XV.

“Let them cease that dismal knelling!
It is time enough to ring,
When the fortress-strength of Scotland
Stoops to ruin like its King.
Let the bells be kept for warning,
Not for terror and alarm:
When they next are heard to thunder,
Let each man and stripling arm.
Bid the women leave their wailing,—
Do they think that woeful strain,
From the bloody heaps of Flodden
Can redeem their dearest slain?
Bid them cease, or rather hasten
To the churches, every one;
There to pray to Mary Mother,
And to her anointed Son,
That the thunderbolt above us
May not fall in ruin yet;
That in fire, and blood, and rapine,
Scotland’s glory may not set.
Let them pray,—for never women
Stood in need of such a prayer!
England’s yeomen shall not find them
Clinging to the altars there.
No! if we are doomed to perish,
Man and maiden, let us fall:
Let a common gulf of ruin
Open wide to whelm us all!
Never shall the ruthless spoiler
Lay his hot insulting hand
On the sisters of our heroes
While we bear a torch or brand!
Up, and rouse ye, then, my brothers,—
But when next ye hear the bell
Sounding forth the sullen summons
That may be our funeral knell,
Once more let us meet together,
Once more see each other’s face;
Then, like men that need not tremble,
Go to our appointed place.
God, our Father, will not fail us
In that last tremendous hour,—
If all other bulwarks crumble,
He will be our strength and tower;
Though the ramparts rock beneath us,
And the walls go crashing down,
Though the roar of conflagration
Bellow o’er the sinking town;
There is yet one place of shelter,
Where the foeman cannot come,
Where the summons never sounded

Of the trumpet or the drum.
There again we'll meet our children,
Who, on Flodden's trampled sod,
For their King and for their country
Rendered up their souls to God.
There shall we have rest and refuge,
With our dear departed brave,
And the ashes of the city
Be our universal grave!"

W. E. A.

SUBJECTS FOR PICTURES. A LETTER TO EUSEBIUS.

DEAR EUSEBIUS,—Your letter of inquiry reached me at Gratian's, just at the moment we were setting off to pay a visit of a few days to our friend the Curate, who had ensconced himself in happiness and a curacy about an easy day's ride from his former abode. From that quarter I have no news to tell you, but that the winning affability even of Gratian cannot obtain a smile or look of acknowledgment from Lydia Prateapace. She passes him in scorn. We found the Curate and his bride on his little lawn, before the door of the prettiest of clerical residences. She was reading to him, and that I know will please you; for I have often heard you say that a woman's reading inspires the best repose of thought, and gives both sweetness and dignity to reflection; that then the true listener is passive under the fascination and sense of all loveliness, and his ideas rise the fairer, as the flowers grow the brighter that bend to the music of the sweet-voiced brook. If every reviewer had such a reader, criticism would fall merciful as the "gentle dew,"—ink would lose its blackness. They rose to greet us with the best of welcomes; and like less happy lovers,

"That day they read no more."

The house is simply, yet elegantly furnished. To the little library with its well-filled shelves of classical and English literature, female fingers had lent a grace—there were flowers, and the familiarity of work, to humanise the severest author in this living depository of the thoughts of all ages. The spirit of Plato might look through his mesmerised binding and smile. The busts of ancient poets seemed to scent the fragrance, and bow their heads thankful. I could not resist the pleasure of patting our old acquaintance Catullus on the back, as I passed, which Gratian saw, and said—"Ay, ay, that's the rogue to whom I sacrificed swine." A few spaces unoccupied by

books, were filled with choice prints from pictures by Raffaele. The most appropriate was the "School of Athens," not the least pleasing that portrait of the "gentle musician." The Curate saw how much these prints attracted my notice, and said that he would give me a treat on the morrow, as he expected a package of prints all framed and glazed, which a wealthy relative, with whom, however, he added, he was not very well acquainted, had sent him—and he expected us to attend the unpacking. It is a present, he said, to furnish my curacy, but I know nothing of the giver's taste. I wished at the time, that my friend Eusebius had been present at the unpacking; for I did not augur much of the collection, and I thought the grace of his, that is of your wit, Eusebius, might be wanted either in admiration or apology. For if you happened not to like the picture,

"I'll warrant you'll find an excuse for the glass."

Shall I describe to you our doings and our sayings on this occasion? imagine the case before—us and in the words of another old song,

"It is our opening day."

Well—it is opened—now, Eusebius, I will not particularise the contents. The giver, it is to be presumed, with the patriotic view of encouraging native art, had confined his choice, and had made his selection, entirely from the works of modern English painters and engravers. And do not imagine that I am here about to indulge in any morose and severe criticism, and say, all were bad. On the contrary, the works showed very great artistic skill of both kinds; indeed, the work of the needle and graver exhibited a miraculous power of translation. That the subjects were such as generally give pleasure, cannot be denied; they are widely purchased, go where you will, in every country town as in the metropolis; the printsellers' windows scarcely exhibit any other. These prints were therefore according to the general taste,—and therefore the Curate must be expected to be highly gratified with his present. Perhaps he was—but he certainly looked puzzled; and the first thing he said was, that he did not know what to do with them. "Are they not framed and glazed?" said Gratian: "hang them up, by all means." "Yes," said the bride, delightfully ready to assume the conjugal defence, "but where? You would not have me put the horses and dogs in my

boudoir; and the other rooms of our nest have already pictures so out of character that these would only be emblems of disagreement; and I am sure you would not wish to see any thing of that nature here—yet.” But let me, Eusebius, take the order of conversation.

GRATIAN.—There is a queen tamer of all animals, and though I would not like to see the Curate’s wife among the monsters, I doubt not she could always charm away any discordance these pictures might give. And look now at the noble face of that honest and well-educated horse. He would be a gentleman of rank among the houyhnhnms. I love his placid face. He reminds me of my old pet bay Peter, and many a mile has he carried his old master that was so fond of him. I have ridden him over gorse and road many a long day. He lived to be upwards of thirty-three, and enjoyed a good bite and annuity, in a fat paddock, the last seven or eight years of his life.

AQUILIUS.—Gratian’s benevolence, you see, regulates his tastes: he loves all creatures, but especially the dumb: he speaks to them, and makes eloquent answers for them. You know he has a theory respecting their language.

CURATE.—And Gratian is happy therein: I wish I had more taste of this kind, for these things are very beautiful in themselves; they are honest-looking creatures. In that I have been like Berni:

“Piacevangli i cavalli
Assai, ma si passava del vedere,
Che modo non avea da comparalli.”

LYDIA.—If they are honest, there are some sly ones too. What say you to this law-suit of Landseer’s? I think I could make a pet of the judge.

AQUILIUS.—Great as Landseer is, I like this but little. The picture was surprisingly painted, but when you have admired the handiwork, there is an end. The satire is not good: something sketchy may have suited the wit, but the labour bestowed makes it serious: we want the shortness of fable to pass off the “*animali parlanti*.”

CURATE.—Gratian, who ought to order a composition picture of “The Happy Family” all living in concord, knows all the race, in and out of kennel, and should tell us if these dogs are not a little out of due proportion one with the other.

GRATIAN.—I think they are; but do not imagine I could bear to look upon the “Happy Family,” though the piece were painted by Landseer. I never saw them in a cage but I longed to disenchant them of the terror of their keeper. They all looked as if they could eat each other up if they dared. No, no—no convent and nunnery of heterogeneous natures, that long to quarrel, and would tear each other to pieces but for fear of their superior. I love natural instincts, and am sure the “Happy family” must have been sadly tortured to forget them.

CURATE.—I certainly admire these animal portraits, they seem to be very like the creatures; but I really have no gallery-menagerie where I can put them. They appear to me to have been painted to adorn the stable residences of noblemen, gentlemen of the turf and kennel. You smile, Aquilius, but I mean it not to their dispraise, for in such places they might amuse in many an idle hour, and give new zest to the favourite pursuits.

AQUILIUS.—I only smiled at the thought, that though many such noblemen and gentlemen “go to the dogs,” they would not quite like to see them among the “family portraits,” and was therefore pleased at your appropriating these productions to the stable and the kennel. I am not surprised that you do not know what to do with them. I believe Morland was the first who introduced pigs into a drawing-room; for my own part, I ever thought them better in a sty.

GRATIAN.—Hold there, I won’t allow any one to rub my pigs’ backs but myself, and you know I have a brace of Morlands, pigs too, in my dressing-room.

LYDIA.—And if the pictures in any degree make you treat your animals more kindly, Morland deserves praise; and, in that case, all such works should be encouraged by the “Society for the Prevention of Cruelty to Animals.”

AQUILIUS.—If Gratian is kind of his own nature, his familiarity with all creatures is of another kinship than such as art can bestow. He would have given a litter of straw to Morland himself, had he met him in one of his unfortunate predicaments, and thus have made him happy. But I fear we are not quite safe in thus commending our choice artists, on the score of the humanity they are likely to encourage.

CURATE.—Why not? Has not Landseer dedicated to “the Humane Society” the portrait of the noble Retriever; and is that not his “chief mourner,” promoting affection between man and beast?

GRATIAN.—“*O si sic omnia!*” I love all field sports, and river sports too; but it is when horse, dog, and man all agree in the pleasure, and the bit of cruelty—for such, I suppose, we must admit it to be—is kept out of sight as much as possible, that we are willing to adopt the Benthamite principle into the sporting code, “the greatest happiness to the greatest number.” Yet I don’t like to refine away feeling in this way, and say, many enjoy, and one poor creature is hunted. I rather put it all upon nature. There is an instinct to hunt and be hunted, and perhaps there is a reciprocal pleasure. I like our good old sporting songs; they dwell upon the health and enjoyment of refreshing animation, the sociality, the good humour (and sometimes with a nice touch of pity too) of sport; they take no pleasure in dwelling upon the hard, the cruel necessity.

AQUILIUS.—Then are our ballad-makers more tender-hearted than our painters!

GRATIAN.—And there is need they should be; for some of our painters, and not only ours, but of all countries, have, to my mind, too much indulged in representations of cruelty. I have often wondered how many of the old pictures, your martyrdoms of saints, came to be painted. Who could take pleasure in looking at them?

CURATE.—The best were works of high genius, and were painted for religious places; and though cruelty is necessary to the story of martyrdom, it is seldom made the subject—it is the triumph, the angelic choir, and the crown, and the sublime faith,—all combine to make the sublime subject; the mere act then becomes but the accessory; and such pictures, seen in their proper places—the chapels for which they were painted, and with the mind under a religious impression—are of the noblest interest, of most improving contemplation. I have heard such pictures condemned, because they have been seen in uncongenial places, and under antagonistic impressions. They are not for banquet-rooms, nor ball-rooms; nor to be commingled with the low-life subjects of the Dutch school, nor amidst the *omnium-gatherum* of galleries. The art cannot offer a higher pleasure than the contemplation of these sublime productions of Italian genius, seen when and where they

should be exhibited, and alone. I have seen some that make their own sanctity, which seems to spread from them in a divine light, and diffuse itself into the outer obscure, in which all that is unfitting and minute is buried; and the great work of mind has created its own architecture, and filled it with the religious awe under which we gaze and wonder. And are we not the better?

AQUILIUS.—I fear this age of domestic life is against the reproduction of such works. All that can adorn the home, the house, and not the temple, we make the object of emulous search. Even our churches, if they would be allowed to receive such works, open as they are but an hour or so in the week, could scarcely have influence, and make such creations felt. In Italy, the passer-by has but to draw aside the curtain, and enter, and receive the influence. In such places, the martyrdoms of saints gave conviction of the holiness of faith, the beauty and power of devotion.

GRATIAN.—True; you will teach me the more to admire old Italian art. I confess, the great power you describe has but seldom come home to my feelings; perhaps they are naturally more congenial with home subjects; and I have been too often disgusted with pictures of horrors. A friend of mine I once found copying a picture of the flaying of a saint. There was a man unconcernedly tearing away his skin; and the raw flesh was portrayed, I dare say, to the life. He told me it was a fine picture. I maintained that it was too natural. It was, in fact, a bad picture, for the subject was cruelty; unconcealed, detestable cruelty, not made the means of exhibiting holy fortitude. There was nothing in it to avert the absolute disgust such a sight must raise. I would as soon live in the shambles, or in a dissecting-room, as have such a picture before my eyes continually. My friend thought only of the painting; the naturalness and the skill that drew it and coloured it to the quick—not to the life. I have seen so many of the Italian pictures of a gloomy cast, that, for my part, I have rather enjoyed the cheerful domestic scenes of life and landscape of the best Flemish masters, and English too.

CURATE.—Art has no power of injunction, or the hand of many an artist would be stayed from perilling a profanation. Minds of all grades have been employed in the profession. The Italians have not been exempted from a corruption of taste and of power. Yet, without question, the grandest and the most touching creations of art have been the work of Italian hands, and the conceptions of Italian minds. I fear I am telling but admitted truisms.

AQUILIUS.—I know not that. I doubt if the pre-eminence will be admitted as established. What works do our collectors mostly purchase—your men of taste, your caterers for our National Gallery, those to whose taste and discernment not only our artists, but the public, are expected to bow? We have heard a great deal of late of encouraging the fine arts. We have had a premier supposed to be supreme in taste. Nay, as if he would cultivate the nation's taste, show the importance of art, encourage collecting, and teach how to collect, has he not, of late, opened his house almost to the public, and exhibited his collection; and what did it show? doubtless, beautiful specimens of art, but specimens of the great, the sublime, the pathetic? Alas, no! I did not see mention made of a single Italian picture. Now, what would you think of the taste of a man who should profess to collect a library of poets, and should omit Homer, and Æschylus, and Dante, and point with pride to the neatly-bound volumes of the minor poets, and show you nothing higher than the “Pastor Fido,” or the “Gentle Shepherd?”

LYDIA.—Or in a musical library should discard Handel?

GRATIAN.—Well, that is strange, certainly; but if we are becoming more home-comfort-seeking people, is it not right to encourage the production of works for that *home market*? I cannot agree to put in the background our more domestic artists—and at least they avoid the fault of choosing disgusting subjects.

AQUILIUS.—Do they? I am not quite sure of that: we shall see. I suspect they fail more in that respect than you will gladly admit.

GRATIAN.—Now, what fault can you find with my favourite Landseer? Do you not like to see the faithful, poor dumb creatures ennobled by his pencil, and made, as they ought to be in life, the humble companions of mankind?

CURATE.—If humble, not ennobled!

GRATIAN.—Master Curate, do you not read—“Before honour cometh humility?”

AQUILIUS.—I agree with you, Gratian. I quite love his pictures: they are wonderfully executed, with surprising truth, and in general his subjects, if not high, are pleasing. Yet I hardly know how to say, in general: there are so many exceptions. I could wish he were a little less cruel.

LYDIA.—Cruel! how can that be? his pet dogs, his generous dogs, and horses, and that macaw, and the familiar monkey, and that dear begging dog. The most gentle-minded lady I am acquainted with is working it in tambour—and has been a twelve-month about it!

GRATIAN.—And has he not a high poetic feeling? Can you object to the “Sanctuary,” and the “Combat,”—I believe that is the title of the picture—where the stag is waiting for his rival?

AQUILIUS.—They are most beautiful, they are poetical; there is not an inch of canvass in either that you could say should have a touch more or less. The scenery sympathises with the creatures; it is their wild domain, and they are left to their own instincts. There is no exhibition of man’s craft there, let them enjoy their freedom. Even in the more doubtful “Sanctuary,” we have the assurance that it *is* a “Sanctuary;” but I see, Gratian, that your memory is giving you a hint of some exception. What think you of the fox—not hunted as you would have him painted, wherein “the field” would be the sport—but just entering the steel trap, where you see the dead rabbit, and think the fox will be overmatched by man’s cruel cunning?

GRATIAN.—Why, I had rather hunt him in open field, and give him a chance than trap him.

CURATE.—Even Reynard might say with Ajax, if man must be his enemy—

“Ἐν δὲ φαει καὶ οὐλοσσαν.”

GRATIAN.—I give up that picture; it is not a pleasing subject.

LYDIA.—I am sure you must like his “Bolton Abbey in the Olden Time.”

AQUILIUS.—What! with its wholesale slaughter of fish, flesh, and fowl, to feed the gross feeders of the convent? I take no pleasure in it: I could take part with the “melancholy Jacques,” and rate “the fat and greasy” ones in good round terms. Who wishes a picture of a larder?

LYDIA.—Here is his “Hawking Party;” will not this please you? You at least see the health and joy of the sporting: are not the hawkers delighted?

AQUILIUS.—So much the worse, for their part in the transaction is quite subordinate—in the background. What is the prominent subject?—the bloody murder of the poor heron. It should have been the accident; it is

made the cruel principal: without being squeamishly tender-hearted, I shall never look upon that picture with pleasure. In how different a manner did Wouverman paint his hawking parties! He represented them as scenes in which ladies might participate—the domain, the mansion-gate, the retinue, the grace, the beauty, the cheering exercise, the pleasure of all, even the animals engaged: he does not make the bloody death the subject.

GRATIAN.—I must confess Wouverman's was the better choice. You seem prepared with a collection of examples.

AQUILIUS.—In this I am only taking what is before me; but worse remains for more severe remarks. You have, I see, the "Otter Hunt,"—is it possible that picture can give you any pleasure? What is the sentiment of it?—debasement cruelty. I say debasing, because it puts human nature in the very worst position: the dogs are using their instinct, and are even then defrauded of their game, which the huntsman holds up conspicuously in the picture, (and which is in fact the subject), stuck through with his spear, and writhing in agony. Surely this cannot be

"The dainty dish
To set before the Queen."

It is said to be in her Majesty's possession. There is in Lucian a description of a picture of a Centaur and his family, a magnificent group: the father centaur is holding up a lion's skin to the gaze of his young progeny, to excite them to deeds of courage. If this poor agonised death-writhing otter is to be perpetually before the eyes of our young princes, they will not learn much good from the lesson. For my own part, I look upon the picture with entire disgust, and would on no account have it before my eyes. I know not in what mood I could be to endure it.

LYDIA.—I think we really may dispense with the hanging up this picture anywhere. I cannot bear to look at it. It is a picture to teach cruelty. As a test of its impropriety, imagine it placed as an ornament in our Sunday school: we should have the children brought up savages.

CURATE.—Thanks, dearest Lydia. I well knew this picture would not be to your taste; we will, at all events, set it aside. Happy are we, that our women of England can be mothers of heroes, without being inured to the cruelty of bull-fights. A Spanish lady, describing an exhibition of the kind, remarked

how glorious was the sight, for there were thirteen horses and one man killed. I suspect Aquilius will not quite approve of the “Deer-Stalking” lately exhibited at the Academy.

AQUILIUS.—Certainly not; and for the same reason. It puts man in a degrading position; and our sympathy is for the poor creatures who fly terrified, not seeing their skulking enemies; and one poor creature is knocked over in his wild flight. It is admirably painted; the scene all we could wish; but the story is bad—the moral bad. You look at the picture without feeling a common desire with the hunters: you wish them away. You have their object put before you basely: their attitudes are mean. It is not a work, great as it is in art, that ought to give pleasure.

GRATIAN.—And yet you are not displeased reading Mr Scrope’s “Deer-Stalking?” It is only putting his words on canvass.

CURATE.—True; but are they faithfully put? and even so, words and paint are not the same; their power is different. The description of language passes on; you are not allowed to dwell too long on what, if seen embodied, would but shock you, by its being arrested, and made permanent. I remember the description. You at first scarcely know if there is a deer or not; it is only the experienced eye can discover the motion of the ear, or some speck of the creature, at a distance. You enter into the breathless caution of the hunter—his steady and earnest hope; but you see not, or only for a moment, the skulking attitude. The poet—for the prose is poetry—touches with a light and delicate hand that which the less discriminating painter grasps, holds firm, and fixes as his subject.

AQUILIUS.—A just remark. The sentiment is thus made both cruel and mean.

GRATIAN.—Come, then, let us have something we can entirely praise, by the hand of this prince of animal painters. You will at least admire his “Peace” and “War,” those two most beautiful and poetical pictures.

AQUILIUS.—The “Peace”—yes. It is most happy; and perhaps the “War,” if we take the moral rightly. It might be bought by the Peace Society. Every one must acknowledge the great beauty and feeling of these pictures. I confess, however, I seldom look upon battle-pieces with much pleasure. The horrors of war are not for the drawing-room; and where they are

painted for public position, they are generally in very bad taste. I do not mean here to allude to the companion to Mr Landseer's "Peace."

GRATIAN.—How seldom you see a battle-piece,—that is, a battle! You have some one or more incidents of a battle; but, as a whole, it is not represented. I have no idea of a battle, on which depends the fate of empires, from the exhibition of a grenadier running his bayonet through a prostrate foe, a few dead men, and a couple of horses, one rearing and one dead. Such are the usual representations of battles.

AQUILIUS.—Yes—vulgar battles; vulgarising the most important events in history: and yet I do not believe it to be impossible to represent a battle poetically, and more truly, than by such incident as Gratian has described, though the regimentals be most accurately painted—and the gold lace has a great charm for the multitude. And perhaps it was in deference to this common taste, that the chief prize was given to the "Battle of Meeanee" in Westminster Hall.

LYDIA.—I rejoice to listen to the criticism. We will not have battle-pieces in our boudoir; Curates and their wives are for peace. I go with the poet—

"Le lance rotte, gli scudi spezzati,
L'insigne polverose, e le bandiere,
I destrier morti, i corpi arrovesciati
Fan spettacolo orribile a vedere!
I combattenti insieme mescolati,
Senza governo, o ordine di schiere,
Veder sossopra andare, or questi, or quelle,
A'riguardanti arricciar fa i capelli."

CURATE.—I take my old part of translator, and thus render it, perhaps Aquilius will think too freely, at least in the conclusion—

Lances and shields of broken chivalry,
Banners and ensigns trampled from their glory
Down in the dust—Oh! woe too sad to see,
Rider and horse fallen dead in heaps all gory;
Leaderless squadrons, one tumultuous sea
Of ruin! Death sole hero of the story.
And such is war—oh sight the heart to rend,
And make our rooted hair to stand on end!

AQUILIUS.—Your verse shall not disenchant me of my criticism upon this bad habit of seeing his subject, into which so great a painter has fallen. After what has been said, I shall not surprise you by objecting to his “Van Amburgh and his Beasts,” painted for his Grace the Duke of Wellington—the shrinking, retreating, cowed animals, whom one would wish to see in their wilder or nobler natures. And certainly the painter has made a very poor figure of the tamer: you are angry with the lions and tigers for being afraid of him. He should have been less conspicuous. Poor beasts! within bars, no escape from the hot iron! I had rather see a representation of the tamer within the bars, and the beasts out, longing to get at him. There is a very happy subject for a picture of this kind in the hymn to Aphrodite—where the goddess descends on Ida, and all the savage beasts come fawning about her, when, with a motion of her hand, she dismisses them to pair in the forests. Such noble animals, crouching in obeisance and willing servitude to a divinity, to beauty, and to innocence, make a picture of a finer sentiment. This taming reduces the dignity of the brute, without raising the man.

CURATE.—The tamed animals are not honoured in their portraiture; nor is it much consolation that the great duke beholds their quailing. Statius attempted a consoling compliment of this kind, upon the occasion of a much admired beast, “Leo Mansuetus,” being killed by the blow of a flying tigress, in the presence of the emperor. After describing the scene, he adds

“Magna tamen subiti tecum solatia lethi
Victæ feres, quod te mœsti, Populusque Patresque,
Ceu notus caderes tristi Gladiator arena,
Ingemuere mori: magni quod Cæsaris ora
Inter tot Scythias, Libyeasque, et littore Rheni,
Et Pharia de gente feras, quas perdere vile est,
Unius amissi tetigit jactura leonis.”

AQUILIUS.—We are rivals in rhyme, and you know I freely translate: perhaps you will admit this as a version—

Yet this your consolation, ye poor beasts,
Whene'er the duke his guests illustrious feasts,
Th' illustrious guests, as an uncommon treat,
Shall see the lions, while they talk and eat.
Oft from their plates shall lift their half-filled jaws,
To wonder at your whiskers, manes, and, claws,
And only wish, the painter to rebuke,
To see Van Amburgh killed before the duke.

GRATIAN.—I am umpire: that is not a version, but a perversion.

AQUILIUS.—Then it the better suits the picture. I must, however, admit that, to criticise at all, there is need to be out of the fascination of the work. It is quite marvellous in power. We are treating of subjects for pictures, and consequently their sentiment—the why they should, or should not please. It is to be regretted that so great an artist should, not *always* well conceive the poetry of sentiment.

CURATE.—We are, not yet really lovers of art, or we should not be so confined in our taste. The excellence of this one painter excludes others from their due praise, and patronage too. Go to our exhibitions, you are surprised at the number of our artists: look at the printsellers' windows, and you would wonder at their fewness. I cannot remember, at this moment, a print from a work of any modern British painter, of moral importance and dignified sentiment.

LYDIA.—There is one of Mr Eastlake's, his beautiful scriptural subject.

AQUILIUS.—True; but we have not yet emancipated the nation from their puritan horror of sacred subjects—which are, after all, the greatest and best. We import these from the Germans.

GRATIAN.—We have been a nation, of country gentlemen—fond of field-sports: and this our national character has had much to do with our taste in art. Hence nothing answers so well as horses and dogs.

CURATE.—Yet I am inclined to say “cave canem.” By the bye, why do the old painters, Paul Veronese, for instance, in his celebrated large picture of the marriage feast, introduce great dogs, where they evidently should not be? I have met lately, somewhere, with the supposition that the bones which the painters calcined to make dryers were the bones thrown under the tables for the dogs, and that such was the practice. But there is passage in

“Laurentius Pignorius de servis,” which seems altogether to contradict the notion, and indeed to reprove painters who introduced these large dogs in their pictures; and particularly, it should seem, one who represented Lazarus and the dogs in the same room with Dives. His argument is curious—that the dogs which were admitted upon these occasions were little pet animals, and that it is so shown by the passage in chap. xv. verse 27, of St Matthew, where they are said to pick up the *crumbs*, and that it is shown to have been so by ancient sculpture. He says that this introduction is become such an admitted taste, that whoever would be bold enough to set himself against it would in vain endeavour to correct the bad taste of the painter. It is a curious passage,—I have the book here, and will turn to it: I read it only the other day. Here it is, and I more readily offer it as it speaks sensibly of a disgusting subject, unfit for painting.

“Erant autem et qui pone januam canem pictum haberent, ut apud Petronium Trimalcio. At quid ad hæc pictores nostri qui in triclinio divitis Lazarum delineant? Potestne quidquam ineptius aut cogitari aut fingi? scilicet janitores admisissent hominem scatentem ulceribus, dorso ipsi luituri quidquid oculos nauseabundi domini offendisset. Canes vero immanes illi Villatici et Venatici, num oblectabant cœnantem dominum? Apage! Catelli quidem in delicus tricliniaribus habiti sunt, ut testatur mulier Chananœa apud Mattheum, et indicant sculpturæ antiquorum marmorum: Cæterum. Molossos, et ejus generis reliquos, nemo in convictum, nisi amens aut rusticus recepisset. At quisquis pictorum nostrorum pene omnium pravitatem corrigere voluerit, otium desperaverit omnino: adeo ineruditi sunt, adeo cognitionem omnem antiquitatis turpiter abjecerunt.”

GRATIAN.—I suppose the little pets admitted to the table were the small Melitan dogs, such as Lucian speaks of in his “Private Tutor.” The Greek philosopher and teacher was requested by the lady of the house in which he was tutor to take charge of her dear little pet, which, being carried in his arms as he was stuffed into the back carriage with the packages and lady’s maids, disgraced the philosopher by watering his beard.

AQUILIUS.—A kind of King Charles’s breed. I remember a gentleman telling me, many years ago, that he was dining in Rome with Cardinal York, and one of these little creatures was handed round after dinner, upon which occasion the cardinal said, “Take care of him, for he and I are the last of the breed.”

LYDIA.—Poor creatures! that is a touching anecdote. It ought to be written under Vandyke's celebrated picture of the unfortunate Charles and his family, in which the breed are so conspicuous. I think my sweet, Pompey is one of them, notwithstanding the cardinal's protest, and I shall love the little pet the more for the royal familiarity of his race. I must have his portrait.

CURATE.—Or his statue, that he may rival Pompey the Great. Why his picture? has not Landseer painted him to the life in that fine picture where he is all play, with the ribbon about him to show whose pet he is, and the great mastiff lying so quiet, stretched out below him? It is, his very portrait, and when he dies you should get the print, and I have his epitaph for you to write under it.—

In marble statue the Great Pompey lives,
Life to the little Pompey Landseer gives.
And little Pompey play'd the Roman's part,
And almost won a world—his Lydia's heart:
Then died, to prove that dogs shall have their day,
And men no more, whatever parts they play.
Great Cæsar at his feet in painted state—
Shall little Pompey envy Pompey great.
How true the pencil, and no truer pen,
Alike the history paints of dogs and men.

AQUILIUS.—Do you mean to be the general epitaph-maker for your churchyard? Take care you infringe not on the sexton's privilege.

GRATIAN.—If we discuss this matter farther, we shall have Aquilius and the Curate diverging into their poetics; so, my dear good lady, I must look at your flower-garden: here now, an arm for an old man; and—have you an orchard?—I can help you there a little. And a word in your ear—depend upon it, wherever there is an orchard there should be a pig or two in it. Come, I must look at your stock; we'll talk about pictures after tea. See, my friend Curate, I'm off with your wife; not quite so active as a harlequin, but you and Aquilius may follow as pantaloons and clown. So let us keep up the merry farce: no,—entertainment of life, and I don't care who best plays the fool.

Now, Eusebius, what shall I do? will you have an interlude? Your wit will reply that you have had one already. Will you have music? Yes, I think you said, but your's is all on one string. Shall it be as a chorus in a Greek play?

Why do dogs howl at music? They have an intuitive suspicion of what the strings are made, and think they might as well begin by tolling the bell for themselves, or rehearse the howl! The interlude is over—while we are asking about it, the bell rings, the tea-things are removed—and the prints laid on chairs round the room. We resume the discussion.

AQUILIUS.—I have been considering what are the most popular subjects as we see them exhibited in the shop windows, and I find that even Landseer has his rival in the popular approbation. Go where you will you see specimens of the style—mawkish sentimentality, Goody Families, Benevolent Visitors, Teaching Children. There is nothing more detestable than these milk-and-water affectations of human kindnesses; all the personages are fools, and as far as their little senses will let them, hypocrites. Whence do these Puritan performances come?—the lamentable thought is, where do they go?—a man cannot paint above himself. A soft artist paints soft things.

LYDIA.—Don't mention the things! I am sure they make hypocrites. I saw one the other day in a cottage; it was of the "Benevolent Visitors"—I am not sure of the title; if any good ladies gave it, it was a vile vanity; if bought as a compliment, it was a worse corruption.

GRATIAN.—Do you know that we have historical painters for modern saintology, and that a picture was actually painted of St Joanna Southcote, for the chapel at Newington Butts, in a sky-blue dress, leading the devil with a long chain, like a dancing bear, surrounded by adoring angels? I met with the anecdote in a very amusing book of Mr Duncan's, the "Literary Conglomerate," wherein he treats of the subjects of pictures.

AQUILIUS.—I know it; I only quarrel with him for classing Hogarth with the comic painters. To me, he is the most tragic of all modern, I would almost say of all painters. The tragic power of two of the series of "Marriage á la mode," is not surpassed in art. The murdered husband, the one: the other, the death of the adulteress. They are too tragic for any position but a public gallery. He was the greatest of moral painters; and the most serious, the gravest of satirists. He is so close to the real tragedies of life, and his moral is so distinct, that he seems to have aimed at teaching rather than pleasing. And perhaps, if the truth were known, it might be that he has in no small degree improved the world in its humanities. He has pictured vice odious in

the eyes of the pure, but not so as to quench their pity; and has made it so wonderfully human, that we shudder as we acknowledge the liabilities of our nature. He exhibited strongly that man is the instrument of his own punishment, and that there was no need of painted monsters and demons to persecute him. He showed the scorpion that stings himself to death. He brought the thunder and lightning, the whirlwind, not from the clouds to expend their power on the fair face of the earth, but out of the heart, to drive and crush the criminals with their own tempestuous passions. And is not this tragic power? Is such a man to be classed among the painters of drolls? His pictures would convert into sermons, and would you call the preacher of them a buffoon?

GRATIAN.—There is, indeed, little drollery in Hogarth: even his wit was a sharp sword, so sharp that the spectator is wounded, and dangerously, before he is aware of it.

CURATE.—I could not live comfortably in a room with his prints. I would possess them in my library as I would Crabbe's Tales, but would not have them always before my eye. Nor would I, indeed, some of the finest works of man's genius—as Raffaele's "Incendio." I would have them to refer to, but a home is, or ought to be, too gentle for such disturbance.

GRATIAN.—There is an anecdote told of Fuseli, that when on a visit to some friend at Birmingham, a lady in a party said to him—"Oh, Mr Fuseli, you should have been here last week, there was such a subject for your pencil, a man was taken up for eating a live cat."—"Madam," said the veritable Fuseli, "I paint terrors, not horrors." For my own part, life has so many terrors, and horrors too, that I should prefer mitigating their effect, by having more constantly before me the agreeabilities—pleasant domestic scenes, soft landscapes, or such gay scenes and figures as my favourite Teniers occasionally painted, or the sunny De Hooze; or why not bring forward some of our pleasant home-scene English painters? Did you not see, and quite love, that little delight of a picture, the hay-making scene in the Vicar of Wakefield, by our own, and who will be the wide world's own, Mulready? Such scenes ravish me. Did you not long to walk quietly round and look in the vicar's face, as he and Mrs Primrose sat apart with their backs to you? Mulready, you see, had the sense to leave something to the imagination.

AQUILIUS.—Yes, pictures of this kind have a very great charm: they are for us in our domestic mood, and that is our general mood—they should gently move our love and pity. But I cannot conceive a greater mistake than to make “familiar life” as it is called, doleful, uncheerful subjects, that are out of the rule of love and pity, very easily run into the class of terror; there is scarcely a between, and if one—it is insipidity.

GRATIAN.—Now, I shall probably commit an offence against general taste if I confess that, in my eyes, Wilkie is very apt to paint insipid subjects. He seems too often to have been led to a matter of fact, because it had some accessories that would paint rather well, than because the fact was worth telling, either for its moral or its amusement. Some of his pieces, notwithstanding their excellent painting and perfectly graphic power, rather displease me. I never could take any interest in his celebrated “Blind Fiddler.” It may be nature, but there is nothing to touch the feelings in it: had I been present, I should not have given the man a sixpence. And as for the hideous grimace-making boy, I could have laid the stick with pleasure on his back. I don’t think I could ever have kissed the ugly child.

AQUILIUS.—Wilkie was a man of great observation, great good sense, manifest proof of which his correspondence sets forth; but that necessary virtue of a painter of familiar life, which he possessed in so great a degree, observation, led him oftener to look for character than beauty. Oddity would strike him before regularity. Nor was he a cheerful painter. His “Blind Man’s Buff,” is contrived to be without hilarity, and it is singularly unfortunate in the sharp angles of hips and elbows. His best picture of this kind is certainly the “Chelsea Pensioners”—or “Battle of Waterloo,” very finely painted; but there is an acting joy in it,—it is joy staid in its motion, and bid sit for its portrait. So his “Village Wake” in our national gallery, is not joyous as a whole; the figures are spots, and the mass of the picture is dingy. Pictures, like poems, should not only be fair but touching, “*dulcia sunt*,” and this is more imperatively essential to domestic scenes. The story should always be worth telling. Painters seem to have taken it into their heads that any thing, which presents a good means for exhibiting light and shade and colour, makes a picture. If an incident or a scene be not worth *seeing*, it is not worth painting.

GRATIAN.—That is never more true than when they are figure pieces. Our likings and our antipathies are stronger in all representations of the ways

and manners of men, than in all the varieties of other nature. We can bear a low and mean landscape, but degraded humanity seldom is, and never ought to be pleasing.

CURATE.—Aristotle determines that brutishness is worse than vice. Vice is a part of our nature, but brutishness unhumanises the whole nature. It is certainly astonishing that painters can take a delight, not having a moral end in the performances, to select the low scenes—the utter degradation of civilisation, and therefore worse than any savage state—as subjects for pictures. How is it that in a drawing-room a connoisseur will look with complacency—more than complacency—upon a painted representation of beastly boors drinking, whose presence, and the whole odour of which scene, in the reality, he would rush from with entire disgust?

AQUILIUS.—Yet I must, in a great measure, acquit the Dutch and Flemish school of such an accusation. The painters who worked these abominations were really but few,—the majority aim to represent innocent cheerfulness. How often is Teniers delightful in his clear refreshing skies, cheerful as the music to which his happy party are dancing, in the brightness of a day as vigorous as themselves. Cheerfulness, rational repose, and sweetest home affections, often make the subjects of their pictures; and these impart a like pleasantness, a like sympathy, in the mind of the spectator. Having such a variety of these pleasantries and sympathies to choose from, it is astonishing that any artist should select for his canvass a subject unpleasing and even disgusting. I remember, a great many years ago, a picture exhibited, I think at the Academy, which at the time was thought a wonder, and, I believe, sold for a great deal of money. It was “The Sore Leg,” by Heaphy;—there was the drawing off of the plaster, and the horrors of the disease painted to the life, and the pain. Is it possible that, for the mere art of the doing, any human being, unless he were a surgeon, should receive the slightest pleasure from such a picture? It is enough to mention one of the kind; but there have been many.

LYDIA.—I dare say, then, you will, with me, disapprove of such a subject as “The Cut Finger.” Surely it is very disagreeable.

GRATIAN.—Entirely so; but he painted a much worse thing than that. I do not see why any country gentleman should take pleasure in seeing such a “Rent Day,” as this celebrated artist has painted. There is a painful embarrassment,

uncomfortable miscalculation, reluctant payments, much more dissatisfaction than joy. I really cannot quite forgive him for making the principal figure hump-backed. This is not the characteristic of toil, labour, and industry. Doubtless the figure is from nature; but he never preferred beauty of form, when character stood by. But there is one of his pictures I consider perfectly brutish—for it is a scene arising out of that brutishness which is the necessary result of artificial and civilised life; which, unless for a moral purpose, it is best to keep out of sight,—at least in all that pertains to the ornament of domestic life. I allude to his picture, “Distraint for Rent.” It is a subject only fit for the contemplation of a bailiff, to keep his heart in its proper case-hardened state, by familiarising him with the miseries of his profession. I have been told that Wilkie did not approve of this subject, but that it was given him as a commission, which he could not well refuse.

AQUILIUS.—I would have all such subjects prohibited by Act of Parliament. Have a committee of humanity, (we can do nothing now without committees,) and fine the offending artists. Is the man of business, in this weary turmoil of the daily world, to return to his house, after his labour is over, and see upon his walls nothing but scenes of distress, of poverty, of misery, of hard-heartedness—when he should indulge his sight and his mind with every thing that would tend to refresh his worn spirits, avert painful fears, either for himself or others, and should tune himself, by visible objects of rational hilarity, into the full and free harmonies of a vigorous courage, and health of social nature? His eye should not rest upon the miseries of “Distraint for Rent,” Heaphy’s “Sore Legs,” no, nor even “Cut Fingers.” In this wayfaring world of many mishaps, however homely be the inns, let them be clean and cheerful, that we may set out again in an uncertain sky, where we must expect storms, with beautiful thoughts for our companions; that, by encouragement of a confiding reception, become winged angels, with a radiant plumage, brightening all before our path, and seen brightest and most heavenly under a lowering cloud.

LYDIA.—Thanks, Aquilius, you are poetical, and therefore most true; so low and mean thoughts—what! are they to accompany us, whether they show themselves in words or in pictures? I fear me, they are bad angels, and are doing their evil mission in our hearts, alas! and in our actions. It has been said, as an encouragement to our charity, that “men have received angels

unawares.” It may be said, too, as a warning lest we receive evil, that men may receive demons unawares. Beautiful Una—the lion licked your feet because you were so pure, so good.

Shall I tell it to you, Eusebius? Yes, your eyes will glisten as they read, for dearly do you love happiness. Here the Curate drew his bride, his wife, closer to him, kissed her honest forehead, and rested his cheek upon it for a little space, and with a low voice murmured,—“My beautiful Una.” He then turned to us with a smile, and I think the smallest indication of moisture in his eye, which might have been more but that the bright angel of his thought had cleared it away, and said,—Excuse me; yet, to be honest, excuse is not needed: my two dearest of friends must and do rejoice in the loving truth of my happiness.

GRATIAN.—No, no, my good friend, don’t make excuse, it would be our shame were it needed. You have given us one subject for a picture, whose interest should set my brushes in motion were I twenty years younger, and might hope to succeed. But this I will say, my memory has a picture gallery of her own, and in it will this little piece have a good place. Now, I like this conversation on art, because you know I have been all my life a dauber of canvass—dauber! even Aquilius, who has so much addicted himself to the art, has praised some of my performances. I have painted many a sign for good-natured landlords, in odd places, where my fishing excursions have led me; and old Hill, honest old Hill, the fisher of Millslade, has a bit of canvass of mine, the remembrance of a day, which I believe he will treasure a little for my sake, and more for its truth, to his last day. I must show the Curate’s wife old Hill. I hit him off well,—am proud of that portrait, and often look at my old companion from my easy chair. I sometimes now dabble with my tube colours, and make a dash at my remembrances of river scenes. Nature and I have been familiar many a long year. I love the breezy hill, and the free large moor, that takes up the winds and tosses them down the grooved sides, to go off in their own communing with the waterfalls. I love, too, the quiet brook, and rivers stealing their way by green meadows, and the elms, that stand like outposts on the banks, keepers of the river. Have we not, in our discussion, too much omitted to speak of landscape,—even including the sea-shores? And in landscape we certainly have painters that please. As a true fisherman and painter-naturalist I could not resist, the other day, purchasing Lewis’s river scenes. How happily—the more happily

because his execution is so unstudied, so accidental—does Lewis, with his etching and mezzotint effects, put you into the very heart of river scenery; and then how truly do you trace it upwards and downwards. We have some good landscape painters.

AQUILIUS.—We have; and of late years they have greatly improved in subjects. They at least now look for what is beautiful. The old dead stump, the dunghill, and horse and cart, the pig and the donkey, are no longer considered to be the requisites for English landscape. One has seen publications called English landscape, which must give foreigners a very miserable idea of our country. Cottage scenery, too, has had its day. The old well is dry—the girl married, it is to be hoped, and the pitcher broken. The lane and gipsies, the cross sticks and the crock, are not dissolving but dissolved views. In time, the turnpike road and ruddled sheep going to the butcher will be thought but ill to represent the pastoral. When the mutton has been eaten up—and I hope the artists get their fair share—I wish they would be satisfied, and know when they have had enough. The Act of Parliament we spoke of, should exclude creatures with the ruddle on their backs, and butcher-boys, and men in smock-frocks and low hats, and pitchforks. We have had enough of this kind of pastoral; they are not the “gentle shepherds,” that should people the Arcadia within England, or any other. I would have Rosalind and her farm, without the clown. The French and Dresden china shepherds and shepherdesses, as we see them prettily smiling, and garlanding their pet lambs, as something extra parochial, and *sui generis*, show at least this happiness, that they do not eat their bread by the sweat of their brows. All landscape that reminds you of “the curse of the earth, of the dire necessity of toil, of the beggarly destitution test,” of dingy earths and dirty weather, are, you may be sure, far out of the hearing of Pan’s pipe. He does not adjust his lips to music for the overseer and exciseman, nor rate collectors. Nay, when Pan retires to visit his estate in Arcadia, and Robin Hood reigns, he will have no such ink-horn gentry partake of his venison. The freedom of nature loves not the visible restrictions of law. I would be bold enough to lay it down as a truth, that it is as possible to get poetry out of the earth, as swedes and mangel-wurzel. Let landscape painters look to it, lest they get into bad habits before the act is out, and, of a hard necessity, incur the penalty.

GRATIAN.—Stay, stay,—where are you running to? Surely if a painter takes a *bonâ fide* view, you would not have him turn the milk-maid out of the field, to bring in Diana and her train.

AQUILIUS.—Views! oh, I thought we were speaking of Pastoral. That is quite another thing; I am somewhat of Fuseli's opinion, who said, speaking contemptuously, "I mean those things called Views."

CURATE.—But you will admit, Aquilius, that we have real scenes that are very beautiful, always pleasing to look at, and therefore fit to be painted. Is there not our lake scenery?

AQUILIUS.—There is; and as our subject is art, I should say such scenery is more valuable for what it suggests, than for what it actually represents in the painter's mirror. In fact, nature offers with both hands: it requires a nice discretion to tell which hand holds the true treasure. She may purposely show you the ornament to deceive.

"So may the outward shows be least themselves,
The world is still deceived with ornament."

It was the leaden casket, in which was hidden the perfect beauty of Portia; there was the choice, and made with a judgment that won the prize, and took the inheritance of Belmont.

"You that choose not by the view,
Chance as fair, and choose as true."

Would you take away from landscape painters the high privilege of genius?—invention—which you allow to historical painters? You do this, if you do not grant to the fullest extent the suggestive character of nature. The musician takes music from the air, which is his raw material; the conception, which works from mere sounds the perfect mystery of power, to shake, to raise, and melt to pity and to love the whole soul, belongs to the mind. And so, for the more perfect work of landscape, the mind must add of its own immortal store, the keeper and dispenser of which is genius.

CURATE.—You would raise landscape painting to the dignity of a creative, from the lower grade of an imitative art.

AQUILIUS.—I would do more; I would make it creative, not only in things like, but, to speak boldly at once, in things unlike itself; but, nevertheless, perfectly congenial; and to be adopted as a recognised mark of submission of all matter to mind, which alone is privileged to diffuse itself over and into all nature, and to animate it with a soul—life; and when that is superadded, and then only, is the sympathy complete between external nature and ourselves. I care not for art that is not creative, that does not construct poetry. From all that is most soft and tender, to all that is most great and rugged, from the sweet to the awful and sublime, there is in all art, whether it be of landscape or historical, (which embraces the poetical), a dominion bounded only by the limitations of the original power with which genius is gifted. Why may there not be a Michael Angelo for trees, as for the human form? Nay, I verily believe, that those landscapes would have the greatest fascination, where there would be, in fact, the greatest unlikeness to usually recognised nature, both in form and colour, provided one part were in keeping with another, so as to bring the whole within the idea of the natural; and where the conception is clearly expressed, and is worthy the dignity of feeling. Hence, suggestive nature is the best nature. We want not height and magnitude, vast distances: if we have the science of form and colour, the materials need not be vast, let them only be suggestive.

GRATIAN.—You laid down some such theory with regard to colour, as a means of telling the story, in your late paper on Rubens. I could not but agree with you there. I see now how you would extend the subject. We certainly do talk too much about “*the truth of nature*,” not considering sufficiently how many truths there are.

CURATE.—And what a great truth there is that is of our own making, greater than all the others; for, according to the showing of Aquilius, it comes of a divine gift, of the creative faculty, under a higher power; works the wonders in poetry, painting, music, and architecture, fittest for our admiration and our improvement. It is surprising that our landscape painters have not seen this walk within their reach; nearly all confine themselves to the imitative.

GRATIAN.—But in that they have raised their pretensions. We had nothing great or poetical in the least degree in landscape, before Wilson; nay, to a late period, our landscape subjects were of the most limited range. They do now go at least to beautiful nature, and while we have such painters of landscape as Creswick and Stanfield, and Lee, and Danby, (but there you

will say is an advance into a higher walk,) for my own part, I shall hesitate before I give my vote for your more perfect ideal.

AQUILIUS.—The works of the painters you mention are beautiful, fascinatingly so, both from the character of their chosen scenery, and their agreeable manner of representing it. And I rejoice to see, that even these are advancing, are discarding something or other of the old recipes every year. We have at last some better English scenery. We must no longer refer to Gainsborough as *the* painter of English landscape; we find it not, that is, true English scenery, in his pictures, nor in his “studies.”

GRATIAN.—And yet he painted nature, and came upon the world that began to be sick of the attempts at your ideal compositions, the prince of whom, and who won the prize over Wilson, was Smith of Chichester.

AQUILIUS.—Oh, do not dignify his presumptions with the name of ideal.

GRATIAN.—I can’t give up Gainsborough, his sweet cottage scenery, with his groups of rustic figures.

AQUILIUS.—Was there nothing better within the realms of England than beggary and poverty, rags and brambles,—her highest industry, the cart and the plough,—her wealth in stock, the pig, poultry, and donkey?

GRATIAN.—But it was the taste of the day; even our aristocracy were painted not as ideal, but as real shepherds and shepherdesses. A few years ago, there was a picture fished out of some lumber room, where it ought to have been buried till it had rotted, of George the Third’s family group, as cottagers’ children, playing in the dirt before a mud hovel. It was by Gainsborough, and I believe was held at a high price.

AQUILIUS.—This was a descent from the non-natural pastoral of the by-gone age, to the low natural, from which art derived but little benefit. Goldsmith very aptly and wittily satirised the transition state in the Primrose family-group, in which each individual adopted a singular independence. Venus, Cupids, an Amazon, and Alexander the Great, with Dr Primrose, holding his books on the Whistonian controversy.

CURATE.—One would rather imagine that Goldsmith was severe upon the practice of an earlier date. There are several pictures at Hampton Court, and one large one, if I remember, on the stair-wall, in which the statesmen of the day represent the deities of the heathen mythology.

LYDIA.—Yes, and I remember a very ridiculous smaller picture, a portrait of Queen Elizabeth—but it affects the historical. The queen and her train enter on one side of the piece, and on the other Juno, Venus, and Minerva. The goddesses are in every respect outdone, and start with astonishment,—Juno at the superior power, Minerva, the superior wisdom, and Venus the superior beauty of the queen. There must be something very curious in the nature of taste: seeing such pictures, one cannot but reflect, that though they are now perfectly ridiculous, they could not have been so when they were painted. They were men of understanding who sat for their portraits in these whimsical characters; and the queen—it is surprising!—there is surely something involved in it, that history does not touch.

GRATIAN.—It is the more surprising, as Holbein had painted, and his works were before their eyes.

AQUILIUS.—It would be not undeserving curiosity to sift the history of allegory—what is the cause that it was then so generally accepted in Europe; infected the poetry and painting of every civilised country. The new aspect of religion had much to do with it: images, pictures, particularly the earlier, representing the Deity, and the Virgin, had become objects of hatred—of persecution. And thus the arts made their escape into the regions of allegory.

CURATE.—Chilling regions, in which even genius with all his natural glow was frost-bitten. An escape from what was believed to what could not be believed. It was the cold fit of the ague of superstition.

GRATIAN.—The devotion of the early painters produced, what nothing but devotion could produce; theirs was a true devotion, notwithstanding the superstition contained in it. The iconoclast spirit has scarcely been yet laid. As we rise from the prostrate position of our fears, the more readily shall we acknowledge the spirituality of the early painters. They are daily approximating a more just estimation. But we are wandering; we were speaking of landscape: surely, it is difficult to find a subject that shall be altogether unpleasing. I do not remember ever to have seen an outdoor scene, unless it might have been in a town, that did not please with some beauty or other.

AQUILIUS.—Indeed! then I think you must have been led away by some associations, in which art had but little share. You have loved “A southerly

wind and a cloudy sky,” as the song says, for the sport offered. Be not shocked, Gratian, at the confession, but the truth is, that I see very many outward scenes, that not only give me no pleasure but pain. Shall I confess a still more shocking heterodoxy; I have but little love for the scenery of the country!—am very often displeased with what offers itself, and becomes the common picture. Even in what is denominated a beautiful country, I look more for its suggestive materials in form and colour than for whole scenes. If pictures are to be no more than what we see—even landscapes, the art is not creative; and an imitative, uncreative art, leaves the best faculties of the mind unemployed. What is art without enthusiasm?—and you may be sure that no painter of views, and nothing more, was ever an enthusiast. It is the part of enthusiasm not to copy, but to make. Is it more startling if I assert, that the ideal is more true than the natural? Yet am I convinced that it is so. The natural requires the comparison of the eye; the ideal, as it is the work of the mind, will not be controlled by any comparison, but such as mind can bring. It commands the organ of sight, and teaches it. We all have more or less of this creative faculty; the education of the world is against it, for it is a world of much business, more of doing than of thinking, and more of thinking about what is foreign to feeling, than what cherishes it till it embodies itself in imagination. The rising faculty becomes suppressed. More or less all are born poets—to make, to combine, to imagine, to create; but very early does the time come with most of us, when we are commanded to put away, as the world calls it, the “childish things.”

LYDIA.—Oh, I believe it—the infant’s dream is a creation, and perhaps as beautiful as we know it must be pleasing, for there are no smiles like infant smiles.

CURATE.—And past that age, when the external world has given its lessons in pictures, which in practice and education we only imitate, do we not find the impressions then made of a goodness, a beauty, not realised and acknowledged in advanced life, as existing actually in the scenes themselves?

AQUILIUS.—At the earlier time, we take up little but what is consonant to our affections; the minor detail is an after lesson: but, as to this “natural” of landscapes, which seems to have so long held our artists and amateurs under an infatuation—as they construe it—this mindless thing,—after all

what is its petty truth? Could the boy who hides himself under a hedge to read his Robinson Crusoe, put on canvass the pictures his imagination paints, do you think they would be exactly of the skies and the fields every day before his eyes? A year or two older, when he shall feel his spirit begin to glow with a sense of beauty, with the incessant love and heroism of best manhood—see him under the shade of some wide-spreading oak devouring the pages of befitting romance, “The Seven Champions of Christendom,” the tale of castles, of enchantments, of giants, and forlorn damsels to be rescued. Do you not credit his mind’s painting for other scenes, in colour and design, than any he ever saw? The fabulous is in him, and he must create, or look on nothing. He will take no sheep for a dragon, nor farmer Plod-acre for an enchanter, nor the village usher for an armed knight. The overseer will not be his redresser of wrongs. There is vision in his day-dream, but it is painting to the mind’s eye; and imagination must be the great enchanter to conjure up a new country, raise rocks, and build him castles; nay, in his action to run to the rescue, he has a speed beyond his limbs’ power, an arm that has been charmed with new strength. Now is he not quite out of the locality, the movement and power of any world he ever saw, of any world to whose laws of motion and of willing he has ever yet been subject? Take his pictures—look at them well; for I will suppose them painted to your sight: nay, put yourself in his place and paint them yourself—forgetting before you do so all you have ever heard said about landscape painting. Have you them? then tell me, are they untrue? No, no, you will admit they are beautiful truth. The lover paints with all a poet’s accuracy, but not like Denner. Now, if this mind-vision be not destroyed,—if the man remain the poet, he will not be satisfied with the common transcript of what, as far as enjoyment goes, he can more fully enjoy without art. He will have a craving for the ideal painting, for more truths and perhaps higher truths than the sketch-book can afford. And if he cultivate his taste, and practise the art too, he will find in nature a thousand beauties before hidden, that while he was the view-seeker, he saw not; he will be cognisant of the suggestive elements, the grammar of his mind and of his art, by which he will express thoughts and feelings, of a truth that is in him, and in all, only to be embodied by a creation.

CURATE.—I fear the patrons of art are not on your side. Does not encouragement go in a contrary direction?

GRATIAN.—Patrons of art are too often mere lovers of furniture,—have not seriously considered art, nor cultivated taste. And if it be a fault, it is not altogether their own; it is in character with genius to be in advance, and to teach, and by its own works. It is that there is a want of cultivation, of serious study, among artists themselves. If the patron could dictate, he would himself be the maker, the poet, the painter, the musician,—excellence of every kind precedes the taste to appreciate it. It makes the taste as well as the work: my friend Aquilius has made me a convert. I had not considered art, as it should be viewed, as a means of, as one of the languages of poetry. In truth, I have loved pictures more for their reminiscences than their independent power; and have therefore chiefly fixed my attention on views—actual scenery, with all its particulars.

AQUILIUS.—What is high, what is great enough wholly to possess the mind, is not of particulars; like our religion, in this it is for all ages, all countries, and must not by adopting the particular, the peculiar one, diminish the catholicity of its empire. “The golden age” is, wherever or however embodied, a creation; and as no present age ever showed any thing like it, that is, visibly so,—what is seen must be nothing more than the elements out of which it may be made.—The golden age—where all is beauty, all is perfect! Purest should be the mind that would desire to see it.

CURATE.—The golden age, if you mean by it the happy age, is but one field for art; you seem for the moment to forget, that we are so constituted as to feel a certain pleasure from terror, from fear—from the deepest tragedy—from what moves us to shed tears of pity, as well as what soothes to repose, or excites to gaiety.

AQUILIUS.—Not so—but as we commenced to discuss chiefly the agreeability of subjects for pictures, let me be allowed to add, that I question if what is disgusting should not be excluded from even the tragic, perhaps chiefly from what is tragic. Cruelty even is not necessarily disgusting; it becomes so when meanness is added to it, and there is not a certain greatness in it. There might be a greatness even in deformity, and where it is not gratuitously given, but for a purpose.

CURATE.—Yet, has not Raffaele been censured for the painfully distorted features of the Possessed Boy in his “Transfiguration.”

AQUILIUS.—And it has with some show of truth (for who would like to speak more positively against the judgment of Raffaele) been thought that Domenichino, who borrowed this subject from him, has improved the interest by rendering the face of the lunatic one of extreme beauty!

The Curate was here called away upon his parochial duties, and our discussion for the present terminated. Will it amuse you, Eusebius? If not, you have incurred the penalty of reading it, by not making one of our party. Yours ever,

AQUILIUS.

JERUSALEM.
BY WILLIAM SINCLAIR.

Thou City of the Lord! whose name
The angelic host in wonder tells;
The halo of whose endless fame
All earthly splendour far excels—
To thee, from Judah's stable mean,
Arose the Prince from Jesse's stem,
And since hath deathless glory been
With thee, Jerusalem!

What though thy temples, domes, and towers,
That man in strength and weakness made,
Are, with their priests and regal powers,
In lowly dust and ashes laid!
The story of thine ancient time
Steals on us, as it stole on them,
Thrice hallowed by the lyre sublime
Of thee, Jerusalem!

We see within thy porches, Paul
Uplift the arm, the voice command,
Whose heaven-taught zeal, whose earnest call,
Could rouse or paralyse the land—
Though gold and pomp were his, and more,
For God he spurned the glittering gem,
And cast him prostrate all before
Thy gates, Jerusalem!

Even from the Mount of Olives now,
When morning lifts her shadowy veil,
And smiles o'er Moab's lofty brow,
And beauteous Jordan's stream and vale,
The ruins o'er the region spread,
May witness of thine ancient fame,
The very grave-yards of thy dead—
Of thee, Jerusalem!

The temple in its gorgeous state
That in a dreadful ruin fell,
The fortress and the golden gate
Alike the saddening story tell,
How he by Hinnom's vale was led
To Caiaphas, with mocking shame,
That glad redemption might be shed
O'er thee, Jerusalem!

Fast by the Virgin's tomb, and by
These spreading olives bend the knee,
For here his pangs and suffering sigh
Thrilled through thy caves, Gethsemane;
'Twas here, beneath the olive shade,
The Man of many sorrows came,
With tears, as never mortal shed

MY ENGLISH ACQUAINTANCE.

The spring of the year 183- found me in Paris, whither I had gone, immediately after Christmas, for a fortnight's stay, and where I had remained four months. The prolongation of my visit will not surprise those who appreciate and enjoy the gay metropolis of France, in the most agreeable season. The festivities of the new year, with its gratulations and embraces, and tons of *bonbons*, of racy flavour and ingenious device, were no sooner over, than we found ourselves in full carnival. From the aristocratic regions of the noble Faubourg, where linger, in fossil preservation, the last relics of the *ancien régime*, to the plebeian district of the Marais; from the brilliant hotels of St Honoré and the Chaussée, peopled by rose-water exquisites and full-maned lionesses, to the remote and ignoble purlieus of Saints Dennis and Anthony, where tailors and tinkers dwell and thrive and propagate their kind, pleasure and enjoyment reigned. With the old year, the wet season had concluded; a clear bright frost had ushered in the new. Paris got rid of its mud and misery, and turned out in a new paletot and well polished boots for a ramble on the Boulevards. This was for four or five hours of the day; but night was the time to see the noisy dissolute old city in its glory, prancing and capering as madly as if it had stumbled upon the fountain of Jouvence, and had taken a pull at the regenerating element that had restored it to its teens. Appalling was the amount of eating, drinking, and merriment, occurring within its precincts; succulent breakfasts in the forenoon, and fat dinners of many courses in the evening, and riotous suppers at all hours of the night, liquidated by Burgundy in big bumpers, and Champagne in pint tumblers, and stiff punch, stinging hot and burning blue, in bright silver bowls. Then there was dancing, and masquing, and flirting, till day-dawn—of pretty late arrival at that season; sleep was at a discount, and desperate revellers who never took a wink of it, that could possibly be discovered, rushed from the ball-room to a cool breakfast on oysters and Sauterne, and rose therefrom fresh as

cowslips, ready to begin again. Paris was a vortex of gaiety and dissipation, whence, once drawn in, it was scarcely possible to extricate one's-self. I did not make the attempt. I was too well pleased with my snug sunny *entresol* on the Italian boulevard, with my dainty fare at the adjacent restaurant, with the twinkling feet of the Taglioni, and the melodious quaverings of Rubini and Duprez, then in full song; with my occasional visits to rout and masquerade, and more frequent ones to the hospitable dining rooms and saloons of a few old friends, both French and English. Then, for ride or walk, what better than the Champs Elysées, crowded with ruddy pedestrians, arch grisettes and lounging soldiers; traversed by sledges innumerable of every variety of form—dragon, sphinx, and mermaid, dolphin, lion, swan, enough to stock a mythological museum and a zoological garden—coursing up and down the road, and in the crisp frosty alleys of the Bois de Boulogne, drawn by smoking foam-speckled steeds, half hidden beneath ribbon panoply and high *panache*, sending silver sounds of countless bells before them, and delighting the eyes of all beholders by the sight of other *belles*, whose clear-toned voices and lightsome laugh rang not less sweet and silvery than the tinkle of their metal-tongued rivals, through the rare and sun-lit ether, as they sat, sunk in furs and velvets, with bright eyes and ruddy lips, and smooth firm cheeks just slightly mottled by the cold, beside the enviable cavaliers to whose charioteership they confided themselves. In short, the combination of Parisian attractions forbade departure, and I dreamed not of it till February had flown. Then I turned my eyes channelwards, and my thoughts to passports and post-horses, when sudden rumours reached me of eastern gales and virulent influenza raging on Britain's shores; and of March dust, proverbially precious, but practically odious, careering in dense and blinding clouds through London's tortured streets. This was ample excuse to linger a few weeks longer in my agreeable quarters, until spring came in earnest, and the sun was so warm, and the air so balmy, and the chestnuts in the Tuileries' gardens, just burst into foliage, presented so glorious a mass of tender green, that, although often taking leave, I still was loath to depart. And thus it came to pass that, on a bright fresh April morning, I found myself seated in a Palais Royal coffee-house, in tranquil enjoyment of creaming chocolate, a damp newspaper, and the noiseless attendance of admirably drilled waiters.

I have always loved the Palais Royal, associated as it is with my earliest and most pleasurable recollections of Paris; and with sincere regret have I noted the rapid decline of what was once the heart and focus of the French capital. At the time I now speak of, although its best days were long past, it was still far removed from the deserted and desolate state into which it has since sunk: it had not yet dwindled into a dreary quadrangle of cheap tailors, pinchbeck jewellers, and shops to let, traversed in haste by all who enter it, save by newly-imported provincials, sauntering nurserymaids, and a few old loungers, who, from long habit, haunt the fabric after the spirit has fled. The melancholy truth is, that the march of morality ruined the Palais Royal. So long as it was the headquarters of dissipation, it thrived and flourished exceedingly; it was merry and much frequented, like the mansion of some rich and jovial profligate, whom all abuse, but from whose well-spread table, few care to absent themselves. Then the Palais Royal, to the stranger, almost comprehended Paris: all the luxuries, necessities, amusements, and pleasures of life, were found within its walls: it was the bazaar, the tavern, the harem, and the gaming-house of Europe. The reforms wrought in it since the peace by its present royal owner, however advantageous to its good fame and comeliness, have been grievously detrimental to its vivacity and pocket. In 183-, the last of these changes, the finishing-stroke, as it may be termed, the suppression of the gambling tables, although fully resolved upon, had not yet taken place. The coffee-houses were still numerous and crowded, the shops magnificent and prosperous; the garden and arcades, now abandoned to mischievous boys, and to puling infants in nurses' arms, were thronged from morn till midnight with visitors of all nations and classes, lured thither by curiosity, or by the demon PLAY. There was always abundant food for observation, if only in the noisy groups who paced the avenues of trees, discussing the chances of the dice or the events of the morning's sitting, and in the flushed or haggard countenances that each moment entered and issued from the doors of the various hells. With a genial sky, a rush-bottomed chair, and the occasional assistance of a sou's worth of literature, obtained from the old women who dwell in wooden boxes, and hire out newspapers, an entire day might be passed there with amusement and profit. Occasional incidents, sometimes dramatic enough, varied the monotony, never great. The detection of a pickpocket, a loud-voiced quarrel, often resulting in blows or a challenge, the expulsion from the *rouge-et-noir* temple of some unlucky wretch, whom ruin had rendered

unruly, were incidents of daily occurrence. For those whom the minor drama did not satisfy, there was an occasional bit of high tragedy, in the shape of a suicide from losses, or an arrest for fraud. Not long before the time I speak of, a group of persons, standing in the garden, were startled by the fall of a body at their feet. It was that of a gamester, who, after losing his last franc, had thrown himself from the elevated window of the pandemonium where his ruin had been consummated.

“I believe I have the pleasure of seeing Mr ——,” said a voice in English, as I paused for a moment, my breakfast concluded, before the door of the coffeehouse, planning the disposal of my day.

I looked at the person who thus addressed me; and, although I pique myself on rarely forgetting the faces of those with whom I have once been acquainted, I confess that in this instance my memory was completely at fault. But for his knowledge of my name, I should have concluded my interlocutor mistaken as to my identity. I was at least as much surprised at the perfectly good English he spoke, as at having my acquaintance claimed by a person of his profession and rank. He was a young man of about five-and-twenty, attired in the handsome and well-fitting undress of a sergeant of French light dragoons. His dark brown hair curled short and crisp from under his smart green forage-cap, cavalierly placed upon one side of his head; his clear blue eyes contrasted with the tawny colour of his cheek, a tint for which it was evidently indebted to sun and weather; his face was clean shaven, save and except small well-trimmed mustachios and a chin-tuft. Altogether, he was as pretty a model of a light cavalryman as I remember to have seen: square in the shoulder, slender in the hip, well-limbed, lithe and muscular. His carriage was soldierly, without the exaggerated stiffness and swagger commonly found amongst noncommissioned officers of dragoons; and altogether he had a gentlemanly air which, I doubt not, would have made itself as visible under the coarse *basane* and drugget of a private soldier as beneath the garb of finer materials and more careful cut, which, in his capacity of *maréchal de logis*, or sergeant, it was permitted him to wear. But my admiration of this pretty model of a man-at-arms did not assist me to recognise him, although, whilst gazing at him, and especially when he slightly smiled at my visible embarrassment, his features did not seem totally unfamiliar to me. I looked, I have no doubt, considerably puzzled. The stranger came to my assistance.

“I see you do not remember me,” he said. “Not above four years since we met, if so much; but four years, an African sun, and a French uniform, have made a change. I met you in Warwickshire, at George Clinton’s. I have seen you once or twice since; but I think the last time we spoke was when cantering over Harleigh downs. My name is Frank Oakley.”

I immediately recollected my man. About four summers previously, whilst on a flying visit at a country house, whither a friend had taken me, and where I had been made heartily welcome by the hospitable owner, I had formed a slight acquaintance with Mr Frank Oakley, who had then just come of age, and into possession—by the death of his father, which had occurred a twelvemonth previously—of a few thousand pounds. The interest of this sum, which would have been an agreeable and sufficient addition to a subaltern’s pay or curate’s stipend, or which would have enabled a struggling barrister to bide his briefs, was altogether insufficient to supply the wants and caprices of an idler, especially such an idler as Oakley. Master Francis was what young gentlemen fresh from school or at college, sucking ensigns, precocious templars, *et id genus omne*, are accustomed to call a “fast” man; the said fastness not referring, as Johnson’s dictionary teaches us it might do, to any particular strength or firmness of character, but merely to the singular rapidity with which such persons get through their money and into debt. At the time I speak of, Oakley was going his fastest, that is to say, spending the utmost amount of coin, for the least possible value; indeed he could hardly have run madder riot with his moderate patrimony, had he cast his sovereigns into bullets and made pipe-lights of his bank notes. But verily, he had his reward in the open-mouthed admiration of three or four youngers of his own standing, or a year or two less, then assembled at Harleigh Hall, who looked up to him as something between a hero and an oracle; and in the encouraging familiarity and approval of one or two gentlemen of maturer age, who swore he was a fine fellow, and proved they thought so by winning bets of him at billiards, and by selling him horses that would have fetched “twice the money at Tattersall’s,” with other bargains of an equally advantageous description. Although we were four days in the same house, meeting each evening at dinner, and occasionally riding and walking in the same group, our acquaintance continued of the very slightest description, and I took my departure without any thing approaching to intimacy having sprung up between us. Amongst the large party of visitors at the Hall, were not

wanting persons of tastes more suited to my own, than those of Oakley and his little knot of flatterers and admirers; and he, on his part, was far too much taken up with his newly-inherited fortune—which he evidently considered inexhaustible—with planning amusements, and inhaling adulatory incense, to pay attention to a man whom, as full fifteen years his senior, he doubtless set down as an old fellow, a “slow coach,” and perhaps even as a member of that distinguished corporation known as the “Fogie Club.” So that when we met in London, during the ensuing season, occasionally in the street and once or twice in a ballroom, a slight bow or word of recognition was all that passed between us. I could perceive, however, that Oakley still kept up the rapid pace at which he had started, and lived, with a few hundreds a year, as if he had possessed as many thousands. The proximity of my quiet club to the fashionable and expensive one into which he had obtained admission, gave me many opportunities of observing his proceedings, and those opportunities, in my capacity of a student of human nature, I was careful not to neglect. I had marked his career and ultimate fate in my mind, and was curious to see my predictions verified, although I sincerely wished they might not be, for they were any thing but favourable to the welfare of Oakley, who, in spite of his follies, had generous and manly qualities. His prodigality was not of that purely egotistical description most commonly found in spendthrifts of his class. He would give a lavish alms to a whining beggar, as freely as he would throw away a handful of gold on some folly of the moment or extravagant debauch; and I had heard an old one-armed soldier, who sometimes held his horse at the club door, utter blessings, when he had ridden out of hearing, on his kind heart and open hand. These and similar little traits that came under my notice, made me regret to see him going post-haste to perdition. That he was doing so, I could not for one moment doubt. His extravagance knew no limit, and in six months he must have got through as many years’ income. Wherever pleasure was to be had, no matter at what price, Oakley was to be seen.—Upon a revenue overrated at five hundred a-year, he kept half a dozen horses, a cab, and a strange nondescript vehicle, made after an eccentric design of his own, and which every body turned to look at, as he drove down Piccadilly of an afternoon, on his way to the Park. He had his stall at the opera, of course, and an elegant set of apartments in the most expensive street in London, where he gave suppers and dinners of extravagant delicacy to thirsty friends and greedy *danseuses*. The former

showed their gratitude for his good cheer by winning his money at cards; the latter evinced their affection by carrying off the costly nicknacks that strewn his rooms, and by taking his diamond shirt-pins to fasten their shawls. In short, he regularly delivered himself over to the harpies. In addition to these minor drafts upon his exchequer, came others of a more serious nature. He played high, and never refused a bet. Like many silly young men, (and some silly old ones,) he had a blind veneration for rank, and held that a lord could do no wrong. Even a baronetcy conferred a certain degree of infallibility in his eyes. No amount of respectable affidavits would have convinced him that if Lord Rufus Slam, who not unfrequently condescended to win a cool fifty of him at écarté, did not turn the king each time he dealt, it was only because he despised so hackneyed a swindle, and had other ways of securing the game, equally nefarious but less palpable. Neither would it have been possible to persuade him that Sir Tantivy Martingale, “that prime fellow and thorough sportsman,” as Frank admiringly and confidently styled him, was capable of taking his bet upon a horse which he, the aforesaid Sir Tantivy, had just made “safe to lose.” In short, poor Oakley, who, during his father’s lifetime, had been little, if at all, in London, thought himself excessively knowing and fully up to all the wiles and snares of the metropolis. In reality he was exceedingly raw, was victimised accordingly, and, at the end of a few months in town, found himself minus a sum that brought reflection, I suspect, even to his giddy head. I conjectured so, at least, when, at the end of the season, I encountered him on a Boulogne steamer, looking fagged and out of spirits. It was only a year since we had met at Harleigh Hall, but that year had told upon him. Dissipation had driven the flush of health from his cheek, and his youthful brow was already care-loaded. I spoke to him, and made an attempt to converse; but he seemed sulky and unwilling; and, on reaching Boulogne, I lost sight of him. After a short tour, I went to winter at Paris, and there I frequently saw him. He had forgotten, apparently, the annoyances that weighed on him when he left London, and was again the gayest of the gay; living as if his purse were bottomless, and his *Gibus* hat the wishing cap of Fortunatus. Nothing was too hot or too strong for him: rated a “fast man” in England, in France he was held a *viveur enragé*. I did not much admire the society he selected: I saw him alternately with the most *roué* and dissolute young Frenchmen of fashion, and with an English set which, if it comprised men against whom nothing positively bad could

be proved, also included others whose reputation was more than doubtful. At first he was chiefly with the French, whose language, from long residence in the country when a boy, he spoke as one of themselves; then he seemed to abandon them for the English clique, and then he suddenly disappeared. I no longer saw him pacing the Boulevard or riding in the Bois, or issuing at night from the Café Anglais, flushed with wine and bent upon riotous debauch. All his former companions remained, pursuing their old amusements, frequenting the same haunts; but he was never with them. I could not understand his leaving Paris just as the best season commenced, (it was in January that he disappeared,) and at first I supposed him ill. But week after week slipped by, and no Oakley appearing, I made up my mind he had departed, whither I knew not. I was rather vexed at this, for I had made up my mind to watch him to the end of his career. Moreover, although we never spoke, and had almost left off bowing, my idle habit of observing his proceedings had given me a sort of interest in him. Once only, after his eclipse, did I fancy I caught a glimpse of him. I was fond of long rambles in the low and remote quarters of Paris, through those labyrinths of narrow streets, filthy courts, and rickety houses, where the character and peculiarities of the humbler classes of Parisians are best to be studied. Returning, after dark, from an expedition of this kind, I was surprised by a violent shower in a shabby street of the Faubourg St Antoine, and took refuge under a doorway. Immediately opposite to me was the wretched shop of a *traiteur*, in whose dingy window a cloudy white bowl of mashed spinach, a plate of bouilli, dry as a deal plank, and some triangular fragments of pear, stewed with cochineal and exposed in a saucer, served as indications of the luxurious fare to be obtained within. On one of the grimy shutters, whose scanty coat of green paint the weather had converted into a sickly blue, was the announcement, in yellow letters, that “*Fricot, Traiteur, donne à Boire et à Manger;*” whilst upon the other the hieroglyphical representation of a bottle and glass, flanked by the words “*Bon Vin de Macon à 8 et à 10 S.*” hinted intelligibly at the well-provided state of Monsieur Fricot’s cellar. It was one of those humble eating-houses, abounding in the French capital, where a very hungry man may stave off starvation for about the price of a tooth-pick at the *Café* or the *Trois Frères*, and where an exceedingly thirsty one may get comfortably intoxicated upon potato brandy and essence of logwood, for a similar amount. It needs a three days’ fast or a paviour’s appetite to induce entrance into such a place.

I was gazing with some curiosity at the windows of this poor tavern, through whose starred and patched panes, crowded with bottles, and backed by a curtain of dirty muslin, the waving of iron forks and spoons was dimly discernible by the light of two flickering candles, when the door suddenly opened, a man came out, heedless of the rain, which fell in torrents, and walked rapidly away. It was but a second, and he was lost in the darkness of the ill-lighted street, but in that second I thought I distinguished the gait and features of Frank Oakley. But my view of him was very indistinct, and I concluded myself misled by a resemblance. Since that day nothing had occurred to remind me of him, and for a long time I had entirely forgotten the good-hearted but reckless scamp, who for a brief period had attracted my attention.

Frank Oakley, then, it was, who now stood before me under the arcades of the Palais Royal. I held out my hand, with a word or two of apology for my slowness in remembering him.

“No excuse, I beg,” was his reply. “Not one in twenty of my former acquaintances recognises the spendthrift dandy in the humble sergeant of dragoons, and in the few who do, I observe, upon my approach, a strong partiality for the opposite side of the street. They give themselves unnecessary trouble, for I have no wish to intrude upon them. I have been four months in Paris, and have constantly met former intimates, but have never spoken to one of them. And I cannot say what induced me to address you, with whom my acquaintance is so slight, except that I should be very glad to have a talk about dear old England, and if I am not mistaken you are a likely man to grant it me.”

“With pleasure, Mr Oakley,” said I. “I am glad to see you, although I confess myself surprised at your present profession. For an Englishman, I should have thought our own service preferable to a foreign one; and doubtless your friends would have got you a commission—that is—if—”

I hesitated, and paused, for I felt that I was upon delicate ground, getting run away with by my own foregone conclusions, and likely, unintentionally, to wound my interlocutor’s feelings. Oakley observed my embarrassment, smiled, and completed my unfinished sentence.

“If I had not money left, after my extravagance, to buy one for myself. Well, I had not; and moreover—but you shall hear all about it, if you care to

learn the adventures of a scapegrace, now, I hope, reformed. And, in return, you shall tell me if London is still in the same place, and as wicked and pleasant as ever; and how it fares with old George Clinton, and all the jolly Warwickshire lads. Have you all hour to spare?"

"Half a dozen, if you like," I replied warmly, for I was greatly taken with the frank manly tone of the young man, whom I had last known as a conceited, frivolous coxcomb. "Half a dozen. Shall we walk?"

"I will not tax your kindness so long," replied Oakley; "and as for walking," he added, glancing from the silver stripe upon his sleeve, indicative of his non-commissioned rank, to my suit of civilian broadcloth, "although I am by no means ashamed of my position, that is no reason for exposing you to the stare and wonder of your English acquaintances, by parading in your company the public promenade. So, if you have no objection, we will step up here. The place is respectable; but unfrequented, I dare say, by any you know."

And without giving me time to protest my utter indifference to the supercilious criticism referred to, he turned into a doorway, upon a pane of glass above which was painted a ship in full sail, with the words "Café Estaminet Hollandais." Ascending a flight or two of stairs, we entered a suite of spacious apartments, furnished with several billiard tables, with cue-racks, chairs, benches, and small tables for the use of drinkers. Several of the windows, which looked out upon the garden of the Palais Royal, were open, in the vain hope, perhaps, of purifying the place from the inveterate odour of tobacco remaining there from the previous night. Although it was not yet noon, the billiard balls rattled vigorously upon more than one of the tables, and a few early drinkers, chiefly foreigners, professional billiard players and non-commissioned officers of the Paris garrison, sipped their Strasburg beer or morning dram of brandy. The further end of the long gallery, however, was unoccupied, and there Oakley drew a couple of chairs to a window, called for refreshment as a pretext for our presence, and seating himself opposite to me, assailed me with a volley of questions concerning persons and things in England. To these I replied as satisfactorily as I was able, and allowed the stream of interrogation to run itself dry, before assuming, in my turn, the character of questioner. At last, having in some degree appeased Oakley's eager desire for information about the country whence he had been so long absent, I intimated a

curiosity concerning his own adventures, and the circumstances that had made a soldier of him. He at once took the hint, and, perceiving that I listened with friendly attention and interest, gave me a detailed narrative of his life since I had first made his acquaintance. He told his story with a spirit and military conciseness that riveted my attention as much as the real pungency of the incidents. Its first portion, relating to his London career, informed me of little beyond what I already knew, or, at least, had conjectured. It was the every-day tale of a heedless, inexperienced youth, suddenly cast without guide or Mentor upon the ocean of life, and striking in turn against all the shoals that strew the perilous waters. He had been bubbled by gentlemanly swindlers—none of your low, seedy rascallions, but men of style and fashion, even of family, but especially of *honour*, who would have paraded and shot him, had he presumed to doubt their word, but made no scruple of genteelly picking his pocket. He had been duped by designing women, spunged upon by false friends, pillaged by unprincipled tradesmen. He never thought of making a calculation—except on a horse-race, and then he was generally wrong,—or of looking at an account, or keeping one; but, when he wanted money, and his banker wrote him word he had overdrawn, he just sent his autograph to his stockbroker, prefixing the words, “Sell five hundred, or a thousand,” as the case might be. For some time these laconic mandates were obeyed without remark, but at last, towards the close of the London season, the broker, the highly respectable Mr Cashup, of Change Alley, called upon his young client, whose father he had known for many years, and ventured a gentle remonstrance on such an alarming consumption of capital. Frank affected to laugh at the old gentleman’s caution, and told an excellent story that evening, after a roaring supper, about the square-toed cit, the wise man of the East, who made a pilgrimage to St James’s, to preach a sermon on frugality. Nevertheless, the prodigal was startled by the statements of the man of business. He was unaware how deeply he had dipped into his principal, and felt something like alarm upon discovering that he had got through more than half his small fortune. This, in little more than a year! For a moment he felt inclined to reform, abandon dissipation, and apply to some profession. But the impulse was only momentary. How could he, the gay Frank Oakley, the flower of fashion, and admiration of the town, (so at least he thought himself) bend his proud spirit to pore over parchments in a barrister’s chambers, or to smoke British Havanas, and spit over the bridge of a

country town, as ensign in a marching regiment? Was he to read himself blind at college, to find himself a curate at thirty, with a hundred a-year and a breeding wife? Or was he to go to India, to get shot by Sikhs, or carried off by a jungle fever? Forbid it, heaven! What would Slam and Martingale, and Mademoiselle Entrechat, and all his fast and fashionable acquaintances, male and female, say to such declension! The thought was overwhelming, and thereupon Oakley resolved to give up all idea of earning an honest living, to “drown care,” “damn the consequences,” and act up to the maxim he had frequently professed, when the champagne corks were flying at his expense for the benefit of a circle of admiring friends, of “a short life and a merry one.” So he stopped in London till the very close of the season, “keeping the game alive,” as he expressed it, to the last, and then started for the Continent. An attempt to recruit his finances at Baden-Baden terminated, as might be expected, in their further reduction, and at last he found his way to Paris. Unfortunately for him, his ruinous career in England had been so short, and his self-conceit, and great opinion of his own knowing, had made him so utterly reject the advice and experience of the very few friends who cared a rush for his welfare, that he was still in the state of a six-day-old puppy, and as unable to take care of himself. More than half-ruined, he preserved his illusions; still believed in the sincerity of fashionable acquaintances, in the fidelity of histrionic mistresses, in the disinterestedness of mankind in general, or at least, of that portion of it with which he habitually associated. The bird had left half its feathers with the fowler, but was as willing as ever to run again into the snare. And at Paris snares were plentiful, well-baited and carefully covered up.

“I can scarcely define the society into which I got at Paris,” said Oakley, when he came to this part of his history. “It was of a motley sort, gathered from all quarters, and, upon the whole, rather pleasant than respectable. It consisted partly of persons I had known in England, either Englishmen or dashing young Frenchmen of fortune, whose acquaintance I had made during their visits to London a few months previously. I had also several letters of introduction, some of which gave me entrance into the best Parisian circles, but these I generally neglected, preferring the gay fellows for whom I bore commendatory scrawls from my London associates. But probably my best recommendation was my pocket, still tolerably garnished, and the recklessness with which I scattered my cash. I felt myself on the high road to ruin, but my down-hill course had given such impetus to my

crazy vehicle, that I despaired of checking it, and shut my eyes to the inevitable smash awaiting me at the bottom.

“It was not long in coming. Although educated in France, and consequently speaking the language as a native, I always took more kindly to my own countrymen than to Frenchmen, and gradually I detached myself unconsciously from those with whom I had spent much of my time when first in Paris. I exchanged for the worse, in making my sole companions of a set of English scamps, who asked no better than to assist at the plucking of such a pigeon as myself. At first they treated me with tenderness, fearing to spoil their game by a measure of wholesale plunder. They made much of me, frequently favoured me with their company at dinner, occasionally forgot their purses and borrowed from mine, forgetting repayment, and got up card parties, at which, however, I was sometimes allowed to come off a winner. But my gains were units and my losses tens. An imprudent revelation accelerated the catastrophe. My chosen intimate was one Harry Darvel, a tall pale man, about five years older than myself, who would have been good-looking, but for the unpleasant shifting expression of his gray eyes, and for a certain cold rigidity of feature, frequently seen in persons of the profession I afterwards found he exercised. I first made his acquaintance at Baden, met him by appointment at Paris, and he soon became, my chief associate. I knew little of him, except that he had a large acquaintance, lived in good style, spent his money freely, and was one of the most amusing companions I had ever had. By this time I began to see through flattery, when it was not very adroitly administered, and to suspect the real designs of some of the vultures that flocked about me. Darvel never flattered me; his manner was blunt, almost to roughness; he occasionally gave me advice, and affected sincere friendship and anxiety for my welfare. ‘You are young in the world,’ he would say to me, ‘you know a good deal for the time you have been in it, but I am an old stager, and have been six seasons in Paris for your one. I don’t want to dry-nurse you, nor are you the man to let me, but two heads are better than one, and you may sometimes be glad of a hint. This is a queer town, and there are an infernal lot of swindlers about.’ I little dreamed that my kind adviser was one of the most expert of the class he denounced, but reposed full trust in him, and, by attending to his disinterested suggestions, gradually detached myself from my few really respectable associates, and delivered myself entirely into his hands, and those of his assistant Philistines. Upon an unlucky day, when a letter of

warning from my worthy old stockbroker had revived former anxieties in my mind, I made Darvel my confidant, and asked counsel of him to repair my broken fortunes. He heard me without betraying surprise, said he would think the matter over, and that something would assuredly turn up, talked vaguely of advantageous appointments which he had interest in England to procure, assured me of his sympathy and friendship, and bade me not despond, but keep my heart up, for that I had plenty of time to turn in, and meanwhile I must limit my expenses, and not be offended if he occasionally gave me a friendly check when he saw me ‘outrunning the constable.’ His tone and promises cheered me, and I again forgot my critical position. Little did I dream that my misplaced confidence had sealed my doom. If I had hitherto been spared, it was from no excess of mercy, but because my real circumstances were unknown, my fortune overrated, and a fear entertained of prematurely scaring the game by too rapid an attack. It was now ascertained that the goose might be slaughtered, without any sacrifice of golden eggs. Darvel now knew exactly what I was worth,—barely two thousand pounds. That gone, I should be a beggar. For two days he never lost sight of me, accompanied me every where and kept me in a whirl of dissipation, exerted to the utmost his amusing powers, which were very considerable, and did all he could to raise my spirits. The third morning he came to breakfast with me.

“‘Dine at my rooms, to-day,’ said he, as he sat puffing a Turkish pipe, after making me laugh to exhaustion at a ridiculous adventure that had befallen him the night before. ‘Bachelor fare, you know—brace of fowls and a gigot, a glass of that Chambertin you so highly approve, and a little chicken hazard afterwards. Quite quiet—shan’t allow you to play high. We’ll have a harmless, respectable evening. I will ask Lowther and the Bully. Dine at seven, to bed at twelve.’

“I readily accepted, and we strolled out to invite the other guests. A few minutes’ walk brought us to the domicile of Thomas Ringwood, Esq., known amongst his intimates as the Bully, a sobriquet he owed to his gruff voice, blustering tone, and skill as a pugilist and cudgel-player. He was member of a well-known and highly respectable English family, who had done all in their power to keep him from disgracing their name by his blackguard propensities. In dress and manner he affected the plain bluff Englishman, wore a blue coat, beaver gloves, (or none at all,) and a hat

broad in the brim, spoke of all foreigners with supreme contempt, and of himself as *honest* Tom Ringwood. This lip honesty and assumed bluntness were a standing joke with those who knew his real character, but passed muster as perfectly genuine with ingenuous and newly imported youngsters like myself, who took him for a wealthy and respectable English gentleman, the champion of fair play, just as at a race, or fair, boobies take for a bona-fide farmer the portly individual in brown tops, who so loudly expresses his confidence in the chances of the thimble rig, and in the probity of the talented individual who manœuvres the ‘little pea.’

“Ringwood was at his rooms, having ‘half a round’ with the Oxford Chicken, a promising young bruiser who, having recently killed his man in a prize-fight, had come over to Paris for change of air. There was bottled English porter on the table, sand upon the floor to prevent slipping, and the walls were profusely adorned with portraits of well-known pugilists, sketches of steeple-chases, boxing-gloves, masks, and single-sticks. In the comfortable embraces of an arm-chair sat Archibald Lowther, Honest Tom’s particular ally, who, in every respect, was the very opposite of his Achates. Lowther affected the foreigner and dandy as much as Ringwood assumed the bluff and rustic Briton; wore beard and mustaches, and brilliant waistcoats, owned shirt-studs by the score and rings by the gross, lisped out his words with the aid of a silver toothpick, and was never seen without a smile of supreme amiability upon his dark, handsome countenance. Fortunately, both these gentlemen were disengaged for the evening. The day passed in lounging and billiard playing, varied by luncheon and a fair allowance of liquids, and at half past seven we sat down to dinner. It did not occur to me at the time that, although Darvel’s invitation had the appearance of an impromptu, he did not warn his servant of expected guests, or return home till within an hour of dinnertime. Nevertheless, all was in readiness; not the promised fowl and leg of mutton, but an exquisite repast, redolent of spices and truffles, with wines of every description. I was in high spirits, and drank freely, mixing my liquor without scruple, and towards ten o’clock I was much exhilarated, although not yet drunk, and still tolerably cognisant of my actions. Then came coffee and liqueurs, and whilst Darvel searched in an adjoining room for some particularly fine cigars for my special smoking, Lowther cleared a table, and rummaged in the drawers for cards and dice, whilst Ringwood called for lemons and sugar, and compounded a fiery bowl of *Kirschwasser* punch. It was quite

clear we were to have a night of it. Darvel's declaration that he would have no high play in his rooms, and would turn every one out at midnight, was replied to by me with a boisterous shout of laughter, in which I was vociferously joined by Lowther, who, to all appearance, was more than half tipsy. We sat down to play for moderate stakes; fortune favoured me at the expense of Ringwood and Lowther. The former looked sulky, the latter became peevishly noisy and excited, cursed his luck, and insisted on increasing the stakes. Darvel strongly objected; as winner, I held myself bound to oppose him, and the majority carried the day. The stakes were doubled, quadrupled, and at last became extravagantly high. Presently in came a couple more 'friends,' in full evening costume, white-waistcoated and gold-buttoned, patent leather, starch and buckram from heel to eyebrow. They were on their way to a rout at the Marchioness of Montepulciano's, but, seeing light through Darvel's windows, came up 'just to see what was going on.' With great difficulty they were prevailed upon to take a cigar and a hand at cards, and to disappoint the Marchioness. It was I who, inspired by deep potations and unbounded good fellowship, urged and insisted upon their stopping. My three friends did not seem nearly so cordial in their solicitations, and subsequently, when I came to think over the night's proceedings, I remembered a look of vexation exchanged between them, upon the entrance of the uninvited vultures who thus intruded for their share of the spoil. Doubtless, the worthy trio would rather have kept me to themselves. They suppressed their discontent, however; externally all was honeyed cordiality and good feeling; the Bully made perpetual bowls of punch, and I quaffed the blazing alcohol till I could scarcely distinguish the pips on the cards. But scenes like these have been too often described for their details to have much interest. Enough, that at six o'clock the following morning I threw myself upon my bed, fevered, frantic, and a beggar. I had given orders upon my London agent for the very last farthing I possessed.

"Lowther, to all appearance the least sober and worst player of the party, had been chief winner. Ringwood had won a little; Madam Montepulciano's friends did not make a bad night's work of it, although they declared their gains trifling, but as there had been a good deal of gold and some bank-notes upon the table, it was difficult to say exactly how the thing had gone. Darvel, who had frequently made attempts to stop the play—attempts frustrated by Lowther's drunken violence, Ringwood's dogged sullenness, and my own mad eagerness,—was visibly a loser; but what mattered that,

when his confederates won? There is honour amongst thieves, and no doubt next day witnessed an equitable division of the spoils.

“It was the second day after the debauch before I again saw any of my kind friends. I spent the greater part of the intervening one in bed, exhausted and utterly desponding, revolving in my mind my desperate position. I had no heart to go out or see any body. At last Darvel called upon me, affected great sorrow for my losses, deplored my obstinacy in playing high against his advice, and inveighed against Lowther for his drunken persistence. Anxiety and previous excess had rendered me really unwell; Darvel insisted on sending me his physician, and left me with many expressions of kindness, and a promise to call next day. All this feigned sympathy was not lavished without an object; the gang had discovered I might still be of use to them. In what way, I did not long remain ignorant. During a week or more that I remained in the house, suffering from a sort of low fever, Darvel came daily to sit with me, brought me newspapers, told me the gossip of the hour, and not unfrequently threw out hints of better times near at hand, when the blind goddess should again smile upon me. At last I learned in what way her smiles were to be purchased. I was convalescent; my doctor had paid his farewell visit, and pocketed my last napoleon, when Darvel entered my room. After the usual commonplace inquiries, he sat down by the fire, silent, and with a gloomy countenance. I could not help noticing this, for I was accustomed to see him cheerful and talkative upon his visits to me; and I presently inquired if any thing had gone wrong.

“‘Yes—no—nothing with me exactly, but for you. I am disappointed on your account.’

“‘On my account?’

“‘Yes. I wrote to England some days ago, urging friends of mine in high places to get you a snug berth, and to-day I have received answers.’

“‘Well?’

“‘No, ill—cold comfort enough. Lots of promises, but with an unmistakable hint that many are to be served before me, and that we must wait several months,—which with those people means several years,—before there will be a chance of a good wind blowing your way. I am infernally sorry for it.’

“‘And I also,’ I replied, mournfully. There was a short pause.

“‘How are you off for the sinews of war?’ said Darvel.

“‘You may find some small change on the chimney-piece—my last money.’

“‘The devil! This won’t do. We must fill your exchequer somehow. You must be taken care of, my boy.’

“‘Easy to say,’ I answered, ‘but how? Unless you win me a lottery prize, or show me a hidden treasure, my cash-box is likely to continue empty.’

“‘Pshaw! hidden treasure indeed! There are always treasures to be found by clever seekers. Nothing without trouble.’

“‘I should not grudge that.’

“‘Perhaps not; but you young gentlemen are apt to be squeamish. Nasty-particular, as I may say.’

“‘Pshaw!’ said I in my turn, ‘you know I can’t afford to be that. Money I must have, no matter how.’

“I spoke thoughtlessly, and without weighing my words, but also without evil meaning. I merely meant to express my willingness to work for my living, in ways whose adoption I should have scoffed at a fortnight previously. Darvel doubtless understood me differently—thought dissipation and reckless extravagance had blunted my sense of honour and honesty, and that I was ripe for his purpose. After a minute or two’s silence —

“‘By the bye,’ he said, ‘are not you intimate with the young D——s, sons of that rich old baronet Sir Marmaduke D——?’

“‘Barely acquainted,’ I replied, ‘I have seen them once or twice, but it is a long time back, and we should hardly speak if we met. They are poor silly fellows, brought up by a fool of a mother, and by a puritanical private tutor.’

“‘They have broken loose from the apron string then, for they arrived here yesterday on their way to Italy, Greece, and the Lord knows where. Why don’t you call upon them? They are good to know. They have swinging letters of credit on Paris and half the towns in Europe.’

“‘I see no use in calling on them, nor any that their letters of credit can be to me.’

“Pshaw! who knows? They are to be a month here. It might lead to something.’

“To what?’ I inquired indifferently. A gesture of impatience escaped Darvel.

“You certainly are dull to-day—slow of comprehension, as I may say. Recollect what some play-writing man has said about the world being an oyster for clever fellows to open. Now these D——s are just the sort of natives it is pleasant to pick at, because their shells are lined with pearls. Well, since you won’t take a hint, I must speak plainly. Dine to-day at the table-d’hôte of the *Hôtel W——*. The D——s are staying there, and you are safe to fall in with them. Renew your acquaintance, or strike up a fresh one, whichever you please. You are a fellow of good address, and will have no difficulty in making friends with two such Johnny Newcomes. Ply them with Burgundy, bring them here or to my rooms, we will get Lowther and Ringwood, and it shall be a hundred pounds in your pocket.’

“I must have been a fool indeed, had I doubted for another instant the meaning and intentions of my respectable ally. As by touch of enchanter’s wand, the scales fell from my eyes; illusions vanished, and I saw myself and my associates in the right colours, myself as a miserable dupe, them as vile sharpers. So confounded was I by the suddenness of the illumination, that for a moment I stood speechless and motionless, gazing vacantly into the tempter’s face. He took my silence for acquiescence, and opened his lips to continue his base hints and instructions. Roused into vehement action by the sound of his odious voice, I grasped his collar with my left hand, and seizing a horsewhip that lay opportunely near, I lashed the miscreant round the room till my arm could strike no longer, and till the inmates of the house, alarmed by his outcries, assembled at the door of my apartment. Too infuriated to notice them, I kicked the scoundrel out and remained alone, to meditate at leisure upon my past folly and present embarrassments. The former was irreparable, the latter were speedily augmented. I know not what Darvel told the master of the house, (I subsequently found he had had an interview with him after his ejection from my room,) but two days later, the month being at an end, I received a heavy bill, with an intimation that my apartments were let to another tenant, and a request for my speedy departure. I was too proud to take notice of this insolence, and too poor, under any circumstances, to continue in so costly a lodging. Money I had

none, and it took the sacrifice of my personal effects, including even much of my wardrobe, to satisfy my landlord's demand. I settled it, however, and removed, with a heavy heart, a light portmanteau, and a hundred francs in my pocket, to a wretched garret in a cheap faubourg.

"You will think, perhaps, that I acted rashly, and should have sought temporary assistance from friends before proceeding to such extremities. But the very few persons who might have been disposed to help me, I had long since neglected for the society of the well-dressed thieves by whom I had been so pitilessly fleeced. And had it been otherwise, I knew not how to beg or borrow. My practice had been in giving and lending. The first thing I did, when installed in my *sixième* at twenty francs a-month, was to write to my uncle in England, informing him, without entering into details, of the knavery of which I had been victim, expressing my penitence for past follies, and my desire to atone them by a life of industry. I craved his advice as to the course I should adopt, declared a preference for the military profession, and entreated, as the greatest of favours, and the only one I should ever ask of him, that he would procure me a commission, either in the British service or Indian army. I got an answer by return of post, and, before opening it, augured well from such promptitude. Its contents bitterly disappointed me. My uncle's agent informed me, by his employer's command, that Mr Oakley, of Oakley Manor, was not disposed to take any notice of a nephew who had disgraced him by extravagance and evil courses, and that any future letters from me would be totally disregarded. I felt that I deserved this; but yet I had hoped kinder words from my dead father's elder brother. The trifling assistance I asked would hardly have been missed out of his unencumbered income of ten thousand a-year. This was my first advertisement of the wide difference between relatives and friends. Gradually I gathered experience, paid for, in advance, at a heavy rate.

"Of course, I did not dream of renewing an application thus cruelly repulsed, but resolved to rely on myself alone, and to find some occupation, however humble, sufficient for my subsistence. I had no idea, until I tried, of the immense difficulty of procuring such occupation. Master of no trade or handicraft, I knew not which way to turn, or what species of employment to seek. I was a good swordsman, and once I had a vague notion of teaching fencing; but even had I had the means to establish myself, the profession

was already over-stocked; and not a regiment of the Paris garrison but could turn out a score of *prévôts* to button me six times for my once. I could ride, which qualified me for a postilion, and had sufficient knowledge of billiards to aspire to the honourable post of a marker; but even to such offices—could I have stooped to compete for them—I should have been held ineligible without certificates of character. And to whom was I to apply for these? To my gay acquaintances of the Café de Paris? To the obsequious banker to whom I had come handsomely accredited, and who had given me a sumptuous dinner in his hotel of the Rue Bergère? To the noble and fashionable families to whom I had brought letters of recommendation, and whom I had neglected after a single visit? To which of these should I apply for a character as groom? And how was I to exist without condescending to some such menial office? To aught better, gentleman though I was, I had no qualifications entitling me to aspire. It was a sharp, but wholesome, lesson to my vanity and pride, to find myself, so soon as deprived of my factitious advantage of inherited wealth, less able to provide for my commonest wants than the fustian-coated mechanic and hob-nailed labourer, whom I had been wont to splash with my carriage-wheel and despise as an inferior race of beings. Bitter were my reflections, great was my perplexity, during the month succeeding my sudden change of fortune. I passed whole days lying upon the bed in my melancholy lodging, or leaning out of the window, which looked over a dreary range of roofs, ruminating my forlorn position, and endeavouring, but in vain, to find a remedy. This was urgent; but no cudgelling of my brain suggested one, and at last I saw myself on the brink of destitution. A score of five-franc pieces had constituted my whole fortune after satisfying my former extortionate landlord. These were nearly gone, and I knew not how to obtain another shilling; for my kit was reduced to linen and the most indispensable necessities. I now learned upon how little a man may live, and even thrive and be healthy. During that month, I contrived to keep my expenses of food and lodging within two francs a-day, making the whole month's expenditure considerably less than I had commonly thrown away on an epicurean breakfast or dinner. And I was all the better for the coarse regimen to which I thus suddenly found myself reduced. Harassed in mind though I was, my body felt the benefit of unusual abstinence from deep potations, late hours, and sustained dissipation. The large amount of foot-exercise I took during these few weeks, doubtless contributed also to restore tone and vigour to a

constitution which my dissolute career, however mad and reckless, had not been long enough seriously to impair. When weary of my lonesome attic, I would start through the nearest barrier, avoiding the streets and districts where I might encounter former acquaintances, and take long walks in the environs of Paris, returning with an appetite that gave a relish even to the tough and unsavoury viands of a cheap *traiteur*.

“It chanced, upon a certain day, when striding along the road to Orleans, that I met a regiment of hussars changing their quarters from that town to Paris. The morning sun shone brightly on their accoutrements; the hoofs of their well-groomed horses rang upon the frosty road; the men, closely wrapped in their warm pelisses, looked cheerful, in good case, and in high spirits at the prospect of a sojourn in the capital. I seated myself upon a gate to see them pass, and could not avoid making a comparison between my position and that of a private dragoon, which resulted considerably to my disadvantage. I was not then so well aware as I have since become, of all the hardships and disagreeables of a soldier’s life; and it appeared to me that these fellows, well clothed, well mounted, and with their daily wants provided for, were perfect kings compared to a useless, homeless, destitute being like myself. Their profession was an honourable one; their regiment was their home; they had comrades and friends; and their duty as soldiers properly done, none could reproach or oppress them. The column marched by, and was succeeded by the rearguard, half-a-dozen smart, sunburned hussars, with carbine on thigh; one of whom sang, in a mellow tenor voice, and with considerable taste, the well-known soldier’s song out of *La Dame Blanche*. In their turn, they disappeared behind a bend of the road; but the spirited burthen of the ditty still reached my ears after they were lost to my view—

‘Ah, quel plaisir! ah, quel plaisir!
Ah, quel plaisir d’être soldat!’

“I repeated to myself, as the last notes died in the distance, and jumping off the gate, I turned my steps towards Paris, my mind strongly inclining to the sabre and worsted lace.

“My half-formed resolution gathered strength from reflection, and on reaching Paris, I proceeded straight to the Champ de Mars. The spectacle that there met my eyes was of a nature to encourage my inclination to

embrace a military career, even in the humble capacity of a private trooper. It was a cavalry field-day, and a number of squadrons manœuvred in presence of several general officers and of a brilliant staff, whilst soldiers of various corps,—dragoons, lancers, cuirassiers and hussars, stood in groups watching the evolutions of their comrades. Veterans from the neighbouring Hôtel des Invalides—scarred and mutilated old warriors, who had shared the triumphs and reverses of the gallant French armies from Valmy^[7] to Waterloo—talked of their past campaigns and criticised the movements of their successors in the ranks. Several of these parties I approached within earshot, and overheard, with strong interest, many a stirring reminiscence of those warlike days when the Corsican firebrand set Europe in a flame, and spread his conquering legions from Moscow to Andalusia. At last I came to a group of younger soldiers, who discussed more recent if less glorious deeds of arms. The words *Bédouins*, *razzia*, *Algérie*, recurred frequently in their discourse. I started at the sounds. They reminded me of what I had previously forgotten, that there was still a battle-field in the world where danger might be encountered and distinction won. True, I might have wished a better cause than that of encroachment and usurpation; more civilised foes than the tawny denizens of the desert; a more humane system of warfare than that pursued by the French in Africa. But my circumstances forbade over-nicety, and that day I enlisted as volunteer in the light cavalry, merely stipulating that I should be placed in a corps then serving in Africa.

“Should you care to hear, I will give you at a future time some details of my military novitiate and African adventures. The former was by no means easy, the latter had little to distinguish them from those of thousands of my comrades. A foreign service is rarely an agreeable refuge, and that of France is undoubtedly the very worst an Englishman can enter. The old antipathy to England, weakened in the breasts of French civilians, still exists to a great extent amongst the military classes of the population. A traditionary feeling of hatred and humiliation has been handed down from the days of our Peninsular victories, and especially from that of the crowning triumph at Waterloo,—the battle won by treachery, as many Frenchmen affirm, and some positively believe. A French barrack-room, I can assure you, is any thing but a bed of roses to a British volunteer. I was better off, however, than most of my countrymen would have been under similar circumstances. Speaking the language like a native—better, indeed, than the majority of those with whom I now found myself associated—I escaped the mockery

and annoyances which an English accent would inevitably have perpetuated. My country was known, however; it was moreover discovered that in birth and education I was superior to those about me, and these circumstances were sufficient to draw upon me envy and insult. Of the former I took no heed, the latter I promptly and fiercely resented, feeling that to do so was the only means of avoiding a long course of molestation. Two or three duels, whence my skill with the foils brought me out unscathed and with credit, made me respected in my regiment, and whilst thus establishing my reputation for courage, I did my best to conciliate the good-will of those amongst whom I was henceforward to live. To a great extent I was successful. My quality of an Englishman gradually ceased to give umbrage or invite aggression, and, if not forgotten, was rarely referred to.

“I was found an apt recruit, and after far less than the usual amount of drill I was dismissed to my duty in the ranks of my present regiment, with which I returned from Africa at the beginning of this winter, and am now in garrison at Paris. My steady attention to my duties, knowledge of writing and accounts, and conduct in one or two sharply-contested actions, obtained me promotion to the grades of corporal and *fourrier*. For my last advancement, to the highest non-commissioned rank, I am indebted to an affair that occurred a few weeks before we left Africa. A small division, consisting of three battalions and as many squadrons, including mine, moved from Oran and its neighbourhood, for the purpose of a reconnaissance. After marching for a whole day, we halted for the night near a lonely cistern of water. The only living creature we saw was a wretched little Arab boy, taking care of three lean oxen, who told us that, with the exception of his parents, the whole tribe inhabiting that district had fled on news of our approach, and were now far away. This sounded rather suspicious, and all precautions were taken to guard against surprise. Picquets and out-posts were established, the bivouac fires blazed cheerily up, rations were cooked and eaten, and, wrapped in our cloaks, we sought repose after the day’s fatigue. Tired though we were, sleep was hard to obtain, especially for us cavalry men, by reason of the uneasiness of our horses, which scarcely ceased for a moment to neigh and kick and fight with each other. Troopers always look upon this as a bad omen, and more than one old soldier, whilst caressing and calming his restless charger, muttered a prediction of danger at hand. For once, these military prophets were not mistaken. About two hours after

midnight, the bivouac was sunk in slumber, the horses had become quieter, and the silence was rarely broken, save by the warning cry of '*Sentinelle, garde à vous!*' when suddenly a few dropping shots were heard, the drum of a picquet rattled a loud alarm, and a shout arose of '*Les Arabes!*' In an instant, the encampment, so still before, swarmed like a hive of bees. Luckily we had all laid down fully accoutred, with our weapons beside us, so that, as we sprang to our feet, we found ourselves ready for action. The general, who alone had a small tent, rushed half-dressed from under his canvass. Our veteran colonel was on foot with the first, cool as on parade, and breathing defiance. '*Chasseurs, to your horses!*' shouted he in stentorian tones, hoarse from the smoke of many battles. At the word we were in the saddle. On every side we heard wild and savage shouts, and volleys of small arms, and the picquets, overpowered by numbers, came scampering in, with heavy loss and in much confusion. There was no moon, but by the starlight we saw large bodies of white shadowy figures sweeping around and towards our encampment. Our infantry had lain down in order, by companies and battalions, according to a plan of defence previously formed, and now they stood in three compact squares, representing the three points of a triangle; whilst in the intervals the squadrons manœuvred, and the artillery-men watched opportunities to send the contents of their light mountain-howitzers amongst the hostile masses. With whoop and wild hurrah, and loud invocations of Allah and the Prophet, the Bedouin hordes charged to the bayonet's point, but recoiled again before well-directed volleys, leaving the ground in front of the squares strewn with men and horses, dead and dying. Then the artillery gave them a round, and we cavalry dashed after them, pursuing and sabring till compelled to retire before fresh and overwhelming masses. This was repeated several times. There were many thousand Arabs collected around us, chiefly horsemen; and had their discipline equalled their daring, our position would have been perilous indeed. Undismayed by their heavy loss, they returned again and again to the attack. At last the general, impatient of the protracted combat, wheeled up the wings of the squares, reserved the fire till the last moment, and received the assailants with so stunning a discharge that they fled to return no more. The cavalry of course followed them up, and our colonel, Monsieur de Bellechasse, an old soldier of Napoleon's, ever foremost where cut and thrust are passing, headed the squadron to which I belong. Carried away by his impetuosity, and charging home the flying Bedouins,

he lost sight of prudence, and we soon found ourselves surrounded by a raging host, who, perceiving how few we were, stood at bay, and in their turn assumed the offensive. Seen in the dim starlight, with their tawny faces, gleaming eyes, white burnous, and furious gesticulations, the Arabs seemed a legion of devils let loose for our destruction. Our ranks were disordered by the pursuit, and we thus lost one of our chief advantages; for the Bedouins, unable to resist the charge in line of disciplined cavalry, are no despicable opponents in a hand to hand *mêlée*. And this the combat soon became. Greatly out-numbered, we fought for our lives, and of course fought our best. I found myself near the colonel, who was assailed by two Arabs at one time. He defended himself like a lion, but his opponents were strong and skilful, and years have impaired the activity and vigour which procured him, a quarter of a century ago, the reputation of one of the most efficient light dragoons in Buonaparte's armies. There were none to aid him, for all had their hands full and I myself was sharpset with a brawny Bedouin, who made excellent use of his scimitar. At last I disabled him by a severe cut on the sword arm; he gnashed his teeth with rage, turned his beautiful horse with lightning swiftness, and fled from the fight before I had time to complete my work. I was glad to be quit of him at any price, as I was now able to strike in by the colonel's side. The old warrior was hard put to; a sabre cut had knocked off his shako, and inflicted a wound on his high, bald forehead, slight indeed, but the blood from which, trickling into his eyes, nearly blinded him, and he was fain to leave go his reins to dash it away with his hand. The Arabs perceived their advantage, and pressed him hard, when I charged one of them in the flank, bringing the breast of my horse against the shoulder of his, and cutting at the same time at his head. Man and beast rolled upon the ground. M. de Bellechasse had scarcely time to observe, from whom the timely succour came, when I dashed in before him, and drew upon myself the fury of his remaining foe. Just then, to my infinite relief, I heard at a short distance a steady regular fire of musketry. It was the infantry, advancing to our support. The Arabs heard it also, and having had, for one day, a sufficient taste of French lead, beat a precipitate retreat, scouring away like phantoms, and disappearing in the gloom of the desert. I was triply recompensed for my share in this action, by honourable mention in general orders, by promotion to the rank of *maréchal de logis*—equivalent to troop sergeant-major in the English service—and by the personal thanks of my excellent old colonel, who shook me heartily by the

hand, and swore '*Mille millions de sabres!*' that after successfully guarding his head against Russian, Prussian, and Austrian, Englishman and Spaniard, he would have been ignominiously cut to pieces by a brace of black-faced heathens, but for my timely interposition. Since then, he has shown me unvarying kindness, for which I am indebted chiefly to my preservation of his life, but partly also to his high approval of the summary manner in which I upset, by a blow of my sabre and bound of my horse, one of his swarthy antagonists, reminding him, as he always mentions when telling the story, of a similar feat of his own when attacked on the Russian retreat by three gigantic Tartars from the Ukraine. Since we have been in garrison here, he has frequently had me at his house, nominally to assist in the arrangement of regimental accounts and orders, but in reality to take opportunities of rendering me small kindnesses; and latterly, I am inclined to think, a little, for the pleasure of talking to me of his old campaigns. He soon discovered, what he previously had some inkling of, that my original position in the world was superior to my present one; and I am not without hopes, from hints he has let fall, that he will, at no very distant day, procure my promotion to a cornetcy. These hopes and alleviations enable me to support, with tolerable patience and cheerfulness, the dull ordeal of a garrison life, seldom so pleasantly varied as by my meeting with you. And now, that I have inflicted my whole history upon you," added Oakley, with a smile, "I must bid you good bye, for duty calls,—no longer, it is true, to action in the field, but to the monotonous routine of barrack ordinances."

Thanking Oakley for his interesting narrative, I gave him my address, and begged him to visit me. This he promised to do, and we parted. Three days later he called upon me; I kept him to dine with me at my lodgings, and had reason, during an evening of most agreeable conversation, to be more than ever pleased with the tone of his mind and tenor of his discourse. The unthinking rake of former days, must have learned and reflected much during his period of adversity and soldiering, to convert himself into the intelligent, well-informed, and unaffected man he had now become. One thing that struck me in him, however, was an occasional absence of mind and proneness to reverie. If there was a short pause in the conversation, his thoughts seemed to wander far away; and at times an expression of perplexed uneasiness, if not of care, came over his countenance. I had only to address him, however, to dissipate these clouds, whencesoever they came, and to recall his usual animated readiness of manner.

A fortnight now elapsed without my again seeing him. I was to return to England in a couple of days, and was busy one evening writing letters and making preparations for departure, when the bell at the door of my apartment was hastily rung. I opened, and Oakley entered. At first I hardly recognised him, for he was in plain clothes, which had the effect of converting the smart sergeant into an exceedingly handsome and gentlemanlike civilian. It struck me he looked paler than usual, and grave, almost anxious. His first words were an apology for his intrusion at so late an hour, which I cut short by an assurance of my gladness to see him, and an inquiry if I could do any thing for him in England.

“When do you go?” said he.

“The day after to-morrow.”

“I want nothing there,” was his reply; “but before you go you can render me a great service, if you will.”

“If I can, be sure that I will.”

“You may perhaps hesitate, when you hear what it is. I want you to be my second in a duel.”

“In a duel!” I repeated, greatly astonished, and not over-pleased at the idea of being mixed up in some barrack-room quarrel. “In a duel! and with whom?”

“With an officer of my regiment.”

“Of your own rank, I presume?” said I, a little surprised at the sort of assumption by which he called a sergeant an officer, without the usual prefix of “non-commissioned.”

“In that case I need not have troubled you,” he replied; “I could have found a dozen seconds. But my antagonist is a commissioned officer, a lieutenant of the same regiment with myself, although in a different squadron.”

“The devil he is!” I exclaimed. “That becomes cause for court-martial.”

“Undoubtedly,” replied Oakley, “for me, but no harm can accrue to you. I am your countryman; I come to you in plain clothes and ask you to be my second in a duel. You consent; we go on the ground and meet another man, apparently a civilian, of whose military quality or grade you, are in no way

supposed cognisant. Duels occur daily in France, as you know, and no notice is taken of them, even when fatal. I assure you there is no danger for you.”

“I was not thinking of myself. But if you escape unhurt from the encounter, you will be shot for attempting the life of your superior.”

Oakley shrugged his shoulders, as if to say, “I know that, but must take my chance;” but made no other reply to my remark.

“I will tell you the circumstances,” he said, “and you shall judge for yourself if I can avoid the duel. When talking to you of my kind old colonel, I did not tell you of his only daughter, Bertha de Bellechasse, the most beautiful and fascinating of her sex. On our return from Africa, the colonel, in his gratitude for the man who had saved his life, presented me to his wife and child, pronouncing at the same time an exaggerated encomium on my conduct. The ladies gave me their hands to kiss, and had I shed half my blood in saying that of the colonel, I should have been more than repaid by Bertha’s gracious smile, and warm expression of thanks to her father’s preserver. Madame de Bellechasse, I suspect, was about to give me her purse, but was checked by a sign from her husband, who doubtless told them, after my departure, as much as he knew of my history,—that I was a foreigner and a gentleman, whom circumstances had driven to don the coarse vest of the private dragoon. He may perhaps have added some of the romantic stories current in the regiment when I first joined. I had never been communicative, concerning my past life, which I felt was nothing to boast of; and regimental gossips had drawn upon their invention for various strange tales about the Milord Anglais. When I became domesticated in the corps, and my country was almost forgotten, these fictitious histories ceased to be repeated and fell into oblivion; but some of them were revived for the benefit of the colonel, when, after the action near Oran, he instituted inquiries concerning me amongst his officers. It was not till some weeks later, that he asked and received from me a plain, unvarnished account of my very common-place career. It is possible that the sort of mystery previously attaching to me, combined with her father’s glowing eulogiums and her own gratitude for his preservation, worked upon Bertha’s ardent and susceptible imagination, prepossessing her in my favour. For my part, I had been struck to the heart by the very first glance from the dark eyes that sparkled like diamonds beneath their lashes of sable silk; I had been

captivated and fettered on the instant, by the smile of enchanting sweetness that played round her graceful lips. For a while I struggled steadfastly against the impulse to adore her; its indulgence I felt would be madness, and could result but in misery. What folly for the penniless soldier, even though time and her father's protection should convert him into an equally penniless officer, to raise his eyes to the rich, the beautiful, the brilliant daughter of the Count de Bellechasse! Rejection, ridicule, contempt could be the sole recompense of such presumption. M. de Bellechasse, although an officer of Napoleon's, is of old French nobility; his wealth is very great; and if he still continues to serve, it is solely from enthusiastic love of his profession. His daughter is a match for the first in the land. All these and many more such arguments did I again and again repeat to myself; but when had reason a chance against love? Repeatedly did I vow to forget the fair vision that had crossed my path and troubled my repose, or to think of her only as the phantom of a dream, unsubstantial and unattainable. But the resolution was scarcely formed, when I found myself dwelling in rapture on her perfections, recapitulating the few gentle words she had addressed to me, recalling her voice, her look, her gesture—everything about her, even to the most minute details. One moment, in view of the precipice on whose brink I stood, I swore to shun her perilous presence, and to avert my eyes should I again find myself in it: not an hour afterwards I eagerly seized a pretext that led me to her father's house, and afforded me the possibility of another glimpse of my idol. Such glimpses were not difficult to obtain. The colonel's partiality to me daily increased, and when I went to him on regimental matters, and he was alone with his wife and daughter, he would receive me in the drawing room in their presence, and waiving, for the time, the difference of grade, would converse with me as affably as with an equal, and make me repeat, for the amusement of the ladies, some of our African skirmishes and adventures. Doubtless I should have avoided these dangerous interviews, but how was it to be done without an appearance of ingratitude and discourtesy? Truth to tell, I taxed my invention but little for means of escaping them. I continued to see Bertha, and at each interview my passion gathered strength. She listened with marked attention to my anecdotes of our campaigns. These I always addressed to her father or mother; but without looking at her, I could feel her eyes fixed upon me with an expression of interest, and, I at last ventured to think, of a more tender feeling. About this time the colonel frequently kept me for hours together at

his house, arranging regimental papers and accounts, in a room upon the ground floor, set apart for the purpose. Within this room is another, used as a library, and thus it happened that one day, when immersed in states and muster rolls, I beheld the door open, and the fairy form of Bertha upon the threshold. She appeared confused at seeing me; I rose and bowed in silence as she passed through the apartment, but I was taken too much by surprise to have full command over myself, and doubtless my eyes said something of what my lips would gladly have spoken, for before Bertha reached the outer door, her cheeks were suffused with blushes. Again and again these meetings, sweet as transient, occurred. But I will not lose time or weary you by dwelling upon such passages. Neither could I well explain, did I attempt it, how it was that I one day found myself kneeling at Bertha's feet, pouring forth my soul in words of passionate love, and reading with ecstasy upon her sweet countenance a blushing avowal of its return.

"The die thus cast, we abandoned ourselves to the charm of our attachment, sadly embittered by its hopelessness. Since then, I have had almost daily occupation at the colonel's house, and Bertha has found means to afford me brief but frequent interviews. At these we discussed, but ever in vain, the possibility of breaking our secret to M. de Bellechasse. Frank and affable though he is, the colonel's pride of birth is great, and we were well assured that the disclosure of our correspondence would produce a terrific explosion of fury, consign Bertha to the seclusion of a convent, and draw upon me his hatred and revenge. This morning Bertha came into the room, upon the usual pretext of seeking a book from the library, and the painful and perplexing topic that has long and unceasingly occupied our thoughts, was again resumed. For the first time, she had heard her father state his intention of recommending me in the strongest terms for a commission. This let in a ray of hope upon our despondency; and we resolved that, so soon as the epaulet was on my shoulder, I should hazard a confession to the colonel. The prospect of a termination to our cruel state of suspense, and the possibility, faint though it indeed was, of a result favourable to our wishes, brought a joyful gleam over Bertha's lovely features, which have lately grown pale with anxiety. On my part, I did my utmost to inspire her with hopes I myself scarce dared to entertain, when, as she stood beside me, her hand clasped in mine, a smile of affection upon her countenance, the door suddenly opened, and, before we had time to separate, Victor de Berg, a lieutenant in my regiment, and a suitor of Bertha's, made a step into the

room. For an instant he stood like one thunderstruck, and then, without uttering a word, abruptly turned upon his heel and went out. The next minute the sound of his step in the court warned us that he had left the house.

“Overwhelmed with terror and confusion to an extent that precluded reflection, Bertha fled to her apartment, leaving me to deliberate on the best course to adopt. My mind was presently made up. The only plan was to seek Monsieur de Berg, inform him of our mutual attachment, and appeal to his honour and generosity to preserve inviolate the secret he had surprised. I hurried to his quarters, which were at no great distance. He had already arrived there, and was pacing his apartment in manifest agitation. Since our return from Africa, he had been a declared admirer of Bertha’s; by family and fortune he was an eligible suitor, and her father favoured his pretensions, contingent, however, upon his daughter’s consent. Dismissing the servant who ushered me in, he addressed me before I had time to enter upon the object of my visit.

“‘It is unnecessary,’ he said, in a voice choked with passionate emotion, as I was about to speak. ‘I can guess all you would say. A single instant informed me of the state of affairs; the half hour that has elapsed since then, has sufficed to mark out my line of conduct. Mr Oakley, I know that by birth and breeding you are above your station. You have forgotten your present position; I will follow your example so far as to waive our difference of military rank. As the friend of Colonel de Bellechasse, I ought, perhaps, instantly to tell him what I have this day learned; as his daughter’s suitor, and the son-in-law of his choice, I select another course. Your secret is safe with me. To-night you shall receive a leave of absence, entitling you to quit your uniform; and to-morrow we will meet in the wood of Vincennes, not as officer and sergeant, but as private gentlemen, with arms in our hands. The man whom Bertha de Bellechasse distinguishes by her preference, cannot be unworthy the proposal I now make to you. Do you accept it?’

“I was astounded by the words. Accustomed to the iron rigidity of military discipline, and to the broad gulf placed between officer and soldier by the king’s commission, the possibility of a duel between M. de Berg and myself, although it would have been no unnatural occurrence between rivals of equal rank, had never occurred to me. For a moment I could not

comprehend the singular and unheard-of proposal; but a glance at my challenger's countenance, on which the passions agitating him were plainly legible, solved the mystery of his motives. He was a prey to jealous fury; and, moreover, the chivalrous generosity of his character, combined, perhaps, with the fear of irretrievably offending Bertha, prevented his pursuing the course most persons, in his place, would have adopted, and revealing to Colonel de Bellechasse his daughter's predilection for an inferior. By a duel he hoped to rid himself of a favoured rival, whom he might replace in Bertha's heart. It was not necessary she should know by whose hand I had fallen. Such were the reasons that flashed across me, explaining his strange offer of a personal encounter. Doubtless, I defined them more clearly than he himself did. I believe he spoke and acted upon the first vague impulse of a passionate nature, racked by jealousy, and thirsting for revenge upon its cause. I saw at once, however, that by accepting the duel I virtually secured his silence; and overjoyed to preserve my secret, and shield Bertha from her father's wrath at so cheap a price as the exposure of my life, I eagerly accepted M. de Berg's proposal, thanking him warmly for his generosity in thus repudiating the stern prejudices of military rank.

"After fixing hour and weapons, I left him, and then only did the difficulty of finding a second occur to me. For obvious reasons, I could not ask the assistance of a comrade; and out of my regiment I had not a single friend in Paris. In my difficulty I thought of you. Our brief acquaintance scarcely warrants my request; but the kindness you have already shown me encourages the hope that you will not refuse me this service. M. de Berg is a man of strict honour, and you may depend on your name and share in the affair remaining undivulged. Even were they known, you, as a foreigner and civilian, would in no way be compromised by the relative position of my opponent and myself, which renders me liable, should the affair get wind, to a court-martial and severe punishment."

Although opposed to duelling, except under circumstances of extraordinary aggravation, I had been more than once unavoidably mixed up in affairs of the kind; and the apprehension of unpleasant results from accession to Oakley's request, did not for an instant weigh with me. I was greatly struck by the romantic and chivalrous conduct of M. de Berg, and felt strong sympathy with Oakley, in the painful and most peculiar position into which

his early follies and unfortunate attachment had brought him. Very brief deliberation was necessary to decide me to act as his second. There was no time to lose, and I begged him to put me at once in possession of the details of the affair, and to tell me where I could find De Berg's second. I was not sorry to learn that it was unnecessary for me to see him, and that all preliminaries were in fact arranged. The duel not being one of those that the intervention of friends may prevent, and Oakley having already fixed time and place with his antagonist, my functions became limited to attending him on the ground. It grew late, and Oakley left me for the night. In order to preserve my incognito in the business, for I had no desire to figure in newspaper paragraphs, or to be arraigned before a criminal tribunal, even with certainty of acquittal, we agreed to meet at eight o'clock the next morning, at a certain coffee-house, a considerable distance from my lodgings, whence a cabriolet would convey us to the place of rendezvous.

It was a fresh and beautiful spring morning, when Oakley and myself descended from our hack vehicle, near the little village of St Mandé, and struck into the Bois de Vincennes. There had been rain during the night, and the leaves and grass were heavy with water drops. The sky was bright blue, and the sun shone brilliantly; but over the ground and between the tree trunks floated a light mist, like the smoke of a skirmish, growing thinner as it ascended, and dissipated before it reached the topmost branches. At some distance within the wood, we turned into a secluded glade, seated ourselves upon a fallen tree, and waited. We had come faster than we expected, and were fully a quarter of an hour before our time; but in less than five minutes we heard the sound of steps and voices, soon succeeded by the appearance of three gentlemen, one of whom, by his military gait and aspect, more than by the moustaches so commonly worn in France, I conjectured to be the officer of Chasseurs. In one of his companions I recognised, after a brief puzzle of memory, a well-known and popular *littérateur*; doubtless M. de Berg, from motives of delicacy, had not chosen to ask the aid of a brother officer in his duel with a military inferior. The black coat and grave aspect of the third stranger sufficiently indicated the doctor, who, on reaching the ground separated himself from his companions and retired a little to one side. The others bowed to Oakley and myself. M. de Berg's second stepped forward, and I advanced to meet him. I was particularly pleased with the appearance of Oakley's antagonist. He was a young man of six or seven and twenty, of very dark complexion, flashing black eyes, and a countenance

expressive of daring resolution and a fiery temperament. I should have taken him for an Italian, and I afterwards learned that he was a native of Provence, born within a stone's-throw of Italy. I never saw an ardent and enthusiastic character more strongly indicated by physiognomy, than in the case of this young officer; and I began to understand and explain to myself the feelings that had impelled him to challenge the man preferred by the mistress of his choice, even although that man's position was such as, in the eyes of society, forbade the encounter.

More as a matter of duty than with expectation of success, I asked De Berg's second if there were no chance of this meeting terminating peaceably. He shook his head with a decided gesture.

"Impossible," he said. "I am ignorant of the cause of quarrel: I know not even your principal's name. My friend, who may possibly be equally unknown to you, has asked my assistance, pledging himself that the duel is a just and honourable one, which cannot be avoided, but whose motive he has reasons to conceal even from me. Satisfied with this assurance, reposing implicit confidence in his word, I inquire no further. Moreover, once upon the ground, it is difficult creditably to arrange an affair of this kind."

I bowed without replying. The ground was measured, the pistols loaded, the men placed. The toss-up of a five-franc piece gave the first-fire to M. de Berg. His bullet grazed Oakley's cheek, but so slightly as scarcely to draw blood. Oakley fired in return. The officer staggered, turned half round, and fell to the ground, the bone of his right leg broken below the knee. His second, the doctor, and I, ran forward to his assistance. As we did so, three soldiers, who it afterwards appeared had witnessed, from their concealment amongst the trees, the whole of the proceedings, emerged from the shelter of the foliage, and walked across one end of the open space where the duel had taken place, casting curious and astonished glances in our direction. They had not yet disappeared, when De Berg, whom we had raised into a sitting posture, caught sight of them. He started, and uttered an exclamation of vexation, then looked at Oakley, who had left his ground and stood near to the wounded man.

"Do you see that?" said De Berg, hurriedly, wincing as he spoke, under the hands of the surgeon, who by this time had cut off his boot and trousers, and was manipulating the damaged limb.

The soldiers were now again lost to view in the thick wood. It occurred to me that two of them wore dragoon uniforms.

Oakley bowed his head assentingly.

“You had better be off, and instantly,” said the lieutenant. “Go to England or Germany. You have leave for a week. I will procure you a prolongation; but be off at once, and get away from Paris. Those fellows have recognised us, and will not be prevented talking.”

He spoke in broken sentences, and with visible effort, for the surgeon was all the while poking and probing at the leg in a most uncomfortable manner, and De Berg was pale from pain and loss of blood. Oakley looked on with an expression of regret, and showed no disposition to the hasty flight recommended him.

“Well, doctor,” said the officer, with a painful smile, “my dancing is spoilt, eh?”

“*Bagatelle!*” replied the man of lancets. “Clean fracture, neat wound, well as ever in a month. Your blood’s too hot, *mon lieutenant*, you’ll be all the better for losing a little of it.”

“There, there,” said De Berg kindly to Oakley, “no harm done, you see—to me at least. I should be sorry that any ensued to you. Away with you at once. Take him away, sir,” he added to me, “he risks his life by this delay.”

I took Oakley’s arm, and led him unresistingly away. He was deep in thought, and scarcely replied to one or two observations I addressed to him whilst walking out of the wood. Our cabriolet was waiting; we got in, and took the road to Paris. “I hope you intend following M. de Berg’s advice,” said I, “and leaving the country for a while, until you are certain this affair does not become known. He evidently fears its getting wind through those soldiers.”

“And he is right,” said Oakley. “Two of them are of my squadron, and of those two, one is a bad character whom I have frequently had to punish. He will assuredly not lose this opportunity of revenge.”

“Then you must be off at once to England. My passport is already countersigned, and you can have it. There is not much similarity in our age and appearance, but that will never be noticed.”

“A thousand thanks. But I think I shall remain in Paris.”

“And be brought to a court-martial? To what punishment are you liable?”

“Death, according to the letter of the law. The French articles of war are none of the mildest. But, under the circumstances, I daresay I should get off with a few years’ imprisonment, followed, perhaps, by serving in a condemned regiment.”

“A pleasant alternative, indeed,” said I.

“I am no way anxious to incur it,” replied Oakley; “but, in fact I am as safe in Paris as any where, at least for a day or two; and possibly M. de Berg may find means of securing the silence of the witnesses. At any rate, it will be time enough to-morrow or the next day to make a run of it. I cannot go upon the instant. There is one person I must see or communicate with before I leave.”

I guessed whom he meant, and saw, from his manner, he was resolved to remain, so used no farther arguments to dissuade him. Before entering Paris, we dismissed our vehicle and separated; he betook himself to a small retired lodging, where he had taken up his quarters since the previous evening, and I went home to resume my preparations for departure. I remained in-doors till after dinner, and then repaired to a well-known coffee-house, frequented chiefly by military men. As I had feared, the strange duel between Victor de Berg and a sergeant of his regiment was already the talk of the town. It had been immediately reported by the soldiers who had seen it; M. de Berg was under close arrest, and the police were diligently seeking his antagonist. I left the café, jumped into a cabriolet, and made all speed to Oakley’s lodging. He was out. I went again, as late as eleven o’clock, but still he was absent; and I was obliged to content myself with leaving a note, containing a word of caution and advice, which I prudently abstained from signing. I then went home and to bed, not a little uneasy about him. The next morning I breakfasted at the coffee-house, in order to get the news; and the first thing I heard was intelligence of Oakley’s capture. He had been taken the previous evening, in the neighbourhood of the colonel’s house, around which he doubtless hovered in hopes to obtain sight or speech of Bertha.

Few courts-martial ever excited a stronger interest in the French military world than those held upon Lieutenant Victor de Berg and the *maréchal de logis* Francis Oakley. The case was one almost unparalleled in the annals of military offences. A duel between an officer and a sergeant was a thing previously unheard-of; and the mystery in which its causes were enveloped, aggravated the universal curiosity and excitement. The offenders resolutely refused to throw light upon the subject; it had been vainly endeavoured to ascertain their seconds; the surgeon who attended on the ground had been sought for equally in vain; after placing the first dressings he had disappeared, and another had been summoned to the sufferer's bedside. The wound proved of little importance, and, with the assistance of crutches, De Berg was soon able to get out. Upon their trials, he and Oakley persisted in the same system of defence. When off duty, they said, they had met, in society, and had had a dispute on a subject unconnected with the service; the result had been an agreement to settle their difference with pistols. Oakley refused to state from whom the challenge proceeded; but Lieutenant de Berg proclaimed himself the aggressor, and, aware that the sentence would weigh far more heavily on Oakley than on himself, generously assumed a large share of blame. As to the cause of quarrel, names of the seconds, and all other particulars, both culprits maintained a determined silence, which no endeavours of friends or judges could induce them to break. Colonel de Bellechasse and various other officers visited Oakley in his prison, and did their utmost to penetrate the mystery. Their high opinion both of him and De Berg, convinced them there was something very extraordinary and unusual at the bottom of the business, and that its disclosure would tell favourably for the prisoners. But nothing could be got out of the obstinate duellists, who called no witnesses, except to character. Of these, a host attended, for both Oakley and De Berg; and nothing could be stronger than the laudatory testimonials given them by their superiors and comrades. These, doubtless, had weighed with the court, for its sentence was considered very lenient. Oakley was condemned to five years' imprisonment, for attempting the life of his officer; De Berg was reprimanded for his forgetfulness of discipline, in provoking or consenting to a personal encounter with a subordinate, was removed from his regiment, and placed in non-activity, which, under the circumstances, was equivalent to dismissal from the service, less the disgrace.

I remained in Paris till the sentence of the court was known. Although by no means desirous to be brought forward in the business, I was willing to waive my repugnance if, by so doing I could benefit Oakley. With some difficulty I obtained access to him, begged him to prescribe a course for my adoption, and frankly to tell me if my evidence could be of service. He assured me it could not; there, was no question of the fairness of the duel, and the sole crime was in the breach of military discipline. This crime, my testimony could in no way palliate. He requested me to see M. de Berg, and to tell him that, to avoid the possibility of the cause of the duel becoming known, he should refuse to answer questions, plead guilty to the charge, and state, as sole extenuation, that the quarrel occurred off duty, and had no connexion with military matters. This commission I duly executed. Another which he intrusted to me I found greater difficulty in performing. It was to procure information concerning Bertha de Bellechasse. After some unsuccessful attempts, I at last ascertained that she had been for some days confined to her bed by indisposition. This was sad news for Oakley, and I was loath to convey them to him, but I had promised him the exact truth. Fortunately I was able, to tell him at the same time that the young lady's illness was not of a dangerous character, although the species of nervous languor which had suddenly and unaccountably seized her, caused great alarm to her parents, and especially to the colonel, who idolised his only child. Oakley was sadly depressed on learning the effect upon Bertha of his imprisonment and dangerous position, and made me promise to keep him informed of the variations in her state of health. This I did; but the bulletins were not of a very satisfactory nature, and in Oakley's pale and haggard countenance upon the day of trial, attributed by the spectators to uneasiness about his own fate, I read the painful and wearing anxiety the illness of his mistress occasioned him.

The sentence was no sooner published, than every effort was made to procure Oakley's pardon, or, failing that, a commutation of his punishment. Colonel de Bellechasse used all the interest he could command; Monsieur de Berg set his friends to work; and I, on my part, did every thing in my power to obtain mercy for the unfortunate young man. All our endeavours were fruitless. The minister of war refused to listen to the applications by which he was besieged. In a military view, the crime was flagrant, subversive of discipline, and especially dangerous as a precedent in an army where promotion from the ranks continually placed between men, originally

from the same class of society and long comrades and equals, the purely conventional barrier of the epaulet. The court-martial, taking into consideration the peculiar character of the offence, had avoided the infliction of an ignominious punishment. Oakley was not sentenced to the *boulet*, or to be herded with common malefactors; his doom was to simple imprisonment. And that doom the authorities refused to mitigate.

Some days had elapsed since Oakley's condemnation. Returning weary and dispirited from a final attempt to interest an influential personage in his behalf, I was startled by a smart tap upon the shoulder, and looking round, beheld the shrewd, good-humoured countenance of Mr Anthony Scrivington, a worthy man and excellent lawyer, who had long had entire charge of my temporal affairs. Upon this occasion, however, I felt small gratification at sight of him, for I had a lawsuit pending, on account of which I well knew I ought to have been in England a month previously, and should have been, but for this affair of Oakley's, which had interested and occupied me to the exclusion of my personal concerns. My solicitor's unexpected appearance made me apprehend serious detriment from my neglect. He read my alarm upon my countenance.

"Ah!" said he, "conscience pricks you, I see. You know I have been expecting you these six weeks. No harm done, however; we shall win the day, not a doubt of it."

"Then you are not come about my business?"

"Not the least, although I shall take you back with me, now I have found you. A very different affair brings me over. By the bye, you may perhaps help me. You know all Paris. I am come to look for an Englishman."

"You need not look long," said I, glancing at a party of unmistakeable Britons, who stood talking broad Cockney on the Boulevard.

"Aye, but not *any* Englishman. I want one in particular, the heir to a pretty estate of eight or ten thousand a-year. He was last heard of in Paris, three years ago, and since then all trace of him is lost. 'Tis an odd affair enough. No one could have expected his coming to the estate. A couple of years since, there were two young healthy men in his way. Both have died off,—and he is the owner of Oakley Manor."

“Of what?” I exclaimed, in a tone of voice that made Scrivington stagger back, and for a moment drew the eyes of the whole street upon us. “What did you say?”

“Oakley Manor,” stammered the alarmed attorney, settling his well-brushed hat, which had almost fallen from his head with the start he had given. “Old Valentine Oakley died the other day, and his nephew Francis comes into the estate. But what on earth is the matter with you?”

For sole reply I grasped his arm, and dragged him into my house, close to which we had arrived. There, five minutes cleared up every thing, and convinced Scrivington and myself that the man he sought now languished, a condemned criminal, in a French military prison.

It is unnecessary to dwell upon what all will conjecture; superfluous to detail the active steps that were at once taken in Oakley’s behalf, with very different success, now that the unknown sergeant had suddenly assumed the character of an English gentleman of honourable name and ample fortune. Persons of great influence and diplomatic weight, who before had refused to espouse the cause of an obscure adventurer in a foreign service, suffered themselves to be prevailed upon, and interceded efficaciously for the master of Oakley Manor. It was even said that a letter was written on the subject by an English general of high distinction to an old opponent in arms. Be that as it may, all difficulties were at length overcome, and Oakley received his free pardon and discharge from the French service. And that equal measure of clemency might be shown, De Berg, upon the same day, was allowed to resume his place in his regiment.

I would tell how the news of her lover’s pardon proved more potent than all the efforts of the faculty to bring back joy to Bertha’s heart and the roses to her cheek; how Colonel Count de Bellechasse, on being informed of the attachment between his daughter and Oakley, and of the real cause of the duel, at first stormed and was furious, but gradually allowed himself to be mollified, and finally gave his consent to their union; how De Berg exchanged into a regiment serving in Africa, and has since gained laurels and high rank in the pursuit of the intangible Abd-el-Kader. But I have no time to expatiate upon any of these interesting matters, for I leave town to-morrow morning for Oakley Manor, to pay my annual visit to MY ENGLISH ACQUAINTANCE.

OUR WEST INDIAN COLONIES.

It is full time that the nation should be roused to an acute sense of the perilous position in which it has been placed, by a hitherto unparalleled union of quackery, conceit, and imbecility. The system of legislation which we have been pursuing for many years, under the guidance of rival statesmen, each attempting to outdo the other in subserviency to popular prejudice, is a manifest and admitted departure, on almost every point, from the principles of that older system through which we attained the culminating point of our greatness. We do not complain of such changes as are inevitable from altered circumstances, and in some degree from the altered spirit of the times—but we protest against social changes, forced on, as if in mere wantonness, against warning and against experience, either for the sake of exhibiting the dexterity of the operator, or for the poorer and meaner object of attaining the temporary possession of power. We look in vain, both in the past and present Cabinet, for that firm purpose, prescience, and honesty which were considered, in old times, the leading characteristics of the British statesman. We can see, in the drama of late events, nothing but the miserable spectacle of party degenerating into coterie, and coterie prostituting itself to agitation and corrupt influence, for the sake of the retention of office. It may be that such is the inevitable result of the triumph of the so-called liberal principles; and, indeed, the example of America would go far to prove that such principles cannot coexist along with a high state of political morality and honour; but that, at all events, is no excuse for the conduct of the men who, reared under better training, have led us insensibly to the path down which we are now proceeding with such recklessness and with such precipitation.

The commercial crisis of the last year may well furnish the electors of these kingdoms with some topics for their anxious and solemn consideration. That momentous and uncalled-for change in the currency, effected by the Acts of 1844, is already brought under the active notice of the legislature;

and though the process may be tedious—for the whole subject-matter, it seems, is to pass through the weary alembic of a committee—we are not without hopes that the common sense of the nation will be vindicated in this important particular. Recent events, too, have somewhat shaken the faith of many in the efficacy of that celebrated panacea called Free-trade, without the promise of a foreign reciprocity. A few more quarterly accounts, with their inevitable deficits, and an augmentation of the income-tax, will serve still further to demonstrate the true nature of the blessings which we are destined to enjoy under the system hatched by Cobden, and adopted by Russell and by Peel. Even now the credit of the great free-trade apostle, formerly so extensive, is somewhat impaired by the novel views he has promulgated for contracting the expenditure of the State. The true means, as we are now told, for insuring the success of the experiment of Free-trade, are the disbandment of our standing army, and the abolition of our war navy; and pitiful stuff to this effect has actually been enunciated by the man to whom Sir Robert Peel avowed himself indebted for the most important lesson in political economy which he had learned throughout the course of a long—would we could add a consistent—career of statesmanship! Well, indeed, might some of the old friends and supporters of Mr Cobden recoil in astonishment from this display of weak and miserable fatuity! Well might they stand aghast, and even doubt the evidence of their senses, at hearing such doleful folly from the lips of their quondam oracle! If this is all the wisdom which the Manchester manufacturer has gathered in the course of his recent travels—if these are the deductions he has made, the fruits he has collected from Barcelona banquets and Leghorn demonstrations, we give him joy of his augmented knowledge of the world, his increased political sagacity, and his extended experience of the motives and actions of mankind!

Mr Cobden, we shrewdly suspect, has served his turn, and must now submit quietly and gradually to lapse into the obscurity out of which he was borne by the force of circumstances. He can afford to do it; and the nation, we believe, will not think the less of him for retiring under the cover of his former victory. On his part the contest was strenuously, and we believe honestly, conducted. The principles he advocated became triumphant, not through the will of the nation, or the conviction of the majority of its representatives, but through a singular combination of craft, weakness, and ambition. How those principles, when reduced to practice, and in full

operation, may work, is the problem which all of us are trying in our different spheres to solve. Hitherto the results of the experiment have been a palpable national loss, with extensive individual suffering, and a diminution of employment to the labouring classes; and though other causes may for the present be adduced as tending to these calamitous circumstances, time, the great expositor of human affairs, must soon decide in favour of the one party or of the other.

We have thought it our duty of late to speak out so strongly and so fully on the subject of the internal commercial state of Great Britain, that we need not, on the present occasion, resume the argument, although that is far from exhausted. Indeed, our intention in the present article is to entreat the attention of the people of this country, and of Parliament, to a case which will brook no delay,—which is of imminent and paramount interest to us all; and which, if not now considered as justice and humanity demand,—if not speedily adjusted, without the interposition of those formalities and delays which are the last refuge of a tottering ministry,—must not only entail the ruin of our oldest, our fairest, and our most productive colonies, but sacrifice British capital already invested, on the faith of public honesty, to an enormous extent, and finally leave a blot upon our national honour. It is after the most careful review of the whole circumstances and evidences of the case,—after the perusal of almost every document of authority which could throw light upon the subject,—after personal communication with parties whose means of knowledge are unequalled, and whose high character places them beyond the suspicion of any thing like self-interest or dissimulation,—that we deliberately state our opinion, *that not only are our West Indian and sugar growing American colonies at this moment in imminent danger of being abandoned; but, through the course of reckless legislation pursued by her Majesty's present Ministers, THE SLAVE TRADE, in all its horrors, has received direct and prodigious encouragement.*

We do hope and trust, that, notwithstanding all the political slang and misrepresentation with which, of late years, hired and uneducated adventurers have inundated the country, it is not necessary to point out to the thoughtful and well-disposed portion of our countrymen the extreme importance of maintaining the relations which have hitherto subsisted between Great Britain and her colonies. These relations have been notoriously the envy of every maritime state of Europe; they have proved

invaluable to us in times of difficulty and danger; and in peace they have contributed greatly to our wealth, our commerce, and our aggrandisement. In the words of a colonial writer, whose pamphlet is now lying before us,—

“Great Britain had for ages acted on the grand principle of creating a world for herself out of the countries of each hemisphere, to which her ships might carry the treasures of her factories and mines, and from which, in return, they might bring the products of each clime, not as from a foreign state, but an integral part of the empire. Her colonies fostered her marine establishment, which again united the most distant of her territories with the parent country in one mighty whole; (free trade substitutes foreign nations for colonies, with what result the world will see;) affording all the advantages which could be derived from trading with other nations in different parts of the world, without any of the draw-backs necessarily attending commercial intercourse, liable to interruption from war, or the capricious policy of people having different manners and customs from our own. She regulated this trade as she thought proper, her colonies going hand-in-hand with her, and, excepting in one unhappy instance, that of the Americans, where she unjustly attempted to take their money to pay her expenses, concord and prosperity marked the career of the nation and its dependencies. In an evil hour her manufacturers, elated with their good fortune, began to dream of making cloth for the whole globe. Political economists, instigated by them, advanced the specious and deceitful doctrines of free trade. The very phrase has a catching sound to men who are not disposed to study the interests of one country as opposed to those of another, and the belief in the infallibility of tenets so strenuously recommended gaining ground, until it became too strong for the government of the country, the humiliating spectacle was presented to the nation of a minister, who during a long public career, had been the most zealous opponent of the new doctrines, proposing to carry them into effect.”^[8]

We now arrived at the point,—or rather we had reached it in 1846,—when free trade interests, and those of colonial establishments, came into direct and unquestionable collision. The Whig party, taking their stand upon the maxim of “buying in the cheapest and selling in the dearest market,”

thought fit to extend to the article of sugar the same immunity which Sir Robert Peel had previously bestowed upon corn. The Sugar Act, which received the royal assent upon the 18th August 1846, was, at all events, a bold and a decided measure. It utterly repudiated the principle laid down in former Sugar Acts, the last of which, contained in the Statute Book, (24th April 1845,) broadly recognised the distinction between sugars which were the produce of free and of slave labour. This distinction is now utterly and entirely done away with. There is, indeed, attached to the act, a schedule which, until the year 1851, provides for a reduced sliding scale of differential duties in favour of the British colonist. Thus, in the article of sugar, muscovado or clayed, there is a difference of duty, for the present year, in favour of the colonies, of six shillings per cwt., which is to decrease at the rate of one shilling and sixpence per annum, until the equalisation is effected. This difference, however, is, as we shall undertake to show, at the present moment merely nominal; and, even were it otherwise, utterly insufficient and unjust. But, at present, let us attend to the principle of the later act, which, as we apprehend, embodies two positions.

1st, That the sugar-growing colonies of Great Britain stand in need of no protection whatever; and, 2dly, That it is wrong to put any prohibitory duty in the way of the free use and consumption of slave-grown sugar in this country.

The first position is, of course, a matter of statistics, which we shall argue exclusively upon that ground. There are, indeed, certain topics connected with it, bearing less or more upon questions of public faith and general expediency, which we cannot entirely throw aside; but we shall attempt, if possible, to avoid all declamation, and to give a plain and distinct statement of the facts, as they have reached us through various channels. The second position involves questions of a more serious nature. We have, hitherto, believed that if any Briton were deliberately asked the question, what principle or what act of universal philanthropy and benevolence he was most proud of as displaying the Christian character of his country, he would, without hesitation, refer to the struggles and sacrifices which have been made for the abolition of slavery throughout the world, and more especially to the stringent and costly measures adopted by Great Britain for putting down the infamous and most inhuman traffic in human flesh and blood. We say that, hitherto, such has been our belief, and most devoutly do

we wish that we had no cause whatever to alter it. But we cannot look at the complexion of the late measures, and at their notorious results, without being convinced that the race for power, and the thirst after mammon, which are daily becoming more and more undisguised in the political movements and revolutionary legislation of this country, are weaning us from our finer and our humaner instincts, destroying our once generous sympathies, and rendering us wilfully blind to our duties to God and man, whenever a temporary interest appears thrown into the opposite scale. Of these two positions let us now address ourselves to the first, not because it is in any degree the more important, but because, very unfairly, it has been made the excuse and the palliation for the other. The two positions, indeed, are so interwoven, as to be in some respects entirely inseparable.

It is hardly necessary here to do more than remind our readers of the great and generous effort made by this country for the abolition of slavery in our colonies. For that purpose the nation agreed, without a murmur, to pay the large sum of twenty millions sterling—a sacrifice to principle and philanthropy which every one must allow to be unparalleled in the annals of the world. At the same time we must not allow our praise or admiration of this act to hurry us into extravagance or exaggeration. The sum of twenty millions so granted was not a boon, but merely compensation to a class of British subjects for the compulsory surrender of a property which the law entitled them to hold. The institution of slavery in the colonies, be it specially remembered, was not the work of the planters, but of the British nation and crown. The lands of Jamaica and other West Indian colonies were originally patented on the special condition that they should be cultivated by slaves, for the promotion of the national wealth; and the policy so originated was continued under the sanction of laws equally sacred with those which relate to any other species of property whatever. Nay, more, it was from Jamaica, and not from the mother country, that the first proposals for a partial suppression or cessation of the slave-trade proceeded. The importations from Africa had become so great, that the people of that colony requested that for some time the trade might be stopped; and their petitions were rejected, on the ground that any such measure would be injurious to the mercantile interests of England. But at last, to use the words of the writer whom we have already quoted—

“The country became aware of the cruelty and injustice of that infamous traffic, and abolished it. Years afterwards, she awoke as from a dream, and began to abuse the planters for possessing slaves; declared they had no right to hold them in bondage (although she sold those slaves to them;) had them valued by commissioners whom she appointed; paid eight shillings in the pound of this valuation, and set them free, without any consideration whatever for the landed property, buildings, and machinery, amounting to much more than the aggregate price of the slaves, which were to be rendered useless and valueless from want of labourers. The appraisement by those commissioners, as directed by the Act, was based on the average sales in each colony for eight years preceding the passing of the bill, which was in 1833. The value of the slave property was thus distinctly ascertained. The land, buildings, and machinery were not taken into consideration, because neither the Parliament nor the people admitted that they were to be placed in jeopardy by the emancipation of the slaves. On the contrary, an opinion prevailed that, with a free population, the planters would be more prosperous than they had ever been.”

Of the inadequacy of this compensation, however large it may appear upon paper, there cannot be a doubt. Enormous sums had been expended in the cultivation of the estates, in the building of works, and the transportation of machinery, all of which were jeopardied, and, as the sequel has proved, most frightfully deteriorated in consequence of the measure. But the public demand that slavery should cease for ever throughout the British dominions was peremptory; and, in pursuance of this laudable desire, the government of the day did not hesitate to adopt a course which will ever be a dangerous precedent; to

“Wrest once the law to their authority:
And for a great right do a little wrong.”

“This frightful experiment,” as it was termed by Lord Stanley, then colonial secretary, was therefore decidedly of the nature of a compulsory bargain, forced by the people of Great Britain, no doubt from most praiseworthy motives, upon the holders of lands and slaves in the colonies. The terms of that bargain ought to have been adhered to by Parliament with the strictest good faith and scrupulosity. They had, on the part of the nation, expended a

sum of twenty millions upon an experiment, the success or failure of which involved an amount of property which it would be very difficult to estimate, but certainly not short of two hundred millions sterling. The greater portion of this, be it remarked, was British capital, expended under the sanction and with the full consent of the British Government; and no one can doubt the fact that so large an interest as that was never before put in peril for the sake of any experiment whatever. Still it was made; and we maintain that the voluntary payment of the twenty millions gave the Government or people of this country no shadow of a right to depart from one iota of the bargain which they had forced the colonists to accept. The Act of 1833, which emancipated the slaves, also provided that, for six years more, they should remain in a state of apprenticeship, obviously for the purpose of preventing any violent outbreak, or an entire cessation of that labour which hitherto had been compulsory. The intermediate period, considering the risk which was incurred, was by no means a long one. It was not a boon to the planters, but a distinct condition, from which no consideration whatever should have induced the Government to swerve.

We need not detain our readers with any account of the manner in which emancipation was carried out. It was submitted to by the colonists, not without apprehension, but in the best possible spirit. Every thing was done to facilitate the plans of Government; and on the 1st of August 1834, there was no longer a slave throughout the whole of the British dominions. In closing that eventful session of the Jamaica House of Assembly, the Governor, Lord Mulgrave, used the following terms:—"In conclusion, I must express my firm belief that, in your future difficulties, your ready recognition of the natural rights of your fellow men will meet its best reward in the revived diffusion of national sympathy, and the cheerfully continued extension of British protection." These are honeyed words—let us now see how the promise has been kept.

Immediately after the Emancipation Act was passed, the produce of the West Indian estates began rapidly to decline, and their value to be correspondingly depreciated. This was the inevitable consequence of the abridgment of the working hours, and of the withdrawal of a great number of labourers altogether from plantation employment. In fact, the want of adequate labour began to be felt most painfully throughout the colonies.

Notwithstanding this the planters went on, making every exertion they could, under peculiarly difficult circumstances.

The increased expense, occasioned by the altered circumstances of the colonies, soon absorbed more than the compensation-money which they had received, and in addition, they were urged by Government to provide “more fully for the administration of justice, for the consolidation of the criminal law, for establishing circuit courts, amending the workhouse laws, improving the state of gaols for better prison discipline, establishing weekly courts of petit sessions, providing places of confinement for prisoners, raising an efficient police, &c.,” things, no doubt, very desirable in themselves, but not to be accomplished save at a grievous cost, which, of course, was thrown entirely upon the shoulders of the planters. The following extract from the answer of the Jamaica Assembly, in reply to the Governor’s address at the opening of that chamber on 4th August 1835, will show the state of the colonies at the close of the year immediately subsequent to emancipation: “Seeing large portions of our neglected cane-fields becoming overrun with weeds, and a still larger portion of our pasture lands returning to a state of nature; seeing, in fact, desolation already overspreading the face of the land, it is impossible for us, without abandoning the evidence of our own senses, to entertain favourable anticipations, or to divest ourselves of the painful conviction, that progressive and rapid deterioration of property will continue to keep pace with the apprenticeship, and that its termination must (unless strong preventive measures be applied) complete the ruin of the colony.”

We now come to a matter extremely painful in itself, inasmuch as it involves a gross, flagrant, and dishonourable breach of our plighted faith. The colonies which had already suffered so much, even under the apprentice system, again became the object of fierce attack by the Liberal party in England. Every one knows how easy it is to get up a shout upon any vague pretext of humanity, and how frequently the credulity of the people of England has been imposed on by specious and designing hypocrites. With this set of men, Africa, has been for many years a pet subject of complaint. They have made the wrongs of the negro a short and profitable cut to fame and fortune, and their spurious philanthropy has never failed to engage the support of a large number of weak but well-meaning individuals, who are totally ignorant of the real objects which lie at

the bottom of the agitation. Utterly regardless of the nature of the bargain so recently and solemnly made, throwing aside and trampling upon national honour with unparalleled effrontery, these men began to denounce apprenticeship in the colonies as something worse than slavery, and to demand its instant abolition. The subject of declamation was a popular one, and unfortunately it gathered strength. No one thought of the condition of the colonists, who had been already subjected to so much hardship, and to whom the continuance of apprenticeship for a certain period had been solemnly and advisedly guaranteed. The spirit of our constitution does not recognise the presence of any representation of the colonies within the walls of the Imperial Parliament: and although it is popularly, or rather ludicrously, said that Jamaica is as much a portion of the British dominions as Yorkshire, we have no hesitation in meting out to the one a measure of injustice which no Parliament and no Minister would dare to venture in the case of the other. To our shame therefore be it said, that the agitation, so subversive of good faith and of public morals, was crowned with success. Two years of the apprentice period were curtailed. A robbery to that extent—for it was nothing else—was perpetrated upon the unfortunate colonists, and on the 1st of August 1838, unqualified freedom was granted to the negro population.

The following were the immediate and extremely natural consequences:—“There was no violence; the mass of the labouring population being left in quiet possession of the houses and grounds on the estates of their masters. For successive weeks universal idleness reigned over the whole island. The plantation cattle, deserted by their keepers, ranged at large through the growing crops, and fields of cane, cultivated at great cost, rotted upon the ground for want of hands to cut them. Among the humbler classes of society, respectable families, whose sole dependence had been a few slaves, had to perform for themselves the most menial offices. Still the same baneful influence continued to rule the Government. In all cases of difference, the stipendiary magistrates supported the emancipated mass against the helpless proprietor, and even took an active part in supporting the demands of the people for an extravagant rate of wages, alike injurious to both classes.”

So much for the “sympathy” which was extended to the colonists for their ready acquiescence in the Act of Emancipation! Like most Whig promises,

it had served its purpose, and was thereafter cast aside and forgotten. It might naturally be supposed that this violent curtailment of the period of apprenticeship, would, out of mere shame, have impressed ministers with the propriety of doing something for the relief of the colonies—not by way of actual pecuniary assistance, which was never asked—but by giving every facility in their power to the introduction of free labour from every quarter whence it could be hired or obtained. However, a course diametrically opposite was immediately pursued; and, up to the present time, no facilities whatever for procuring labour have been given to the colonists, and every obstacle has been thrown in the way of the importation of free labourers from the coast of Africa.

Under such a system the decline of the colonies was, as a matter of course, inevitable. The following is the Jamaica statement of the relative amount and value of the exports of that island at various periods:—

“The destructive result to property, by the changes thus precipitately forced on the colony, will be best manifested by a reference to the exports of our three great staples—sugar, rum, and coffee.

	Hhds. Sugar, at £20.	Punch. Rum. at £10.	lbs. Coffee, at 60s. per 100 lbs.	Annual Value. £
Average of the five years ending 1807, last of the African trade	131,962	50,462	23,625,377	3,852,621
Average of the five years ending 1815, date of Registry Act	118,490	48,726	24,394,790	3,588,903
Average of the five years ending 1823, date of Canning's Resolutions	110,924	41,046	18,792,909	3,192,637
Average of the five years ending 1833, first five of slavery	95,353	35,505	17,645,602	2,791,478

Average of the five years ending 1843, first five of freedom	42,453	14,185	7,412,498	1,213,284
--	--------	--------	-----------	-----------

“Up to 1807, the exports of Jamaica, progressively rose as cultivation was extended. From that date they have been gradually sinking; but we more especially entreat attention to the evidence here adduced of the effect of emancipation, which, in ten years, reduced the annual value of the three principal staples from £2,791,478, to £1,213,284, being in the proportion of seven to sixteen, or equal, at five per cent., to an investment of about thirty-two millions of property annihilated. We believe the history of the world would be in vain searched for any parallel case of oppression, perpetrated by a civilised government upon any section of its own subjects.”

In other places the alteration and decline has been even more startling. The following table exhibits the state of exports from British Guiana, at intervals of three years, beginning with 1827, and ending as above with 1843:—

Year.	Sugar. Hhds.	Rum. Puncheons.	Molasses. Casks.	Cotton. Bales.	Coffee. lbs. Dutch.
1827	71,168	22,362	28,226	15,904	8,063,752
1830	69,717	32,939	21,189	5,423	9,502,756
1833	63,415	17,824	44,508	3,699	5,704,482
1836	57,142	24,202	37,088	3,196	4,801,352
1839	38,491	16,070	12,134	1,364	1,583,250
1843	35,738	8,296	24,937	24	1,428,100

And during the whole period of those changes, there was a constantly augmenting consumption in the mother country of all the articles of colonial produce!

The causes of this extraordinary decline of production are abundantly clear, and the facts now adduced ought to cover with confusion those ignorant and pragmatistical personages who averred that, under a system of free trade, no loss whatever would be sustained by the planters. No doubt, had free labour

been ready and attainable, the loss would have been much diminished; but the misfortune was, that free labour could not be found within the colonies to any thing like the required extent; and neither time nor opportunity were afforded to the planters to obtain it elsewhere. The friends of the African have either persuaded themselves, or endeavoured to cheat the public into the belief, that the negro has attained a point of civilisation and docility from which a large proportion of the inhabitants of the British islands are at this moment very widely removed. They promised, on his behalf, that when emancipated, he would set down seriously to work, and, with a heart full of gratitude, proceed to earn his wages by toiling in the service of his employer. It is well for those gentlemen that they did not offer any tangible forfeit in the event of the failure of their protégé. The negro is perhaps more fully alive than any other class of mankind to the luxury of undisturbed idleness. He has few wants, and those few are easily supplied in such a splendid island as Jamaica, where his provision ground, with the smallest possible amount of cultivation, will afford him every necessary, and some of the luxuries of life. What he cannot raise for himself must, of course, be obtained by labour; but a very slight portion indeed of the primal curse now lights upon the emancipated negro, who has no ambition, and consequently no motive to persevere. Nor, indeed, can we wonder at this, if we only reflect seriously on the scenes which are visible at home. Do we not all know how difficult it is to rouse the western Highlander to any thing like active exertion? How many thousands of the Irish are there at this moment who will not work, preferring to depend for life itself upon the precarious existence of a miserable root, which, of all articles of human food, requires the smallest degree of culture? And can we, while such things happen among Christians, in a land where the severity of the climate ought to be of itself a sufficient inducement to exertion, wonder that the negroes, who have neither the same advantages, nor the same cogent motives for labour, should abandon themselves to a life of lazy sensuality, and look upon the neglected cane-fields and choked coffee-plantations with an eye of utter indifference?

The great object of the planters, therefore—for the existence of the colonies seemed to depend upon the success of their endeavours,—was to obtain labour at any cost, from any quarter whatever. It has been perfectly well ascertained that the constitution of Europeans will not admit of their pursuing out-door labour in a tropical climate, and therefore white labour is

out of the question. The natives of Madeira, indeed, have been tried, but they are unfit for the work, and even were it otherwise, the supply from that quarter is limited. Coolies were brought out from the East Indies at an enormous expense, equal to two-fifths of their wages for a period of five years, and after all, it was found that two Coolies could hardly perform the task which one African can accomplish with ease. Instead of assisting these efforts towards emigration, government, as if actuated by the most rancorous hatred to the colonies, threw a formidable obstacle in their way. We borrow the following passage from the pamphlet of the Guiana Planter.

“This very large importation of people was effected at the expense of the planters exclusively, who lavished their means freely on what they fondly believed to be the only chance that remained. Government, goaded by the *vis a tergo*, threw an impediment in the way, which was the abolition of all contracts formed out of the colony to which the immigrant was destined. This, like a two-edged sword, operated both ways; it prevented people from going to a distant country where they had to *search* for work; they felt that without an assurance of employment for a limited period, they would be embarking on a very precarious undertaking; and the planter could not derive the desired benefit from the labour of immigrants unless they were bound to remain with him for a certain space of time. Nevertheless, so fully aware were the latter of the necessity for additional hands, that they continued to import them, trusting to their remaining where they were located, notwithstanding the cancelling of their agreements; and the intending immigrants, who were chiefly Madeira people, after a time, learned from their friends, already settled in the colony, that there would be no lack of work for them.

“Want of contracts operates injuriously in another way still, besides those we have mentioned; it is found that immigrants for the first six months require much care and attention, and also considerable outlay, because they then undergo a seasoning to the climate. Now, planters are not inclined to take a man from the ship under the prospect of paying more for medical attendance, wine, and nourishment, than his labour is worth, provided he is at liberty to depart as soon as he finds himself strong enough. The impolicy of refusing to us the privilege of entering into agreements for at least twelve months, out of the colony, is herein

exemplified, and there is considerable reason to fear that there will be great backwardness in applying for the next batches of Coolies on this account, as they will not enter into contracts here. Every man says, 'I am not in a hurry, I shall wait until I can get seasoned people.' It is well known that of the last lots of Portuguese and Coolies; (those of 1845-6,) nearly one-half have been since that period on the sick list, most of them not seriously ill, but in that feeble and inert state which change of climate is apt to produce."

From all this, and from the experience of centuries, it is evident that the African alone is physically suited to undergo with ease and without danger the fatigue of field labour in the climates which are suited for sugar cultivation. We shall presently allude to the obstacles which have been thrown in the way of obtaining a supply of free labour from that quarter; and we think we shall be able to convince the most scrupulous reader, that the line of conduct adopted by the pseudo friends of the African, is one most admirably calculated to foster the state of barbarism, cruelty, ignorance, oppression, and crime, which is the melancholy characteristic of the inhabitants of that unhappy country. In the meantime, let us go back to the history of our colonies, whose singular case of unmerited persecution is by no means yet brought to a close.

In 1842, a Committee of the House of Commons was appointed to inquire into the state of the West India colonies, and from their report, which is now before us, we make the following extracts. Resolved,—

That, unhappily, there has occurred, simultaneously with the amendment in the condition of the negroes, a very great diminution in the staple productions of the West Indies, to such an extent as to have caused serious, and, in some cases, ruinous injury to the proprietors of estates in those colonies.

"That while this distress has been felt to a much less extent in some of the smaller and more populous islands, it has been so great in the larger colonies of Jamaica, British Guiana, and Trinidad, as to have caused many estates, hitherto prosperous and productive, to be cultivated for the last two or three years at considerable loss, and others to be abandoned.

“That the principal causes of this diminished production, and consequent distress, are, the great difficulty which has been experienced by the planters in obtaining steady and continuous labour, and the high rate of remuneration which they give for the broken and indifferent work which they are able to procure.

“That the diminished supply of labour is caused partly by the fact that some of the former slaves have betaken themselves to other occupations more profitable than field labour; but the more general cause is, that the labourers are enabled to live in comfort, and to acquire wealth, without, for the most part, labouring on the estates of the planters for more than three or four days in a week, and from five to seven hours in a day; so that they have no sufficient stimulus to perform an adequate amount of work.

“That this state of things arises partly from the high wages which the insufficiency of the supply of labour, and their competition with each other, naturally compel the planters to pay; but is principally to be attributed to the easy terms upon which the use of land has been obtainable by negroes.

“That many of the former slaves have been enabled to purchase land, and the labourers generally are allowed to occupy provision grounds subject to no rent, or to a very low one: and in these fertile countries, the land they thus hold, as owners or occupiers, not only yields them an ample supply of food, but in many cases a considerable overplus in money, altogether independent of, and in addition to, the high money wages which they receive.

“That one obvious and most desirable mode of endeavouring to compensate for this diminished supply of labour, is to promote the immigration of a fresh labouring population, to such an extent as to create competition for employment.

“That for the better attainment of that object, as well as to secure the full rights and comforts of the immigrants as freemen, it is desirable that such immigration should be conducted under the authority, inspection, and control of responsible public officers.

“That it is also a serious question, whether it is not required *by a due regard for the just rights* and interests of the West Indian proprietors, and the ultimate welfare of the negroes themselves, more especially in consideration of the large addition to the labouring population which it is hoped may soon be effected by immigration, that the laws which regulate the relations between employers and labourers in the different colonies, should undergo early and careful revision by their respective legislatures.”

This document is a very important and valuable one, more especially when considered in connexion with the subsequent measures of the government. It bears out unequivocally all the statements which we have already made regarding the decay of the colonies, the cessation of the emancipated negroes from work, and the necessity of some large and comprehensive scheme for promoting immigration. It does even more; for the tenor of the last paragraph clearly shows that, upon a calm and dispassionate review of the case, an impression had forced itself upon the minds of the committee, that the work of emancipation had been carried out too precipitately, or that some effectual means for regulating and sustaining labour should have been taken by the legislature, at the period when they violently curtailed the stipulated term of apprenticeship. Indeed, subsequent experience has shown, that some such measure ought to have been enacted, if only for the sake of raising the condition of the negro in the social scale.

As after events have shown, the report of this committee, though fair and impartial in its views of the case, was calculated grievously to mislead the planters as to the course which the Parliament of Great Britain was likely to pursue, in dealing with them and with their interests. They saw an admission recorded of the hardship of their case, coupled with a recognition of their right to some effectual remedy; and the natural consequence was, that they again took courage, and did every thing in their power to redeem past losses by renewed exertion and expenditure. It did seem that at last some portion of that sympathy, which had been so early promised, but so woefully neglected, was likely to be accorded to them by the mother country; and in that delusive belief they determined to struggle on. Had they at that time obtained the slightest inkling of what was to follow, their course would have been widely different. Whatever might have become of the estates, an enormous amount of new capital, embarked on the faith that

Government would at least deal with them in a just and open manner, would have been saved, and the ruin which is now impending over many families, not only in the colonies but here, would have been averted. But with Parliament urging and stimulating them to fresh exertion, how was it possible to refuse? What possible grounds had they then for suspecting that the protection which had been accorded to them in the most solemn manner, and for which they were bound to give an equivalent, would be withdrawn; that Britain, who had forced the Emancipation Act upon her own colonies, and who had announced, in a voice of thunder, her future determined opposition to the existence of the traffic in slaves, would at once descend from that position and become the customer of less scrupulous countries, the largest encourager of that odious traffic in the world, and that to the detriment and ruin of her oldest and most valuable colonies, which she had forcibly deprived of their labour?

The reciprocal relations which existed between the mother country and the West Indian colonies were these. Up to the year 1844, the rate of duty levied upon colonial sugar was £1, 4s., while that imposed upon sugar grown in foreign countries, was £3, 3s. Thus a protective balance of thirty-nine shillings per cwt. was left in favour of the colonies. In return,—and we adopt this statement from *The Economist*, a journal bitterly opposed to the West Indian claims,—“1st, They were confined to the British markets for their supplies of lumber, food, and clothing; 2dly, They were prevented importing fresh labour, under what we always deemed an unworthy suspicion—that immigration would degenerate into a slave trade, and immigrant labour into slavery; 3dly, They were precluded the privilege of sending their produce to Europe in any but British ships, which not unfrequently entailed an extra cost of two to three pounds a ton upon their sugar; 4thly, And at home, out of regard to the landed interest, their rum was subjected to a high discriminating duty in favour of British-made spirits, and their sugar and molasses were entirely excluded from our breweries and distilleries.” These sentiments are coloured by the peculiar views of the talented journal from which they are drawn, but in the main they are true; and the writer ought to have added, that the West Indian planters were also subjected to high protective duties in favour of the home refiner.

Such was the system of reciprocity established between the mother country and these colonies, until the spirit of innovation, which so peculiarly marks the present age, and which, if persevered in, must sever the last remaining ties which have hitherto kept the integral parts of the British empire united throughout the world, was brought to bear upon these devoted countries.

The first innovation was made in 1844, when free labour sugar only was admitted upon more favourable terms than before. To that measure, coupled as it was with a distinct assurance that the Government would continue steadily to oppose the introduction of slave-grown sugar into this country at competing prices, no opposition was offered. Another slight alteration of the duties took place in 1845; but it was not until the succeeding year, 1846, that the Whigs, in their zeal for free trade, and with the view of gaining, at any cost, a little temporary popularity at the outset of their accession to office, determined, without warning and against remonstrance, to give the *coup-de-grace* to the colonies, and to throw the markets of Britain entirely open to the kidnapper and the oppressor of the slave!

The act of 1846, as we have already said, provides a differential scale of duties on the imports of sugar, by which, for the present year, the colonist has to compete with the slave-master at a nominal advantage only of six shillings, and at the expiry of four years the duties will be entirely equalised. Here, then, are the final results of that *sympathy and protection*, which were promised by an official of Lord Melbourne's Government to the deluded West Indians in 1834! Here are the fruits of that agitation, and toil, and sacrifice, which Britain cheerfully undertook, in the cause of Christianity and truth, and, to the honour of our race, for the emancipation of the negro, and the utter suppression of the odious traffic in human flesh and blood! Here is the denouement of that series of international treaties by which Britain proclaimed herself the champion paramount of freedom, and the vindicator of the African liberties! Was there ever, we ask, upon record, a similar instance of defalcation of principle and of perfidy? Of violated principle, because, disguise it as they may, the results of the late measure must tend, and have already tended, to an enormous increase in the exportation of slaves from Africa; and Britain, so long as this law remains on her statute-book, dare not again claim credit on the score of her vaunted humanity. Of perfidy, because, in carrying out emancipation in her own colonies, then utterly free from the imputation of participating in that

unholy trade, a distinct pledge was given on the part of Britain, that, whatever might be the result, free labour should not be subjected to undue competition with the compulsory efforts of the slave! View the case in any light you will, and the inconsistency and treachery of the authors of the measure become more odious and apparent.

In order that we may understand the true position of the colonies, and the situation in which they have been placed, confessedly by no fault of their own, it will be necessary to ascertain what is the present cost of production of sugar there, under the curtailed and crippled system of free-labour, as compared with that of the slave-growing colonies. We apprehend that it will not be denied by any, that the soil, climate, and natural position of Jamaica and of British Guiana are in no way inferior to any in the known world for the growth and cultivation of the sugar-cane. No statement to the contrary has ever yet been hazarded; and so far as the application of capital can go in rendering production cheap, the British colonies have unquestionably the advantage of the others. Let us look then to the matter of cost.

According to one authority, the Planter of British Guiana, it would be as follows,—

Cost of production in slave countries per ton,	£13 0 0
Cost of production in British Guiana,	25 0 0
Difference per ton in favour of the slave market,	£12 0 0

In other words, slave-grown sugar can be produced at *twelve shillings per cwt.* less than in free colonies, besides the additional advantage of uncontrolled and unlicensed transport.

The above probably may be taken as the extreme case, because the cost of production has always been great in Demerara, owing to the smallness of the population; but the general hardship will be sufficiently shown and understood, by the following extract from the resolutions of a meeting of St David's parish in Jamaica, on 2d October last.

“The great influx of slave-grown produce into the home markets has, in the short space of six months, reduced the value of sugar from £26 to £14 per ton; while, under ordinary circumstances of soil and season, the cost to us of placing it in the market is not less than £20 per ton.”

“From many calculations,” writes a highly intelligent and experienced correspondent, “the lowest rate at which sugar *can* be produced, is about twenty shillings per cwt. on the average, or twenty pounds per ton. No doubt some estates may, and do, grow it cheaper than others. They may have advantages of situation both in regard to weather and command of labour, but one thing I am certain of, that no number of estates taken collectively, can grow it much under twenty shillings.”

With regard to the additional argument against the navigation laws, which certain free-trade journals have adroitly contrived to extract from the statement of the planters’ grievances, our correspondent writes,—“A long article has been written to show that we have got all that was demanded some years ago, with the exception of the abolition of the navigation laws. This I hold to be a very minor consideration, as, even were these abolished to-morrow, a saving of one shilling per cwt. freight would be the very outside. No doubt a letter appeared in the *Times*, stating that last year’s freights were six shillings per cwt. from Demerara, which was quite true,—but what are they now? The great rise was caused by every bottom being employed to import grain, which raised freights in America to nine shillings per barrel for flour, which are now one and sixpence,—so that shipping of every denomination was dear. These men forget, or will not remember, that we asked for measures which we hoped might benefit us, at a time when we could reasonably calculate upon this country keeping faith with us. But had we *then* been told that in 1846 slave sugar would be introduced at a *nominal* differential duty of seven shillings per cwt., to decrease annually till all sugars were admitted at the same rate, our demands would have been very different. Indeed I have no doubt that many would at once have abandoned their estates; and, though a desperate course, it would yet have been the wisest, and those who might have pursued it would have saved a further loss.

“I mentioned a *nominal* differential duty. What I mean by that is, that the slave sugars are all so much better manufactured, which the great command of labour enables them to do, that, to the refiner, they are intrinsically worth

more than ours. In short, they prepare their sugars, whereas we cannot do so, and we pay duty at the same rate on an article which contains a quantity of molasses. *So that, if the duties were equalised, there would virtually be a bonus on the importation of foreign sugar.* I have a letter before me in which is written,—‘Whilst at Jamaica, offers came from the Havannah to supply sugar all the year round at 12s. per cwt.,’ as I said before, in no Jamaica estate can it be grown much under 20s., and assuredly by none at 12s. The refiners estimate the value of Havannah, in comparison with West India free sugar, as from three to five shillings per cwt. better in point of colour and strength. The reason is, that these sugars are partially refined or *clayed*.”

If these are correct data, and we do not anticipate that they will be impugned, the result will be this;—

Cost of production in slave countries per ton,	£12 0 0
Add duty £1 per cwt.	20 0 0
Cost, irrespective of freight,	£32 0 0
Cost of production in free labour colonies,	£20 0 0
Add duty 14s. per cwt.,	14 0 0
Difference of value between slave and free sugar, at the lowest estimate, or 3s. per cwt.,	3 0 0
Cost, irrespective of freight,	£37 0 0

Such is the amount of *protection* at present enjoyed by our colonists—a protection which, be it remarked, is every year to decrease! In the present, or second year after the passing of Lord John Russell’s bill, we find that slave-grown sugar can be brought into the market at a cost of production less at least by *five pounds per ton* than that of our own colonies! We can now easily understand how it is that, within a very short period, Cuba has increased her exports of sugar from 50,000 to more than 200,000 tons; and we can readily believe that, with such a stimulus as has been given, she

may, in as short a period, succeed in doubling the latter quantity. No doubt, in order to effect this, the importation of slaves from Africa must go on with corresponding celerity; but that is a matter which we need not regard, as our present rulers are actually giving an enormous impulse to the trade.

In a matter of this sort, in which the element of British honour is largely implicated, it in reality matters not who the parties are, whom, by an unjust and inconsistent course of legislation, we are thus oppressing and defrauding. But if self-interest is at all to be taken into view, it may be as well that we should know, that at least three-fourths of the capital now jeopardized in our West Indian colonies, is the property of fellow-citizens in this country. The disastrous effects of the Mauritius failures, primarily caused and frightfully accelerated by the abolition of the old, and the operation of the new system in that island, were immediately felt by the commercial circles here, and tended greatly to increase that depression which has been experienced in every branch of our trade. If, as is now seriously meditated, and as must be the case should the Whig Cabinet prove equally obstinate as rash, our West Indian plantations should be abandoned, and the capital already expended as completely sunk as though it had been dropped into the depths of the ocean, we may look for another crisis at home, which will assuredly appal the boldest. Let our financial authorities tell us whether we can, under present circumstances, afford to part with an invested capital of two hundred millions, or to throw back into a state of nature and pauperism, colonies which, a very few years ago, consumed annually no less an amount than three millions and a half value of our manufactures? And yet to such results, unless some strong remedial measure be immediately applied, we are most decidedly tending. The depreciation of the value of property in the colonies has been going on for years at a most alarming rate, and we shall now state a few facts upon that point, which we think will convince the most sceptical. We shall begin with Demerara.

In 1838, the value of the estates, owing to the want of labour, had fallen from one-third to a half. The following is the account of some of the estates:

Price in 1838.	Former Price.
-------------------	------------------

Anna Catherina Estate,	£30,000	£50,000
Providence,	38,000	80,000
Thomas,	20,000	40,000

In 1840, the depreciation became greater. Here are a few examples:—

Rome and Houston Estate,	£40,000	£100,000
Success,	30,000	55,000
Kitty,	26,000	60,000
William,	18,000	40,000

In 1844, the Groenveldt estate, formerly valued at £35,000, was sold for £10,000. In 1845, the Baillie's Hope estate, formerly valued at £50,000, was disposed of for £7,000. And in 1846, the Haarlem estate went for £3,500, whereas its previous value was not less than £50,000!

We have been accustomed of late to fluctuations of property, but it would be difficult to find in any other list of prices such instances of ruinous declension. The above were cases of private sale; let us now look to the estates which were sold by execution in the country, and we shall find a still greater decadence. In the following list, which is that of 1846, the Kitty estate, disposed of in 1840, appears again.

Kitty Estate,	£3,000	£60,000
Nismes,	5,000	55,000
Vryheid's Lust,	6,000	55,000

Let those persons who think that the planters were amply compensated by the sum of £20,000,000 at the time of emancipation, consider the above figures carefully: and they may arrive at a different conclusion. Let us adopt the argument of the Planter, and take the case of the Kitty estate, of the original value of £60,000. Suppose that upon this estate there had been £18,000 of debt, and a clear vested remanent interest to the proprietor of £42,000. Let us further suppose that the property had not changed hands until 1846, when it was brought to sale, and the result will be, that the compensation money, estimated at £15,000, and the price which the estate fetched in the public market, would barely have sufficed to buy off the mortgage, and the proprietor's £42,000 would have utterly disappeared!

We are enabled from a private source to carry out the history of one of these Demarara estates. "We bought it," says our correspondent, "or rather we took it over as a bad debt for our mortgage (upwards of £12,000) for £5,000. Of course no person would have had any thing to do with it but under the circumstances stated. And to show you that property is now of no value, we may mention that we took an estate over, valued in the year 1825 at £60,000, as a bad debt; and though the estate has been advertised for sale or lease, we cannot get an offer of any kind, and have accordingly determined and sent out orders to abandon it. The works are in first-rate order, and every thing complete; therefore you may judge of the sacrifice; which, however, is only imaginary, as the cultivation of this estate, since 1842, has cost us £13,000 more than the produce has yielded. This does not include interest, but the actual wages and expenditure to make crops which have sold for £13,000 less than they cost us to produce. I could enumerate many others, but one is as good as a thousand. The situation of some of the estates is much in their favour, and this was another reason that induced us to take the one alluded to on any terms.

"The West Indians have been often taunted with not adopting the improvements which are introduced in the slave colonies. At the cost of about £2,000 we sent out last August machinery for that estate, and since then have written out not to unpack it, and, in the serious contemplation of abandoning the estate, have asked the makers of that machinery to take it off our hands, as they have a good many orders for foreign slave-growing countries. I believe, if we determine to sacrifice it, that they will send it to Porto Rico or Havannah."

The following letter, written by a highly respectable gentleman in this country, who is also a Jamaica proprietor, and referring to the present depreciation of property in that island, has been placed in our hands. The reader must judge for himself as to the hardship of the case which it portrays.

"Any information that I can give in reference to the present alarming and distressed situation of Jamaica, is, I believe, nothing more than what might be afforded by every one connected with that once flourishing, but now all but ruined island.

“I consider my case a hard one, and thousands are in a similar situation. I shall merely state a few simple facts as regards myself. About four years ago, upon the understanding and belief that the question, as to a fair protection in favour of our colonial sugar over foreign, or more especially slave labour sugar, was for ever set at rest, I became the purchaser of a fine estate in the island of Jamaica, for the sum of ten thousand five hundred pounds. In order to give every justice to the property, I sent out a fine new steam engine, and various other kinds of machinery and agricultural implements—in short, have expended upwards of seven thousand pounds, over and above the proceeds of all the produce made upon the estate during the course of the last four years (so that it now costs me about eighteen thousand pounds) in the hopes of eventually reaping a fair return. And this would have been the case for crop 1847, had not the unexpected and cruel measure of admitting slave-labour sugar at a low duty been introduced and carried by Lord John Russell last year. My attorney in Jamaica, before he was aware of such a rash and heartless step being taken, made out a statement of the expected crop and expenditure on the estate for the said year 1847, taking sugar at a moderate price, by which he showed a good surplus of one thousand pounds; but, alas! ere the produce came to market, prices fell so low, that in place of making any profit (though the estate made a good crop) I shall lose from one thousand to twelve hundred pounds, besides the interest on the eighteen thousand pounds of capital. This, you are aware, is perfectly ruinous, and I have been obliged to write out to my attorney, in order to save my property at home, to stop planting any more canes in the meantime; and, unless government immediately retrace their steps, to abandon the estate altogether. I am sorry to say, that this has been the hard fate with many a proprietor already, and must, ere long, overwhelm the whole colony. My property was considered one of the finest in the island, and if it perish none can stand. I might give particulars of many cases of extreme hardship, but it is needless to multiply these, as you must have many similar facts from other sources.”

The following letter is taken from a late number of a Jamaica newspaper, and we recommend it seriously to the attention of our readers:

“To the Editor of the Jamaica Despatch, Chronicle, and Gazette.

“‘Coming events cast their shadows before.’

“SIR,—I have just returned from Lucea, where I have witnessed a sight any thing but gratifying to my feelings.

“A vessel has arrived from ‘Trinidad de Cuba,’ to load with the mill and machinery, coppers, and other apparatus, from Williamsfield Estate in this parish, late the property of Mr Alexander Grant. The estate has, since Mr Grant’s death, been, from the difficulty of the times, abandoned; and Mr D’Castro, the owner of the vessel now at Lucea, has purchased the fixtures for an estate settling in Cuba.

“Is not the fate of Jamaica estates foreshadowed in this circumstance? Is it not a melancholy reflection that we are being wantonly sacrificed by our fellow countrymen, solely for the aggrandisement of foreigners?

“It does not require, Mr Editor, a prophet to foretell the fate of Jamaica sugar properties, and that for every man’s property destroyed here half a dozen will flourish in Cuba. A new branch of trade is opened to us, and for a few months, no doubt, it will be a brisk one. I would strongly recommend gentlemen who are advertising properties for sale to send the advertisement to Cuba; an estate now is not worth more than the cattle and machinery on it, and our neighbours in Cuba, might obtain all the machinery necessary for the settlement of their sugar plantations on very easy terms; and it will be, no doubt, exceedingly agreeable at some future time, when necessity compels us to quit our own country, to seek a living in Cuba, to see our late still, steam-engine, or coppers, and if we, are particularly fortunate, obtain the superintendence of any one of them. I am, Mr Editor, your obedient servant,

A PROPRIETOR.”

“Hanover, Oct. 23, 1847.”

With such facts and testimony before him, what man in the possession of his reasonable senses can doubt that our West Indian colonies are, at this moment upon the verge of ruin? We use the word in the most literal sense, and we are not very sure that we are justified in retaining the qualification, for ruin, in its worst shape, has already fallen upon many. Lord John Russell is said to be a bold and intrepid man, but there is a weight of responsibility here enough to appal the boldest man that ever held the office of prime minister of Britain. The question is not now one of depression of trade. The

rashness of former cabinets in dealing with the property of the colonists, and their unaccountable hesitation and delay in granting any remedial measures, or an increased supply of labour, have accomplished *that* already. The question now is, SHALL THESE COLONIES BE AT ONCE ABANDONED? We look for an answer, not to the colonists, but to Lord John Russell himself. He is the party who has directly consummated their ruin, and from him the country at large are entitled to demand a full explanation of his policy. Is it his purpose that these colonies, once styled the brightest jewels of the British crown, shall be thrown waste and abandoned? If it is, let him say so boldly. The country will then be enabled to record their opinion of his judgment, and, notwithstanding all that has taken place of late years, we will not do the honest-hearted people of Great Britain the injustice, for one moment, to doubt of the strength and tenor of that opinion. If, as we hope and trust, he never contemplated these results, when in a rash moment, and perhaps with no unnatural eye to a little temporary popularity, he forced on the measure of 1846, let him say so—let him make the only reparation in his power for former errors; and although much mischief has already been done, the colonies may yet be saved, and a sacrifice so terrible averted.

While such is the situation of our own colonies, upon whom we forced emancipation, let us see what is doing in the slave countries, to whom we are handing over our custom. The increase in the sugar produce of Cuba, as we have already seen, is from 50,000 to 200,000 tons, and is still rapidly increasing. The slave-trade is going on at a multiplied ratio, and perhaps the friends of the African will be glad to learn a fact, for the correctness of which we can vouch. Not three weeks ago, a large mercantile house in Glasgow received orders to send out a supply of blankets to Cuba, because, as the writer said, the slaves have become so much more valuable, owing to the enhanced price of their produce, and the new sugar market now opened, that the owners must take more care of them. Humanity, it would seem, begins to develop itself when it goes hand in hand with profit.

And yet, perhaps, we have used the word “humanity” a little too rashly. Let us hear the testimony of Jacob Omnium, which we extract from his late able letter to Lord John Russell, as to the manner in which our cheap sugar is at present manufactured in Cuba:—

“I spent,” says that intelligent witness, “the beginning of this year in Cuba, with a view of ascertaining the preparations which were being made in that island to meet the opening of our markets. To an Englishman coming up from Grenada and Jamaica, the contrast between the paralysed and decayed aspect of the trade of those colonies, and the spirit and activity which your measures had infused into that of the Havannah, was most disheartening.

“The town was illuminated when I landed, in consequence of the news of high prices from England. Three splendid trains of De Rosne’s machinery, costing 40,000 dollars each, had just arrived from France, and were in process of erection; steam-engines and engineers were coming over daily from America; new estates were forming; coffee plantations were being broken up; and their feeble gangs of old people and children, who had hitherto been selected for that light work, were formed into task-gangs, and hired out by the month to the new *ingenios*, then in full drive.

“It was crop time: the mills went round night and day. On every estate (I scarcely hope to be believed when I state the fact) *every slave was worked under the whip eighteen hours out of the twenty-four*, and, in the boiling houses, from five to six p.m., and from eleven o’clock to midnight, when half the people were concluding their eighteen hours work, the sound of the hellish lash was incessant; indeed, it was necessary to keep the overtasked wretches awake.

“The six hours during which they rested they spent locked in a barracoon,—a strong, foul, close sty, where they wallowed without distinction of age or sex.

“There was no marrying amongst the slaves on the plantations; breeding was discouraged; *it was cheaper and less troublesome to buy than to breed*. On many estates females were entirely excluded; but an intelligent American planter told me he disapproved of that system; that the men drooped under it; and that he had found the most beneficial effects from the judicious admixture of a proportion of one ‘lively wench’ to five males in a gang of which he had had charge. Religious instruction and medical aid were not carried out generally beyond baptism and vaccination.

“Whilst at work the slaves were stimulated by drivers, armed with swords and whips, and protected by magnificent bloodhounds.”

Gentlemen who clamoured for emancipation, in this way is the sugar which you are daily consuming made! You would not have it when produced by slaves in your own colonies, and under the humane protection of your own overruling laws; you are content to take it now—at the instigation of Mr Cobden and his confederates, without the slightest scruple or remorse for having ruined thousands of your countrymen—because you can have it cheaper through the sweat and the life-blood of the slave! Is this morality? Is it justice? Is it even—to descend to lower motives—wisdom? Can you not see before you the time when, after the West Indian colonies are abandoned, a gigantic monopoly will accrue to the slave-growing states, and the sugar, for the paltry saving on which article all has been sacrificed, again become as dear, possibly much dearer than before? Recollect it is not an article like wheat, or any common species of food, which can be reared upon every soil. There is but one region of the earth in which it can be grown, and even there it cannot be grown profitably, except through a large expenditure of capital, and by means of an almost limitless command of labour. Cuba and Brazil *have* both. Our colonies *had* both in sufficiency, until, by cutting off the one, you almost annihilated the other. Go one step further, or rather continue in the course you have begun a very little longer, and the capital of the West Indian colonies will be wholly and irretrievably dissipated. Irretrievably—for, after what has passed, it is in vain to think that any British subject will again embark his capital in such a trade, with no better security than that of our fiscal laws, fluctuating every year under the influence of short-sighted agitation, and regulated by men whose sole intelligible principle is the continued possession of power. Once let our colonies be annihilated—their capital of nearly two hundred millions be swallowed up, principal and interest—their market, which took from us annually three millions and a half of British manufactures, closed—and the inevitable result will be a monopoly of sugar to the slave-growing states, high prices, and in all probability, which the bullionists ought to consider, a perpetual drain of gold.

We have quoted only a fraction of the evidence of Jacob Omnium with regard to the present aspect of affairs in Cuba. Much there is of painful and even sickening detail as to the treatment of the slaves, in order that an

augmented supply may be thrown in upon our now unscrupulous market, for which we must refer our readers, if they wish to peruse it, to the pamphlet itself. But lest it should be thought that such testimony merely applies to the condition of the unhappy slaves at present in Cuba, we shall go further, and show that the late measure of the Whig Government has given a tenfold additional impetus to the slave trade; and that all our efforts to restrain it—efforts which, at the smallest calculation, cost this country annually a sum of half a million—are, as they must be under such circumstances, wholly futile and unavailing.

“In February last,” says the author of the above letter, “the market value of field negroes had risen from 300 to 500 dollars—a price which would speedily bring a supply from the coast. The accounts thence of the number of vessels captured, and of the still greater number seen and heard of, but not captured by our cruisers, bear ready witness to the stimulus which you have afforded to that accursed trade. It is only during the last year that we hear of *steam-slavers*, carrying nine hundred and fifty slaves, dipping their flag in derision to our men of war.”

The list of the slave captures between October 1846 and April 1847 amounts to no less than twenty-four vessels, from which between two and three thousand slaves were taken. This hideous amount of living cargo was crowded into five vessels, the other nineteen having been captured empty. This, however, is understood to be a mere fraction of the whole amount, and that the recent seizures have been much more numerous. One of our ships, the *Ferret*, is said to have taken no less than six slave vessels since she has been upon the coast.

The impulse which the government measure of 1846 has given to the slave trade in every part of the world is something perfectly enormous; but its mischievous and inhuman effects will best be understood by a reference to ascertained facts. Prior to 1846, the traffic in slaves between the African coast and the Spanish colonies had been gradually declining, and had in fact almost disappeared. The exclusion of slave-grown sugars from our home market had nearly forced the Cuban proprietors into a different system, and arrangements were pending in that colony for the emancipation of the slaves, just at the time when Lord John Russell came forward in favour of

the chain and the lash. The consequence was, that in the first instance the Cubans withdrew their slaves from the coffee cultivation, which was the least profitable, and set them to work at the sugar-canes. The price of the negro consequently rose, and the trade is prospering abundantly.

So much for Cuba. Let us now see what is doing in Brazil. The following article is extracted from the *Jamaica Times*, of 8th. October last.

“Though it may be an act of supererogation to accumulate arguments in support of the proposition that an equalisation of the sugar duties must necessarily give an impetus to the slave-trade, it may not be amiss to point out such instances which may come before us of an illustrative tendency. In a communication recently addressed by Dr Lang to the British public, it is stated as an unquestionable fact, that a great stimulus to the cultivation of sugar in Brazil had been afforded by the late change in the duties; and consequently that the slave trade, which had been rapidly declining for some time past, had revived as briskly as ever, especially at Pernambuco, which is by far the most conveniently situated port in the empire for this traffic—being so far to the northward and eastward, and consequently so favourably situated for taking advantage of the south-east trade wind, that a vessel from that port may often run across to the coast, as it is called, that is to Africa, in half the time she would take either from Bahia or Rio Janeiro. A schooner of one hundred and twenty tons, the *Gallant Mary of Baltimore*, he added, had arrived at Pernambuco a day or two before his arrival, and was then lying in the harbour for sale; and during the short period of his stay she was purchased for seven hundred and fifty pounds by a slave merchant in the place, and was to be despatched to the coast a day or two after he sailed for England.

“This is one instance of the manner in which the increased consumption of slave-grown sugar is acting as a premium to the slave trader. We offer a second in the fact recently communicated from Africa itself, that the slave-trade on the west coast was never more brisk than it is at present; that thirteen hundred and fifteen slaves had been landed from slave vessels at Sierra Leone from May 4th to June 28th of this year; that the last slaver taken was a Brazilian brig, although for deception

called the Beulah of Portland, U.S.—she was sent in by the Waterwitch: this vessel had five hundred and ten slaves on board.

“Nor is this all; for we have just learned from an authentic source, that Crab Island (a small tributary island lying to the eastward of Porto Rico) is now in course of being settled for the first time, for the cultivation of sugar; and that very recently one of the proprietors—not content, it would appear, with the customary mode of obtaining slaves—had succeeded in removing a number from one of the French islands adjacent,—a proceeding which, as might reasonably be expected, has caused the question to be raised among the *amis des noires*, whether it is legal to deport slaves from any French colony. Putting this point of the case, however, out of view, we have unquestionable evidence of the increasing importance of slave cultivation, at the very moment when the free labour colonies are struggling to maintain their very existence. We only beseech ministers to look upon these two pictures—on the one hand slavery triumphant; on the other, freedom struggling in the dust—and then persist, if they can, in the line of policy which has produced such results.”

But it is needless to multiply examples. The encouragement has been given; the increased importation of slaves to the foreign colonies has taken place; and the planters of Cuba and Brazil are already preparing for their monopoly. The following figures, set forth in a late official return, speak volumes:—

	1845.	1847.
Machinery exported from England to Cuba,	£4807	£17,644
Ditto from do. to Brazil,	17,130	35,123
	£21,937	£52,767

And this independently of such machinery as has been bought up and transported from our colonies!

Such have been the effects of the recent Whig measure; and it is for Parliament to decide whether we shall incur the national reproach of continuing any longer in a course so heartless, so unwise, and so inhuman. An attempt may be made, as in the case of the currency laws, to shelve the

consideration of the sugar duties, through the convenient medium of a committee. If so, the fate of our colonies may be considered as finally sealed. This is not a case that admits of delay, nor are parties actually at issue upon disputed matters of fact. The whole question resolves itself into this—is free trade to be allowed to run riot, and are our oldest colonies to be given up to it immediately as a sacrifice? A very intelligent correspondent writes, with reference to protective measures:—

“It may be the interest of the ministry to allow this appointment of a committee, as for months they will shelve the question. These months to us are of the utmost value, as during the crop, which commences in January and ends in June in the West Indian colonies, we must decide whether we are to make any preparations for the future. If no concessions are to be made, *ABANDONMENT is the only course to save further loss*. I believe the West Indians want no committee on their case. The hardships must be admitted. What we require is a fair, but not a prohibitory duty; such a one only as will put us on a footing to compete with those parties who enjoy what we are denied—*an abundance of cheap and regular labour*. This protection must be granted until we have the labour, and also some means of commanding its regularity.”

In conclusion, we would ask the free-traders themselves, whether the course which has been pursued towards these colonies is equitable or defensible, even on their own acknowledged principles? How far do they intend or propose that these principles should be carried? Is all traffic, even that in human flesh and blood, to be free? If so, let us come to a distinct understanding on the point. If the code of morals maintained by Mr Cobden is of so truly philanthropic and catholic a nature—if “buying in the cheapest and selling in the dearest market” is to be adopted throughout the world as a universal and unexceptionable rule—then, in the name of common sense, let the free-traders be consistent to their creed, let emancipation become a dead letter, and let the slave markets of Africa be thrown open to every customer! Do these gentlemen intend to maintain that there is any thing of free trade in the system, which ties our own colonists hand and foot, prevents them from making use of the capabilities of their soil, dissipates their capital, and then quietly abolishes all distinctive duty between their produce and that of countries which have not chosen to adopt the same system? Is the fleet upon the coast of Africa a symbol of free-trade

principles, or the opposite? Why, what a laughing-stock must that be in the eyes of the Spaniards! what an egregious proof of the most silly inconsistency that ever yet was perpetrated by a nation! We will not, forsooth, permit foreign nations to traffic in slaves, and yet we give them the monopoly of our market, knowing all the while that upon that importation alone we are dependent for a cheap supply! We ruin our colonies, transfer our custom to the foreign slave-driver, and with him, as has well been said, *cheap sugar means cheap slaves!*

We are glad to see that *The Times*, though differing with us in many economical points, has lately taken up this view, and spoken out with its customary ability. We extract from the number published on 17th January.

“Is sugar a commodity which we are simply desirous of getting cheap, without any regard to the country or methods of its production? If it be not, then is it clear as argument can make it that such commodity must be altogether removed from the operations of free trade? If it be, then by what monstrous perversion of equity do we control the methods of production adopted by our own producers? Why did we destroy that market in Jamaica which we now seize so eagerly in Brazil? The abstract principles of free trade are as manifestly violated by interference with production as by interference with exportation. If the doctrines of free trade are to find no exception in any suggestions of humanity or reason, then our Anti-slavery Act, and our Emancipation Act, and our vote for the African squadron, are all so many gross contradictions of a principle which we have formally sanctioned. Let those who think so speak out boldly. They have undoubtedly a clear case, if they dared but state it. Let slavery be considered as a practice which humanity condemns, and which civilisation must eventually abolish, but which cannot be permitted to enter into the calculations of a great commercial people. Let the coast squadron be immediately recalled, and the Bights thrown open to the sugar-growers of all nations to procure their labourers on the easiest terms. Let them make as much sugar as they can each for itself, and let the agency by which this article is produced be as much a matter of indifference as in the case of any other article, and *then* may sugar fairly be subjected to the operations of free trade. If the West Indians then applied for protection, we might

well repulse a petition for so obsolete a measure; but to take refuge in such abstract theories now is to blow hot and cold with the same breath—to preach up humanity from one side of the pulpit and economy from the other, taking care the while to appropriate to our own pockets the advantages of the latter doctrine, and to saddle our colonists with the expenses of the former.”

And what is it that our colonists ask? What is the extravagant proposal which we are prepared to reject at the cost of the loss of our most fertile possessions, and of nearly two hundred millions of British capital? Simply this, that in the meantime such a distinctive duty should be enforced as will allow them to compete on terms of equality with the slave-growing states. Let this alone be granted, and they have no wish to interfere with any other fiscal regulation. And what would be the amount of differential duty required? Not more, as we apprehend, than ten shillings the hundred-weight. It has been carefully calculated that the British planter cannot raise and send his sugar to the home market at a lower cost than forty shillings. In consequence of Lord John Russell’s measure, the average price last year has been thirty-eight shillings, and consequently the planter has been manufacturing, not only without profit, but at an actual loss. Next year, or rather after next July, the operation of the reductive scale will increase his loss, supposing him still to cultivate, from two shillings to three and sixpence per hundred-weight and so on until 1851, when he will have to pay *six pounds per ton* for the privilege of growing sugar, without a single farthing of return!

Is then the request of these men, who are our own fellow-subjects, and citizens, in any way unjust or unreasonable? We have chosen to deprive them of labour, promising them all the while sympathy and protection, and are we not bound in some measure to redeem the pledge? They require a differential duty only until such time as they can command a supply of free and plentiful labour. To this object the attention of government, and of the true philanthropists of the country, ought to be directed. There is a noble field laid open for their exertions. The best means of suppressing altogether the slave-trade, is by promoting, to the uttermost of our power, a free immigration from Africa to our colonies, a measure which we are certain would very soon supersede the necessity of a blockading squadron. For how can we ever expect that such an armament will prove effectual in checking

that wicked traffic, whilst, at the same time, we are directly encouraging it, by augmenting the consumpt of its produce in free and scrupulous Britain? Shame, on such contemptible and deceptive policy! Shame on the men who, with liberalism on their lips, are all the while engaged in riveting the fetters of the bondsman! And shame to all of us, if we permit our oldest and most attached colonies to lapse into decay, and thousands of our fellow-subjects to be consigned to ruin! for the sake of a theory which, in this matter at least, has not even the merit of being based upon consistent or intelligible principle!

NOW AND THEN.

(*Now and Then*. By SAMUEL WARREN, F.R.S. Author of "Ten Thousand a-Year," and the "Diary of a Late Physician." William Blackwood and Sons, Edinburgh and London. 1848.)

It would be an unpardonable affectation of modesty indeed, if Maga suffered any considerations whatever to interfere between herself and the cordial recognition of a success achieved by a favourite child, and acknowledged by all the world. Is the parent alone to hold her peace, when crowds are flinging up their caps rejoicing at the triumph of the son? Is nature to resign her dearest prerogative, in order to comply with the unnatural requirements of a dastard hypocrisy? Must we still hear on all sides the honest congratulations of strangers, and are we not to do homage to the grateful spirit within us, by shaking our own flesh and blood by the hand? Flesh and blood revolt from the insinuation! We know, as well as the dullest, that it is a delicate matter for Maga to speak to mankind, as truth and her heart dictate, with respect to some of her progeny. But what has delicacy to do with justice? Was Brutus delicate when he judged his own son, and hung him up for the public good? Maga suffers the world to judge of her offspring, and contents herself with a simple announcement of the happy verdict. It is her duty, as well as her delight, to chronicle the sentence. If she did less, she would do wrong to her own: she might do more, and still be just to her mighty and confiding public.

The author of the volume whose title heads this article, first appeared before the public as a writer in this Magazine in the month of August 1830. He was then but two-and-twenty years of age; yet, in his "Diary of a Late Physician," he at once took his place in the front ranks of literature, and seized upon the admiration and respect of his contemporaries. The work is too well known to need minute description here. The variety of incident and

character, the extraordinary fidelity of delineation, the vigorous style, the touching pathos, the commanding knowledge of men and human passions which it exhibits, are as familiar to our readers as they were surprising in a youth scarcely out of his teens,—a mere tyro in literature,—and, as he himself informs us, a rejected aspirant, in many quarters,^[9] for those lofty honours which he has since so bravely and so honourably won. “The Diary of a Physician”—carried on at intervals from the year 1830 to the year 1837—maintained its ground from first to last. Since the last chapter appeared in these pages, the series has been printed and published, reprinted and republished, stereotyped for England, pirated for America, and translated for the Continent. The interest which the powerful tales first excited, is unabated to this hour. The regular and steady demand maintained for the volumes indicates their intrinsic value, and declares, in language as emphatic as any that can appeal to either publishers or authors, the enduring character with which they are impressed.

In the year 1839, just nine years after the publication of the first number of the “Diary,” appeared also in these pages the first part of Mr Warren’s tale of “Ten Thousand a-Year.” The second production derived no false lustre from the confirmed success of its predecessor. The new tale presented itself in the columns of the Magazine, as the rule is—anonously. Mr Warren obtained no advantage whatever from his previously well-earned and conscientiously sustained reputation. His second venture had nothing to rely upon but itself; yet, before six months had elapsed, “Ten Thousand a-Year,” by the mere force of its own unquestioned merit, succeeded in arresting public attention to an extent seldom equalled, and never surpassed by publications of a serial nature. For two years that attention never flagged; the public can attest to this remarkable fact: we are ourselves conscious of the avidity with which number after number of this Magazine was sought, whilst one chapter of the History of Tittlebat Titmouse still remained to be told. “Ten Thousand a-Year” was a wholly different performance from the “Diary of a Late Physician.” The latter contained the fruitful germs of at least a dozen novels. Its short histories, designed to convey a solemn and abiding moral, performed their office with the least possible elaboration. Intricacy and subtlety of plot were not considered, in a scheme in which mankind was to be moved and taught by the influence of example. The faults, the weaknesses, the vices of humanity, were displayed in their simplest forms, and no pains were taken to involve them in the

entanglements of an artfully contrived narration. Not so, altogether, in the case of "Ten Thousand a-Year." Here plot became not a subordinate ingredient in the composition; here the salient and strongly-marked features of individual character were not alone considered. It cannot be denied that the second creation of Mr Warren's genius indicated at once increased strength of mind, experience more extended, knowledge more ripened. The faculties of the man were allied to the energy and passion of the youth, and the former ruled the latter with a severe and salutary grasp. The secret motives of man had been learnt in the interim; human springs of action had been detected in their distant hiding places; the inner soul of the world had been more deeply penetrated, and more closely scanned by the writer's understanding. The pictures were no longer sketches—the masterstrokes were something more than indications. The vulgarity of Titmouse was shown with the self-denying patience and enlightened industry of a surgeon laying bare the loathsomeness of a repelling sore. What inclination would have shut away for ever, conscientious duty required to be exposed. Vulgarity is exposed in the history of Tittlebat Titmouse, and is utterly crushed. In nothing, however, is the contrast between Mr Warren in 1830, and the same gentleman in 1839, so remarkable as in the conception of Mr Gammon. The character is a perfect emanation of instructed genius; the admixture of good and evil—good in evil, and evil in good—could have been portrayed only by one knowing thoroughly "all qualities with a learned spirit of human dealings." None but a creator, conscious of his strength, and fortified by the convictions which knowledge and experience give, would have conceived—or if conceived, dared—to exhibit the incomparable portraiture of which we speak. He, Gammon, stands immortalised in Mr Warren's pages, neither a monster of good nor a monster of evil, but partaking of both qualities; largely of one, and in a smaller degree of the other, as is nature's wont. Noble amongst the very base, and base amongst the very noble, he is an object of sorrow more than of execration,—of sympathy, not of hate, in his evil associations; of deep pity, not of vengeance, when he mixes for a season with the pure. Wanting religion and the practice of piety, which alone yields the highest moral rectitude, Gammon fails to earn approval even when he most deserves it, and in his brightest moments leaves no better impression on the mind than that of a wretched bundle of foul weeds, steeped for the time in heroism. The seeming incongruities of the character testify at once to its fidelity: the

reality of the picture is heightened by the colours which the master, with infinite skill, has selected from his palette.

The incognito of Mr Warren was preserved till towards the close of the work; and upon its completion, being published in a separate form, it shared the well-deserved success of the “Diary of a Physician,” and travelled with it, either in, its original garb or as a translated book, into every quarter of the globe. Be it remembered that, during the whole long period of which we speak, Mr Warren was passing his days in any thing but the luxurious case of an unoccupied gentleman, or of one engaged only in the prosecution of intellectual pleasures. His entrance into life as a public writer was concurrent with his adoption of the most arduous and difficult of all professions. Literature was less his business than his recreation; his chosen evening pastime after the noonday’s enervating heat; his dignified solace, not his painful necessity. In plain words, whilst he used his pen for the amusement and instruction of his fellows, Mr Warren was a laborious legal plodder on his own account in the Temple; first as a special pleader, and afterwards as a counsel; in which last capacity he produced, as a tribute to law as well as to literature, an important standard law-book, held at this moment in high repute.

Now, if what we have said be true,—and if it be not, we shall be glad to be informed of our error—we hold it to be an utter impossibility for Maga either to look coldly upon Mr Warren’s literary career, or to stand mutely by with her hands behind her, when all honest people are vociferously applauding that gentleman upon his first appearance in an entirely new character. If we don’t clap our hands, who shall applaud? Nobody will respect the mother who thinks her child less worthy than the world esteems him. If we should hold our peace, Maga would be despised—not by the world—that would not affect her much, but by her own honest soul, and her eternal sense of right, which would destroy her. We have held our peace long enough. Impatient as we were to be the first to hail our own, to introduce him to his readers in the columns in which first he introduced himself, we have committed violence to our affection, and bided our good time. Maga watched with natural fond anxiety the proceedings of her son. She called to mind their long connexion, and had maternal apprehensions—the best of mothers have them—lest the third appearance of her offspring on the literary stage of life might dim the lustre of his former efforts in the

same arena. Moreover, people of a certain age have whims and fancies. Maga, young, buxom, sportive, and healthy as she looks, has reached a matron's years. Her contemporaries, judging from her feats, and vexed in heart, will not believe it. We cannot wonder at their scepticism; they look old in their infancy. Maga has the playfulness and elasticity of youth in her prime. If she is so sprightly with a load of years upon her, she may live for ever. Honest contemporaries are right; she may—she WILL! But, as we said, folks of a certain age have whims. Men who have prospered under one system are not eager to adopt and try another. The guardianship of Maga, in Maga's eyes, casts a halo around the doings of her children. Mr Warren had achieved noble triumphs, walking hand-in-hand with her month after month and year after year. If he should deny himself the aid and run alone, might he not fall? We feared he might, till we had read his book, and then our fear was gone. But though fear departed, modesty—Maga's ancient fault—remained. The proprieties of the case bade her be silent till the world had spoken. Though she was not bound to withhold her smile and warm approval in her royal privacy, sweet decorum forbade a syllable of public praise until her panegyric might no longer sway the universe. The hour for breaking silence has arrived: Maga seizes it proudly and unreservedly, as her custom is: who shall blame her?

Mr Warren has, indeed, achieved a signal and complete success. The opinion which we formed of his new labour, ere it went to press, is confirmed and echoed by the enthusiastic unanimity of the public; by those who read, and by those useful organs which undertake to guide the reader's taste and judgment. The first few pages of the volume dispel at once all fears as to backsliding or downsinking on the part of the author. Fresh, vigorous, racy, and pure—such are the well-known characteristics of Mr Warren's style: they are here as they were present in his earliest productions almost twenty years ago. From the first page to the last, there is not the slightest evidence of exhaustion from over-cropping or superfetation. All is new, healthy, wholesome, and genuine: bright as the purest water, clear as the summer's sky, and as full of holy promise.

We think we discern a sneer upon the bilious and discontented cheeks of a certain class of writers as they read the last two words. We know the gentlemen well. They have been scribbling for the last few years with a "oneness of purpose," as creditable to their understandings as it is

significant of their ulterior designs. "Now and Then" is by no means written for their especial delectation, although, if properly and humbly read by the "earnest" worthies, it would go far to secure their moral improvement. The volume neither laughs at ecclesiastical institutions, nor ridicules the professors of religion. It does not make fun of every thing serious, until the unsophisticated reader is reduced to wondering whether he is not in duty bound to smile when and wherever his previous education had instructed him to weep: it does not consider that a man born on a dunghill has all the virtues of Adam before he transgressed, and that another, brought into life on a bed of down in Grosvenor Square, has, poor devil, in virtue of his good luck, inherited the vices of Satan and of the whole company of fallen divinities. There are a heap of Cockneys now gaining their miserable bread by the promulgation of such doctrines, who will look down with supreme contempt and biting sarcasm upon the book of which we treat; not, mark you, the *believers* of such doctrines, but simply the mischievous and impious promulgators. Trust them, they prefer the company of the wealthy and the well-to-do, as they love cheese and beer more profoundly than all the moral beauty that the earth contains. Catch them giving sixpence to a beggar on a snowy day, or uttering a syllable of human kindness, which costs them nothing, to a houseless wanderer, no one being by. We hold it to be a great jewel in the coronet of Mr Warren, that he sets his face manfully, in the present instance, against the fashion which all honest men and true must deprecate. The freedom from the prevailing cant which his book exhibits, is most refreshing; the certain upturning of misshapen noses which its very tendency must effect, the greatest compliment yet paid to his honest exertions in the cause of morality, and of the holy faith which he professes.

"Now and Then" is a Christmas book for a Christian people. It is a tale of fiction, which the most devout may read with no fear of insult, and without risk of being obliged to suspend their orthodoxy for the sake of an hour's pleasant reading. The book invests Christmas with its legitimate Christian associations. It cannot be denied that the tendency of this species of literature, for the last few years, has been to denude the sacred season of all these associations, and to surround it with others which are at once trifling, irreligious, and heathenish. We dwell upon this fact, because there needs some courage boldly to speak God's truth in an age rapidly verging towards practical infidelity. In Parliament, the once great leader of a greater Christian party publicly denies the necessity of a declaration of Christian

faith as the test of a legislator. In our light literature, we find references enough to the goodness of Providence, but a studious avoidance of the name and properties by which that Providence is recognised when we come to our knees by the bed-side or in the sanctuary. There is, we grant, not so much a denial of the essential doctrines of Christianity every where about us save in the church, as a studious and utter disregard of them; but there is imminent peril in this very disregard. Neglect precedes desertion. Let us be duly grateful, we say, to one who, in the modest pages of a simple tale, recalls us to our obligations, and reminds us that the chief of duties here is to cling firmly to the faith by which the world is saved, and to proclaim *first principles* when that world is basely shrinking from their free and open recognition.

Let us, however, not be misunderstood. “Now and Then” is not a religious novel—popularly so called. Mr Warren is not on the present occasion a “religious novelist,” as controversial divines, usurping the functions of the tale writer are, for want of a better term, absurdly styled. The Christianity which pervades this book is pure and catholic, and has nothing to do with the quarrels of sects and classes: it is applicable to universal humanity. There is no vulgar presumptuous dabbling with controverted points of Scripture, which, appearing in works of fiction, is utterly abominable and ludicrous, even in its futility: but the author, starting with a high and admirable purpose, and keeping that purpose in view to the very last, confines himself strictly and solely to what we all regard as Christianity’s irrevocable and fundamental principles;—great saying truths which none can blink with safety, and which he brings forward with an evident profound sincerity and reverence, impossible to mistake and difficult to slight.

The story, potently simple in itself, opens with marvellous simplicity. We quote from the beginning:—

“Somewhere about a hundred years ago (but in which of our good kings’ reigns, or in which of our sea-coast counties, is needless to be known) there stood, quite by itself, in a parish called Milverstoke, a cottage of the better sort, which no one could have seen, some few years before that in which it is presented to our notice, without its suggesting to him that he was looking at a cottage quite of the old

English kind. It was most snug in winter, and in summer very beautiful; glistening, as then it did, in all its fragrant loveliness of jessamine, honeysuckle, and sweet-brier. There, also, stood a bee-hive, in the centre of the garden, which, stretching down to the road-side, was so filled with flowers, especially roses, that nothing whatever could be seen of the ground in which they grew; wherefore it might well be that the busy little personages who occupied the tiny mansion so situated, conceived that the lines had fallen to them in very pleasant places indeed. The cottage was built very substantially, though originally somewhat rudely, and principally of sea-shore stones. It had a thick thatched roof, and the walls were low. In front there were only two windows, with diamond-shaped panes, one above another, the former much larger than the latter, the one belonging to *the* room of the building, the other to what might be called the chief bed-room; for there were three little dormitories—two being small, and at the back of the cottage. Close behind, and somewhat to the left, stood an elm-tree, its trunk completely covered with ivy; and so effectually sheltering the cottage, and otherwise so materially contributing to its snug, picturesque appearance, that there could be little doubt of the tree's having reached its maturity before there was any such structure for it to grace and protect. Beside this tree was a wicket, by which was entered a little slip of ground, half garden and half orchard. All the foregoing formed the remnant of a little freehold property, which had belonged to its present owner and to his family before him, for several generations. The initial letter (A) of their name, Ayliffe, was rudely cut in old English character in a piece of stone forming a sort of centre facing over the doorway; and no one then living there knew when that letter had been cut."

Such is the scene, and such the small house, in and from which the events evolve, that form the solemn and instructive narrative. The owner of the cot, the foremost though the humblest personage in the drama, was once a substantial, but is now a reduced yeoman, well stricken in years, being, at the opening of the story, close upon his sixty-eighth year.

"The crown of his head was bald, and very finely formed; and the little hair that he had left was of a silvery colour, verging on white. His

countenance and figure were very striking to an observant beholder, who would have said at once, 'That man is of a firm and upright character, and has seen trouble,'—all which was indeed distinctly written in his open Saxon features. His eye was of a clear blue, and steadfast in its gaze; and when he spoke, it was with a certain quaintness, which seemed in keeping with his simple and stern character. All who had ever known Ayliffe entertained for him a deep respect. He was of a very independent spirit, somewhat taciturn, and of a retiring, contemplative humour. His life was utterly blameless, regulated throughout by the purifying and elevating influence of Christianity. The excellent vicar of the parish in which he lived revered him, holding him up as a pattern, and pointing him out as one of whom it might be humbly said, *Behold an Israelite indeed, in whom is no guile*. Yet the last few years of his life had been passed in great trouble. Ten years before had occurred, in the loss of his wife, who had been every way worthy of him, the first great sorrow of his life. After twenty years spent together in happiness greater than tongue could tell, it had pleased God, who had given her to him, to take her away—suddenly, indeed, but very gently. He woke one morning, when she woke not, but lay sweetly sleeping the sleep of death. His *Sarah* was gone, and thenceforth his great hope was to follow her, and be with her again. His spirit was stunned for a while, but murmured not; saying, with resignation, 'The Lord hath given, and the Lord hath taken away: blessed be the name of the Lord.' A year or two afterwards occurred to him a second trouble, great, but of a different kind. He was suddenly reduced almost to beggary. To enable the son of an old deceased friend to become a collector of public rates in an adjoining county, Ayliffe had unsuspectingly become his surety. The man, however, for whom he had done this service, fell soon afterwards into intemperate and dissolute habits; dishonesty, as usual, soon followed; and poor Ayliffe was horrified one evening by being called upon, his principal having absconded, a great defaulter, to contribute to repair the deficiency, to the full extent of his bond."

Ayliffe's property was sacrificed at a blow. At the time of entering into his engagement, he was the freehold owner of some forty or fifty acres of ground, and the master of some sums of money advanced upon mortgage to

a neighbour. Much of this went immediately. Nor was this calamity his only one. He had a son, another Adam Ayliffe. Ayliffe the younger was betrothed, at this period of accumulated misfortune, to a young girl, who jilted him in the time of the family poverty. The blow fell upon the young and proud-hearted yeoman, as such blows will fall upon those in whose retired course a first affection comes as an abiding blessing, or an utter curse. A visible change took place both in his character and demeanour after the disappointment. First love in the younger Ayliffe's case was the curse and not the blessing. All went wrong with the family from this hour. Adam finally married, it is true, a maiden residing with Mr Hylton, the vicar of Milverstoke, but the union, though one of unquestionable affection, yielded no earthly happiness. After the loss of worldly goods, Adam, and his son betook themselves to labour for their subsistence. The father became a hireling, much to the affliction of his son, but not to his own sorrow, for he "heartily thanked God for the strength that still remained to him, and for the opportunity of profitably exerting that strength." Father, son, and daughter, still resided in the cottage, being its sole occupants. A year and a half of severe and constant exertion in the ordinary out-of-door operations of farming, and old Adam gave way. The spirit was more willing than the flesh. The younger Ayliffe laboured then for the livelihood of all, and another was added to the group, in the shape of an infant son, born about a year after the marriage of his parents, at the peril of its mother's life.

At this stage of the history, the remnant of old Ayliffe's land is demanded in the way of purchase by the agent of the Earl of Milverstoke, (whose principal country residence is within a short distance of the cottage,) and steadily refused by the owners. The old man assured Mr Oxley that it would break his heart to be separated for ever from the property of his fathers, to see their residence pulled down, and all trace of it destroyed; but Mr Oxley's appetite for the property was only whetted by the reluctance of its insignificant proprietor.

"'Be not a fool, Adam Ayliffe,' [said Mr Oxley, during one of his frequent visits to the cottage on the subject of this purchase;] 'know your interest and duty better. Depend upon it, I will not throw all this my trouble away, nor shall my Lord be disappointed. Listen, therefore, once for all, to reason, and take what is offered, which is princely, and be thankful!'

“‘Well, well,’ said Ayliffe, ‘it seems that I cannot say that which will suit you, Mr Oxley. Yet once more will I try, and with words that perhaps may reach the ear that mine cannot. Will you hear me?’

“‘Ay, I will hear, sure enough, friend Adam,’ said Mr Oxley, curiously; on which Ayliffe took down a large old brass-bound book, and, opening it on his lap, read with deliberate emphasis as follows:——

“‘Naboth the Jezreelite had a vineyard, which was in Jezreel, hard by the palace of Ahab king of Samaria.

“‘And Ahab spake unto Naboth, saying, Give me thy vineyard, that I may have it for a garden of herbs, because it is near unto my house: and I will give thee for it a better vineyard than it; or, if it seem good to thee, I will give thee the worth of it in money.

“‘And Naboth said to Ahab, The Lord forbid it me, that I should give the inheritance of my fathers unto thee.’

“When he had read these last words Ayliffe closed the Bible, and gazed at Mr Oxley in silence. For a moment the latter seemed somewhat staggered by what he saw and what he had heard; but at length—‘Oh, ho, Adam! do you make your Bible speak for you in business?’ said he, in a tone of rude jocularly. ‘Well, I shall wish you good day for some little while, it may be, and good luck to you here. It is somewhat of a bit of a place,’ he continued as he drew on his gloves, glancing, at the same time, contemptuously round the little room, ‘to set such store by; but be patient—be patient, Adam; there is one somewhat larger that will be ready for you by-and-bye——’

“This insulting allusion to the workhouse or the county jail old Ayliffe received in dignified silence. Not so his son, who, rising with ominous calmness from the chair on which he had for some time been sitting, as it were, on thorns, and silent only out of habitual deference to his father, approached Mr Oxley in two strides, seized him by the collar with the hand of a giant, and, before his astonished father could interpose, had dragged Mr Oxley to the doorway, near which he had been standing, and with a single jerk flung him out into the open air with a violence which sent him staggering several yards, till he fell down at full length on the ground.

“‘Adam, Adam! what have you done!’ commenced his father, approaching his son with an astounded air.

“‘Nay, never mind *me*, father,’ muttered his son vehemently, standing with arms akimbo, and watching Mr Oxley with eyes flashing fury. ‘There, Master Oxley; show never here again that wizened face of yours, or worse may happen. Away! Back to the Castle, and tell him that sent you here what you have received! Off! out into the road,’ he added, raising his voice, and moving furiously towards Mr Oxley, who precipitately quitted the garden, ‘or I’ll teach you to speak of the workhouse again! See that *the dogs lick not*——’

“‘Adam! I charge you hold your peace!’ said the old man, loudly and authoritatively, and advancing towards Mr Oxley, who, however, having, after muttering a few words to himself, and glancing furiously at young Ayliffe, hastily mounted his horse, which had been standing fastened at the gate, had already galloped out of hearing; and about that time in the ensuing day had contrived, during an interview on business with the Earl, to intimate, as if casually only, that the Ayliffes, who owned the roadside cottage, had received the liberal overtures made by Mr Oxley on his lordship’s behalf, with expressions of coarse disrespect, and even malignant hostility. Not a syllable breathed Mr Oxley of the treatment which he had received at the hands of young Ayliffe; nor did he deem it expedient, for reasons of his own, to summon his assailant to answer before the magistrates for what he had done.”

Ayliffe heard no more of Mr Oxley, but his trials sadly increased from the hour of that gentleman’s violent departure from his humble roof. The poor remnant of his patrimonial estate had dwindled down to the cottage and the slip of ground attached to it. Young Ayliffe continued to work from morning till night like any slave in the plantations; but his industry yielded small result. In addition to the other misfortunes, the infant member of this luckless household, feeble from its birth, and likely to be reared with difficulty, became, by an accident, maimed for life. The black cloud had fairly settled over the habitation.

Sarah, the wife, was about to give birth to another child, when misery appeared to have reached its climax. The once comely furniture had been

disposed of by degrees to purchase necessary food; and nothing but horror stared the unfortunates in the face, when an accident took place which gave the final touch to a dismal history that appeared already complete.

“Young Ayliffe, with heavy thoughts in his mind, burthening and depressing it, went one day to his work at a farmer’s at some distance from Milverstoke, having only one companion the whole day long: but that companion appearing good-natured and communicative, the frank young Ayliffe could not refrain from talking about that which was uppermost in his thoughts—the feeble condition of his wife, and her doctor’s constant recommendation of nourishing food. ‘And why don’t you get it, if you care for her?’ inquired his companion with a surprised air, resting for a moment from his work.

“‘Surely,’ quoth poor Ayliffe, ‘you should ask me why I do not get one of the stars out of the sky. Is meat to be picked up in the high road?’

“‘No; not in the high road,’ said the other, drily, ‘but there’s dainty eating for the sick and the gentle to be had—elsewhere.’

“In plain English, Ayliffe’s new friend pointed at game; speaking most temptingly of hare, above all other sorts of game, as a dainty dish, whether roast or stewed, for those that were sick and delicate; and assured Ayliffe that his (the speaker’s) wife had lived secretly on hare all through *her* time of trouble, and had never in her life thriven so well; for naught was so nourishing as hare’s flesh. Poor Ayliffe listened to this with but too willing an ear, though it went clean contrary to all his own notions, and those which he knew to be entertained by his father. He resisted but very faintly the arguments of his new friend; who indeed fairly staggered Ayliffe, by asking him whether he thought that he did wrong if he caught a hedgehog, a weasel, or a snake, in the field or hedge of another; and if not, why was it different with a hare? Much conversation had they of this sort, in the course of which poor Ayliffe, in the frank simplicity of his nature, gave such a moving picture of his wife’s necessities, as greatly interested his companion; who said that he happened to have by him a very fine hare that had been given him by a neighbouring squire, and which was greatly at Ayliffe’s service. After much hesitation he, with many thanks, accepted the gift; and, accompanying his new friend to his cottage, received into his

possession the promised hare, (a finer one certainly was hardly to be seen,) and made his way home with his perilous present, under cover of the thickening shades of night. What horrid misgivings he had, as he went along! How often he resolved either to return the hare to the giver, or fling it over the hedge, as he passed! For he was aware of his danger: there being no part of England where game was more strictly preserved, more closely looked after, or poachers more severely punished, than at Milverstoke. But he thought of his wife—of the relish with which she must partake of this hare; and by the inspiriting aid of thoughts such as these, he nerved himself to encounter her suspicions, and his father's rebuke and reproaches."

That rebuke and those reproaches he encountered. Happy had he been had he encountered nothing worse! The hare was rejected by the upright father, but the rejection did not save the son. He had been entrapped into accepting the gift by one who had sent a companion to watch him home, and who, in order to obtain half the penalty, forthwith informed against the unfortunate receiver. The receiver was fined, but Mr Hylton, the vicar, paid the sum required, and released him from his trouble.

Whilst matters are looking so black at the cottage, there is joyousness enough at the neighbouring castle. The season is Christmas, and Viscount Alkmond, the only son and heir of the Earl of Milverstoke, has arrived at the castle to pass the Christmas holidays. Here is the castle and its owner.

"Milverstoke Castle, to which its next lordly possessor was then on his way, was a truly magnificent structure, worthy of its superb situation, which was on the slope of a great forest, stretching down to the sea-shore. Seen from the sea, especially by moonlight, it had a most imposing and picturesque appearance; but from no part of the surrounding land was it visible at all, owing to the great extent of woodland in which it was embosomed. The Earl of Milverstoke, then lord of that stately residence, had a personal appearance and bearing which might be imagined somewhat in unison with its leading characteristics. He was tall, thin, and erect; his manner was composed, his countenance refined and intellectual, and his features comely; his hair had been for some years changed from jet-black into iron-gray. His bearing was lofty, sometimes even to repulsiveness; his temper and

spirit haughty and self-reliant. Opposition to his will, equally in great or small things, rendered that arbitrary will inflexible, whatever might be the consequence or sacrifice; for he gave himself credit for never acting from impulse, but always from superior discretion and deliberation. He was a man of powerful intellect, extensive knowledge, and admirably fitted for public affairs,—in which, indeed, he had borne a conspicuous part, till his imperious and exacting temper had rendered him intolerable to his colleagues, and objectionable even to his sovereign, from whose service he had *retired*, to use a courteous word, in disdainful disgust, some five years before being presented to the reader. He possessed a vast fortune, and two or three princely residences in various parts of the kingdom. Of these Milverstoke was the principal; and its stern solitude suiting his gloomy humour, he had betaken himself to it on quitting public life. He had been a widower for many years, and, since becoming such, had become alienated from the distinguished family of his late countess; whose ardent and sensitive disposition they believed to have been utterly crushed by the iron despotism of an unfeeling and domineering husband. Whatever foundation there might have been for this supposition, it contributed to embitter the feelings of the Earl, and strengthen a tendency to misanthropy. Still his character had fine features. He was most munificent; the very soul of honour; a perfect gentleman; and of irreproachable morals. He professed a firm belief in Christianity, and was exemplary in the discharge of what he considered to be the duties which it imposed upon him. He would listen to the inculcation of the Christian virtues of humility, gentleness, and forgiveness of injury, with a kind of stern complacency; unaware, all the while, that they no more existed within himself, than fire could be elicited from the sculptured marble. Most of his day-time he spent in his library, or in solitary drives, or walks along the sea-shore or in the country. Unfortunately, he took no personal part, nor felt any personal interest in the management of his vast revenues and extensive private affairs; intrusting them, as has been already intimated, implicitly to others. When he rode through the village, which lay sheltered near the confines of the woodland in which his castle was situated, he appeared to have no interest in it or its inhabitants, though nearly all of them were his own tenantry. His agent, Mr Oxley, was their real master.

“Mr Hylton was one of his lordship’s occasional chaplains, but by no means on intimate terms with him; for that the vicar’s firm independent character unfitting him. While he acknowledged the commanding talents of the Earl, his lordship was, on his part, fully aware of Mr Hylton’s strong intellect, superior scholarship, and the pure and lofty spirit in which he devoted himself to his spiritual duties. The good vicar of Milverstoke knew not what was meant by the fear of man—and that his stately parishioner had had many opportunities of observing; and, in short, Mr Hylton was a much less frequent visitor at the Castle than might have been supposed, and was at least warranted, by his position and proximity.

“Possibly some of the Earl’s frigid reserve towards him was occasioned by the cordial terms of intimacy which had existed between him and the late Countess—an excellent personage, who, living in comparative retirement at Milverstoke, while her lord was immersed in political life, had consulted Mr Hylton constantly on the early education of her two children. The Earl had married late in life, being nearly twenty years older than his Countess, who had brought him one son and one daughter. The former partook largely of his father’s character, but in a somewhat mitigated form; he was quicker in taking offence than his father, but had not his implacability. If he should succeed to that father’s titles and estates, he would be the first instance of such direct succession for nine generations, the Earl himself having been the third son of a second son. The family was of high antiquity, and its noble blood had several times intermingled with that of royalty.”

On one of the more advanced days of the Christmas week, we are told there took place a kind of military banquet at the Castle, in compliment to the officers of a dragoon regiment, one of whose out-quarters was at the barracks at some two miles distance. Lord Alkmond was present at this banquet. During its progress his lordship quitted the company to stroll in the woods—wherefore none knew; but during his evening walk he was barbarously murdered. Young Ayliffe, under fearfully suspicious circumstances, is arrested for the crime. He had been discovered near the body—his sleeves were covered with blood—he had been hunted and tracked to his home. The cup of misery was full.

A coroner's inquest is held—a verdict of wilful murder returned against Adam Ayliffe, who is formally committed by the magistrate. He is held in custody, and must await his trial. He is *not* guilty. The reader feels it in spite of the damning evidence that will be brought against the accused on the day of his solemn trial: the father is aware of it, and sustains his manly soul with the consciousness, dreadful as may be the unjust and as yet unspoken sentence. Old Adam has gone to his child in prison. Behold the miserable pair! Listen to the pathetic appeal.

“They were allowed to be alone for a short time, the doctor and nurse of the prison being within call, if need might be. The prisoner gently raised his father's cold hand to his lips and kissed it, and neither spoke for a few minutes; at length——

“‘Adam! Adam!’ said the old man in a low tremulous whisper, ‘art thou innocent or guilty?’ and his anguished eyes seemed staring into the very soul of his son, who calmly replied,—

“‘Father, before God Almighty, I be as innocent as thou art, nor know I who did this terrible deed.’

“‘Dost thou say it? Dost thou say it? I never knew thee to lie to me, Adam!’ said his father eagerly, half rising, from the stool on which he sate. ‘Dost thou say this before God, whom thou art only too likely,’ he shuddered, ‘to see, after next Assizes, face to face?’

“‘Ay, I do, father,’ replied his son, fixing his eyes solemnly and steadily on those of his father, who slowly rose and placed his trembling arms around his son, and embraced him in silence: ‘How is Sarah?’ faltered the prisoner, faintly.

“‘Ask me not, Adam,’ said the old man; who quickly added, perceiving the sudden agitation of his son, ‘but she is not dead; she hath been kindly cared for.’

“‘And the lad?’ said the prisoner, still more faintly.

“‘He is well,’ said the old man; and the prisoner shook his head in silence, the tears running down his cheeks through closed eyelids.”

There is another too, who, in spite of the circumstances which carry conviction to the minds of others, is morally certain of the innocence of Adam Ayliffe. At the beginning of the narrative we are informed that, “as father and son would stand suddenly uncovered, while the reverend vicar passed or met them on his way into the church, his heart yearned towards them both: he thoroughly loved and respected them, and was in a certain way proud of two such specimens of the English yeoman; and, above all, charmed with the good example which they set to all his other parishioners. Now the vicar had from Adam’s boyhood entertained a liking for him, and had personally bestowed no inconsiderable pains upon his education, which though plain, as suited his position, was yet sound and substantial.” This vicar trusted the manhood of the blood-guiltless Adam as he had affectionately attached himself to his youth. To suppose him guilty of the crime was to have implicit faith in circumstantial evidence, treacherous and deceitful at the best, and to spurn the actual knowledge gained from the decided tenor of a life which could NOT speak false. Adam Ayliffe could not become a murderer and still be Adam Ayliffe. He was himself, rational and sane; he was therefore guiltless. So argued the minister of God: so must the good and pious always argue, similarly placed. A world in arms against the miserable prisoner would not have moved the vicar from his strong conviction, or frightened him from the prisoner’s side. Providence, the just, so willed it!

The trial came. The fiend of circumstance for the hour triumphed over the as yet invisible spirit of truth. Mortal men could do no other than they did. Seeing through a glass darkly, they pronounced judgment, with the veil still undrawn. Adam Ayliffe, the innocent, the well-meaning, the sorely-trying, but the still upright, was condemned to die the death of a malefactor, for the shedding of blood which he had never spilt. The wretched convict is removed at once from the bar of the Court to the condemned cell. He is scarcely there before Mr Hylton, the incredulous clergyman, is at his side. The interview is long, and deeply interesting. The frantic despair of the hapless prisoner is gradually softened, and his mind turned to God by the pious counsels and arguments of his indefatigable pastor. Mr Hylton leaves the cell more than ever satisfied of the innocence of poor Adam Ayliffe.

He is sentenced, not yet hanged. The word has gone forth but the decree is not yet executed. God is just, but as merciful as just, and may interpose and

save the long-suffering for His glory and their happiness. Mr Hylton, leaving the prison, is summoned to the neighbouring barracks. Arriving there, he is ushered into a private room, and introduced to one Captain Lutteridge. What has the captain to say to the minister? What does he know of the murder? You shall hear. During the trial, the judge remarked that it was very strange that Lord Alkmond should go out into the woods on the fatal night, and wondered that no one knew the reason. Now Captain Lutteridge did not know the reason, but he had possibly, only possibly, a clue to it. A subject had been mentioned during the dinner on the memorable night, which had evidently distressed his lordship, and, it may be, called him forth. What that subject was, he, the captain, knew, but, without permission from the Earl of Milverstoke, would not state,—he being a soldier, a man of honour, and incapable of betraying confidential intercourse, as it were, spoken at the table of his noble host. It was a case of life and death. Adam Ayliffe had an advocate with the captain more anxious and impressive than the paid counsel who had served him on his trial, and Mr Hylton did his duty faithfully. Before he quitted Captain Lutteridge, that officer had undertaken to wait upon the Earl of Milverstoke, and to obtain, if it might be, his permission to communicate the secret. The captain kept his word, but to little purpose. The Earl forbade all mention of the melancholy scene, and gave his visitor no encouragement. But Mr Hylton waited not for encouragement or aid. Before Captain Lutteridge returned from Milverstoke Castle, the indefatigable minister was already on his road to London, to obtain an interview with the Secretary of State, to inform that functionary that there was a secret, and to entreat a respite upon that ground; but not upon that ground alone. Another gleam of sunshine, thin as hair, stole through the stormy sky. A letter had been received by Mrs Hylton, that hinted at guilt elsewhere, removing it from Ayliffe's stainless cottage. Fragile as the document was, the ambassador of the condemned relied upon it as though it had been a rock. And not in vain! From the Home Secretary, he was referred to the judge who tried the cause: the judge listened long and patiently to all that Mr Hylton had to urge upon the miserable man's behalf, and finally ordered a fortnight's respite, with the view of giving time for confirmation of the important letter's intimations.

The unconquerable Mr Hylton returned to Milverstoke. He sees the Earl, who spurns him from his door as a reward for his unjustifiable interference between justice and the murderer of his son: he sees the Earl's daughter, and

pleads with her on behalf of the doomed: he sees Captain Lutteridge,—he leaves no stone unturned, to secure, if not the pardon of his client, at least the remission of the punishment to which, in his inmost heart, he believed him most unjustly sentenced. His success is far from equal to his zeal. The proud Earl's heart is obdurate. Who can wonder at it? The gentle daughter would do much, but has the power to do little; and Captain Lutteridge, a gentleman and a soldier, is disinclined to save a murderer from the gallows, even if he had the ability, which he has not.

The fortnight is coming quickly to an end, and there is no arrival of favourable news. Shortly before its close, Mr Hylton receives a brief message from the unhappy occupant of the condemned cell, which he dares not disregard. It is this—*"I go back into darkness while you are away."* Mr Hylton mounts his horse and sets off. It is a melancholy errand, but we will take courage and accompany him. The scene is grand as it is awful:—

"As he rode along, his mind lost sight almost entirely of the temporal in the spiritual, the present in the future, interests of the condemned; and by the time that he had reached the gaol, his mind was in an elevated frame, befitting the solemn and sublime considerations with which it had been engaged.

"A turnkey, with loaded blunderbuss on his arm, leaned against the cell door, which he opened for Mr Hylton in silence, as he approached; disclosing poor Ayliffe sitting on his bench, double-ironed, his head buried in his hands, his elbows supported by his knees. He did not move on the entrance of Mr Hylton, as his name had not been mentioned by the turnkey.

"*"Adam! Adam!—the Lord be with you! Amen!"* solemnly exclaimed Mr Hylton, gently taking in his hand one of the prisoner's.

"Ayliffe suddenly started up, a gaunt figure, rattling in his irons, and grasping in both his hands that of Mr Hylton, carried it to his heart, to which he pressed it for some moments in silence, and then, bursting into tears, sunk again on his bench.

"*"God bless you, Adam! and lift up the light of His countenance upon you! Put your trust in him: but remember that he is the all-seeing, the*

omniscient, omnipotent God, *who is of purer eyes than to behold iniquity!*

“Ayliffe wept in silence, and with reverent affection of manner pressed to his lips the still-retained hand of Mr Hylton.

“‘Come, Adam! speak! Speak to your pastor—your friend—your minister!’

“‘You seem an angel, sir!’ said Ayliffe, looking at him with a dull, oppressed eye, that was heart-breaking.

“‘Why an angel, Adam? I bring you,’ said Mr Hylton, shaking his head, and sighing, ‘no earthly good news whatever; nothing but my unworthy offices to prepare you for hereafter! Prepare! prepare to meet thy God, for he draweth near! And who may abide the day of his coming!’

“‘I was readier for my change when last I saw you, sir, than now,’ said Ayliffe, with a suppressed groan, covering his face with his manacled hands.

“‘How is that, poor Adam?’

“‘Ah!—I was, so it seemed, half over Jordan, and have been dragged back. I see not now that other bright shore which made me forget earth! All now is dark!’

“His words smote Mr Hylton to the heart. ‘Why is this? why should it be? Adam!’ said he, very earnestly, ‘have you ever been, can you possibly ever be, out of God’s hands? What happens but from God? And if He hath prolonged this your bitter, bitter trial, what should you, what can you do, but submit to His infinite power and goodness? *He doth not afflict willingly, nor grieve the children of men, to crush under his feet all the prisoners of the earth! He will not cast off for ever; but though he cause grief, yet will he have compassion according to the multitude of his mercies!*’

“‘Oh, sir! oft do I think his mercy is clean gone for ever! Why—why am I here?’ he continued, with sudden vehemence. ‘He knoweth my innocence—yet will make me die the death of the guilty! That cannot, *cannot* be just!’

“Adam! Adam! Satan is indeed besieging you! Even if, in the awful, inscrutable decrees of Providence, you be ordained to die for what you did not, have you forgotten that sublime and awful truth and fact on which hang all your hopes—the death of Him who died, *the just for the unjust?*’

“Ayliffe’s head sunk down on his knees.

“‘Ah, sir!’ said he, tremulously, after a while, during which Mr Hylton interfered not with his meditations, ‘these words do drive me into the dust, and then raise me again higher than I was before!’

“‘And so they ought, Adam. Is there a God? Has he really revealed himself? Are the Scriptures true? Am I the true servant of a true master? If to all this you say *yea*—speak not again distrustfully. If you do—if you so think—then are you too like to be beyond the pale of mercy. I am free, Adam,—you are bound,—yet are both our lives every instant at the command and absolute disposal of Him who gave them, that we might be on trial here for a little while. For aught I know, I may even yet die before you, and with greater pain and grief; but both of us must die, and much of my life is gone for ever. As your frail fellow-mortal, then, I beseech you to listen to me! Our mode of leaving life is ordered by God, even as our mode of living in it. To some he hath ordained riches, others poverty; some pleasure, others misery, in this life; but all for reasons, and with objects best known, nay, known only to himself! Adam, you have now been four days here beyond that which had been appointed you—now that we are alone, have you aught to confide to me, as the minister for whom you have sent? What saith my Master? If you confess your sins, he is faithful and just to forgive you; but if you say that you have no sin, you deceive yourself, and the truth is not in you. And if that last be so, Adam, what shall be said of you, what can be hoped for you?’

“‘If you be thinking of that deed for which I am condemned,’ said Ayliffe, with a sudden radiant countenance, ‘then am I easy and happy. God, my maker, and who will be my judge, knoweth whether I speak the truth. Ay! ay! innocent am I of this deed as you!’

“‘It is right, Adam, that I should tell you that all mankind who know of your case, from the highest down to the lowest, do believe you guilty.’

“‘Ah, sir, is not that hard to bear?’ said Ayliffe, with a grievous sigh, and a countenance that looked unutterable things.

“‘It is, Adam—it is hard; yet, were it harder, it must be borne. Here is Lord Milverstoke, who hath lost his son—his only son—the heir to his title and his vast possessions—lost him in this mysterious and horrid way: is not *that* hard to be borne? Have you, Adam,—I ask you by your precious hopes of hereafter,—animosity towards him who believes you to be his son’s murderer?’

“There was an awful silence for nearly a minute, at the close of which Ayliffe, with an anguished face, said—

“‘Oh, sir! give me time to answer you! Pray for me! I know whose example I ought to imitate; but’—he suddenly seemed to have sunk into a reverie, which lasted for some time, at the end of which,—‘Sir—Mr Hylton,’ said he desperately, ‘*am* I truly to die on Monday week? Oh, tell me! tell me, sir! Life is sweet, I own!’

“He sprung towards Mr Hylton, and convulsively grasped his hands, looking into his face with frenzied earnestness.

“‘I cannot—I will not deceive you, Adam,’ replied Mr Hylton, looking aside and with a profound sigh. ‘My solemn duty is to prepare you for death! But—’

“‘Ah!’ said he, with a desperate air, ‘to be hanged like a vile dog!—and every one cursing me, who am all the while innocent! and no burial service to be said over my poor body!—never—*never* to be buried!’ With a dismal groan he sunk back, and would have fallen from the bench, but for Mr. Hylton’s stepping forward. ‘Sir—sir,’ said Ayliffe presently, glaring with sudden wildness at Mr Hylton, ‘did you see the man at the door with the blunderbuss? There he stands! all day! all night! but never comes in!—never speaks!—Would that he would put it to my head, and finish me in a moment!’

“‘Adam! Adam! what awful language is this that I hear?’ said Mr Hylton, sternly. ‘Is this the way that you have spoken to your pious and venerable father?’

“‘No! no! no! sir!’—he pressed his hand to his forehead—‘but my poor head wanders! I—I am better now! I seem just to have come out of a

dream. But never should I dream thus, if you would ever stay with me—till—all is over!’

“Feeling it quite impossible to ask the miserable convict such questions as Mr Hylton had wished, he resolved not to make the attempt, but to do it as prudently and as early as might be, through old Ayliffe, or the chaplain or governor of the gaol. He was just about to leave, and was considering in what terms he could the most effectually address himself to Ayliffe, when, without any summons having issued from within, the door was unlocked, and the turnkey, thrusting in his head, said,—

“‘I say, my man, here’s the woman come with thy child, that thou’st been asking for. They’ll come in when the gentleman goes.’

“Ayliffe started up from his seat with an eager motion towards the door, but was suddenly jerked down again, having forgotten in his momentary ecstasy that his irons were attached to a staple in the floor.

“‘Come, come, my man,’ said the turnkey, sternly, ‘thou must be a bit quieter, I can tell thee, if this child is to come to thee.’

“‘Give me the lad! give me the lad! give me the lad!’ said Ayliffe, in a hoarse whisper, his eyes straining towards the approaching figure of the good woman, who, with a very sorrowful and apprehensive look, now came in sight of the condemned man.

“‘Lord bless thee, Adam Ayliffe!’ she began, bursting into tears, ‘Lord love thee and protect thee, Adam!’

“‘Give me the lad!—show me the lad!’ he continued, gazing intently at her, while she tremblingly pushed aside her cloak; and behold there lay, simply and decently clad, his little boy, awake, and gazing, apparently apprehensively, at the strange wild figure whose arms were extended to receive it!

“‘Adam, father of this thy dear child,’ said Mr Hylton, interposing for a moment between Ayliffe and the child, not without some alarm, ‘wilt thou handle it tenderly, remembering how feeble and small it is?’

“On this, poor Ayliffe gazed at Mr Hylton with a face of unspeakable agony, weeping lamentably; and still extending his arms, the passive child, gazing at him in timid silence, was placed within them. He sat

down gently, gazing at his child for some moments with a face never to be forgotten by those who saw it. Then he brought it near to his face, and kissed incessantly, but with unspeakable tenderness, its tiny features, which were quickly bedewed with his tears.

“‘His mother!—his mother!—his mother!’ he exclaimed, in heart-rending tones, still gazing intently at its face, which was directed towards his own with evident apprehension. Its little hand for a moment clasped one of the irons that bound his father, but removed it immediately, probably from the coldness of the metal. The father saw this, and seemed dreadfully agitated for some moments; and Mr Hylton, who also had observed the little circumstance, was greatly affected, and turned aside his head. After a while,—

“‘How easily, my little lad, could I dash out thy little brains against these irons,’ said Ayliffe, in a low desperate tone of voice, staring into the child’s face, ‘and save thee from ever coming to this unjust fate that thy father hath!’

“Mr Hylton was excessively alarmed, but concealed his feelings, preparing, however, for some perilous and insane action, endangering the safety of the child. The gathering cloud, however, passed away, and the manacled father kissed his unconscious child with all his former tenderness.

“‘They’ll tell thee, poor lad, that I was a murderer! though it be false as hell! They’ll shout after thee, There goes the murderer’s son!’ He paused, and then with a sudden start said—‘There will be no grave for thee or thy mother to come and cry over!’

“‘Adam,’ said Mr Hylton, very anxiously, ‘weary not yourself thus—alarm not this poor child, by thus yielding to fear and despair; but rather, if it can hereafter remember what passeth here this day, may its thoughts be of thy love and of thy gentleness! If it be the will of God that thou must die, and that unjustly, as far as men are concerned, He will watch over and provide for this little soul, whom He, foreseeing its fate, sent into the world.’

“Ayliffe lifted the child with trembling arms, and pressed its cheeks to his lips. The little creature did not cry, nor appear likely to do so, but

seemed the image of mute apprehension. The whole scene was so painful, that Mr Hylton was not sorry when the Governor of the gaol approached, to intimate that the interview must cease. The prisoner, exhausted with violent excitement, quietly surrendered his child to his attendant, and then silently grasped the hand of Mr Hylton, who thereupon quitted the cell; the door of which was immediately locked upon its miserable occupant: who was once again *alone!*”

From the prison let us to the great Earl’s house. His lordship has become morose and almost vindictive against the supposed murderer of his son, from the very efforts that have been made to save him from the gallows. Had Adam Ayliffe been suffered to die the unpitied death of any other heinous criminal, no one, perhaps, would have more pitied the wretched malefactor than the Earl of Milverstoke himself. The interest taken in the convict, not only by the minister, but by his own daughter, and, as he suspected, by the very widow of the murdered lord, his daughter-in-law, seemed cruel forgetfulness of the dead, and wanton injury to the living. He upbraided the minister who preached the virtues of mercy and forgiveness; he looked with anger and violent impatience when others dared to take up the thread of the clergyman’s unauthorised discourse. During an interview with Lady Alkmond, the Earl had heard the syllables *forgive!* dropping from the widow’s mouth; he made no answer, but repaired to his library, in which he walked to and fro for some time, meditating with sternness and displacency upon the word. Let us open the door gently and carefully, and, using our lawful privilege, look in.

“On taking his seat at length, his lordship opened with some surprise a Testament which lay before him, and guided by the reference written by the trembling fingers of his daughter, he read as follows:—‘So likewise shall my heavenly Father do unto you, if ye from your hearts for give not every one his brother their trespasses.’ This verse the Earl read hastily, then laid down the book, folded his arms, and leaned back in his seat, not with subdued feelings, but very highly indignant. He now saw clearly what had been intended by the faint but solemn whisper of Lady Alkmond, even could he have before entertained a doubt upon the subject. Oh, why did not thoughts of the heavenly temper of these two loving and trembling spirits melt his stern heart? ’Twas not so,

however: and even *anger* swelled within that FATHER'S breast of untamed fierceness—anger almost struggling and shaping itself into the utterance of 'Interference! intrusion! presumption!' After a long interval, in which his thoughts were thus angrily occupied, he reopened the Testament, and again read the sublime and awful declaration of the Redeemer of mankind; yet smote it not his heart. And after a while, removing the paper, he calmly replaced the sacred volume on the spot from which it had been taken by Lady Emily. Not long after he had done so, he heard a very faint tapping at the distant door, but without taking any notice of it; although he had a somewhat disturbing suspicion as to the cause of that same meek application, and the person by whom it was made. The sound was presently repeated, somewhat louder; on which, 'Who's there?—enter!' called out the Earl, loudly, and in his usual stern tone, looking apprehensively towards the door—which was opened, as he had thought, and perhaps feared it might be, by Lady Emily.

"It is I, dear papa," said she, closing the door after her, and advancing rather rapidly towards him, who moved not from his seat; though the appearance of—NOW—his only child, and that a daughter, most beautiful in budding womanhood, and approaching a FATHER with timid, downcast looks, might well have elicited some word or gesture of welcoming affection and tenderness.

"What brings you hither, Emily?" he inquired coldly, as his daughter, in her loveliness and terror, stood within a few feet of him, her fine features wearing an expression of blended modesty and resolution.

"Do you not know, my dearest papa?" said she, gently; 'do you not suspect. Do not be angry!—do not, dear papa, look so sternly at me! I come to speak with you, who are my father, in all love and duty.'

"I am not stern—I am not angry, Emily. Have I not ever been kind to you? Why, then, this unusual mode of approaching and addressing me? Were I a mere tyrant, you could not show better than your present manner does, that I am such.'

"His words were kind, but his eye and his manner were blighting. His daughter's knees trembled under her. She glanced hastily at the table in

quest of the little book which her hands had that morning placed there; and not seeing it, her heart sunk.

“‘Be seated, Emily,’ said her father, moving towards her a chair, and gently placing her in it immediately opposite to him, at only a very little distance. She thought that she had never till that moment seen her father’s face, or at least had never before noticed its true character. How cold and severe was the look of the penetrating eyes now fixed on her—how rigid were the features—how commanding the expression which they wore—how visibly clouded with sorrow, and marked with the traces of suffering!

“‘And what, Emily, would you say?’ he inquired, calmly.

“‘Dearest papa, I would say, if I dared, what my sister said to you so short a time ago—*Forgive!*’

“‘Whom?’ inquired the Earl, striving to repress all appearance of emotion.

“‘Him who is to die on Monday next—Adam Ayliffe. Oh, my dearest papa, do not—oh, do not look so fearfully at me!’

“‘You mean, Emily, *the murderer of your brother!*’ He paused for a moment. ‘Am I right? Do I understand you?’ inquired her father, gloomily.

“‘But I think that he is not—I do believe that he is not.’

“‘But how can it concern *you*, Emily, to think or believe on the subject? Good child, meddle not with what you understand not. Who has put you upon this, Emily?’

“‘My own heart, papa.’

“‘Bah, girl!’ cried the Earl, unable to restrain his angry impulse, ‘do not patter nonsense with your father on a subject like this. You have been trained and tutored to torment me on this matter!’

“‘Papa!—my papa!—I trained! I tutored! By whom? Am I of your blood?’ said Lady Emily, proudly and indignantly.

“‘You had better return, my child, to your occupations’——

“My occupation, dearest papa, is here, and, so long as you may suffer me to be with you, to say few, but few words to you. It is hard if I cannot, I who never knowingly grieved you in my life. Remember that I am now your only child. Yet I fear you love me not as you ought to love an only child, or you could not speak to me as you have just spoken.’ She paused for moment, and added, as if with a sudden desperate impulse—‘My poor sister and I do implore you to give this wretch a chance of life, for we both believe that he is innocent!’

“For a second or two the Earl seemed really astounded; and well he might, for his youthful daughter had suddenly spoken to him with a precision and distinctness of language, an energy of manner, and an expression of eye, such as the Earl had not dreamed of her being able to exhibit, and told of the strength of purpose with which she had come to him.

“‘And you both believe that he is innocent!’ said he, echoing her words, too much amazed to utter another word.

“‘Yes, we do! we do! in our hearts. My sister and I have prayed to God many times for His mercy; and she desires me to tell you that she has forgiven this man Ayliffe, even though he did this dreadful deed, and so have I; wife and sister of the dear one dead, we both forgive, even though the poor wretch be guilty; but we believe him innocent, and if he be, oh, Heaven forbid that on Monday he should die!’

“‘Emily,’ said the Earl, who had waited with forced composure till his daughter had ceased, ‘do you not think that your proper place is in your own apartment, or with your suffering sister-in-law?’

“‘Why should you thus treat me as a child, papa?’ inquired Lady Emily, scarcely able to restrain her tears.

“‘Why should I not?’ asked her father calmly.

“Lady Emily looked to the ground for some moments in silence.

“‘Does it not occur to you as possible that you are meddling? meddling with matters beyond your province? Is it fitting, *girl*,’ he continued, unable to resist an instantaneous but most bitter emphasis on the word, ‘that you should be *HERE*, talking to me at all, for one moment even, on a matter which I have never thought of naming to you—a child?’

“‘I am a child, papa but I am *your* child, and your only one and love you more than all the whole world.’

“‘Obey me, then, as a proof of that love: retire to your chamber, and there wonder at what you have ventured—presumed this morning to do.’

“Lady Emily felt the glance of his eye upon her, as though it had lightened; but she quailed not.

“‘My dear, my only parent, I implore you send me not away; let me—’

“‘Emily, I cannot be disobeyed; I am not in the habit of being disobeyed by any one; it is very sad that I should see the attempt first made by a child.’

“‘Oh papa! forgive me! forgive me!’ She arose, and, approaching him hastily, as she observed him about to advance, sunk on one knee before him, clasping her hands together. ‘Oh, hear me for but a moment. Never knelt I before but to God, yet kneel I now to my father. Oh, have mercy! nay, be JUST!’

“‘Why, Emily, verily I fear that long confinement, and want of exercise, and change, and air, are preying upon your mind; you are not speaking rationally. Rise, child, and do not pursue this folly—or I may think you mad!’ He disengaged her hands gently from his knee, which they had the moment before clasped, and raised her from her kneeling posture, she weeping bitterly.

“‘I am not mad, papa, nor is my sister; but we fear lest God’s anger should fall upon you, nay, upon us all, if you will not listen to the voice of compassion.’

“‘Be seated, Emily,’ said the Earl. ‘Excited as you are at present,’ he continued, with rapidly increasing sternness of manner, ‘no words of mine will be able to satisfy you of the grievous impropriety, nay the cruel absurdity of all this proceeding. You talk to me like a parrot about mercy, and compassion, and God’s anger, and so forth, as though you understood what you were saying, and I understood not what I am doing, what I ought to do, and what I have done. Child, you forget yourself, me, and your duty to me. How dared you to profane yonder

Testament, and insult your father by placing it before him as you did this morning? Did you do so?’

“‘I did,’ she answered, weeping.

“‘You presumptuous girl! forgetful of the fifth commandment!’

“‘Oh, say not so! say not so! I love, reverence you—and I FEAR you, now!’ said Lady Emily, gazing at him with tears running down her cheeks, her dark hair partially deranged, her hands clasped in a supplicatory manner. ‘I prayed to God, first, that I might not be doing wrong; that you might not be angry with me, that if angry, you might forgive me!’

“‘Angry with you? Have I not cause? Never dared daughter do such thing to father before! You presume to rebuke and threaten me—*me*—with the vengeance of Heaven, if I yield not to your sickly dreaming, drivelling sentimentality. Silence!’ he exclaimed, perceiving her about to speak very earnestly. ‘I have not had my eyes closed, I tell you now, for days past—I have observed your changed manner: you have been deliberating long beforehand how to perpetrate this undutifulness! As though my heart had not been already struck as with a thunderbolt from Heaven—you, forsooth, you idle, unthinking child! must strive to stab it—to wound me! to insult me! This is not your own doing: you dared not have thought of it! You are the silly tool of others. Silence! hear me, undutiful girl!

“‘Papa, I cannot hear you say all this, in which you are so wrong. No tool am I of any body! Twice have you said this thing!’ Her figure the Earl perceived involuntarily becoming erect as she spoke, and her eye fixed with steadfast brightness upon his. Had he been sufficiently calm and observant, he might have seen in his daughter at that moment a faint reflection of his own lofty spirit—intolerant of injustice. ‘And even you, papa, have no right whatever thus to talk to me. If I have done wrong, chide me becomingly; but all that you have said to me only hurts me, and stings me, and I cannot submit to it—’

“‘Lady Emily, to your chamber!’ said the Earl, with a stately air, rising; so did his daughter.

“‘My Lord!’ she exclaimed magnificently, her tall figure drawn up to its full height, and her lustrous eyes fixed unwavering upon his own. Neither spoke for a moment; and the Earl began, he knew not why, to feel great inward agitation, as he gazed at the erect figure of his silent and indignant daughter.

“‘My child!’ said he, at length, faintly, with a quivering lip; and extending his arms, he moved a step towards her; on which she sprang forward into his arms, throwing her own about his neck, and kissing his cheek passionately. His strong will for once had failed him; his full eyes overflowed, and a tear fell on his daughter’s forehead. She wept bitterly; for a while he spoke not, but gently led her to a couch, and sat down beside her.

“‘Oh, papa, papa!’ she murmured, ‘how I love you!’

“For a moment he answered not, struggling, and with partial success, to overcome the violence of his emotions. Then he spoke in a low deep tone—

“‘The voices of the dead are sounding in my ears, Emily! the tranquil dead! ’Tis said, my Emily,’ he paused for some moments, and his agitation was prodigious,—‘that stern was I to your sweet mother—’

“‘Oh, dear, dearest, best beloved by daughter, never!’ she cried vehemently, struggling to escape from his grasp, for beheld her rigidly while gazing at her with agonised eyes.

“‘And I now fearfully feel—I fear—that stern I was, as stern I have this day been to you. Forgive me, ye meek and blessed dead!’—his quivering lips were, closed for a moment, as were his eyes. ‘Oh, Emily! she is looking at me through your eyes. Oh, how like!’ he remarked, as if speaking to himself. Lady Emily covered her eyes, and buried her head in his bosom. ‘Do you, my Emily, forgive me?’

“‘Oh, papa! no, no; what have I to forgive? Every thing have I to love! my own, sweet papa! Much I fear that I may have done what a daughter ought not to have done! I have grieved and wounded a father that tenderly loved me—’

“‘Ay, my child, I do,’ he whispered tremulously, gently drawing her slender form nearer to his heart. ‘Emily,’ said he, after a while, ‘go, get

me that Testament which you placed before me; oh, go, dear child!’ She still hung her head, and made no motion of going. ‘Go, get it me; bring it to me!’

“She rose without a word, and brought it to him; and while he silently read the verse to which she had directed his attention, she sat beside him, her hands clasped together, and her eyes timidly fixed on the ground.

“‘It was in love, and not presumption, my Emily, that you laid these awful words before me!’

“‘Indeed, my papa, it was,’ said she, bursting into tears.

“He appeared about to speak to her, when words evidently failed him suddenly. At length—‘And when that sweet soul’—he paused, ‘this morning whispered in my ear, did she know of this that you had done?’ Lady Emily could not speak. She bowed her head in acquiescence, and sobbed convulsively. Her father was fearfully agitated. ‘Wretch that I am!—I am not worthy of either of you!’ Lady Emily flung her arms round him fondly, and kissed him. ‘I am yielding to great weakness, my love,’ said he, after a while, with somewhat more of composure. ‘Yet, never shall I—never can I—forget this morning! I have long felt, and feared, that I was not made to be loved: I have seen it written in people’s faces. Yet can I love!’

“‘I know you can! I know you do, my own dear papa! Do you not believe that I love you? that Agnes loves you?’

“‘I do, my Emily—I do! Yet till this moment have I felt alone in life. In this vast pile, to me how gloomy and desolate! with these woods, so horrible, around me, I have been alone—utterly alone! And yet were you with me—you, my only daughter—who, I suppose, dared not tell me how much you loved me!’

“‘Oh, do not say so, papa! I knew your grief and suffering. They were too sacred to be touched—I wept for you, but in my own chamber!’

“‘You stand beside me as an angel, Emily!’ said the Earl fondly, ‘as you have ever been: yet I now feel as though my eyes had not really seen and known you!’”

The gentle Lady Emily quits her father's room with leave to speak again of Christian mercy, but with no further gain. Still there is time to save the unoffending, and it is not lost. When every hope seemed gone, impelled by an irresistible impulse, and fortified by an unwavering conviction of the prisoner's innocence, Mr Hylton, on the Friday evening preceding the Monday fixed for Ayliffe's execution, as a last resource, had, relying on the king's well-known sternly independent character, written a letter to his Majesty, under cover to a nobleman then in London attending Parliament, and with whom Mr Hylton had been acquainted at college. Mr Hylton's letter to the King was expressed in terms of grave eloquence. It set out with calling his Majesty's attention to the execution, six months before, of a man for a crime of which three days afterwards he was demonstrated to have been innocent. Then the letter gave a moving picture of the exemplary life and character of the prisoner, and of his father; pointed to testimonials given in his favour at the trial; and added the writer's own, together with the most solemn and strong conviction which could be expressed in language, that whoever might have been the perpetrator of this most atrocious murder, it was not the prisoner doomed to die on Monday. It then conjured his Majesty, by every consideration which could properly have weight with a sovereign intrusted with authority by Almighty God, to govern according to justice and mercy, to give his personal attention to the case then laid before him, and act thereon according to his Majesty's own royal and element judgment. The letter suggested by heaven, written by heaven's minister, and read by heaven's intrusted servant, achieved its mission. The King read, and commuted the sentence of death to that of transportation. Upon the morning fixed for the execution a reprieve arrived, almost as the doomed man was walking from his cell to the gallows.

The convict departs; his wife follows him; his child and father remain behind. The former is cared for by the daughter of the Earl of Milverstoke, the latter has still the abiding friendship and regard of Mr Hylton. Twenty years elapse. Perpetual banishment was Adam Ayliffe's sentence, and he is still abroad. His misshapen child has given evidence of commanding abilities, and under another name has been sent, at Mr Hylton's instigation, to the university of Cambridge, where he is maintained still at the charges of the sweet-hearted Lady Emily. We arrive at the season when the annual contest takes place in the university for its most honourable prizes. The dignity of Senior Wrangler is contested by a young nobleman and a

humpbacked youth, of whom little or nothing is known. The rivals, representing as it were the aristocracy and the democracy of the ancient seat of learning, have no unworthy envyings, one against the other; they are friends and friendly co-labourers. The battle comes, the representative of the people is victorious: Viscount Alkmond—for it is he—the son of the murdered man, is beaten by Adam Ayliffe, the offspring of the supposed murderer. The Earl of Milverstoke lives to hear the news!

He lives to hear more! A man in a distant part of the country is executed for a robbery. Before he dies he makes a confession. His name is Jonas Handle. He tells the world, for the relief of his own soul, that he, and none but he, twenty years before, did kill and murder my Lord Milverstoke's son, for which one Ayliffe was taken and condemned to die, but afterwards was transported, and is since possibly dead. He explains minutely how he proceeded to his work; who was his accomplice. He had determined to kill one Godbolt, the head keeper, and, mistaking the young lord for his intended victim, he struck him dead with the coulter of a plough, which coulter he thrust into the hole of a hollow tree hard by. The confession reaches Mr Hylton; the coulter of the plough is sought and found: the exiled innocent is recalled—returns: this also the Earl of Milverstoke lives to hear!

He lives to hear more! Mr Hylton has not suffered twenty years to elapse without appealing to the proud and uncrucified heart of the great Earl, who seemed to have forgotten, in the midst of his transitory splendour, that the great God of heaven himself became a humble man, the eternal pattern of humility to man on earth. The faithful minister knocked at the soul of the arrogant and overbearing lord, until he shook its hardness, and made it meet for heaven and its blessings. When he brought tidings of the murderer's confession, he came to one who had heard from the same lips often before happier tidings, and promises bright with celestial splendour. In former days Mr Hylton had approached the Lord of Milverstoke as a meek martyr would have dared the violence of a savage beast; now he comes with his intelligence to one rendered, at the close of his long life, docile as a lamb. He speaks, and the Earl asks tremulously, and with many sighs, whether his reverend monitor tells him of the murderer's death in judgment or in mercy.

“‘In mercy, dear my Lord! in mercy!’ answered Mr Hylton, with a brightening countenance and a cheerful voice: ‘in you, spared to

advanced age, I see before me only a monument of mercy and goodness! Had you continued till now, deaf to the teaching of His Holy Spirit—dead to His gracious influences—hateful, relentless, and vindictive—this which has now occurred would, to my poor thinking, have appeared to speak only in judgment, uttering condemnation in your ears, and sealing your eyes in judicial blindness! But you have been enabled to hear a still small voice, whose melting accents have pierced through your deaf ear, and broken a heart once obdurate in pride and hopelessly unforgiving. Plainly I speak, dear my Lord, for my mission I feel to be now no longer one of terror, but of consolation! It is awful, but awful in mercy only, and condescension!”

The Earl is old; but there lives another still older, who must be visited without delay. The Saxon patriarch, who, when we first saw him, a man “of simple and stern character” clung to his Bible as to the rock upon which the poor of this world, the sorely beset and the heavily tried, can alone repose in peace, and who referred simply, believingly, and lovingly to that sacred volume, as the cup of sorrow grew fuller and fuller, until at length it overflowed and could hold no more,—this aged man, Ayliffe the grandfather, still lives and owns the cottage which he never would give up. What is the Earl of Milverstoke to do, but to ask pardon from the gray hairs of the man whom the law so much offended, and he still more, by the cruel harshness of his once impenitent spirit? See how he totters to the unpolluted gate!

“Mr Hylton was moved almost to tears at the spectacle which was before his mind’s eye, of these two old men meeting for the first, and it might be for the only, time upon earth; and his offer to accompany his Lordship at once to the cottage, the Earl eagerly accepted, and they both took their departure. As the carriage approached, the Earl showed no little agitation at the prospect of the coming interview.

“‘Yonder,’ said Mr Hylton exultingly, ‘yonder is the humble place where dwells still, and but a little longer, one whom angels there have ministered to; with whom God hath there ever communion; and it is a hallowed spot!’

“The Earl spoke not; and in a few minutes’ time he was to be seen, supported by Mr Hylton and a servant, closely approaching the cottage door, another preceding him to announce his arrival, and standing uncovered outside the door as the Earl entered it; his lordly master himself uncovering, and bowing low as he stepped within, accompanied by Mr Hylton, who led him up to old Ayliffe, saying, ‘Adam, here comes one to speak with you—my Lord Milverstoke—who saith that he hath long, in heart, done to you and yours injustice; and hath come hither to tell you so.’ The Earl trembled on Mr Hylton’s arm while he said this, and stood uncovered, gazing with an air of reverence at the old man, who, when they entered, was sitting beside the fire, leaning on his staff beside a table, on which stood his old Bible, open, with his spectacles lying upon it, as though he had just laid them there. He rose slowly as Mr Hylton finished speaking.

“‘My Lord,’ said he solemnly, and standing more erectly than he had stood for years, ‘we be now both very old men, and God hath not spared us thus long for nothing.’

“‘Ay, Adam Ayliffe, indeed it is so! Will you forgive me and take my hand?’ said the Earl faintly, advancing his right hand.

“‘Ay, my Lord—ay, in the name of God! feeling that I have had somewhat to forgive! For a father am I, and a father *wast* thou, my Lord! Here, since it hath been asked for, is my hand, that never was withheld from man that kindly asked for it; and my heart goes out to thee with it! God bless thee, my Lord, in these thine old and feeble days—old and feeble are we both, *and the grasshopper is a burthen to us.*’

“‘Let me sit down, my friend,’ said the Earl gently. ‘I am feebler than thou; and be thou seated also!’ They both sat down opposite to each other, Mr Hylton looking on in silence. ‘God may forgive me (and *may* He, of His infinite mercy!)—thou, my fellow-creature, may’st forgive me; but I cannot forgive myself, when I am here looking at thee. Good Adam! what hast thou not gone through these twenty years!’ faltered the Earl.

“‘Ay, twenty years it is!’ echoed Ayliffe solemnly, sighing deeply, and looking with sorrowful dignity at the Earl. ‘Life hath, during these twenty years, been a long journey, through a country dark and

lonesome; but yet, here is the lamp that hath shone ever blessedly beside me, or I must have stumbled, and missed my way for ever, and perished in the valley of the shadow of death!’ As he spoke, his eyes were fixed steadfastly on the Earl, and he placed his hand reverently upon the sacred volume beside him.

“‘Adam, God hath greatly humbled me, and mightily afflicted me!’ said the Earl; ‘I am not what I was!’

“‘The scourge thou doubtless didst need, my Lord, and it hath been heavily laid upon thee; yet it is in mercy to thee that thou art here, my good Lord!’ said Ayliffe, with an eye and in a tone of voice belonging only to one who spoke with authority. ‘It is in mercy, too,’ he continued, ‘to me, that I am here to receive and listen to thee! I, too, have been perverse and rebellious, yet have I been spared!—And art thou then, my Lord, in thy heart satisfied that my poor son hath indeed suffered wrongfully?’

“‘Good Adam,’ said the Earl sorrowfully, and yet with dignity, ‘I believe *now* that thy son is innocent, and ought not to have suffered; yet God hath chosen that we should not see all things as He seeth them, Adam. The law, with which I had nought to do, went right as the law of men goeth; but, alas! as for me, what a spirit hath been shown by me towards thee and thine! Forgive me, Adam! There is one here that knoweth more against me’—the Earl turned towards Mr Hylton with a look of gloomy significance—‘than I dare tell thee, of mine own awful guiltiness before God.’

“‘He is merciful! he is merciful!’ said Ayliffe.

“‘Wilt thou give me a token of thy forgiveness of a spirit most bitter and inhuman?’ said the Earl presently. ‘If thy poor son Adam cometh home while I live, wilt thou speak with him that he forgive me my cruel heart towards him?—that he accept amends at my hands?’

“‘For amends, my Lord,’ said Ayliffe, ‘doubtless he will have none but those which God may provide for him; and my son hath no claim upon thee for human amends. His forgiveness I know that thou wilt have, for aught in which, my Lord, thou may’st have wronged him by

uncharitableness; or he is not son of mine, and God hath afflicted him in vain.'

"Here Mr Hylton interposed, observing the Earl grow very faint, and rose to assist him to the door.

"'Good day, friend Adam, good day,' said Lord Milverstoke feebly, but cordially grasping the hand which Ayliffe tendered to him. 'I will come hither again to see thee; but if I may not, wilt thou come yonder to me? Say yes, good Adam! for my days are fewer, I feel, than thine!'

"'When thou canst not come to me, my good Lord, I will come to thee!' said Ayliffe, sadly, following the Earl to the door, and gazing after him till he had driven away."

That time came soon. The Earl grows ill; his end approaches. Exquisitely beautiful is the description of that end. Remembering the old man's plighted word, the sick nobleman sends his servant to the cottage, and demands fulfilment of the promise given. The old man hears and trembles; but with a solemn countenance he gets his hat and stick, puts his Bible under his aged arm, and answers, "Ay, I will go with thee to my Lord."

"When the Earl saw him it was about evening, and the sun was setting, and its declining rays shone softly into the room.

"'Adam, see—it is going down!' said Lord Milverstoke in a low tone, looking sadly at Adam, and pointing to the sun.

"'How is thy soul with God?' said the old man, with great solemnity.

"The Earl placed his hands together, and remained silent for some moments. Then he said, 'I would it were, good Adam, as I believe thine is!'

"'Nay, my good Lord, think only of thine own, not mine; I am sinful, and often of weak faith. But hast thou faith and hope?'

"'I thank God, Adam, that I have some little! Before I was afflicted, I went astray! But I have sinned deeper than even thou thinkest, good soul!'

"'But His mercy, to whom thou art going, is deeper than thy sins!'

““Oh, Adam! I have this day often thought that I could die more peacefully in thy little cottage than in this place!”

““So thy heart and soul be right, what signifies where thou diest?”

““Adam,” said the Earl, gently, ‘thou speakest somewhat sternly to one with a broken spirit—but God bless thee! thy voice searcheth me! Wilt thou make me a promise, Adam?’ said the Earl, softly placing his hand in that of Ayliffe.

““Ay, my Lord, if I can perform it.’

““Wilt thou follow me to the grave? I would have followed thee, hadst thou gone first?”

““I will!” replied Adam, looking solemnly at the Earl.

““And now give me thy prayers, dear Adam! Pray for him that—is to come after me—for I go—and in peace—in peace—”

“Lady Alkmond, who was on the other side of the bed, observed a great change come suddenly over the Earl’s face, while Adam was opening the Bible and adjusting his glasses to read a Psalm. She hastened round, she leaned down and kissed the Earl’s forehead and cheek, grasped his thin fingers, and burst into weeping. But the Earl saw her not, nor heard her: he was no longer among the living!”

It need not be said that the Earl of Milverstoke does what justice he may to the falsely banished man and his family, by making such provision for them in his will, as his circumstances allow and his dignity requires. It need scarcely be mentioned that the close of the career of the Ayliffe family is as serene and happy, as it was stormy and disastrous in its beginning. They are not *compensated* for long-suffering by the money of his lordship; but they are made to see that the ways of God are unsearchable and past finding out, and that now, indeed, men see through a glass darkly, though hereafter they shall see face to face, and know even as they are known. Knowledge and consolation rightly understood, is cheaply purchased, though even with a life of trouble, such as Adam Ayliffe saw.

There remains but a word or two more to say concerning this history, and the tale is told. It has been hinted that Lord Alkmond quitted the banqueting room on the night of his murder on account of the discussion of a subject

which seemed greatly to annoy him. That subject, as appears in the course of the story, was DUELLING. Let the author explain the mystery. It might have had much to do with the tragical catastrophe. Explained, it has nothing to do with it whatever.

“Among several letters which come to the Castle shortly after the Earl’s sudden illness, was one marked ‘Immediate’ and ‘Private and Confidential,’ and bore outside the name of the Secretary of State. From this letter poor Lady Emily learnt the lamentable intelligence that her brother, the late Lord Alkmond had, when on the Continent, and shortly before his marriage, slain in a duel a Hungarian officer, whom, having challenged for some affront which had passed at dinner, he had run through the heart, and killed on the spot: the unfortunate officer leaving behind him, alas! a widow and several orphans, all of them reduced to beggary. The dispute which had led to these disastrous results, had been one of really a trivial nature, but magnified into importance by the young Lord’s quick and imperious temper, which had led him to dictate terms of apology so humiliating and offensive, that no one could submit to them. Wherefore the two met; and presently the Hungarian fell dead, his adversary’s rapier having passed clean through the heart. It was, however, an affair that had been managed with perfect propriety; with an exact observance of the rules of duelling! All had been done legitimately! Yet was it MURDER; an honourable, a right honourable, murder: murder as clear and glaring, before the Judge of all the earth, as that by which Lord Alkmond had himself fallen. When thus fearfully summoned away to his account, the young noble’s own hand was crimsoned with the blood which he had shed: and so went he into the awful presence of the Most High, whose voice had ever upon earth been sounding tremendous in his ears,—*Where is thy brother? What hast thou done? The voice of thy brother’s blood crieth unto me from the ground.* Unhappy man! well might his heart have been heavy, when men expected it to be lightest! Well might his countenance darken, and his soul shudder within him, under the mortal throes of a guilty conscience! From his father’s splendid banqueting table he had been driven by remorse and horror; for his companions, unconscious that they were stabbing to the heart one who was present, WOULD TALK of duelling, and of one sanguinary duel in particular, that bore a ghastly

resemblance to his own. Such poor amends as might be in his power to make, he had striven to offer to the miserable family whom he had bereaved, beggared, and desolated, to vindicate an honour which had never been for one instant really questioned, or compromised; and if it *had* been tarnished, could BLOOD cleanse and brighten it? All the money that he could ordinarily obtain from the Earl, had from time to time been furnished by Lord Alkmond to the family of his victim. For them it was that he had importuned his father for a sum of money sufficient to make for them an ample and permanent provision. Only the day before that on which he had quitted London, to partake of the Christmas festivities, had he written an earnest letter to the person abroad with whom he had long communicated on the subject, assuring him that within a few weeks an ample and satisfactory final arrangement should be made. And he had resolved to make a last strenuous effort with the Earl; but whom, nevertheless, he dared not, except as a matter of dire necessity, tell the nature of his exigency. And why dared not the son tell his father? And why had that father shrunk, blighted, from the mention, by Captain Lutteridge and Mr Hylton, of the conversation which had driven his son out into the solitude where he was slain? Alas! it opened to Lord Milverstoke himself a very frightful retrospect; through the vista of years his anguished, terror-stricken eye settled upon a crimsoned gloom—

“Oh, Lord Milverstoke!—and then would echo in thy ears, also, those appalling sounds,—*what hast THOU done?*”

“For THY—Honour! also, had been dyed in blood!”

We have told as well as we may, but very imperfectly as we feel, the story of “Now and Then.” It is not for us to advise the reader to get the volume and to read it for himself. For this he will, as he should, use his own discretion; but we will, as a faithful Mentor, and a long-tried friend, entreat him, grave, intelligent, and responsible Christian man as he is, should he peruse the volume, to consider well at its close the actual frame of mind in which the book has left him. We hold this to be the true test of all literary metal, whosoever be the coiner, wheresoever be the mint. If the solemn elements brought into the light and pleasant texture of this simple narrative, do not elevate the spirit and brace the heart of all but the thorough sceptic—

whom nothing will elevate but liquor, and nothing brace but a good three-inch oak stick—we are content to be set down as the mere slavish flatterer of Mr Warren, and not as his calm and uninfluenced, though warm and devoted counsellor. The organs of public opinion in London have dwelt upon the contrast which “Now and Then” affords to the current literature of the day. We are not surprised at the impression these critics have received. Whether we regard the tendency and object of the story, its conception and execution, the style of the language, or the construction of the plot, we are bound to confess, that between this production and the heap of Christmas and other tales that drop uselessly, and worse than uselessly, into the world, there is all the difference of the bright, fresh, vigorous mountain air, and the thick fusty atmosphere of the lanes.

The current of piety that flows so equably on through the whole of the work, is lucid as a stream, polluted by no admixture of rank weeds or earthly dirt. It has been justly remarked, by the leading journal of the world, that “Now and Then” “is a vindication in beautiful prose of the ways of God to man.” Every actor in the history vindicates these ways: every fact as it arises does the same. The old Saxon Ayliffe, who, from his entrance till his exit, maintains the justice of God’s doings, and walks peacefully and unruffled over burning plough-shares, because he sublimely feels the practical influence of his faith, is one champion. Hylton, the indefatigable clergyman, doing good for his Master’s sake, reproving the high-born, sympathising with the lowly, preaching and acting reconciliation everywhere, is another champion. The Earl of Milverstoke is a champion too. If he be not, our soul has been moved in vain by the childlike piety and humble self-denial of his broken-hearted latter days.

There is one thing more to note, and then we have done. We have said, at the commencement of this article, that there are certain folks in London and the provinces, who, thinking themselves remarkably fine fellows, and quite above the cant of religion and all that sort of thing, will pooh, pooh the noble tendency of “Now and Then,” and talk about “stupid old times,” “superstition,” “humbug,” and the necessity of going a-head in these enlightened days, whereby they mean going to the devil headlong, though they know it not. These worthies, however, will do something more than pooh, pooh. They will retire to their tap-rooms, and fill their little souls with gin in sheer envy and disgust. Mr Warren, in the delineation of the Ayliffe

family, has beaten the bilious discontented democrats on their own ground. He has taken for his hero a man of the people, but he has sustained the heroism with ample justice to all the world besides. Although the author of “Nature’s Aristocracy,” and “The Godlike Bricklayer,” may be a paragon of benevolence, yet he has not all the benevolence which this huge world of benevolence contains. We will not venture to hint that there lives a human being better than himself, but perhaps there live a few nearly, if not quite as good.

Mr Warren does justice to the masses: but he is much too honest and too upright—being himself one of the masses—to uphold their privileges at the sacrifice of other men’s lawful and just rights. He does not do it; and the English people, who love fair play, will honour him for his work.

We honour him too, and cordially shake him by the hand! He has not done worse than Maga expected from his industry and genius. Had he done worse, by our immortality! much as we love him, much as he has done for us, and we for him, much as we have done together, he should have felt the force of her frown, and been tapped—gently, perhaps, for the first offence—with the crutch that, ere now, with a blow has dealt death to the charlatan and impostor.

Printed by William Blackwood and Sons, Edinburgh.

Footnotes

- [1.](#) *Causes Célèbres et Intéressantes*, by FRANÇOIS GAYOT DE PITAVALL. Paris: 1734.
- [2.](#) *Neuer Pitaval*. Leipzig: 1842-6.
- [3.](#) He beguiled his leisure by a metrical translation of, and commentary on, the Indian poem, *Gita Gowinda*.
- [4.](#) *Merkwürdige Criminalrechtsfälle*. ERFURT, 1808-11. A third edition appeared in 1839, under the title of *Merkwürdige Verbrechen*.

5. The office of knacker (*Schinder, Abdecker*), in recent times often united with that of public executioner, was formerly exercised by his knaves and subordinates, (German, *henkersknechte*; French, *Valets de Bourreau*) and was held especially infamous.
6. The Earl of Angus was succeeded in the Provostship of Edinburgh by Alexander, Lord Home, Great Chamberlain of Scotland, in 1514.
7. “From the cannonade at Valmy may be dated the commencement of the career of victory which carried their armies to Vienna and the Kremlin.”—Alison’s *History of Europe*, vol. iii. p. 210.
8. *Thoughts on British Guiana*. By a Planter. 2d Edition. Demerara, 1847.
9. “The first chapter of this ‘Diary’—The Early Struggles—was offered by me successively to the conductors of three leading Magazines in London, and rejected as ‘unsuitable for their pages’ and ‘not likely to interest the public.’ In despair, I bethought myself of the great Northern Magazine. I remember taking my packet to Mr Cadell’s, in the Strand, with a sad suspicion that I should never see or hear any thing more of it; but at the close of the month I received a letter from Mr Blackwood, informing me that he had inserted the chapter, and begging me to make arrangements for immediately proceeding regularly with the series. It expressed his cordial approval of the first chapter, and predicted that I was likely to produce a series of papers well suited for his Magazine, and calculated to interest the public.”—Extract from Preface to the Fifth Edition of the *Diary of a Late Physician*.

Transcriber’s Notes:

Missing or obscured punctuation was corrected.

Typographical errors were silently corrected.

Spelling and hyphenation were made consistent when a predominant form was found in this book; otherwise it was not changed.

*** END OF THE PROJECT GUTENBERG EBOOK BLACKWOOD'S
EDINBURGH MAGAZINE, VOL. 63, NO. 388, FEBRUARY 1848 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.